

Statesman Edition

VOL. VII

Charles Sumner

HIS COMPLETE WORKS

With Introduction

BY

HON. GEORGE FRISBIE HOAR



BOSTON

LEE AND SHEPARD

MCM

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Title: Charles Sumner: his complete works, volume 07 (of 20)

Author: Charles Sumner

Release date: January 25, 2015 [eBook #48077]

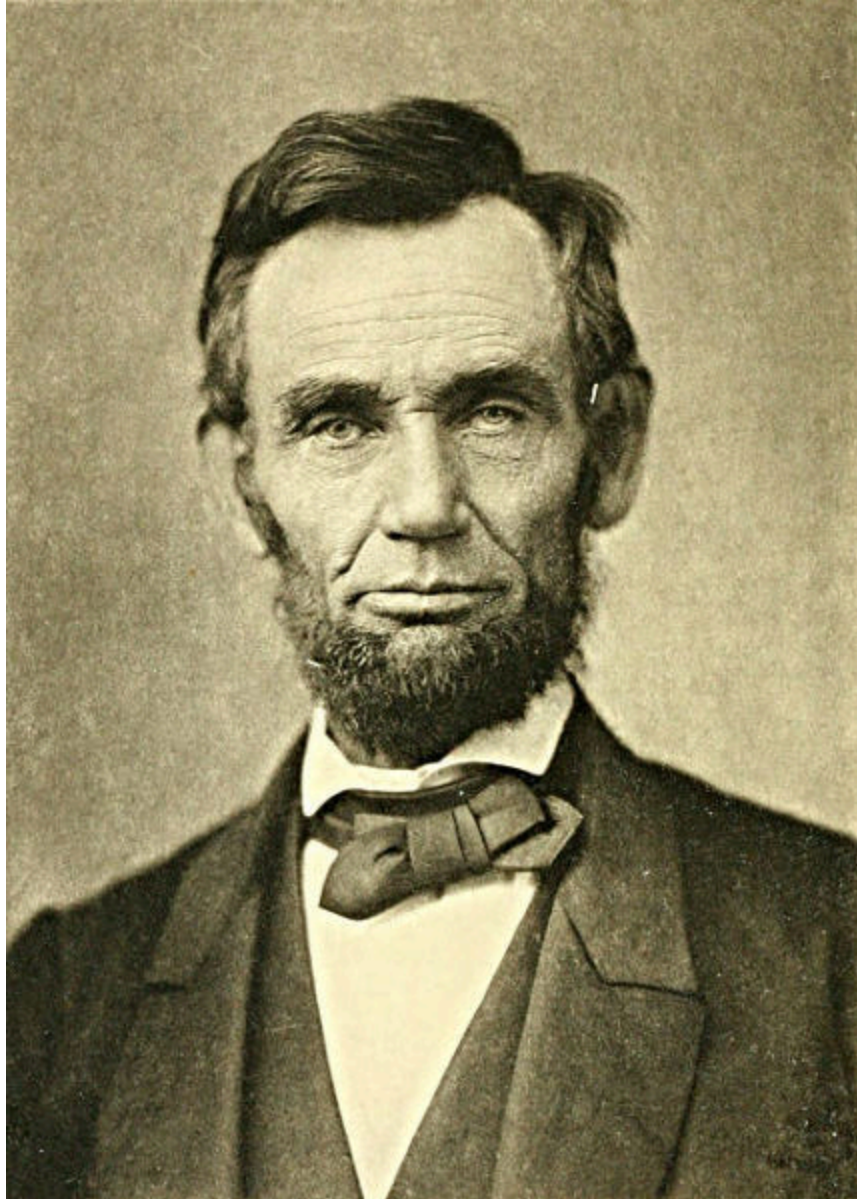
Most recently updated: October 24, 2024

Language: English

Other information and formats: www.gutenberg.org/ebooks/48077

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No. 565

Norwood Press:
NORWOOD, MASS., U.S.A.

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THE UNCONSTITUTIONALITY OF SLAVERY SHOWN FROM ITS BARBARISM.

LETTER TO A POLITICAL ANTISLAVERY CONVENTION AT WORCESTER,
MASSACHUSETTS, SEPTEMBER 9, 1860.



BOSTON, September 9, 1860.

DEAR SIR,—With you I hate, deplore, and denounce the Barbarism of Slavery,—believing that the *nonentity and impossibility* of Slavery under the Constitution of the United States can be fully seen only when we fully see its Barbarism; so that in the Constitutional argument against Slavery the first link is its essential Barbarism, with the recognition of which no man will be so absurd as to infer or imagine that Slavery can have any basis in words which do not plainly and unequivocally declare it, even if, when thus declared, it were not at once forbidden by the Divine Law, which is above all Human Law. Therefore in much I agree with you, and wish you God-speed.

But I do not agree that the National Government has power under the Constitution to touch Slavery in the States, any more than it has power to touch the twin Barbarism of Polygamy in the States, while fully endowed to arrest and suppress both in all the Territories. Therefore I do not join in your special efforts.

But I rejoice in every honest endeavor to expose the Barbarism which degrades our Republic; and here my gratitude is so strong that criticism is disarmed, even where I find that my judgment hesitates.

Accept my thanks for the invitation with which you have honored me, and my best wishes for all Constitutional efforts against Slavery; and believe me, my dear Sir,

Very faithfully yours,

CHARLES SUMNER.

A. P. BROOKS, Esq.

THE FUGITIVE SLAVE ACT MUST BE A DEAD LETTER.

LETTER TO A PUBLIC MEETING AT SYRACUSE, NEW YORK, SEPTEMBER 9,
1860.

This meeting was one of a series, known as “Jerry Rescue Celebration,” being on the anniversary of the rescue of the fugitive slave Jerry from the hands of slave-hunters.

BOSTON, September 9, 1860.

MY DEAR SIR,—You know well how much I sympathize with you personally, and also how much I detest the Fugitive Slave Bill, as a flagrant violation of the Constitution, and of the most cherished human rights,—shocking to Christian sentiments, insulting to humanity, and impudent in all its pretensions. Of course I agree with you that such an enactment, utterly without support in Constitution, Christianity, or reason, should not be allowed to remain on the statute-book; and so long as it is there, I trust that the honorable, freedom-loving, peaceful, good, and law-abiding citizens, acting in the name of a violated Constitution, and for the sake of law, will see that this infamous counterfeit is made *a dead letter*. I am happy to believe that this can be accomplished by an aroused Public Opinion, which, without violence of any kind, shall surround every “person” who treads our soil with all safeguards of the citizen, teaching the Slave-Hunter, whenever he shows himself, that he can expect from Northern men no sympathy or support in his barbarous pursuit.

At your proposed meeting, which it will not be in my power to attend, I trust that just hatred of Slavery in all its pretensions will be subjected to that temperate judgment

which knows how to keep a sacred animosity within the limits of Constitution and Law.

Accept my thanks for the invitation with which you have honored me, and believe me, with much personal regard and constant sympathy,

Sincerely yours,

CHARLES SUMNER.

Rev. S. J. MAY.

EXAMPLE OF MASSACHUSETTS AGAINST SLAVERY.

SPEECH AT A MASS MEETING OF REPUBLICANS, IN THE OPEN AIR, AT
MYRICK'S STATION, MASSACHUSETTS, SEPTEMBER 18, 1860.

A large Republican meeting was held in the open air, at Myrick's Station, September 18, 1860, in Bristol County, Massachusetts. The New Bedford and Taunton Branch Railroad, and the Old Colony and Fall River Railroad, with their branches, were tasked to the utmost in bringing a crowd estimated at eight thousand. There were large delegations from New Bedford, Fall River, and Taunton.

Harrison Tweed, of Taunton, was chosen President, with a long list of Vice-Presidents and Secretaries. The speaking was from a stand in a beautiful grove. After Hon. Henry L. Dawes and Hon. Henry Wilson, Mr. Sumner spoke as follows.

FELLOW-CITIZENS,—Knowing well the character of the good people in the region where we are assembled, I feel that our cause is safe in your hands; nor do you need my voice to quicken the generous zeal which throbs in all your hearts. Proceeding from intelligence and from conscience, your zeal, I am sure, is wise, steady, and determined, even if it do not show itself in much speaking,—like your own faithful Representative in Congress, Mr. Buffinton, who never misses a vote, and whose presence alone is often as good as a speech. He will pardon me, if I say that I am glad to see him here among his constituents, so many of whom I now meet for the first time face to face.

You would hardly bear with me, if, on this occasion, I undertook to occupy your time at length. There is a time for all things; and let me say frankly, that I have come here to mingle with my fellow-citizens, and to partake of their social joy, rather than to make a speech. And yet I cannot let the opportunity pass without undertaking for a brief moment to impress upon you our duties in one single aspect,—I mean *simply as citizens of Massachusetts*. Of course you have duties as men, belonging to the great human family; you have duties also as American citizens, belonging to this National Republic; and you have duties especially as citizens of Massachusetts, not inconsistent with those other duties, but merely

cumulative and confirmatory. Happily, in all good governments duties do not clash, but harmonize; and we may well suspect any pretension, whatever name it assumes, which cannot bear this touchstone.

As *men*, our duties have been grandly denoted in that ancient verse which aroused the applause of the Roman theatre:—

“Myself a man, nought touching man alien to me I deem.”^[1]

What can be broader or more Christian than this heathen utterance? Sympathy, kindness, succor are due from man to man. This is a debt which, though daily paid, can never be cancelled while life endures. And this debt has the sanction of Religion, so that wrong to man is impiety to God. Of course, in the constant discharge of this debt, we must be the enemies of injustice, wherever it shows itself. Nor can we hesitate because injustice is organized in the name of Law and assumes the front of Power. On this very account we must be the more resolute against it.

As citizens of the United States, our duties, fixed in the Constitution and the Declaration of Independence, are of the same character. I say, fixed in the Constitution and the Declaration of Independence; for to these, as our guides, I look. Follow Nature, if you would be its interpreter. This is the *Novum Organum* of Lord Bacon. And so you must follow the Constitution and the Declaration of Independence, if you would be their interpreter. This is the *Novum Organum* of the Republican party. Nothing can be clearer than that these two instruments, if followed to their natural meaning, are in harmony with all the suggestions of justice and humanity; so that our duties as men are all reaffirmed by our duties as American citizens.

And, lastly, as citizens of Massachusetts our duties are identical, but reinforced by circumstances in her history; so that, if, as men, or as citizens of the United States, we hesitate, yet as citizens of Massachusetts we are not allowed to hesitate. By the example of our fathers, who laid the foundations of this Commonwealth in knowledge and in justice, who built schools and set their faces against Slavery, we are urged to special effort. As their children, we must strive to develop and extend those principles which they had so much at heart, and which constitute their just fame.

In the recent conflicts of party it is common to heap insult upon Massachusetts. Hard words are often employed. Some of her own children turn against her. But it is in vain. From the past learn the future. See how from the beginning she has led the way. This has been her office. She led in the long battle of argument which ended in the War of Independence, so that European historians have called our Revolutionary Fathers simply “the insurgents of Boston,” and have announced the object of the war as simply “justice to Boston.” And she has also led in all enterprises of human improvement, especially in the establishment of public schools and the abolition of Slavery. We are told that a little leaven shall leaven the whole lump; it is the Massachusetts leaven which is now stirring the whole country. Wherever education is organized at the public expense, or human rights are respected, there is seen the influence of Massachusetts, who has been not only schoolmaster, but chain-breaker. Such are her titles. Men may rail, but they cannot rail these away. Look at them in her history.

In the winter of 1620 the Mayflower landed its precious cargo on Plymouth Rock. This small band, cheered by the valedictory prayers of its beloved pastor, John Robinson, braved sea and wilderness for the sake of Liberty. In this inspiration our Commonwealth began. That same year, another cargo, of another character, was landed at Jamestown in Virginia. It was twenty slaves,—the first that ever touched and desecrated our soil. Never in history was greater contrast. There was the Mayflower, filled with men, intelligent, conscientious, prayerful, all braced to hardy industry, who before landing united in a written compact by which they constituted themselves “a civil body politic,” bound “to frame just and equal laws.” And there was the Slave-Ship, with its fetters, its chains, its bludgeons, and its whips,—with its wretched victims, forerunners of the long agony of the Slave-Trade, and with its wretched tyrants, rude, ignorant, profane,

“who had learned their only prayers
From curses,”

carrying in their hold that barbarous Slavery, *whose single object is to compel labor without wages*, which no “just and equal laws” can sanction. Thus in the same year began two mighty influences; and these two

influences still prevail far and wide throughout the country. But they have met at last in final grapple, and we are partakers in the holy conflict. The question is simply between the Mayflower and the Slave-Ship,—which of the two to choose?

True to her origin, Massachusetts began at once that noble system of Common Schools which continues her “peculiar institution,” while a College was founded at Cambridge which has grown to be a light throughout the land. Thus together began Common Schools and the College, and together they have flourished always. Said one of her early teachers, in most affecting words,—“After God had carried us safe to New England, and we had builded our houses, provided necessities for our livelihood, reared convenient places for God’s worship, and settled the civil government, one of the next things we longed for and looked after was to advance learning and perpetuate it to posterity, dreading to leave an illiterate ministry to the churches when our present ministers shall lie in the dust.”^[2] In this spirit it was ordered by the General Court, as early as 1642, “That in every town the chosen men appointed for managing the prudential affairs of the same ... shall have power to take account from time to time of all parents and masters, and of their children, concerning their calling and employment of their children, especially of their ability to read and understand the principles of religion and the capital laws of this country.”^[3] This was followed only a few years later, in 1647, by that famous law which ordered, “That every township in this jurisdiction, after the Lord hath increased them to the number of fifty householders, shall then forthwith appoint one within their town to teach all such children as shall resort to him to write and read,” and “that, where any town shall increase to the number of one hundred families or householders, they shall set up a grammar school, the master thereof being able to instruct youth so far as they may be fitted for the University”; and this law, in its preamble, assigned as its object the counteraction of “one chief project of that old deluder, Satan, to keep men from the knowledge of the Scriptures,” and also “that learning may not be buried in the grave of our fathers in the Church and Commonwealth.”^[4] To nothing in her history can Massachusetts look with more pride than to this commanding example, which, wherever followed, must open wide the gates of human improvement.

Again, mindful that printing is the indispensable minister of good learning, they established a printing-press without delay. This was at Cambridge, as early as 1639, and the first thing printed was “The Freeman’s Oath.”

Meanwhile the Slave-Ship continued its voyages and discharged its baleful cargoes. Virginia became a Slave State and the natural consequences of Slavery ensued. Of course the Common School was unknown; for, where Slavery rules, the schoolmaster is shut out. One of her Governors, Sir William Berkeley, said in 1671, “I thank God there are no free schools nor printing, and I hope we shall not have these hundred years; for learning has brought disobedience and heresy and sects into the world, and printing has divulged them and libels against the best government. God keep us from both!”^[5] These remarkable words, which embodied the political philosophy of Slavery, were in an official reply to interrogatories propounded from England.

Thus early was the contrast manifest, which has increased ever since. The evidence is unimpeachable, whether we consult the faithful historian who tells us that early in the last century Boston alone contained five printing-offices and many booksellers, while there was not a single bookseller in Virginia, Maryland, or Carolina,^[6]—or consult the various statistics of the census in our day, where figures speak with most persuasive power for the Mayflower against the Slave-Ship.

While Massachusetts thus founded the School and the Printing-Press, what was her course on Slavery? Alas! not all that we could wish, but still enough to make her an example. Unhappily, Slavery, although in much mitigated form, came to be recognized here. But it never flourished, and it was from the beginning surrounded with impediments to increase. To our glory let it be known that no person could be born a slave on our soil. This odious yoke was not transmissible in the blood. It ended with life, and did not visit itself upon the children of the slave-mother.^[7] It appears also that the slave could take and hold property,^[8]—which no American slave can now do. He could also testify in courts of justice, like a white man,—which no American slave, nor colored person in a Slave State, can now do. A slave, called “Andrew, Mr. Oliver Wendell’s negro,” also “Newtown Prince, a free negro,” and “Cato, a negro man,” were witnesses in the proceedings

against the British soldiers for what is known as the Boston Massacre.^[9] And still further, there were times when the negro, whether bond or free, was enlisted in the militia, and “enjoined to attend trainings as well as the English.”^[10] Indeed, as early as 1643, on the muster-roll of Plymouth is the name of “Abraham Pearse, the blackamore.”^[11] Thus, though Slavery had a certain recognition, it did not give its unjust law to the body politic and to the social life of Massachusetts.

It was natural, therefore, that her General Court should bear witness against “man-stealing.” This it did as far back as 1646, in formal act worthy of perpetual memory. A Boston ship had brought home two negroes kidnapped on the coast of Guinea. Thus spoke the Massachusetts of that day:—

“The General Court, conceiving themselves bound by the first opportunity to bear witness against the heinous and crying sin of man-stealing, as also to prescribe such timely redress for what is past *and such a law for the future as may sufficiently deter all others belonging to us to have to do in such vile and most odious courses, justly abhorred of all good and just men*, do order that the negro interpreter, with others unlawfully taken, be, by the first opportunity, at the charge of the country for present, sent to his native country of Guinea, and a letter with him of the indignation of the Court thereabouts, and justice thereof.”^[12]

Mark the energy of this language. Here is an example, more than a century before Clarkson or Wilberforce, which blasts with just indignation the horrid crime still skulking beneath our national flag. The government that could issue this decree was inconsistent with itself, when it allowed a single person bearing the upright form of man to be held a slave, even for life, anywhere within its jurisdiction.

Slavery flees before the schoolmaster. As early as 1701, its injustice was formally declared by the town of Boston, whose Records contain the following vote, proper for adoption at this day: “The Representatives are desired to promote the encouraging the bringing of white servants, *and to put a period to negroes being slaves.*”^[13] By this official corporate act, first

of the kind in history, Boston stands foremost in the warfare with Slavery. Let her be proud of this post. Her wealth may depart, her warehouses may crumble, her ships may cease to cleave the seas with their keels, and her writers, too, may lose their charm; but this early record of justice and humanity will endure in never-failing brightness.

Other official acts followed. In 1705 a heavy duty was imposed upon every negro imported into Massachusetts. In 1712 the importation of Indians as servants or slaves was strictly forbidden. But the small number of slaves, and the mildness with which their condition was tempered, or, perhaps, a still immature public opinion, postponed definitive action on this great question until our controversy with the mother country, when the rights of the blacks were blended by all true patriots with the rights of the whites. James Otis, in pleading for the Colonies, denounced Slavery of all kinds, while Samuel Adams, on learning from his wife that she had received the gift of a female slave, exclaimed at once, “A slave cannot live in my house; if she comes, she must be free”: she came, and was free.^[14] Sparing all unnecessary details, suffice it to say, that, as early as 1769, the Superior Court of Massachusetts, anticipating the renowned judgment in Somerset’s case, established the principle of Emancipation, and under its touch of benign power changed a chattel into a man. In the same spirit voluntary manumissions took place,—as by Jonathan Jackson, of Newburyport, who, in a deed, which may be found in the Probate Records of the County of Suffolk, declared that it was “in consideration of the impropriety long felt in holding any person in constant bondage, more especially at a time when his country is so warmly contending for the liberty every man ought to enjoy.”^[15] At last, in 1780, even before the triumph of Yorktown had assured that peace which set its seal upon National Independence, Massachusetts, enlightened by her common schools, filled with the sentiment of Freedom, and guided by Revolutionary patriots, placed in front of her Declaration of Rights the emphatic words, “All men are born free and equal,” and by this solemn testimony, enforced by her courts, made Slavery impossible within her borders. From that time it ceased to exist, so that the first census after the adoption of the National Constitution, in the enumeration of slaves, contains a blank against the name of Massachusetts; and this is the only State having this honor. Thus of old did Massachusetts lead the way.

If all this be good for Massachusetts, if she has wisely rejected Slavery, then is it her duty to do for others within the reach of her influence what she has done for herself. And here her sons have not always been remiss. Follow her history, and you find that on the national field they have stood forth for the good cause. In 1785, one of her Representatives in the Continental Congress, the eminent Rufus King, moved the prohibition of Slavery in the Territories of the United States; and in 1787, Nathan Dane, another of her Representatives, reported the Ordinance for the Government of the Northwest Territory, containing this same prohibition. At a later day, when the Missouri Compromise was under discussion, that same son of Massachusetts, Rufus King, whose home was transferred to New York, showed himself inflexible against compromise with Slavery, and in the Senate of the United States, with all his weight of years, character, and ability, led the effort to restrict it. John Quincy Adams, another son of Massachusetts, was at the time Secretary of State, and he enrolled himself on the same side. Afterwards, when the discussion of Slavery was renewed in Congress, this same champion, then a Representative from Massachusetts, entered the lists for Freedom, and in his old age, having been President, achieved a second fame. Slavery, now exalted by its partisans as beneficent and just, he exposed in its enormity; the knot of Slave-Masters who had domineered over the country he denounced with withering scorn; while he vindicated the right of petition, which Slave-Masters assailed, and upheld the primal truths of the Declaration of Independence, which Slave-Masters audaciously denied. Thus constantly spoke Massachusetts, and in her voice was the voice of the Mayflower against the Slave-Ship.

Plainly there is a common bond between the charities, so that one draws others in its train. And the grand charity for which we to-day bless our Commonwealth is only one of many by which she is already illustrious. Goodness grows by activity, and the moral and intellectual character which inspired Massachusetts to do what she has done for Freedom makes her active, wherever the suffering are to be relieved, wherever the ignorant are to be taught, or wherever the lowly are to be elevated, and enables her, though small in extent and churlish in soil, to exert a wide-spread power. This character has given her that name on earth which is a source of pride to her children. Strike out from her life all that is due to this influence, and

how great the blank in her history! I do not say that her children would disown her; but they would hardly rise up to call her blessed, as they now do.

It is our duty to keep Massachusetts in her present commanding position,—true to herself in all respects,—true to that Spirit of Liberty in which she had her origin,—true to the “just and equal laws” promised in the Mayflower,—true to her early and long-continued efforts against Slavery,—true to the declaration in her own Bill of Rights by which Slavery was abolished within her borders,—true to the examples of her illustrious representatives, Rufus King, Nathan Dane, and John Quincy Adams,—and, lastly, true to that moral and intellectual character which has made her the home of generous charities, the nurse of true learning, and the land of churches. This is our duty. And permit me to say, that this can be done now only by earnest, steadfast effort to arrest the power of Slavery, overshadowing the whole country, and menacing boundless regions with its malign influence. And this is the very purpose of the Republican party.

Against the Republican party are arrayed three factions, differing in name, differing superficially in professions, but all concurring in hostility to the Prohibition of Slavery in the Territories, and therefore all three Proslavery. As the Republican party represents the Mayflower, so do these three factions, whether fused or apart, represent the original Slave-Ship,—and you, fellow-citizens, are here to choose between them.

In this contest we appeal to all good citizens. We appeal alike to the Conservative and to the Reformer; for our reasonable and most moderate purpose commends itself alike to both. To the Conservative it says, “Join us to preserve the work of our fathers, and to maintain the time-honored policy of Massachusetts.” To the Reformer it says, “Join us to improve the human family, to support free labor, and to save the Territories from that deplorable condition where ‘one man ruleth over another to his own hurt,’ and human character suffers as much from the arrogance of the master as from the abasement of the slave,—a condition which is founded on nothing else but force,—

‘the simple plan,
That they should take who have the power,
And they should keep who can.’”^[16]

Our course is commended also by our candidates. Of Mr. Lincoln and Mr. Hamlin I have already elsewhere spoken, and know that in this presence it is needless to speak of Mr. Andrew. You all anticipate his praise before it can be uttered. Of unquestioned abilities, extensive attainments, and rare aptitude for affairs, his integrity has already passed into a proverb, and his broad sympathies cause us to forget the lawyer in the man. Nobody questions his intelligence, or the happy faculties which make him at home in all that he attempts. But it is sometimes complained that he has a “heart,” as if this were dangerous in a Massachusetts Governor; and fears are excited because he is “honest,” as if such a character could not be trusted. Thank God, he has a heart, and is an honest man. In these respects, and in his well-matured convictions, always expressed with honorable frankness, he embodies the historic idea of Massachusetts, and treads in the footsteps of the Fathers.

Fellow-citizens, if I have dwelt exclusively on our duties as citizens of Massachusetts, it is because I seek to impress these especially upon your minds. On other occasions I have treated other parts of the argument; but to-day my hope is to make you feel that you cannot turn from the Republican party without turning also from those principles by which Massachusetts has won her place in history, and without turning from the Mayflower, and its promise of “just and equal laws,” to embark on that dismal Slave-Ship which in the same year first let loose upon our country all the cruel wrongs and woes of Human Bondage.

CONTRIBUTIONS OF SCHOOLS FOR STATUE OF HORACE MANN.

LETTER TO THE AGENT FOR RECEIVING CONTRIBUTIONS, SEPTEMBER 19, 1860.



BOSTON, September 19, 1860.

MY DEAR SIR,—Surely the statue of Horace Mann ought to be made, and you are right in appealing for contributions to those who have been especially benefited by his noble labors. When I think of their extent and variety, embracing every question of human improvement, I feel that there are none to whom this appeal may not be confidently addressed.

I know nothing more appropriate or touching than the contributions you are gathering from the schools. It is true that there is no school in Massachusetts which has not been improved by his labors, and therefore no pupil or teacher who is not his debtor. But it is pleasant to feel that this debt is recognized.

I doubt not that every child who gives his “mite” will be happy hereafter in the thought, especially when he looks at the statue in the public grounds of the Commonwealth. He will of course have new interest in the man, and therefore a new and quickening example of excellence, which may send its influence through life. The teacher, besides sharing these feelings with the pupil, must look with grateful pride upon a tribute which, so long as it endures, will proclaim the dignity of his profession.

The engraving of Mr. Mann is faithful and agreeable. I hope it may be in every school, so that children may early

learn the countenance of their benefactor.

Believe me, dear Sir, with my best wishes,

Very faithfully yours,

CHARLES SUMNER.

CHARLES A. PERRY, Esq.

REMINISCENCE OF THE LATE THEODORE PARKER.

REMARKS AT THE ANNUAL OPENING OF THE FRATERNITY LECTURES OF
BOSTON, OCTOBER 1, 1860.

Mr. Sumner delivered the opening address for the season in the "Fraternity" Lectures, established by the Society bearing that name, of which Theodore Parker was the much-loved pastor. Before proceeding with his address he made a brief allusion to the great preacher and reformer. This was in the Tremont Temple. According to a newspaper of the time, "the immense hall was crowded in every part; not only were all the seats occupied, but also all available standing-room." "Mr. Sumner spoke two hours and five minutes, and commanded the entire attention of the audience to the close," and "was frequently interrupted by the most enthusiastic applause."

The address of the evening, on Lafayette, was again delivered a few weeks later in New York, and will be found in this collection at that date. The introductory words are given here.

FELLOW-CITIZENS, LADIES, AND GENTLEMEN:—

I n opening this course of lectures, devoted to Human Improvement, I cannot forget that noble spirit, especially dear to many of you as pastor, whom we had hoped to welcome at this time in restored health, instead of mourning dead in a distant land. I knew him well, and never came within his influence without confessing his many-sided powers, his marvellous acquirements, his rare eloquence, his soul touched to so many generous sympathies, and his heart beating warm for his fellow-men. To the cause of Human Improvement, in every form, his life was given. For this he labored; for this he died.

It was my fortune to see him during several days in Paris, some time after he parted from you. He had recently arrived from the West Indies. I feel that I cannot err in offering a slight reminiscence of that meeting. I found him the same in purpose and aspiration as I had always known him,—earnest, thoughtful, and intent on all that helped the good of man, with the same completeness of intelligence, and the same large, loving heart. We visited together ancient by-ways and historic scenes of that wonderful metropolis, which no person was more forward to appreciate and to enjoy; but, turning

from these fascinating objects, his conversation took the wings of the morning, and, traversing the Atlantic, rested on our own country, on friends at home, on his relations to his parishioners, on his unfinished labors, and on that great cause of Liberty, which contains all other causes, as the greater contains the less; for where Liberty is not, what is man, whether slave or master? Observing him carefully, with the fellow-feeling of a convalescent, I was glad and surprised to find in him so many signs of health. At that time he was stronger than I was; but he has been taken, and I am spared. Indeed, it was only in the husky whisper of his voice that he seemed weak. I envied him much his active step and his power to walk. But he had measured his forces, and calmly revealed to me his doubt whether he should live to see home again. If this were permitted, he did not expect to resume his old activities, but thought that in some quiet retreat, away from paved streets, surrounded by books, he might perhaps have strength to continue some of his labors, to bind up some of his sheaves, and occasionally to speak with his pen. But it was ordered otherwise. Not even this moderate anticipation was gratified. The fatal disease had fastened too surely upon him, and was slowly mastering all resistance. The devotion of friends, travel, change of scene, the charms of Switzerland, the classic breath of Italy, all were in vain. It was his wish that he should be buried where he fell, and this child of New England, the well-ripened product of her peculiar life, now sleeps in Tuscan earth, on the banks of the Arno, near the sepulchres of Michel Angelo and Galileo. But I know not if even this exalted association can make us content to renounce the pious privilege of laying him in one of our own tombs, among the people that he loved so well.

Pardon me for thus renewing your grief. But I felt that I could not address you on any other subject until I had mingled my feelings with yours, and our hearts had met in sympathy for our great bereavement.

THREAT OF DISUNION BY THE SLAVE STATES, AND ITS ABSURDITY.

SPEECH AT A MASS MEETING OF REPUBLICANS, IN THE OPEN AIR, AT
FRAMINGHAM, MASSACHUSETTS, OCTOBER 11, 1860.

A Mass Meeting of Republicans was held in Harmony Grove at Framingham, October 11, 1860, with the following officers.

President,—Hon. Charles R. Train of Framingham.

Vice-Presidents,—A. C. Mayhew of Milford, Milo Hildreth of Northborough, Charles Devens of Worcester, Samuel M. Griggs of Westborough, William F. Ellis of Ashland, Alden Leland of Holliston, John O. Wilson of Natick, Hollis Loring of Marlborough, James Moore of Sudbury, J. N. Bacon of Newton, Amory Holman of Bolton, S. D. Davenport of Hopkinton, George W. Maynard of Berlin, B. W. Gleason of Stowe, J. D. Wheeler of Grafton, Charles Campbell of Wayland, Sullivan Fay of Southborough, Albert Ballard of Framingham.

Secretaries,—Thomas W. Fox of Worcester, Nelson Bartholomew of Oxford, A. B. Underwood of Newton, and Theodore C. Hurd of Framingham.

The meeting was addressed, among others, by Hon. John P. Hale, Hon. Henry Wilson, and John A. Andrew, Esq., the Republican candidate for Governor. The report at the time says:—

“While Mr. Wilson was speaking, Hon. Charles Sumner arrived upon the ground, and, on stepping upon the platform, was greeted with great applause. At the close of the speech of Mr. Wilson, the President presented Mr. Sumner, who was received with nine hearty cheers. After silence was obtained, Mr. Sumner addressed the meeting.”

This speech was quoted as the Framingham Speech by M. Cochin, the philanthropic Frenchman, in his important work, *L'Abolition de l'Esclavage*.^[17]

FELLOW-CITIZENS,—The German Siebold begins his great treatise on the “Anatomy of the Invertebrates” with this general remark:—

“The *Invertebrate* animals are organized after various types, the limits of which are not always clearly defined. There is, therefore, a greater number of classes among them than among the *Vertebrates*.”

In this remark of the illustrious naturalist I find an explanation of the number of parties now arrayed against us. On one side is the Republican party, openly declaring its principles, and looking with confidence to the Future. Threats of disunion, and menaces of violence, in constant cry, do not disturb it. Such a party may properly be called the *Backbone party*, or, adopting the phraseology of the German naturalist, the party of the *Vertebrates*.

But against the Republican party here in Massachusetts are three parties, or factions rather, which cannot be precisely named except from their candidates. Differing from each other superficially, they all concur in practical support of Slavery. At this moment, when the propagandists of Slavery insist upon its extension into the Territories, all these three factions lend themselves actively or passively to this work, and thus become practically Proslavery. Unwilling here in Massachusetts openly to advocate a wrong so unmistakable as Slavery, they find excuse in alleged danger to the Union, and bend before the threats and menaces of Slave-Masters. Not in the name of Freedom, which is really in danger, but in the name of the Union, which is only threatened, do they all three rally against the Republican party. In their flexibility to threats and menaces, they show a want of that backbone which characterizes the Republican party. In short, though differing from each other, they all take their place among *Invertebrates*, which, according to the naturalist, are of more various types than *Vertebrates*.

There is the Bell faction, the Breckinridge faction, and the Douglas faction, all three *Invertebrates*, declaring that the Union is in danger, and asking your votes in order to save it. That is, they ask you to abandon cherished convictions, and to allow Slavery, with all its Barbarism, to enter the outlying Territories of the Republic, simply because certain Slave-Masters threaten disunion. Instead of opposing the treason which is threatened, Freedom-loving voters of the North are summoned to surrender. Instead of scorning the violence which is menaced, we are asked to cringe before it. I ask you if this is not the special point of every appeal by any speaker representing either of these factions? No man so audacious here in Massachusetts as to argue for Slavery openly. He knows that his argument would be scouted. It is therefore by appeal for the Union that people are deluded. In this way the weak are cajoled, the timeserving are seduced, and

the timid are frightened; and people professing opposition to Slavery gravely come forward as supporters of these Proslavery factions.

The unknown is apt to be exaggerated; so that, if these threats of disunion were now heard for the first time, we might, perhaps, pardon men who yield to their influence. But since this is not the first time such cries are heard,—since, indeed, they have been long sounding in our ears, so that their exact value is perfectly understood from the very beginning,—there seems no longer excuse or apology for hearkening to them. They are to be treated as threats, and nothing more. Look at them from the outset, and you will see their constant recurrence as weapons of political warfare.

Even while the Constitution was under discussion in the National Convention, the threats began. Georgia and South Carolina announced that they would not come into the Union, unless the African Slave-Trade, so dear in their sight, was allowed for twenty years under the Constitution; and the North ignominiously yielded this barbarous privilege, thus consenting to piracy. The cry from these States was then, “We will not come in.” Ever since it has been, “We will not stay in.”

One of the earliest and most characteristic outcries was on the ratification of Jay’s Treaty in 1795. This famous treaty, negotiated by John Jay, at that time Chief Justice of the United States, under the instructions of Washington, provided for the surrender of the Western posts by Great Britain, and indemnity to our merchants for spoliations on their commerce, and also the adjustment of claims of British merchants upon our citizens. In the opposition which it encountered we meet the following threat of disunion in Virginia, published in Davis’s Gazette, at Richmond.

“Notice is hereby given, that, in case the treaty entered into by that d—d arch-traitor, J—n J—y, with the British tyrant should be ratified, a petition will be presented to the General Assembly of Virginia, at their next session, praying that the said State may *recede* [such was the word in that

early day] from the Union, and be left under the government and protection of one hundred thousand free and independent Virginians.

“P. S.—As it is the wish of the people of the said State to enter into a treaty of amity and commerce and navigation with any other State or States of the present Union who are averse to returning again under the galling yoke of Great Britain, the printers of the (at present) United States are requested to publish the above notification.”^[18]

Thus early was this menace tried. But the treaty was ratified.

The menace was employed with more effect to secure the adoption of the Missouri Compromise. This was in 1820. Missouri applied for admission into the Union as a Slaveholding State. Her admission was opposed by the North on the declared ground that it was not right to give any such sanction to Slavery. Thus the whole Slave Question was opened; and it was discussed with much thoroughness and ability, under the lead of Rufus King, once an eminent representative of Massachusetts, but at that time a venerable Senator from New York. Overthrown in argument, the Slave-Masters resorted to threats of disunion. The Union was pronounced in danger, and under this cry a compromise, first suggested in the House by Louis McLane, a Representative from Delaware, and in the Senate by William Pinkney, a Senator from Maryland, was adopted, by virtue of which Missouri was admitted as a Slave State, while Slavery was prohibited in the remaining territory north of 36° 30′, at that time trodden only by Indians. The special operative gain to the Slave-Masters was the admission of Missouri as a Slave State, with two new slaveholding Senators to confirm their predominance in the Senate; and this was notoriously secured under threats of disunion, by which weak men at the North were intimidated.

A record at the time by the late Mr. Justice Story, who was then at Washington, shows the temper especially of Virginia. Writing to a friend at home, he says:—

“Mr. Randolph, in the House of Representatives, made a furious attack upon all who advocated the Compromise. He

said: ‘The land is *ours* [meaning Virginia’s], and we will have it, and hold it, and use it as we [Virginians] please.’ He abused all the Eastern States in the most bitter style, and intimated in the most direct manner that he would have nothing to do with them. ‘We,’ said he, ‘will not cut and deal with them, but will put our hands upon our pockets and have nothing to do in this game with them.’ His speech was a very severe philippic, and contained a great many offensive allusions. *It let out the great secrets of Virginia, and blabbed that policy by which she has hitherto bullied us, and led us, and wheedled us, and governed us.* You would not have supposed that there was a State in the Union entitled to any confidence or character, except Virginia.”^[19]

Such is the testimony of a tranquil observer, friend and associate of that illustrious Virginian, John Marshall, who witnessed this manifestation of the bullying spirit, and judged it.

Ten years passed, from 1820 to 1830, and the cry was raised again. It was now on the allegation of injustice in our Tariff. Here South Carolina took the lead, and openly threatened Nullification,—in the face of the arguments of Daniel Webster and the proclamations of Andrew Jackson. A modification of the tariff became necessary before this cry of “wolf” ceased. General Jackson, in a private letter written at the time, and now in the possession of our candidate, Mr. Andrew, predicts that “the Negro Question” will be the next occasion for it;^[20] and he was right.

The subject of Slavery came up in Congress on petitions as early as 1835, and then commenced the great career of John Quincy Adams, as champion of Freedom, eclipsing even all his glories as diplomatist and President. At the presentation of petitions by this illustrious statesman, the old threats were revived; and falling before them, the Right of Petition itself was sacrificed. You all remember the depth of this humiliation.

This was followed by still another, on the introduction of the Wilmot Proviso, which was simply a proposition to prohibit Slavery in the Territories. The same threats broke forth with increased violence. Citizens at the North, while avowing hostility to Slavery, professed to be alarmed for

the Union. Again they bowed, and in 1850 assisted in those Acts of Compromise, by which the Territories of Utah and New Mexico were left open to Slavery, and a Fugitive Slave Bill was passed, outraging alike every principle of Constitutional Liberty and every sentiment of Humanity. Here was surrender to this cry.

The menace of disunion at the South became chronic. Not a day passed that it was not uttered. At length, in 1856, John C. Fremont was nominated as candidate for the Presidency by the Republican party. As his election seemed at hand, we were again encountered by the same old threats. We were told, that, even if elected according to the forms of the Constitution, the Slave-Masters would not allow him to be inaugurated, and people at the North were summoned ignominiously to vote against him for the safety of the Union; and they surrendered to the call. Without this, John C. Fremont would have been chosen President. Thus again did the old menace prevail; and the chronic cry still continued, showing itself on the election of a Speaker, and then on the approval of Mr. Helper's book by sixty-seven Members of Congress.^[21]

And now Abraham Lincoln is the candidate, instead of John C. Fremont. Again the threats are renewed with increased animosity, and you are asked to vote against a statesman of marked abilities and blameless character, representing the early sentiments of the Fathers, simply because Slave-Masters menace disunion in the event of his election. Bending with *invertebrate* backs before these threats, you are called to surrender your principles, your votes, and your souls.

Thus seven times, at seven different stages in our history, since the adoption of the Constitution, has this menace of disunion been made to play its part. Whatever it might have been at first, it is now nothing more than "second childishness and mere oblivion, *sans* everything." There is nothing in it which should not be treated with indignant contempt, certainly when employed here in Massachusetts to make us sacrifice our principles.

Absurd on the face, its absurdity is fully appreciated only when we consider its impotence as a remedy for the alleged grievances of the Slave

States. They complain that fugitive slaves are not faithfully surrendered,—or, in other words, that some score or two of human beings, following the North Star, with the assistance of Northern men, succeed in securing their freedom. But disunion surely would be a poor remedy for this intolerable grievance; for it would leave them without even their present protection in this respect, without a Fugitive Slave Bill, or any constitutional safeguard, so that all fugitives, just so soon as they crossed the frontiers of the Slave States, would become free,—precisely as if Canada, with its British welcome to slaves, were carried down to the borders of Virginia and Maryland. If slaves escape now, what would they do then? If such things are done in the green tree, what would be done in the dry? Surely, in this case, it were better to

“bear the ills they have
Than fly to others that they know not of.”

The other grievance is of the same character. The Slave-Masters complain, that, by the prohibition of Slavery in the Territories, they are deprived of the opportunity of new Slave States through which their predominance in the Senate may be continued. But, pray, what remedy for this loss can be found in disunion? Surely they cannot add to their present political strength by renouncing securities and dignities which they now enjoy in the national copartnership. It is true, that, while in the Union, they may be voted down on matters within the national jurisdiction and outside of the States; but they may nevertheless exert an influence, which on their withdrawal must be entirely renounced.

Such are the two grievances which are to justify disunion; and pardon me, if I venture to illustrate the irrational character of this remedy by an incident of scientific interest. The monkey in the *Jardin des Plantes* at Paris was found biting the rope by which he was suspended from the roof. “See,” said the learned professor, “that monkey shows the difference between brutes and men. He sees what he is doing, but does not see the consequence,—that down he will fall.” And the Slave States also bite the rope by which they are suspended, and, like the unreasoning brute, see not the consequence.

Yet more apparent is the absurdity of this threat, when we consider how it is to be accomplished. If the Slave States were solemnly unanimous at home, the cry might have a certain force. But it is well known that they are not unanimous. Whatever the threats of disorganizing extremists, the large mass of people even in the Slave States do not desire disunion. They keep aloof now from such threats, and openly declare their purpose to put down the traitors without assistance from the North; and this I cannot doubt would be done. Such men as Cassius M. Clay and the Blairs would find a field for their energies, and they would see at their side people who have not hitherto acted with them gladly forgetting past differences for the sake of a common cause. Here are emphatic words, just uttered by a speaker at the South, in reply to Mr. Yancey, which show that any such attempt would fare badly, even at home:—

“I am one of a numerous party at the South, who will, if even Lincoln shall be elected under the forms of our Constitution and by the authority of law, without committing any other offence than being elected, force the vile disunionists and secessionists of the South to pass over our dead bodies in their march to Washington to break up this government.”

But the absurdity of this threat glares upon us still more, when we reflect on the unhappy condition in which disunion would leave the seceding Slave States. Antiquity, by numerous instances, declares the danger from slaves, and history is continually verifying this truth. Even now, while I speak, we hear of insurrection at Norfolk, in Virginia, carrying with it wide-spread alarm, and the necessity for most especial vigilance. But in the event of disunion this condition would become permanent, so that life, if not a tragedy, would be a penance long drawn out. The whole region cursed with Slavery would be dotted over with fortifications and military posts; communities would be changed into camps carefully guarded against surprise; life would be as in Turkey or Tartary; and every Slave-Master would sleep with all the precautions of a highwayman fearing arrest, or of the mad prince, Don Carlos of Spain, who had two naked swords and two loaded pistols under his bed, and two arquebuses with powder and balls in his closet. The mother, as she heard the fire-bell at midnight, would clasp her infant to her breast, fearful that at last the long hoarded resentments of

the slave would be vindictively indulged. Even the soil, now so productive, would refuse its increase; for Nature herself would cease to smile amidst the alarms of servile war. Thus cruelly harassed and impoverished at home, the Slave States could find little comfort abroad. For a brief moment they might brave the scorn and contempt poured upon them; but they must fail to have the sensibilities of men, or they would at last shrink before the finger-point of the civilized world. The house of Lycaon, the cruel king of early Greece, was destroyed by the thunder of Jove, and the miserable monarch changed to a wolf. Such would be the doom of a State which set at defiance the laws of Humanity. It would have a *wolf's head*, and all would be against it.

The States which especially threaten secession are on the Mexican Gulf, and they have become known already as “The Gulf Squadron.” Not yet wolves, they are now ships. Let them sail, with the black flag at the mast-head. I know not how the tale would end, but I know well that Slavery could not gain. Their dismal fate is, perhaps, prefigured in that of the slaver loaded down with its human cargo, where the crew were all struck with ophthalmia, and in this condition of blindness, while vainly striving to navigate the vessel, and weltering on the sea, were at last picked up by a charitable cruiser and carried into port. Or perhaps it is prefigured in that of the famous craft known in story as “The Flying Dutchman,” which, darkened by piracy and murder, was doomed to perpetual cruise, unable to enter a port:—

“Faint and despairing on their watery bier,
To every friendly shore the sailors steer;
Repelled, from port to port they sue in vain,
And track with slow, unsteady sail the main....
Unblest of God and man! Till time shall end,
Its view strange horror to the storm shall lend.”^[22]

Such is Disunion, in the history of its threats,—also in the reasons now alleged for it, the difficulties in its way, and its dismal consequences. But in all these aspects, from the beginning, we find but one supreme absurdity. It is the same, whether we ask Why? How? or What?

And yet you and I here in Massachusetts are summoned, under threats of disunion, to withdraw opposition to the extension of Slavery, and in token thereof to vote for Bell, or Breckinridge, or Douglas. I can do no such thing; nor do I see how any Northern man, with a head on his shoulders, or a heart in his bosom, or a backbone in his body, can do any such thing. Nor must fealty to the Union be measured by loud-mouthed profession. Not Cordelia, loving her father, in all simplicity, “according to her bond,” but the sisters Goneril and Regan, so fervent in professions, sacrificed him. And I do not hesitate to declare that the Republican party is the only true Union party. In the first place, it is the only party which is not connected in some way, by association, affiliation, communion, or sympathy, with disunionists; and, in the second place, it is the only party which seeks the establishment of those national principles of Freedom on which the Union was originally founded, and without which it cannot exist in security or honor.

As it is the only Union party, so the Republican party is the only Constitutional party. It is the only party which takes the Constitution unreservedly as guide, according to the spirit in which it was made, and the light of its Preamble,—rejecting the Proslavery interpretations adopted by the Bell faction, the Breckinridge faction, and the Douglas faction, all of which, in whatever form, are abhorrent to the spirit of the Constitution and the very words of its Preamble. In that Preamble it is declared that the Constitution is made to “establish justice, insure domestic tranquillity, provide for the common defence, promote the general welfare, and secure the blessings of Liberty to ourselves and our posterity.” Mark these important words. It is to establish justice: but Slavery is injustice. It is to insure domestic tranquillity: but Slavery insures domestic discord and insurrection. It is to provide for the common defence: but Slavery causes common weakness. It is to promote the general welfare: but Slavery perils the general welfare. Finally, it is to secure the blessings of Liberty to ourselves and our posterity: but Slavery sacrifices these blessings. Such is the Preamble, which is the key to the Constitution. The Republican party alone adopts its principles, as it alone adopts most honestly and sincerely the often declared opinions of its founders. Therefore it is the only Constitutional party.

For the Union and the Constitution, the Republican party is also the only party which maintains the great principles of Human Freedom. Thus in

every respect is it commended to your support. The man who asks you here in Massachusetts to vote against it is either very weak, and believes in his own bad reasoning, or very artful, and laughs in his sleeve at your credulity, or very spiteful, and allows all things, even his principles and his country, to be lost in the gratification of a vindictive temper. Look at your opponents here, and you will find that weakness, duplicity, and spite are the three main springs to their conduct. This is a severe analysis, but I think the facts support the assertion.

Frankness is not a virtue of our opponents, else we should have this issue between us more fairly stated. But you will not be deceived. You will see, that, amidst all disguises and subterfuges, the great question perpetually recurs: Are you for Freedom, or are you for Slavery? On this single question you are to vote; and no cry of "Disunion" can change the issue. Are you for Freedom in the Territories? Are you for a National Government administered in the spirit of the Fathers? Are you for the prostration of the Slave Oligarchy which now rules the country? Vain is the attempt to interpose other questions, even that of the Union itself; and vain is the attempt to separate the combatants. The ancient armies of Rome and Carthage fought on, unconscious of an earthquake which upheaved mountains, toppled down cities, and turned the course of rivers. But the animosity between Freedom and Slavery is not less implacable and self-forgetful. It can end only with the triumph of Freedom.

Freedom, which is the breath of God, is a great leveller; but it raises where it levels. Slavery, which is the breath of Satan, is also a great leveller; but it degrades everything, carrying with it master as well as slave. Choose ye between them; and remember that your first duty is to stand up straight, and not bend before absurd threats, whether uttered at the South or repeated here in Massachusetts. Let people cry, "Disunion." We know what the cry means, and we answer back: The Union shall be preserved, and made more precious by its consecration to Freedom.

NO POPULAR SOVEREIGNTY IN TERRITORIES CAN ESTABLISH SLAVERY.

SPEECH IN THE MECHANICS' HALL, WORCESTER, NOVEMBER 1, 1860.

This speech was made on the eve of the Presidential election, with the special purpose of sustaining Hon. Goldsmith F. Bailey, the Republican candidate for Congress in the Worcester District, against Hon. Eli Thayer, the previous Representative, who, failing to obtain the Republican nomination, became an Independent candidate. When it was known that Mr. Sumner had accepted an invitation from the Republican Committee to speak in the District, Mr. Thayer addressed him a letter, proposing a public discussion together on an evening named. To this challenge Mr. Sumner promptly replied in the following letter.

BOSTON, October 30, 1860.

MY DEAR SIR,—I make haste to acknowledge your favor of 29th October, that I may not seem for a moment to fail in any courtesy towards you.

I have been invited by the Republicans of Worcester to address them in support of their candidate, and have not felt at liberty to decline the invitation. But I should not like to take part in any controversy with an Opposition candidate, even had I been invited to do so.

Accept the good wishes which I sincerely cherish for your personal welfare, and believe me, dear Sir,

Faithfully yours,

CHARLES SUMNER.

HON. ELI THAYER.

Mr. Sumner, yielding with reluctance to the pressure upon him, consented to speak on this occasion, solely with the desire of striking a last blow at a political heresy which stood in the way of establishing Freedom in the Territories, and of helping to save an important District of Massachusetts from being represented by one of its partisans. The speech is confined exclusively to the dogma or device of Popular Sovereignty, often called Squatter Sovereignty, in the Territories, which, after playing a conspicuous part in other sections of the country, at last found a supporter in Mr. Thayer, who gave to it certain importance, inasmuch as he had already done excellent service in organizing that Liberty-loving emigration which contributed so powerfully to the salvation of Kansas.

Though local in its immediate influence, the speech completes the series of efforts by which Mr. Sumner sought to fix the power of Congress to prohibit Slavery in the Territories, which was the great issue in the Presidential election. It is, perhaps, the last speech made anywhere on this topic, which unquestionably belongs to the history of the Slavery Question in our country. At its delivery there was much enthusiasm. The large hall was crowded for an hour before the meeting. Many

hundreds, some from a distance, were compelled to return home, while others thronged the aisles and passage-ways. The effect of the speech was attested at the time by the public press, and also by correspondents. Mr. Bailey, the successful candidate, wrote as follows, under date of Fitchburg, November 10, 1860.

“Our District was carried on high points. Our triumph is one of principle. We were in danger at one time, and felt the need of a strong, manly blow from an authoritative source. You gave such a blow, and the result is, Mr. Thayer has a plurality in but eight of the thirty-seven towns comprising our District.

“The victory is not in any sense a personal one for me. But, as a member of the Republican party, a lover of the principles of personal liberty cherished by the Fathers, and an enemy of human slavery in all forms and *everywhere*, I must thank you from a full heart for the great and timely aid you then rendered to the cause in this District. Your reward, I know, is not in these thanks, but it is a satisfaction to me to express them.”

Edwin Bynner, an energetic citizen of Worcester, who took a leading part in the canvass, wrote, under date of November 10, 1860:—

“I cannot refrain from tendering to you personally my heartfelt thanks for your masterly speech in Mechanics’ Hall, which, in my opinion, did more to avert our threatened defeat than any other instrumentality employed. In saying this, I would not for a moment disparage any effort put forth by others; but, having devoted my whole soul to the contest, having expended every effort of mind and body, and believing that I *know*, as well, if not better, than others engaged in the fight, to whom the laurels really belong, I cannot repress avowal of the conviction, that, but for your speech, the event would have been at least doubtful. I am impelled to tender you my warmest personal gratitude for efforts which others halted and hesitated in making.”

To these local testimonies may be added the words of Hon. Henry L. Dawes, who wrote, under date of North Adams, November 6, 1860:—

“I desire to thank you, in the name of the Constitution, justice, and the cause, for your speech at Worcester. The argument was complete and unanswerable.”

FELLOW-CITIZENS OF WORCESTER:—

On my way to this place, my attention was attracted by a banner, flaunting over the highway, with these words: “TRUST THE PEOPLE.” Nothing could be fairer or more seductive. In those simple words is embodied a principle, long unknown, and to this day often denied, which may be called the mainspring of Democratic institutions. Here is an implied assertion of the right of the people to govern themselves. And here also is an implied denial of all pretensions of Tyranny and Oligarchy. Such a principle, properly understood in its simplicity and just limitations, must find welcome in every Republican breast. Reading it on the banner, I responded with joy: “‘Trust the People,’ and Might will no longer make

Right, Government everywhere will be founded upon the consent of the governed, and Slavery will become impossible!”

Studying the banner further, I found written above this fair device the names, “DOUGLAS AND JOHNSON.” And then I was saddened to see how here in Massachusetts a great principle of human rights is degraded to be a cover for the denial of all rights. Of course the principles of these two candidates are understood. Mr. Douglas, with vulgar insensibility to what is due to all who wear the human form, openly declares that “at the North he is for the white man against the *nigger*, but that further South he is for the *nigger* against the alligator,”—and in this spirit says, “Vote Slavery up or vote Slavery down”; and such is the Popular Sovereignty which he proclaims. Mr. Johnson, who is his associate, declares, in well-known words, that “Capital ought to own Labor,”—that is, that mechanics, workmen, and farmers, in fine, all who toil with hands, should be slaves; and this is the Popular Sovereignty which he proclaims. Surely this Douglas and Johnson Popular Sovereignty should rather be called Popular Tyranny. And here at the outset you will observe a wide distinction. Sovereignty is properly limited by *right*; Tyranny is without any limit except *force*. But when presented under the captivating device of “Trust the people,” its true character is concealed. It is the Devil radiant with the face of an angel. It is an apple of Sodom, fair to the eye, but dust and ashes to the touch.

There are few among us who avow themselves supporters of Douglas and Johnson; or if they do, they have ceased to look for success in the coming Presidential election, which seems to be practically decided already. I should not be justified, therefore, in occupying your time to-night in considering their cunning artifice, if it were represented only by Douglas and Johnson, against whom you all stand ready to vote. To argue against these candidates here in Massachusetts, and especially in Worcester County, is as superfluous as to argue against King George the Third, whose ideas of sovereignty were of the same tyrannical class, yet who was dead long ago.

But the same popular tyranny, misnamed Popular Sovereignty, upheld by these Presidential candidates, is also upheld by another candidate, now seeking your votes as Representative to Congress. Let me not do injustice to

Mr. Thayer. I know well the points of difference between his theory and the theory of Douglas and Johnson; but I know also that in essential character they are identical,—so much so, that Mr. Douglas is reported to have hailed him, at the close of one of his speeches, as an authoritative expounder of the theory. The ancient Athenian, when praised in a certain quarter, exclaimed, “What bad thing have I done?” And Mr. Thayer, in earlier days, when doing so much for Freedom, would have been apt to turn from such praise with a similar exclamation.

It was natural that Mr. Douglas should praise him; for he gave the influence of character and ability to that pretension on which this reckless adventurer had staked his political fortunes. The fundamental principle of each is, that the question of Slavery in a distant Territory shall be taken from Congress and referred to the handful of squatters in the Territory, who, in the exercise of a sovereignty inherent in the people, and therefore called Popular Sovereignty, may “vote Slavery up or vote Slavery down.” Of course Mr. Thayer, thanks to his New England home, has too much good taste to put forth this pretension in the brutal form it often assumes, when advanced by Mr. Douglas. He does not say that he is “for the white man against the *nigger* and for the *nigger* against the alligator.” Perhaps the pretension becomes more dangerous because presented in more plausible form, and made part of a more comprehensive system. All that Mr. Douglas claims for the squatters, in the exercise of Popular Sovereignty, is power over Slavery, and other domestic institutions; while Mr. Thayer claims for them, besides this power, the power also to choose their own officers, instead of receiving them from Washington. But the essential distinctive pretension of each is, that the handful of squatters is exclusively entitled, in the exercise of Popular Sovereignty, to pass upon the question of Slavery in the Territories, and to vote it up or vote it down, without any intervention from Congress.

If this principle were asserted only with regard to a single Territory, or even with regard to a single county or a single town, it ought to be opposed as fallacious and unjust; but when asserted as a general principle applicable to all the Territories of the Republic, it must be resisted, not only as fallacious and unjust, but as fraught with consequences difficult to measure. Glance for one moment at the vast spaces which it would open to this mad conflict, and you will be awed by the immensity of the question.

According to official documents, the whole territorial extent of the United States, including States and Territories, embraces about three million square miles. This in itself is no inconsiderable portion of the earth's surface. It is nearly ten times as large as Great Britain and France combined,—three times as large as the whole of France, Great Britain, Austria, Prussia, Spain, Portugal, Belgium, Holland, and Denmark together,—only a little less than the whole sixty Empires, States, and Republics of all Europe,—and of equal extent with the ancient Roman Empire, or the empire of Alexander, neither of which is said to have exceeded three million square miles. Of this vast area, about one half is now organized into States, leaving one million five hundred thousand square miles in the condition of outlying territory, whose future fortunes are involved in the decision of the present question.

If the subject assumes colossal proportions when we regard the extent of territory, it swells to yet grander form when we look at the population involved. The whole white population of the United States at the present moment amounts to 27,000,000. Supposing it to increase at the rate of 34 per cent in ten years, which may be inferred from the rate at which it has already increased, it will number in 1870, 36,000,000; in 1880, 48,000,000; in 1890, 64,000,000; in 1900, 85,000,000; in 1910, 113,000,000; in 1920, 151,000,000; in 1930, 202,000,000; in 1940, 270,000,000; in 1950, 361,000,000; and in 1960, just one hundred years from now, it will reach 483,000,000 of white freemen. Here we may well stop to take breath. Add to this white population 50,000,000 of colored population, whether free or slave, according to the supposed increase, and we shall have a sum-total of 533,000,000; and in two hundred years, with the same continuing rate of increase, our population will be ten times larger than that of the whole globe at the present hour.

This extraordinary multitude will not be confined to the present States. It will diffuse itself in every direction, covering all our territory as the waters cover the sea. Precisely how it will be distributed it is impossible to foreknow. But the tendency of population is Westward. The Eastern States are becoming stationary. Assuming that in 1960 the area now unoccupied will be settled at the rate of Massachusetts in 1850, which was 127 to the square mile, we shall then have on that territory a white population of 190,000,000. And the simple question is, Whether this enormous territory,

with this enormous population, shall be exposed to all the accumulating evils of Slavery, with their hateful legacy, at the mere will of the handful of first settlers? According to a French proverb, “It is only the first step which costs,” and there is profound truth in this saying. In similar spirit the ancient Romans said, *Obsta principiis*, “Oppose beginnings.”

Never were these time-honored maxims more applicable than in the present case, when such prodigious results are involved. All experience shows that it takes very little Slavery to constitute a Slave State, and that Slavery, when once introduced, is most tenacious of existence. Mr. Lincoln, in one of his speeches, has aptly likened it to the Canada thistle, which, when once planted, extends with most injurious pertinacity. Others liken it to a cancer or vicious disease, which, when once in the system, corrupts the blood forever. It may be likened to a superstitious usage, which, when once established in the customs of a people, yields reluctantly to every effort against it. And yet Mr. Thayer wrests from Congress, representing the whole country, all power to prevent the introduction of this transcendent evil, and transfers the whole question to a handful of squatters, who are to act for the weal or woe of half a continent with teeming millions of population; and this is done in the name of Popular Sovereignty, as announced in the Declaration of Independence.

Fellow-citizens, I deny this pretension in every respect and at every point. I assert the power of Congress, founded on reason and precedent; and I assert the overwhelming necessity at this moment of exercising this unquestionable power. Guardians of this mighty territory, the destined home of untold millions, we must see that it is securely consecrated to the uses of Freedom, so that it cannot be pressed by the footsteps of a slave. For the moment we are performing the duty of *conditores imperiorum*, or founders of States, which Lord Bacon, in sententious wisdom, places foremost in honor, and calls a “primitive and heroical work.”^[23] In the discharge of this duty, every power, every effort, every influence for Freedom should be invoked. The angel at the gates of Paradise, with flaming sword turning to every side, might be fitly summoned to guard this grand inheritance.

Not only do I assert this power, but I deny that sovereignty, when justly understood, has among its incidents the right to enslave our fellow-man. Mr. Thayer practically recognizes this incident; for he insists upon leaving the handful of squatters in the Territories to vote Slavery up or vote Slavery down without any intervention from Congress. And here is the vital question: Is there any such power incident to sovereignty?

And since the Declaration of Independence is invoked as authority for this new pretension, I shall bring it precisely to this touchstone. Bear with me, if I am tedious.

On the 4th of July, 1776, was put forth that great state paper, which constitutes an epoch of history. Its primary object was to dissolve the bonds which existed between the Colonies and the mother country. For this purpose a few positive words would have sufficed. But its authors were not content with this enunciation. Ascending far above the simple idea of National Independence, they made their Declaration an example to mankind, in two respects: first, as a Declaration of Human Rights; and, secondly, as an admission that the Sovereignty which they established was limited by Right.

In the first place, they declared “that all men are created equal; that they are endowed by their Creator with certain unalienable rights; that among these are life, liberty, and the pursuit of happiness”; and “that to secure these rights, governments are instituted among men, deriving their just powers from the consent of the governed.” Note well these words. Here was a Declaration of Natural Rights, the first ever put forth in history, unless we except the declaration only a few months earlier in Virginia. In England there have been Bills of Rights, beginning with Magna Charta, all declaring simply the rights of Englishmen, and all founded on concession and precedent. Now came a Declaration of the Rights of Man, not founded on concession or precedent, but founded on Nature. And this Declaration, though made the basis of the new government, was universal in application, so that people, wherever struggling for rights, have been cheered by its words.

There is another enunciation, by which the Declaration is equally memorable, although this feature has been less noticed. Certainly it has not

been noticed by Mr. Thayer, or he would never venture to derive his pretension from a Declaration which positively excludes all such idea. Other governments, even those of the American Colonies, have been founded on *force*, and the sovereignty which they claimed was unlimited, so as to sanction Slavery. That I may not seem to make this statement hastily, pardon me, if I adduce two illustrative authorities. I refer first to Sir William Blackstone, the commentator on the Laws of England, who says: "There is and must be in all forms of government, however they began, or by what right soever they subsist, a supreme, irresistible, absolute, uncontrolled authority, in which the *rights of sovereignty* reside;"^[24] and this power, which in England is attributed to Parliament, he calls in one place "that *absolute despotic power* which must in all governments reside somewhere."^[25] I refer also to the famous Dr. Johnson, who, in his tract entitled "Taxation no Tyranny," openly says that "all government is ultimately and essentially absolute"; that "in sovereignty there are no gradations"; that "there must in every society be some power or other from which there is no appeal," which "extends or contracts privileges, exempt itself from question or control, and bounded only by physical necessity."^[26]

In the face of these contemporary authorities, one an eminent jurist, and the other an eminent moralist, both well known to our fathers, and in the face of all traditions of government, the Declaration of Independence disclaimed all despotic, absolute, or unlimited power, and voluntarily brought the new sovereignty within the circumscription of *Right*. Not content with declaring that the rights to life, liberty, and the pursuit of happiness are inalienable, and therefore beyond the control of any sovereignty, the Declaration went further, and, by abnegation worthy of perpetual honor, solemnly restrained the new sovereignty,—simply claiming for it the "power to do all acts and things which independent states may OF RIGHT do." Even had this express limitation been omitted, no such incident of sovereignty as that asserted by Mr. Thayer could be derived from an instrument containing those words with which the Declaration begins; but with these latter words of special limitation, the pretension becomes absurd.

Such, fellow-citizens, is the Popular Sovereignty of the Declaration of Independence, drawing its life, first, from the inalienable Rights of Man, and then, by positive words, restrained to what is Right. And this is the

Popular Sovereignty which, lifting the down-trodden and trampling on tyrants,—now gentle as Charity, and then terrible as an army with banners,—is destined to make the tour of the world, rendering Slavery everywhere impossible.

Of this Popular Sovereignty I have spoken on another occasion,^[27] and I refrain with difficulty from repeating now what I said then, partly because I believe so completely in its truth and rejoice in its utterance, but more because I learn that it has been wrested from its place to cover the Popular Tyranny, misnamed Popular Sovereignty, which Mr. Thayer so ardently vindicates.

How strange that words which hail the Angel of Human Liberation, with Liberty and Equality in her glorious train, should be invoked in support of a wicked tyranny, which, in the name of Popular Sovereignty, makes merchandise of our fellow-man! Face to face against this wretched pretension I put the true Popular Sovereignty, with Liberty and Equality for all, guarded and surrounded by the impassable limitation of Right, which is the god Terminus, never to be overthrown. Within these great precincts there can be no Slavery, nor can there be any denial of Equal Rights. How, then, can any man, in the name of Popular Sovereignty, vote another to be a slave? How, then, can any man, in this name, assert property in his fellow-man? By what excuse, with what reason, on what argument can any such thing be done, without first denying all that is true and sacred? Liberty, which is the active principle of Popular Sovereignty,—Equality, which is twin sister of Liberty,—and Justice, which sets bounds to all that men do on earth,—these are the irresistible enemies of Slavery, each and all of which must be trampled out by any rule under which man can be made a slave. But these, each and all, constitute that Popular Sovereignty which is the glory of our institutions. Anything else calling itself by this great name is a mockery and a sham, fit only for hissing and scorn.

The Declaration of Independence gave dignity to our Revolutionary contest, and made it a landmark of human progress. Here, at last, the rights of man were proclaimed, and a government was organized in subjection to the sovereign rule of Right. The people, while lifting themselves to the duties of sovereignty, bowed before that overruling sovereignty whose seat is the bosom of God. Such an example became at once a guide to mankind.

It was copied in France, under the lead of Lafayette; and there is no people struggling for Right in either hemisphere who have not felt its inspiration. And yet this Declaration, standing highest among the historic landmarks of our country, is now assailed and dishonored.

It is assailed and dishonored, first, by denial of these natural rights which it so gloriously declares. This is done often with a jeer. Forgetful that these rights were divinely established at the very Creation, when God said, “Let us make man in our image,” and then again in the Gospel, when it was said, “God hath made of one blood all nations of men,”—forgetful that these rights are stamped by Nature on all who wear the human form,—forgetful also that they belong to those self-evident truths, sometimes called axioms, which are universal in their application, as the axiom in arithmetic that two and two make four, and the axiom in geometry that a straight line is the shortest distance between two points,—forgetful of the true glory of our country, these primal truths are sometimes scouted as “absurd,” sometimes as “splendid generalities,” and sometimes as a “self-evident lie.” This assault, though proceeding from various voices, originated with Mr. Calhoun. He is its first author.

And now, secondly, the Declaration is assailed and dishonored by the claim, that men, in the exercise of sovereignty derived from the Declaration, may set up on an auction-block their fellow-men, if to them it seems fit, and that this power is an incident of Popular Sovereignty. This pretension, first put forth by General Cass, in 1847, when a Presidential candidate,^[28] and now revived by Mr. Douglas, who peddles it throughout the country, is also practically adopted by Mr. Thayer, as part of his peculiar Territorial policy. Such a pretension is hardly less degrading to the Declaration than the open mockery of its primal truths by Mr. Calhoun. The latter, as is well known, denied the sovereignty of the people in the Territories, but he agreed, heart and soul, in the pretension that the right to enslave a fellow-man is an incident of sovereignty, wherever it exists.

Thus do these two assaults upon the Declaration practically proceed from one source. In their essential ideas they are *Calhounism*.

On the other side is arrayed a name illustrious for various public service, and for unsurpassed championship of Freedom: I mean John Quincy

Adams. Entering the House of Representatives after a long life, at home and abroad, as Senator, as Minister, as Secretary of State, and finally as President, he added to all these titles by the ability and constancy with which he upheld the Rights of Man. Mr. Calhoun was at this time in the Senate; but Mr. Adams incessantly met all his assumptions for Slavery,—exposing its hateful character, insisting upon its *prohibition* in the Territories, and especially vindicating the Declaration of Independence. Never has the recent pretension, in the name of Popular Sovereignty, been more completely anticipated and exposed. And now, that this argument may not stand entirely upon my words, I quote from him. Says John Quincy Adams, in his oration on the Fourth of July, 1831, at Quincy:—

“Unlimited power belongs not to the nature of man, and rotten will be the foundation of every government leaning upon such a maxim for its support.... The pretence of an absolute, irresistible, despotic power existing in every government *somewhere* is incompatible with the first principle of natural right.... The *sovereignty* which would arrogate to itself absolute, unlimited power must appeal for its sanction to those illustrious expounders of Human Rights, Pharaoh of Egypt and Herod the Great of Judea.”^[29]

In another passage of the same oration, the patriot statesman says, in words which answer a portion of Mr. Thayer’s arguments:—

“It has sometimes been objected to the Declaration, that it deals too much in abstractions. But this was its characteristic excellence; for upon those abstractions hinged the justice of the cause. Without them our Revolution would have been but successful rebellion. Right, truth, justice are all abstractions. The Divinity that stirs within the soul of man is abstraction. The Creator of the universe is a spirit, and all spiritual nature is abstraction. Happy would it be, could we answer with equal confidence another objection, not to the Declaration, but to the consistency of the people by whom it was proclaimed!”^[30]

These same views were enforced again by Mr. Adams in his oration at Newburyport, July 4, 1837. There he uses words which reveal the limits of Popular Sovereignty. Thus he speaks:—

“The sovereign authority conferred upon the people of the Colonies by the Declaration of Independence could not dispense them, nor any individual citizen of them, from the fulfilment of all their moral obligations.... The people who assumed their equal and separate station among the powers of the earth, by the laws of Nature’s God, by that very act acknowledged themselves bound to the observance of those laws, *and could neither exercise nor confer any power inconsistent with them.*”^[31]

Then alluding to the self-imposed restraints upon the sovereignty which was established, our teacher says:—

“The Declaration acknowledged a rule of *Right* paramount to the power of independent states itself, and virtually disclaimed all power to do *Wrong*. This was a novelty in the moral philosophy of nations, and it is the essential point of difference between the system of government announced in the Declaration of Independence and those systems which had until then prevailed among men.... It was an experiment upon the heart of man. All the legislators of the human race until that day had laid the foundations of all government among men in *Power*; and hence it was that in the maxims of theory, as well as in the practice of nations, sovereignty was held to be unlimited and illimitable. The Declaration of Independence proclaimed another law, ... a law of *Right*, binding upon nations as well as individuals, upon sovereigns as well as upon subjects.... In assuming the attributes of *sovereign power*, the Colonists appealed to the Supreme Judge of the world for the rectitude of their intentions, and neither claimed nor conferred authority to do anything but *of Right*.”^[32]

Such is the irresistible testimony of John Quincy Adams. On the other side are arrayed John C. Calhoun, Stephen A. Douglas, and Eli Thayer. Choose you between these two sides.

Enough, perhaps, has been said. But I shall not leave this question merely on reason and high authority, decisive as they may be. I appeal, further, to the practice of the National Government, which from the beginning has sanctioned the Prohibition of Slavery in the Territories. The pretension of Popular Sovereignty is altogether a modern invention, unknown to our fathers.

The positive Prohibition of Slavery in the Territories was proposed in the Continental Congress by Mr. Jefferson, as early as 1784. Thus did the hand which drew the Declaration of Independence first assert the practical application of its principles within the jurisdiction of Congress; and here the Popular Sovereignty of the Declaration receives most instructive illustration. Although the proposition had in its favor a majority of all the delegates then present, and also a majority of all the States then present, yet, under the rules of the Continental Congress, it failed for the moment. But there is no evidence that anybody questioned the power of Congress, or claimed Sovereignty for any handful of squatters.

The following year, in the absence of Mr. Jefferson, the Prohibition was proposed by Rufus King, a delegate from Massachusetts. It was afterwards embodied by Nathan Dane, another delegate from Massachusetts, in the Ordinance for the Government of the Northwest Territory; and finally, on the 13th of July, 1787, a day ever memorable in the annals of Human Freedom, it was carried with only one vote in the negative, and became the corner-stone of those imperial States destined to exercise such controlling influence in our history. Thus early did our Commonwealth, through its faithful Representatives, insist upon Prohibition by Congress. This was before the National Constitution.

The Ordinance thus adopted by the Continental Congress was affirmed in August, 1789, by the first Congress that sat under the Constitution, in a law which bears the signature of George Washington. In pursuance of its

provisions, Ohio was admitted into the Union, 19th February, 1803; Indiana, 11th December, 1816; Illinois, 3d December, 1818; Michigan, 26th January, 1837; and Wisconsin, 29th May, 1848. In the various Acts of Congress preparatory to the admission of these States, the validity of the Ordinance was recognized to the fullest extent. Meanwhile the same principle was applied in the Missouri Compromise, under which Slavery was prohibited by Congress in all the territory west of the Mississippi and north of 36° 30'; also in the organization of Iowa as a Territory, 12th June, 1838, and especially of Oregon as a Territory, 14th August, 1848. Thus from the beginning has this power been affirmed by successive Congresses and by successive Presidents, from George Washington to James K. Polk. It is impossible to present any principle in our history sustained by a line of precedents so imposing.

The necessity of this Prohibition, as a safeguard to the Territories, is apparent from well-attested occurrences. The people of the Territory of Indiana, embracing the larger part of the whole of the Northwestern Territory, in 1802, then again in 1805, then again in 1807, and at other times also, with the pertinacity which marks all struggles for Slavery, petitioned Congress to suspend the Prohibition, so as to allow the introduction of slaves, if the squatters should desire it. To the honor of Congress, their petitions were rejected; but they are memorable from a brief report adverse to their passage by John Randolph, of Virginia. Here it is, bearing date 2d March, 1803.

“That the rapid population of the State of Ohio sufficiently evinces, in the opinion of your Committee, that the labor of slaves is not necessary to promote the growth and settlement of colonies in that region. That this labor, demonstrably the dearest of any, can only be employed to advantage in the cultivation of products more valuable than any known to that quarter of the United States. That the Committee deem it *highly dangerous and inexpedient to impair a provision wisely calculated to promote the happiness and prosperity of the Northwestern country*, and to give strength and security to that extensive frontier. *In the salutary operation of this sagacious and benevolent restraint* it is believed that the inhabitants of Indiana will at no very

distant day find ample remuneration for a temporary privation of labor and of emigration.”^[33]

With these benignant and most suggestive words of an eminent Slave-Master Congress happily concurred, and the Prohibition was confirmed. Had the modern pretension of Popular Sovereignty then prevailed, the States of Indiana, Illinois, Michigan, and Wisconsin, instead of becoming the smiling home of Free Labor, would be suffering from the blight of Slavery,—instead of joining in triumphant vote for Lincoln, they would, like their neighbor, Missouri, be linked with the Slave States in support of Breckinridge, or Bell, or Douglas, and would constitute part of that Slave Power under whose tyranny the country has so long suffered.

The advantage of the Prohibition is as clear as its necessity. I do not dwell on the comparison between Free States and Slave States, between free labor and slave labor, between the social system fostered by Freedom and the social system engendered by Slavery, between the civilization of the one and the barbarism of the other; but I call attention simply to two States, covering nearly the same spaces of latitude, resembling each other in soil, climate, and natural productions, lying side by side, and organized at about the same time,—Illinois, thanks to the Prohibition, a Free State, and Missouri cursed with more than one hundred thousand slaves. Look at the statistics of these two States, if you would know the contrast which day by day magnifies the Prohibition.

And yet, in the face of all this experience, showing, first, the necessity of Prohibition as a safeguard to the Territories, and, secondly, its immeasurable advantages, you are now called to abandon the early policy of the Republic, to turn your back upon this policy as irrational and unwise, and to adopt a new pretension, with a plausible name, which, in the only instance where it has been tried, produced discord, strife, and blood. You are called to give up the old Aladdin’s Lamp of magical power, filling the land with infinite treasures and the true nobility of Freedom, and to take in exchange a new patent article now hawked about the streets of Worcester.

If this recent pretension, in the name of Popular Sovereignty, were merely an idea and nothing more, coined in the brain of an ingenious theorist, but not pressed persistently at all times into practical application, it

might be left with kindred errors to pass away quietly into the limbo of things lost on earth, as described by Milton:—

“then reliques, beads,
Indulgences, dispenses, pardons, bulls,
The sport of winds.”

But unhappily this is not the case.

Such a pretension, espoused with ardor, as a practical rule, must naturally exercise a disturbing influence. You have not forgotten its influence on General Cass, who, yielding to it, violated the instructions of his State and voted against the Prohibition. You all know its influence on Mr. Douglas. In the name of this pretension he overturned the time-honored Prohibition of Slavery in the Missouri Territory, and delivered over Kansas to a conflict where fraud, rapine, and murder stalked with impunity. Afterward, in the name of this pretension, he sought to arrest all action by Congress for the relief of the settlers there. And ever since he has made this pretension a plain “dodge,” in order to avoid the urgent question: Are you for Freedom, or are you for Slavery? on which every citizen ought to say plainly, “Yea” or “Nay.”

It has not been the lot of your Representative to play a part so conspicuous as that of Mr. Douglas. But this pretension has changed his course hardly less than it has varied the course of the Presidential candidate, driving him into acts which only his large ingenuity in “making the worse appear the better reason” can save from an outburst of universal and indignant condemnation. And now, as I touch briefly on these acts, let me say that I do it most reluctantly, most painfully, and only in obedience to the absolute exigencies of this discussion, that you may truly understand the character of the pretension on which you are to pass judgment at the polls.

Surely its *disturbing influence* is manifest in his vote on the Bill to annul the Slave Code of New Mexico, under which not only slavery of blacks, but also serfdom of whites is recognized, while laborers of all kinds are subjected to be cuffed, flogged, beaten, or otherwise punished by their employers, without any redress at law. The blood freezes at the idea of such a code extant in a Territory within the jurisdiction of Congress. And yet, on the ayes and noes upon declaring this code null and void, Mr. Thayer’s

name is recorded “no,” with the ninety Proslavery Democrats and Americans, against ninety-seven Republicans; and thus you, fellow-citizens of Worcester, whose Representative he then was, have been made parties to an odious crime. I use plain language; for only in this way can that atrocious code be characterized, which in itself is the paragon and *ne plus ultra* of cold-blooded, scientific, and most cruel tyranny.

Surely its *disturbing influence* is again manifest in his vote on the Bill to abolish Polygamy in the vast Territory of Utah, where Brigham Young with his forty wives repeats the scandal of a Turkish harem within the jurisdiction of Congress. On the ayes and noes, Mr. Thayer’s name is found in the small minority of sixty noes, composed of *ultraists* of Proslavery, against one hundred and forty-nine ayes; and you, fellow-citizens of Worcester, whose Representative he then was, have been made parties to the sanction of Polygamy. It is natural that the partisans of Slavery, which nullifies the relation of husband and wife, should be indifferent to this disgusting offence; but nothing short of a most potent disturbing influence could have brought your Representative to a similar indifference.

Surely its *disturbing influence* is again manifest in his course on the Territorial Bills reported by Mr. Grow from the Committee on Territories, for the organization of the five Territories of Idaho, Nevada, Arizona, Dakota, and Chippewa, all of which were tabled by the vote of Mr. Thayer, and all but one on his motion. Afterward, in debate, he boasted that he “had taken the lead in this business of killing off these Territorial organizations, which go upon the assumption that the people in a Territory are infants,”^[34] thus setting up this disturbing pretension as his apology, and claiming for squatters a tyrannical power.

Surely its *disturbing influence* is again manifest in his perversion of unquestionable facts of history with regard to the operation of the Ordinance for the Government of the Northwestern Territory, saying that Freedom was secured in that Territory through Popular Sovereignty and not through the Ordinance; whereas history shows, by unimpeachable evidence, that this great work was accomplished through the Ordinance. Read the able speech of the Republican candidate, Mr. Bailey, if you would appreciate the extent of this perversion.

Surely its *disturbing influence* is again manifest in the language by which he allows himself to disparage that great cause, so dear to the people of Worcester, which first brought him into public life: saying that the principle of Prohibition, introduced by Jefferson, approved by the Fathers, and now amply vindicated by its fruits, is a “humbug”; and then again saying, “I think the Slave Question is altogether too small a question to disturb so great a people as inhabit the United States of America”: thus confessing insensibility to the grandeur of that question now overshadowing all other questions, which it is the first duty of a statesman in our country to understand and to appreciate.

Surely its *disturbing influence* is again manifest in the tone and manner which he has adopted toward the Antislavery cause, and its supporters in Congress, as will be seen by all who read his speeches there. Let the good people of this district know these things, and say if they are ready to join in such contumely.

And, lastly, the *disturbing influence* is manifest in his setting himself up as an independent candidate for Congress, against the Republican party, whose Presidential candidate he professes to support.

It will be for you to determine, whether a candidate, under this *disturbing influence*, thus repeatedly manifest in signal acts, can adequately represent the active, conscientious, Freedom-loving citizens of Worcester, who oppose Slavery by something more practical than a theory. I do not doubt his integrity; nor do I utter one word against his personal character. I speak of him only as a public man, open to criticism for public acts; and I speak solemnly and sincerely, for the sake of the cause which I have at heart. Honest men with a false theory are sometimes as dangerous as bad men. I would not liken Mr. Thayer to Benedict Arnold; but there is a letter of the latter, immediately after his defection, addressed to Washington, which your Representative might adopt. Here it is.

“ON BOARD THE VULTURE,
25 September, 1780.

“SIR,—The heart which is conscious of its own rectitude cannot attempt to palliate a step which the world may censure as wrong. I have ever acted from a principle of love

to my country, since the commencement of the present unhappy contest between Great Britain and the Colonies. The same principle of love to my country actuates my present conduct, however it may appear inconsistent to the world, who very seldom judge right of any man's actions.”^[35]

The difference between the two cases is obvious. One is flat treason: the other is flat delusion. One is a crime which history can never pardon: the other is a mistake over which history will drop a tear.

Fellow-Republicans, you are about to choose Abraham Lincoln President. Of his election there is no reasonable doubt. Under his auspices the National Government will be brought back to the original policy of the Fathers, which placed Slavery, so far at least as it is outside the States, within the jurisdiction of Congress. It was for his fidelity to this principle, vindicating it against the pretension of Popular Sovereignty, in his long debate with Mr. Douglas, and openly declaring, that, “if he were in Congress, and a vote should come up on a question whether Slavery should be prohibited in a new Territory, he would vote that it should, in spite of the Dred Scott decision,”^[36]—on this account it was that Mr. Lincoln was eligible as the Republican candidate. But it is not enough to make him President. You must see that he is sustained in this fundamental principle by your Representative in Congress. And since his election is now beyond question, the vote for a Representative true to this principle becomes more important than a vote for him. Little good will you do in voting for him, if at the same time you vote for a Representative pledged to defeat his declared policy.

Vote, then, so as to vindicate the declared policy of your candidate for the Presidency.

Vote so as to vindicate the Declaration of Independence, which is dishonored by being made the authority for a false pretension in the name of Popular Sovereignty.

Vote so as to vindicate the early policy of the Fathers, who organized the Prohibition of Slavery in the Territories.

Vote so as to vindicate the early policy of Massachusetts, who, in the Continental Congress, immediately after the Revolution, first by the voice of Rufus King, and then by the voice of Nathan Dane, insisted upon the Prohibition of Slavery in the Territories.

Vote so as to vindicate those sentiments and principles of the County of Worcester, “heart of the Commonwealth,” always so constantly and honorably maintained.

Vote so as to vindicate the Antislavery cause in its necessity, practicability, and dignity, and so as to confound its enemies, now banding together against it, under the lead of Mr. Thayer.

Vote so as to vindicate the existence of the Republican party, which, if the theory of Mr. Thayer be true, should at once be disbanded.

Vote, finally, so as to settle peacefully this great question, by taking it away from the chance and peril of conflict, and committing it to the calm judgment of Congress.

It is vain to say that Slavery cannot exist in the Territories under the Constitution, and therefore legislation is superfluous. It is there in fact, and that is enough. It must be struck at once by Congress. St. Patrick banished snakes from Ireland; but that is no reason why the woman should not bruise the head of one found there. It is vain to say, as has been said, that the slaves are few,—amounting to fourteen only in New Mexico; for human rights, whether in a vast multitude or a solitary individual, are entitled to equal and unhesitating support. In this spirit the ancient lawgiver nobly declared that to be the best government “where an injury to a single citizen is resented as an injury to the whole state.” It is vain to say that the prohibition by Congress is superfluous in the present state of opinion; for nothing is clearer than the remark of Lafayette, that principles strong in themselves take new force, when solemnly recognized by all in the form of law. It is vain to say that Freedom is more powerful than Slavery, and therefore may be safely left face to face with its antagonist. In the progress of civilization, law has superseded the ordeal by battle; and law must now

supersede this conflict. It is vain to say that the Territories are protected in any form, whether by the Constitution, public opinion, or the inherent strength of Freedom. No possible safeguard should be abandoned. Let there be double locks, double bolts, and double gates. No lock, no bolt, and no gate should be neglected by which Slavery may be fastened out. And, lastly, if Popular Sovereignty is invoked, let it be the Popular Sovereignty of the American people, counted by millions and assembled in Congress, rather than the tyrannical, irresponsible sovereignty of a handful of squatters.

Fellow-citizens, in taking leave of this question, I bear my testimony again to the abilities of Mr. Thayer, and to his active labors in times past. For the good that he has done I honor him; let it all be enrolled for his benefit. But not on this account can I accept him now as a representative of our cause. It is an ancient story, consecrated by the undying verse of Homer, that a ship, with all its canvas spread, was suddenly changed into a rock at the very mouth of a frequented harbor; and thus the instrument of commerce became an impediment to commerce:—

“Fixèd forever, a memorial stone,
Which still may seem to sail, and *seem* alone.”^[37]

A similar wonder is now repeated before our eyes, making the former instrument of Freedom an impediment to Freedom. Deplore this accident we must; but the remedy is happily within our power.

EVENING BEFORE THE PRESIDENTIAL ELECTION.

SPEECH AT FANEUIL HALL, BOSTON, NOVEMBER 5, 1860.

This meeting was called to order by Carlos Pierce, Esq., who announced the officers of the evening, among whom was Mr. Sumner as President. On taking the chair, he made a speech, which is preserved here as showing the anticipations of triumph at the election, and also the declared magnitude of the result. This testimony shows how seriously the election was regarded. It foreshadows change, if not revolution,—“not only a new President, but a new government.”

FELLOW-CITIZENS,—Five years have now passed since it was my privilege last to set foot in Faneuil Hall. During this long, unwilling exile, whether at home or abroad, my “heart untravelled” has fondly turned to this historic place, and often have I seemed to hear those utterances for Human Rights which echo along its walls. The distant in place was confounded with the distant in time, and the accents of our own Burlingame seemed to mingle with the words of Adams, Hancock, and Warren, in the past. Let me express my gratitude that I am permitted once more to enjoy these generous utterances, no longer in dream or vision only, but in reality.

Could these venerable arches speak, what stories could they not tell,—sometimes of victory and sometimes of defeat, sometimes of gladness and sometimes of mourning, sometimes of hope and sometimes of fear! The history of American Freedom, with all its anxieties, struggles, and triumphs, commencing before National Independence, and continued down to the very contest now about to close,—all this might be written from the voices of this Hall. But, thank God! the days of defeat, of mourning, of fear, have passed, and these walls will record only those notes of victory already beginning to sound in our ears.

There are anniversaries in our history noticed by young and old with grateful emotion; but to-morrow’s sun will set on a day more glorious for Freedom than any anniversary since the fourth of July, 1776. The forces for a long time mustering are about to meet face to face; but the result is not

doubtful. That Power, which, according to the boast of Slave-Masters, has governed the country for more than fifty years,—organizing cabinets and courts, directing the army and navy, controlling legislation, usurping offices, stamping its own pernicious character upon the national policy, and especially claiming all the Territories for Slavery,—that Power which has taught us by example how much of tyranny there may be in the name of Democracy, is doomed. The great clock will soon strike, sounding its knell. Every four years a new President is chosen, but rarely a new government. To-morrow we shall have not only a new President, but a new government. A new order of things will begin, and our history will proceed on a grander scale, in harmony with those sublime principles in which it commenced. Let the knell sound!

“Ring out the old, ring in the new!
Ring out the false, ring in the true!
Ring out a slowly dying cause,
And ancient forms of party strife!
Ring in the nobler modes of life,
With sweeter manners, purer laws!”

The eve of election is not the time for argument. Already this has been amply done in numerous public meetings, where you have been addressed by the orators of Freedom, and also in the press, which has repeated their eloquent words, while a new power, in happy harmony with the new exigencies—the “Wide-Awakes”—has shown how true it is that citizens by the million would spring forth, whenever the North

“Stamped her strong foot and said she would be free.”

I need not speak of our candidate for President, whose simple, honest character has grown constantly upon the public interest, while his abilities have everywhere commanded most unhesitating respect. Nor need I speak of our candidate for Governor, whose eminent qualities alike of head and heart give assurance of a man deserving our most devoted support. Of their election there is no doubt. Abraham Lincoln will be President of the United States. John A. Andrew will be Governor of Massachusetts.

But this is not enough. Especially must you see to it, so far as depends on you, that Representatives in Congress are chosen who shall be true to the

principles of the Republican party. And since the election of our President is now certain, your vote for Representatives becomes more important than your vote for President. In vain you will vote for Abraham Lincoln, if at the same time you vote for a Representative who will oppose his well-known principles. Such a vote will more than neutralize your vote for President.

Happily there is no occasion to hesitate. Boston is now represented in Congress by two eminent citizens,—differing from each other in many respects, unlike in the talents which each so largely possesses, and dissimilar in character, and yet substantially agreeing in principles, uniting always in their votes, whether to guard Freedom or to promote the important interests of the metropolis, and by their very diversity of character, as the complement of each other, representing completely and harmoniously a large and diversified constituency. Follow the record of Mr. Burlingame and Mr. Rice, whether throughout the long contest for Speaker, or on the proposition to secure Freedom in Kansas, or on the various matters of local concern, and you will find that they always keep together.

Besides the merit of services which no candid person can question, they are also recommended by the practical consideration of their experience. They know their business, and on this account, if no other, it is for your interest that they should be continued. This experience is something which belongs to you, if you are wise enough to use it. On grounds of self-interest the most simple and obvious, you should vote for them.

But, besides experience, they will have another advantage, which you will surely not fling away. Being in harmony with the Administration, they will naturally have the ear of the President and of his Cabinet; and this alone will give them opportunities to promote the interest of Boston such as no Representative of the Opposition could hope to enjoy.

All will see how impossible it will be for Mr. Appleton and Mr. Bigelow to represent adequately this great metropolis during the coming administration. Imagine them at Washington, with the whole delegation from New England, ay, almost of the whole North, against them. Robinson Crusoe and Friday were not more solitary than these Proslavery Representatives would be among their colleagues from the Free States. And when, on the vote for Speaker, involving the organization of the House and

the arrangement of the public business, the forces of Slavery are rallied against the Northern candidate, John Sherman or William Pennington, then will the Liberty-loving citizens of Boston be mortified to find their Representatives, under specious plea of danger to the Union, ranging with Disunionists. A simple errand-boy, picked up in the streets, honest and intelligent enough to deposit a vote for a Northern Speaker, would be better than Representatives who would do this thing.

The election of such persons would be a positive encouragement to the disunionists of the South. It would be a signal of sympathy from our citadel. Still further, it would be a premium for indifference to fellow-men struggling for their rights. In vain have we read the story of him who, having fallen among thieves, was succored by the good Samaritan, if we approve by our votes the conduct of those who, when Kansas had fallen among thieves and was lying wounded and bleeding, passed by on the other side without aid or sympathy.

In vain you say that these gentlemen, if elected, may mingle socially with the propagandists of Slavery at Washington, and through this intercourse promote your interests. Do not believe it. No good to you can come from any such artificial fellowship. The enmity of Slavery may be dangerous, but its friendship is fatal. None have ever escaped with honor from that deadly embrace.

In vain you appeal in the name of a party, familiarly called from its candidates Bell-Everett, which, in the recent elections of Vermont, Maine, Pennsylvania, Ohio, and Indiana, out of more than 1,300,000 votes, polled less than 20,000,—a party which, from its lofty airs here in Boston, may remind us of Brahmins, who imagine themselves of better clay than others, or of Chinese, who imagine themselves cousins of the Sun and Moon.

Vote, then, for your present Representatives: first, to maintain the policy of the new President; secondly, as proper recognition of their merits; thirdly, that you may have the benefit of their experience; fourthly, that you may have the advantage of their friendly relations with the new Administration; fifthly, that you may help choose a Northern Speaker; sixthly, that you may answer with proper scorn the menaces of disunion, whether uttered at the South or echoed at the North.

Hereafter, fellow-citizens, let it be one of your satisfactions, that in this contest you voted for Freedom. The young man should rejoice in the privilege; the old man must take care not to lose the precious opportunity.

EVENING AFTER THE PRESIDENTIAL ELECTION.

**SPEECH TO THE WIDE-AWAKES OF CONCORD, MASSACHUSETTS, NOVEMBER 7,
1860.**

The "Wide-Awakes" constituted a new and powerful agency in the machinery of American politics. They were companies of active voters in uniform of cap and cape with a lamp on a staff, organized and drilled with officers, who by display in the streets increased their numbers and intensified the prevailing enthusiasm. The organization was general throughout the Northern States, and constituted the working element of the Republican party. It has been sometimes remarked that its military discipline was an unconscious preparation for the sterner duties at hand.

The companies were not disbanded immediately after the election, and at several places where Mr. Sumner lectured he received from them the compliment of a visit after the lecture. This was the case at Concord on the evening succeeding the Presidential election, when the Wide-Awakes of the town appeared before the house of Ralph Waldo Emerson, the admired author, where Mr. Sumner was staying, and their Captain, Hon. John S. Keyes, made the following address.

"HONORED SIR,—In behalf of the Republican Wide-Awakes of Concord, and of numerous other Republicans, part of that gallant army whose victory was yesterday achieved, I have the honor to tender to you our respectful greeting on this occasion of your first visit, after many years of pain and suffering endured in the cause of Republicanism, to the old battle-ground of Concord. We could not permit it to pass without at least offering to you a warm and earnest welcome, especially on the day following that glorious victory whose brightness no cloud obscures, and whose lustre is owing more, perhaps, to your earnest efforts in the cause of Freedom than to any other man. Permit me, Sir, in the name of these Wide-Awakes, to say to you that we trust with renewed health upon this soil you may bear forward the glorious cause of Freedom upon which our country has just entered."

Mr. Sumner, standing on the steps of the house, replied as follows.

CAPTAIN AND WIDE-AWAKES:—

Y ou take me by surprise, absolutely. I am here to-night in the performance of an agreeable service outside of politics, and have not anticipated any such contingency as this with which you honor me, nor any such welcome.

I thank you, Gentlemen, for the kind and good words which have fallen from your Captain. They are a reward for the little I have been able to do in the past, and will be an encouragement in the future.

I join with you in gladness at the victory we celebrate to-day,—not of the cartridge-box, but of the ballot-box. No victories of the cartridge-box have involved higher principles or more important results than that just won by the ballot-box. A poet, whose home is in Concord, has said that the shot fired here was heard round the world. I doubt not that our victory just achieved will awaken reverberations also to be heard round the world. All

men struggling for rights, vindicating liberal ideas, seeking human improvement, maintaining republican government, will be encouraged, when they hear of yesterday. It will be good news to Garibaldi in Italy, good news to the French now subjected to imperial power, good news to English Reformers,—and so also will it be good news to all among us who love Liberty, for it proclaims that at last Liberty has prevailed. Every four years we choose a new President; but it rarely happens that we choose a new government, as was done yesterday. A new order of things is inaugurated, with new auspices, lifting the Republic once more to that platform of principles on which it was originally placed by the Fathers. What victory of the cartridge-box ever did so much?

Looking at the vote in its practical significance, several things may be considered as established and proclaimed by the American people, so that hereafter they shall not be drawn in question.

Of these I place foremost the irrevocable decree, according to the very words of Madison, that it is “wrong to admit in the Constitution the idea that there can be property in men,”^[38]—that, therefore, Slavery, if it exists anywhere, is sectional, and must derive such life as it has from local law, and not from the Constitution,—in opposition to the pretension so often put forward in its name, that Slavery is national and Freedom sectional.

Then again the American people have declared, that all outlying Territories, so immense in extent, and destined to the support of unknown millions, shall be consecrated to Freedom, so that the vast outstretched soil shall never know the footprint of a slave: all of which is the natural conclusion and corollary from the first decree.

And yet again it is declared, that in the administration of the National Government the original policy of the Fathers shall be adopted, in opposition to the policy of Slavery, which for the last twelve years has been so tyrannical, and for the last forty years has made its barbaric impress on the country.

And still further, the decree goes forth that the Slave-Trade shall be suppressed in reality as in name, that the statutes against it shall be vigorously enforced, and the power of the Government directed in good faith against it, all efforts to the contrary notwithstanding.

These things were yesterday proclaimed by the American people solemnly, and in a way from which there is no appeal. It was done by a vote destined to be ever memorable and a landmark of history.

Having obtained this great victory, let us study to use it with moderation, with prudence, with wisdom. Through no failure on our part must its proper fruits be lost. Happily, Abraham Lincoln [*prolonged cheers*] has those elements of character needed to carry us through the crisis. He is calm, prudent, wise, and also brave. And permit me to say, that there are moments in government when bravery is not less important than prudence. He will not see our cause sacrificed through menaces of disunion from the South, even if echoed in Massachusetts; and in this firmness he will be sustained by the American people, insisting upon all that is promised and secured by the Constitution, and to all menaces, from whatever quarter, answering back, that the Union shall be preserved and made more precious by consecration to Human Rights. [*Three cheers for the Union.*]

I thank you for this welcome, and now bid you good night.

JOY AND SORROW IN THE RECENT ELECTION.

LETTER TO THE WIDE-AWAKES OF BOSTON, AT THEIR FESTIVAL, AFTER
ELECTION, NOVEMBER 9, 1860.

The defeat of Mr. Burlingame, as a Representative of Boston, which was keenly felt by Republicans, and especially by Mr. Sumner, opened the way to his wider career as Minister of the United States to China, and then as Minister of the Chinese Empire to the Western Powers. The vote stood 8,014 for Hon. William Appleton, and 7,757 for Mr. Burlingame.

BOSTON, November 9, 1860.

DEAR SIR,—An engagement out of the State will prevent me from uniting with the gallant Wide-Awakes this evening in their festival at Music Hall. But my heart will be with them in their joy and in their sorrow.

They will naturally rejoice in that great victory by which the American people have solemnly declared that *Slavery is sectional and Freedom is national*, so that, wherever Slavery exists, if it exist at all, it must be by virtue of local law, and not by virtue of the National Constitution.

But even this victory, opening a new epoch in our national history, cannot make us forget the backsliders of Boston, through whose desertion of principles the delegation in Congress, pledged to Freedom, has been weakened, and a blow struck at an eminent Representative which has fallen upon the hearts of Republicans everywhere throughout the country. To the honor of Mr. Burlingame, all good Republicans feel wounded through him; and it is also to his honor that he was made the mark of special assault.

All experience shows that the partisans of Slavery stick at nothing, where the imagined interests of Slavery are in

question. The essential brutality of Slavery showed itself lately in New York, when Marshal Rynders personally assaulted a venerable citizen who appeared at his office on public business, cursing him with most blasphemous oaths; and it showed itself here in Boston, when the supporters of Mr. Appleton for weeks traduced the Republican candidate, uttering calumnies which were as basely false with regard to him as if they had been uttered in detraction of Mr. Appleton. Such conduct must make us hate Slavery more, and add to our mortification that it prevailed among us.

It belongs to the Republican party, at last triumphant in the nation, inflexibly to sustain its principles, and also to sustain the men who are true to these principles. In this duty I doubt not it will be guided by that temperate judgment which is in harmony with the consciousness of right.

God bless the Wide-Awakes! And believe me, dear Sir,

Faithfully yours,

CHARLES SUMNER.

S. B. STEBBINS, Esq.

THE VICTORY AND PRESENT DUTIES.

SPEECH TO THE WIDE-AWAKES, AT PROVIDENCE, RHODE ISLAND, NOVEMBER
16, 1860.



Late in the evening, after lecturing^[39] in Providence, Mr. Sumner, who was the guest of Hon. A. C. Barstow, received a serenade from the Wide-Awakes, commanded by Colonel Dexter, with a band of music, and accompanied by the “Central Glee Club” and the “National Vocalists.” The space in front of the house, and the streets, for some distance, were thronged. After music by the band, Mr. Sumner appeared on the front steps of the house, and addressed the immense crowd.

GENTLEMEN OF THE WIDE-AWAKES:—

I had supposed that with our great triumph you would naturally retire to your homes, like soldiers when peace has come. But this goodly show assures me that here in Providence you still exist as a distinct body, ready with sympathy, and I doubt not for duty also.

In the faithful record of recent events, the service performed by the Wide-Awakes cannot be forgotten. I see it in two different aspects. Besides contributing immensely to that victory which now gladdens our hearts, you have shown that here at the North are men ready, if the exigency requires, to leap forward in defence of Northern rights, which are only Constitutional rights. In these two things you have done well, and I am happy in this opportunity of offering you my grateful thanks.

All our hearts, fellow-citizens, are swelling with joy at the Presidential election. It is in congratulation that you appear to-night once more with banners and lights, and I rejoice with you,—as I love Liberty and love my country. It is impossible to exaggerate the result. Had we merely elected new officers, that would have been much; but we have done more. A new policy is declared. Thus far the National Government has been inspired by Slavery. It has seemed to exist for Slavery only. All is now changed. Liberty will be its inspiration. And what a change! Liberty instead of Slavery! But you know well that this change, so beneficent and natural, is in completest

harmony with the Constitution and with the declared sentiments of our fathers.

I can never banish from my mind that picture of Washington taking his first oath to support the Constitution of the United States, when nowhere on the land within the national jurisdiction breathed a single slave. At that time Freedom was national. Surely good men will rejoice to see our country regain once more that happy condition, nor can any person regret it who does not deliberately exalt Slavery above Freedom. But this condition is secured by the recent election. Already the country seems fairer, the skies clearer, the air purer, and all good influences more abundant, while Liberty opens the way to prosperity and renown. Not merely will Slavery cease its baleful predominance in the Government, but other things will be accomplished. There will be improvements in rivers and harbors, communications between the Atlantic and Pacific, homesteads for actual settlers on our public lands, peace and dignity in our foreign relations, with sympathy for struggling Liberty everywhere, also economy in administration, and reform generally,—all of which will naturally ensue, when the Republic is once more inspired by those sentiments in which it had its being.

While indulging in proper congratulations on such a victory, we can afford to disregard all menaces, from whatever quarter they come, whether from the distant South or nearer home. Conscious of right, we have only to go forward, mindful always of the Constitution, mindful also of that just moderation which adds to the strength of firmness. An ancient poet teaches, that, “where Prudence is, no Divinity is absent.”^[40] I cannot doubt that the Republican party, to which we belong, will be as prudent in government as it has been irresistible at the ballot-box. Such, at least, is my sincere aspiration.

Fellow-citizens and Wide-Awakes, I thank you for this unexpected visit, and now most sincerely and gratefully wish you good night.

The speech was followed by vocal music, in a succession of pieces, continuing till after midnight. In conclusion, the serenaders sang the following words, written by Hon. William M. Rodman.

“Bold champion of the Right!
We welcome thee to-night
With heartfelt song:
Once Freedom’s tyrant foe
Essayed to lay thee low,
But now we joy to know
That thou art strong.

“Life’s purpose to fulfil,
Stand thou defiant still,
While life remains:
For Thraldom’s night will flee,
Our children yet shall see
The land redeemed and free
From Slavery’s chains.

“Faithful and vigilant!
To thee our song we chant:
Good night! Good night!
Around thy couch be peace,
From pain may sleep release,
And strength with years increase!
Good night! Good night!”

MODERATION IN VICTORY; STANDING BY OUR PRINCIPLES.

SPEECH TO THE WIDE-AWAKES OF LOWELL, NOVEMBER 21, 1860.

In the evening after his lecture at Lowell, Mr. Sumner was escorted by the Wide-Awakes, with banners and lights, to the house of Hon. John Nesmith, whose guest he was. On arrival there, he thanked his escort in these words:—

WIDE-AWAKES AND FELLOW-CITIZENS:—

I owe my best thanks for the escort with which you honor me. But I must say frankly that I attribute it less to any merit of my own than to your zeal for the good cause in which I have borne a part.

In our recent triumph the Wide-Awakes have rendered conspicuous service. The light which they have carried, I trust, is symbolical of that which, under the new Administration, will be directed upon the dark places of Government, while their activity and promptitude furnish an example which all may be proud to follow.

The Republican party has prevailed. Its success is the triumph not only of Freedom, but also of the Constitution, long perverted to the purposes of Slavery. Nothing is clearer than this. The Republican party is not *aggressive*, but *conservative*. Its object is to carry the Government back to the original policy of the Fathers. Pardon me, but I never tire of reminding my fellow-citizens, that, when Washington took his first oath as President, the Constitution nowhere on the land, within the national jurisdiction, covered a slave; and surely the Republican party cannot err, if it seeks to bring back the condition of things under Washington. Bear this in mind, if you please; and when it is said that you are aggressive, reply fearlessly, "Then is the Constitution aggressive, then was Washington aggressive." With these two authorities we cannot hesitate. To all enemies we oppose "the Constitution and Washington."

If attacks upon the Republican party here at home have caused a different impression in any quarter, the responsibility belongs to those who have constantly and systematically maligned and misrepresented us. And our severity of judgment should be reserved less for the Southern States so much excited than for those at the North who feed the flames.

Our duty is plain and bright before us,—plain as day, and bright as the sun. It is simply to proceed as we have begun, and to abide by our declared principles. This is not the moment for any surrender to threats, even if Massachusetts could ever yield to such compulsion.

It was the saying of Samuel Adams, in the early stage of our Revolution, that we should be respected abroad just in proportion to the firmness of our conduct. And this is true now. The victory which we have won can be assured only by such conduct, tempered always by that wise moderation which is needful even in victory. There should be no party act or hasty word to increase present responsibilities. Our safety is in our principles. They are of living rock, and no power can prevail against them.

Again I thank you. Good night.

This was followed by a serenade, with a song for the occasion.

MEMORIAL STONES OF THE WASHINGTONS IN ENGLAND.

LETTER TO JARED SPARKS, HISTORIAN OF WASHINGTON, NOV. 22, 1860.
FROM THE BOSTON DAILY ADVERTISER.



BOSTON, November 22, 1860.

MY DEAR SIR,—Since our last conversation I have received from Earl Spencer precise copies of the two “Memorial Stones” of the English family of George Washington, which I described to you as harmonizing exactly with the pedigree having the sanction of your authority.^[41] The copies are, as I understand, of the same stone and of the same size with the originals, and have the original inscriptions,—being in all respects *fac-similes*. They will therefore give you an exact idea of those most interesting memorials in the parish church near Althorp, in Brington, Northamptonshire.

The largest is of Lawrence Washington, father of John Washington, who with his brother Lawrence emigrated to America. It is a slab of bluish-gray sandstone, and measures five feet nine inches long and two feet six inches broad.

This is the inscription:—

HERE·LIETH·THE·BODI·OF·LAVRENCE
WASHINGTON·SONNE·&·HEIRE·OF
ROBERT·WASHINGTON·OF·SOVLGRÆ
IN·THE·COVNTIE·OF·NORTHAMTON
ESQVIER·WHO·MARIED·MARGARET
THE·ELDEST·DAVGHTER·OF·WILLIAM
BVTLER·OF·TEES·IN·THE·COVNTIE
OF·SVSSEX·ESQVIER·WHO·HAD·ISSV
BY·HER·8·SONNS·&·9·DAVGHTERS
WHICH·LAVRENCE·DECESED·THE·13
OF·DECEMBER·A: DNI: 1616

THOV·THAT·BY·CHANCE·OR·CHOYCE
OF·THIS·HAST·SIGHT
KNOW·LIFE·TO·DEATH·RESIGNES
AS·DAYE·TO·NIGHT
BVT·AS·THE·SVNNS·RETORNE
REVIVES·THE·DAYE
SO·CHRIST·SHALL·VS
THOVGH·TVRNDE·TO·DVST·&·CLAY

Above the inscription, carved in the stone, are the arms of the Washingtons, with the arms of the Butlers *impaled*,—the latter being, in the language of heraldry, *azure, a chevron between three covered cups or*.

The other stone is placed over Robert Washington and Elizabeth his wife. Robert was uncle of the emigrant. This is a slab of the same sandstone, and measures three feet six inches long and two feet six inches broad.

The inscription, on a small brass plate set into the stone, is as follows:—

HERE LIES INTERRED Y^E BODIES OF ELIZAB: WASHINGTON
WIDDOWE, WHO CHANGED THIS LIFE FOR IMORTALLITIE
Y^E 19TH OF MARCH 1622. AS ALSO Y^E BODY OF ROBERT

WASHINGTON GENT: HER LATE HUSBAND SECOND
SONNE OF ROBERT WASHINGTON OF SOLGRAVE IN Y^E
COVNTY OF NORTH: ESQ^R: WHO DEPTED THIS LIFE Y^E
10TH OF MARCH 1622 AFTER THEY LIVED LOVINGLY TOGETHER
MANY YEARES IN THIS PARRISH

On a separate brass, beneath the inscription, are the arms of the Washingtons, without any addition but a crescent, the *mark of cadency*, which denotes the *second* son. These, as you are well aware, have the combination of stars and stripes, and are sometimes supposed to have suggested our national flag. In heraldic language, they are *argent, two bars gules, in chief three mullets of the second*.

In the interesting chapter on the "Origin and Genealogy of the Washington Family," preserved in the Appendix to your "Life of Washington," it appears that Lawrence, father of the emigrant, died 13th December, and was buried at Brington 15th December, 1616. But the genealogical tables followed by you furnish no indication of the locality of this church. Had it appeared as the parish church of the Spencer family, in Northamptonshire, the locality, which I believe was unknown in our country, would have been precisely fixed.

In fact, the slab covering Lawrence Washington is in the chancel of the church, by the side of the monuments of the Spencer family. These are all in admirable preservation, with full-length effigies, busts, or other sculptured work, and exhibit an interesting and connected series of sepulchral memorials, from the reign of Henry the Eighth to the present time. Among them is a monument by the early English sculptor, Nicholas Stone; another by Nollekens from a design by Cipriani; and another by Flaxman, with exquisitely beautiful personifications of Faith and Charity. Beneath these monuments repose successive representatives of this illustrious family, whose aristocratic claims are

enhanced by services not only to the state, but also to knowledge, as shown in the unique and world-famous library collected by one of its members. In this companionship is found the last English ancestor of our Washington.

The other slab, covering Robert, uncle of the emigrant, is in one of the aisles, where it is scraped by the feet of all who pass.

The parish of Brington—written in Domesday Book “Brinintone,” and also “Brintone,” in modern pronunciation *Brighton*—is between seven and eight miles from the town of Northampton, not far from the centre of England. It contains about 2,210 acres, of which about 1,490 belong to Earl Spencer, and about 326 to the rector in right of his church. The soil is chiefly dark-colored loam, with a small tract of clay towards the north. Nearly four fifths of the whole is pasture.

In the village still stands the house said to have been occupied by the Washingtons when the emigrant brother left them. You will see a vignette of it on the title-page of the recent English work entitled “The Washingtons.” Over the door are carved the words, THE LORD GEVETH, THE LORD TAKETH AWAY, BLESSED BE THE NAME OF THE LORD; while the Parish Register gives pathetic commentary, by showing that in the very year when this house was built a child was born and another died in this family.

The church, originally dedicated to the Virgin, stands at the northeast angle of the village, and consists of an embattled tower with five bells, nave, north and south aisles, chancel, chapel, and modern porch. The tower is flanked by buttresses of two stages. The present fabric goes back in origin to the beginning of the fourteenth century, nearly two hundred years before the discovery of America. The chancel and chapel, where repose the Spencers and Lawrence

Washington, were rebuilt by Sir John Spencer, purchaser of the estate, at the beginning of the sixteenth century. They afford a late specimen of Tudor architecture. The church is beautifully situated on the highest ground of Brington, and is surrounded by a stone wall lined with trees. Dibdin says that a more complete picture of a country churchyard is rarely seen. A well-trimmed walk encircles the whole of the interior, while the fine Gothic windows at the end of the chancel fill the scene with picturesque beauty.

The Parish Register, which is still preserved, commences in 1560. From this it appears that William Proctor was rector from 1601 to 1627, partly contemporary with the last Washingtons there. Other entries occur, relating to this family.

1616. "Mr. Lawrance Washington was buried
the XVth day of December."

1620. "Mr. Philip Curtis and M^{is} Amy
Washington were married August 8."

1622. "Mr. Robert Washington was buried
March y^e 11th."

———. "M^{rs}. Elisabeth Washington widow was
buried March y^e 20th."

Of a minister in this church we have an amusing notice in Evelyn's Memoirs, where the following contrast is found, under date of August 18th, 1688: "Dr. Jeffryes [a misnomer for *Jessop*], the minister of Althorp, who was my Lord's chaplain when Ambassador in France, *preached the shortest discourse I ever heard*; but what was defective in the amplitude of his sermon he had supplied in the largeness and convenience of the parsonage-house."^[42]

Less than a mile from the church is the famous seat of the Spencers, surrounded by a park of five hundred acres, with

one of the gates opening near the church. Bordering on the churchyard are oak-trees which were growing at the purchase of the estate in the reign of Henry the Seventh. Evelyn was often here, a delighted visitor. On one occasion he speaks of “the house, or rather palace, at Althorp.”^[43] Elsewhere he describes it as “in a pretty open bottom, very finely watered, and flanked with stately woods and groves in a park.”^[44] An engraving by the younger Luke Vorsterman, a Dutch artist, attests the attraction of the place at this time.

One feature of the park excited the admiration of Evelyn, and at a later day of Mrs. Jameson, who gives to it some beautiful pages in her “Visits and Sketches at Home and Abroad.” It is a record of the dates when different plantations of trees were begun. While recommending this practice in his “Sylva,” Evelyn remarks, “The only instance I know of the like in our own country is in the park at Althorp in Northamptonshire, the magnificent seat of the Right Hon. the Earl of Sunderland.”^[45] Here are six of these commemorative stones. The first records a wood planted by Sir John Spencer, in 1567 and 1568; the second, a wood planted by Sir John Spencer, son of the former, in 1589; the third, a wood planted by Robert Lord Spencer, in 1602 and 1603; the fourth, a wood planted by Sir William Spencer, Knight of the Bath, afterwards Lord Spencer, in 1624. This stone is ornamented with the arms of the Spencers, and on the back is inscribed, VP AND BEE DOING AND GOD WILL PROSPER. In this scenery and amidst these associations the Washingtons lived. When the emigrant left, in 1657, the woods must have been well grown. Not long afterwards they arrested the attention of Evelyn. The fifth and sixth stones were never seen by the Washingtons, or by Evelyn. They were set up in 1798 and 1800, by George John, second Earl Spencer, who planted trees as well as amassed books.

The Household Books at Althorp show that for many years the Washingtons were frequent guests. The hospitality of this seat has been renowned. The Queen of James the

First and Prince Henry, on their way to London in 1603, were welcomed there in an entertainment, memorable for a Masque from the vigorous muse of Ben Jonson.^[46] Charles the First was at Althorp in 1647, when he received the first intelligence of those approaching pursuers from whom he never escaped except by the scaffold. In 1695, King William was there for a week, and, according to Evelyn, “mightily entertained.”^[47] At least one of the family was famous for hospitality of a different character. Evelyn records that he used to dine with the Countess of Sunderland,—the title then borne by the Spencers,—when she invited *fire-eaters*,^[48] stone-eaters, and opera-singers, after the fashion of the day.^[49]

The family was early and constantly associated with literature. Spenser, the poet, belonged to it, and dedicated to one of its members, Alice Spencer, “the Ladie Strange,” afterwards Countess of Derby, his “Tears of the Muses.” For the same Alice Spencer Milton wrote his “Arcades,” while Sir John Harrington celebrated her memory by an epigram. The Sacharissa of Waller was the Lady Dorothy Sydney, wife of the first Earl of Sunderland, third Lord Spencer, who perished fighting for King Charles the First at Newbury. I do not dwell on other associations of a later day, as my object is simply to indicate those which existed in the time of the Washingtons.

“The nobility of the Spencers has been illustrated and enriched by the trophies of Marlborough; but I exhort them to consider the ‘Fairy Queen’ as the most precious jewel of their coronet.” Thus wrote Gibbon in his Memoirs,^[50] and all must feel the beauty of the exhortation. This nobility may claim another illustration from ties of friendship and neighborhood with the Washingtons. Perhaps hereafter our countrymen will turn aside from their travels to visit the parish church of Brington, in reverence for a spot so closely associated with American history.

I trust that this little sketch, suggested by what I saw at Althorp during a brief visit last autumn, will not seem irrelevant. Besides my own personal impressions and the volumes quoted, I have relied upon Dibdin's "*Ædes Althorpianæ*," so interesting to all bibliographical students, and especially upon Baker's "*History and Antiquities of the County of Northampton*,"—one of those magnificent local works which illustrate English history,—to which you refer in your Appendix.

The Memorial Stones, which I have received from Lord Spencer, are of historic value; and I think that I shall best carry out the generous idea of the giver by taking care that they are permanently placed where they can be seen by the public,—perhaps in the State-House, near Chantrey's beautiful statue of Washington, if this should be agreeable to the Commonwealth.

Pray pardon this call upon your attention, and believe me, my dear Sir, with much regard,

Ever sincerely yours,

CHARLES SUMNER.

JARED SPARKS, Esq.

The following official documents show how these Memorial Stones found their way to the State-House of Massachusetts.

“EXECUTIVE DEPARTMENT, COUNCIL CHAMBER,
BOSTON, March 15, 1861.

“To the Honorable the House of Representatives:—

“I have the honor to present to the General Court, as a gift to the Commonwealth of Massachusetts from one of its citizens, certain memorials of great historic interest.

“The home and final resting-place of the ancestors of George Washington were until recently unvisited by and unknown to Americans. In the genealogical table appended to the ‘*Life of Washington*’ by our distinguished fellow-citizen, Mr. Jared Sparks, it is stated that Lawrence Washington, the father of John Washington (who emigrated to Virginia in 1657), was buried at Brington; but,

though both Mr. Sparks and Washington Irving visited Sulgrave, an earlier home of the Washingtons, neither of these learned biographers appears by his works to have repaired to this quiet parish in Northamptonshire.

“Our fellow-citizen, the Hon. Charles Sumner, on a recent visit to England, identified certain inscriptions in the parish church of Brington, near Althorp, as being those of the father and uncle of John Washington, the emigrant to Virginia, who was the great-grandfather of the Father of his Country.

“Earl Spencer, the proprietor of Althorp, sought out the quarry from which, more than two centuries ago, these tablets were taken, and caused others to be made which are exact *fac-similes* of the originals. These he has presented to Mr. Sumner, who has expressed the desire that memorials so interesting to all Americans may be placed where they may be seen by the public, and has authorized me to offer them to the Commonwealth, if it be the pleasure of the Legislature to order them to be preserved in some public part of the State-House.

“I send with this a letter addressed to myself by the learned historian of Washington, bearing testimony to the great interest of these memorials, and expressing the desire that they may (Mr. Sumner assenting) be placed in the Capitol.

“A letter from Mr. Sumner to Mr. Sparks also accompanies this Message, describing the church at Brington, and some of the associations which cluster around the resting-place of the ancestors of our Washington.

“JOHN A. ANDREW.”

MR. SPARKS TO THE GOVERNOR.

“CAMBRIDGE, February 22, 1861.

“DEAR SIR,—I enclose a copy of a highly interesting letter from Mr. Charles Sumner, describing the church at Brington, near Althorp, in Northamptonshire. In this church were deposited the remains of Lawrence Washington, who was the father of John and Lawrence Washington, the emigrants to America, and who was therefore the last English ancestor of George Washington. A copy of the inscription on the stone which covers the grave of Lawrence Washington, and also of another inscription over the grave of his brother, Robert Washington, who was buried in the same church, are given with exactness in Mr. Sumner’s letter. As far as I am aware, these inscriptions are now for the first time made known in this country.

“Earl Spencer has sent to Mr. Sumner two stones, being from the same quarry, and having the same form and dimensions, as the originals, and containing a *fac-simile* of the inscriptions. It has been suggested that these stones ought to be placed in the State-House, where they may be accessible to the public, and my opinion on the subject has been asked. As they are unquestionably genuine memorials of the Washington family, and possess on this account a singular historical interest, I cannot imagine that a more appropriate disposition of them could be made. I understand that Mr. Sumner would cheerfully assent to such an

arrangement, and I cannot doubt that your Excellency will be well inclined to take such measures as may effectually aid in attaining so desirable an object.

“I am, Sir, very respectfully yours,

“JARED SPARKS.

“His Excellency JOHN A. ANDREW,
Governor of Massachusetts.”

“COMMONWEALTH OF MASSACHUSETTS.

“HOUSE OF REPRESENTATIVES, March 23, 1861.

“The Committee on the State-House, to whom was referred the Message of His Excellency the Governor, presenting to the General Court, as a gift from the Hon. Charles Sumner, certain memorials of Washington, of great historic interest, report that they consider it a matter of special congratulation that the interesting facts concerning the Father of his Country, contained in the papers accompanying the Message, should have been first made known to us by a citizen of Massachusetts; and deeming it important that these valuable memorials should be permanently preserved in the capitol of the State, they report the accompanying resolves.

“Per order,

“R. WARD.”

“Resolves in relation to certain Memorials of the Ancestors of Washington.

“Resolved, That the thanks of the General Court be and hereby are presented to the Hon. Charles Sumner for his interesting and patriotic gift to the Commonwealth, of two Memorial Tablets in imitation of the originals which mark the final resting-place of the last English ancestors of GEORGE WASHINGTON.

“Resolved, That the Commissioners on the State-House cause the same to be prepared and placed, with appropriate inscriptions, in some convenient place in the Doric Hall of the State-House, near the statue of Washington.—*Approved April 6, 1861.*”

“OFFICE OF THE COMMISSIONERS ON THE STATE-HOUSE,
BOSTON, January 1, 1862.

“The undersigned, Commissioners on the State-House, hereby certify, that, in compliance with the Resolves of the Legislature of Massachusetts, passed April 6, 1861, they have caused the abovenamed Memorial Tablets of the Washington

Family to be permanently placed upon the marble floor of the area in which the statue of Washington stands, within the railing in front of said statue.

“JOHN MORISSEY, *Sergeant-at-Arms*.

OLIVER WARNER, *Secretary*.

HENRY K. OLIVER, *Treasurer*.

A white marble tablet, placed by the Commissioners near the Washington Memorials, bears the following inscription:—

THESE FAC-SIMILES OF THE MEMORIAL STONES OF THE WASHINGTON FAMILY IN THE PARISH CHURCH OF BRINGTON, THE BURIAL-PLACE OF THE SPENCERS, NEAR ALTHORP, NORTHAMPTONSHIRE, ENGLAND, WERE PRESENTED BY THE RIGHT HONORABLE EARL SPENCER TO CHARLES SUMNER OF MASSACHUSETTS, AND BY HIM OFFERED TO THE COMMONWEALTH 22 FEBRUARY, 1861.

LAWRENCE WAS FATHER, AND ROBERT UNCLE, OF THE ENGLISH EMIGRANT TO VIRGINIA, WHO WAS GREAT-GRANDFATHER OF GEORGE WASHINGTON.

LAFAYETTE, THE FAITHFUL ONE.



ADDRESS AT THE COOPER INSTITUTE, NEW YORK, NOVEMBER 30, 1860.



He [Algernon Sidney] was stiff to all republican principles, and such an enemy to everything that looked like monarchy, that he set himself in a high opposition against Cromwell, when he was made Protector.—BURNET, *History of His Own Time*, Vol. I. p. 538.



Quant à moi, j'avoue que mon indolence sur cet objet tient à la confiance intime où je suis que la liberté finira par s'établir dans l'ancien monde comme dans le nouveau, et qu'alors l'histoire de nos révolutions mettra chaque chose et chacun à sa place.—LAFAYETTE, *Mémoires*, Tom. I. Avant-propos, p. v.

Go on, my friend, in your consistent and magnanimous career; and may you live to witness and enjoy the success of a cause the most truly glorious that can animate the breast of man,—that of elevating and meliorating the condition of his race.—JAMES MADISON, *Letter to Lafayette, 1821: Letters and other Writings*, Vol. III. pp. 237, 238.



This Address was at the invitation of the Young Men's Republican Union of New York, before whom the speech on the Republican party had been given.^[51] On the present occasion, William C. Bryant, justly famous in our literature, took the chair and introduced Mr. Sumner in the following words.

“I am glad, my friends, to see so large an audience assembled for the purpose of hearing one of our most accomplished scholars and orators discourse on a subject lying apart from the ordinary strifes and immediate interests of the day. Concerning the services rendered by Lafayette to our country, to our own Republic, in the most critical stage of its existence, there is no controversy. For them we are all grateful. For his personal character we all cherish a high veneration. And your presence here to-night in such numbers declares that there are multitudes among us who cherish and preserve a warm admiration, a generous and purifying enthusiasm, for the noble examples of self-sacrifice bequeathed to us by a generation which has passed away. Among public men, in all times and all countries, among all that class who have been actors in the events which make up the history of the world, there are few, unfortunately, who can compare with Lafayette in a course of steady, unswerving virtue. Attend, then, my friends, to the portraiture of that virtue drawn and set before you in living words by a great artist, Charles Sumner, of Boston, whom I now introduce to this assembly.” [Long continued cheering.]

The newspapers speak of the assembly as crowded and enthusiastic, in spite of stormy weather. The *Herald* says, "The cheering was protracted, and the utmost enthusiasm was manifested by the audience." Even the *World* adds, "The lecturer was frequently and vociferously applauded, and the audience gave evidence of deep interest in his remarks." From the report in the *Herald* it appears that the allusions to Slavery were received always with "applause," while, at the remark of Lafayette attributing "the evils of France less to the madness of violence than to compromise of conscience by timid men,"^[52] there was what the *Herald* calls "vehement and long continued applause, and waving of hats and handkerchiefs." The temper of the audience was an illustration of prevailing sentiment.

Beside the newspaper report at the time, this address was printed at New York in a pamphlet, but from notes of reporters without revision or help from Mr. Sumner.

In selecting this subject, Mr. Sumner was governed by two considerations: first, a long cherished desire to pay the homage justly due in his opinion to an illustrious character whose place in history was not yet determined, and, secondly, the conviction, that, in the actual crisis of our affairs, such an example of fidelity would help to fix popular sentiment. The sympathy of the audience in all the testimony against Slavery, and especially in the condemnation of Compromise, showed that the effort was appreciated. The report in the *Herald* was headed "*Sumner on Slavery.*"

Rumors of compromise in certain quarters and menaces from the South increased the anxiety of the more earnest to take advantage of every opportunity for demonstration against Slavery. To all suggestions of concession the North made haste to answer in the negative. Already began that fidelity under which the Rebellion finally succumbed and Slavery disappeared.

Mr. Sumner was especially pleased at the appreciation of this Address as an effort against compromise,—shown by a letter from a citizen of Kansas, who was present:—

"How timely and impressively that bright example teaches adherence to Liberty and Principle, and resistance to concession and compromise, at the present crisis!"

A patriot citizen who heard it at Philadelphia, where it was given before an immense audience, wrote:—

"Your Lecture has done more good than words can tell. There is no such thing as calculating its value to our city."

The *Pennsylvanian* of Philadelphia, after entitling it "Clear Grit Abolitionism," said:—

"The People's Literary Institute Lecture, at Concert Hall, last evening, was by that perfect ensample of Abolitionism, Senator Sumner, of Massachusetts. The hall was crowded, negroes occupying the front seats and other prominent places. Sumner's nominal subject was 'Lafayette,' but he made his sketch of the noble Marquis a vehicle for the expression of the most ardent wishes and aspirations after negro equality. The audience applauded the most radical passages, although a stray hiss now and then betrayed the whereabouts of a 'Conservative.'"

ADDRESS.

MR. PRESIDENT,—I am to speak this evening of one who early consecrated himself to Human Rights, and throughout a long life became their representative, knight-errant, champion, hero, missionary, apostle,—who strove in this cause as no man in history has ever striven,—who suffered for it as few have suffered,—and whose protracted career, beginning at an age when others are yet at school, and continued to the tomb, where he tardily arrived, is conspicuous for the rarest fidelity, the purest principle, and the most chivalrous courage, whether civil or military. There is but one personage to whom this description is justly applicable, and you have anticipated me when I pronounce the name of Lafayette. As in Germany Jean Paul is known as “the Only One,” so would I hail Lafayette as “the Faithful One.” If Liberty be what philosophy, poetry, and the human heart all declare, then must we treasure the example of one who served her always with a lover’s fondness and with a martyr’s constancy, nor demand perfections which do not belong to human nature. It is enough for unstinted gratitude that he stood forth her steadfast friend, like the good angel,—

“unmoved,

Unshaken, unseduced, unterrified,—

trampling on all the blandishments of youth, of fortune, and of power, keeping himself sternly aloof whether from King or Emperor, and always insisting upon the same comprehensive cause,—with a soul as fearless and irreproachable as Bayard, from whom generals and kings received knighthood, as unbending as Cato, who singly stood out against Cæsar, and as gentle as that best loved disciple, who leaned on the bosom of the Saviour, and alone of all the Twelve followed him to the Cross.

If anything could add to the interest which this unparalleled career is calculated to awaken, I should find it in special associations which I have enjoyed. Often, when in Paris halting about as an invalid, I turned from its crowded life to visit the simple tomb of Lafayette in the conventual

cemetery of Picpus, watched by white-hooded nuns, within the circle of the old walls, where he lies by the side of his heroic wife, pattern of noblest womanhood. Gazing on this horizontal slab of red freestone, in shape like that of Albert Dürer in the republican graveyard of Nuremberg, bearing an inscription without title of any kind, and then casting my eyes upon the neighboring monuments, where every name has the blazon of prince or noble, I seemed to see before me that youthful, lifelong, and incomparable loyalty to a great cause with perfect consistency to the end, marking him a phenomenon of history, which will be my theme to-night. The interest inspired at the republican tomb was strengthened at Lagrange, the country home of Lafayette, a possession derived from the family of his wife, where he passed the last thirty years of life in patriarchal simplicity, surrounded by children and grandchildren, with happy guests, and where everything still bears witness to him.

Nor do I believe that my interest goes far beyond that of the American people, when I think how his name is a household word, dear to all alike, old and young. Even the list of post-offices in the United States shows no less than fifty with his venerated name, and eighteen with the name of Lagrange.

Just before leaving France, now a year ago, on a clear and lovely day of October, in company with a friend, I visited this famous seat, which at once reminded me of the prints of it so common at shop-windows in my childhood. It is a picturesque and venerable castle, with five round towers, a moat, a drawbridge, an arched gateway, ivy-clad walls, and a large courtyard within, embosomed in trees, except on one side, where a beautiful lawn spreads its verdure. Everything speaks to us. The castle itself is of immemorial antiquity,—supposed to have been built in the earliest days of the French monarchy, as far back as Louis le Gros. It had been tenanted by princes of Lorraine, and been battered by the cannon of Turenne, one of whose balls penetrated its thick masonry. The ivy so luxuriantly mantling the gate, with the tower by its side, was planted by the eminent British statesman, Charles Fox, on a visit during the brief peace of Amiens. The park owed much of its beauty to Lafayette himself. The situation harmonized with the retired habits which found shelter there from the storms of fortune. It is in the level district of Brie, famous for its cheese, and forming part of the province of Champagne, famous for its wine,—

about forty-five miles to the east of Paris, remote from any high-road, and at some distance from the railway recently opened through the neighborhood, in a country rich with orchards and smiling with fertility of all kinds. The estate immediately about the castle contains six hundred acres, which in the time of Lafayette was enlarged by several outlying farms. The well-filled library occupied an upper room in one of the towers, and near a window overlooking the farm-yard still stood the desk at which Lafayette was in the habit of sitting, with the speaking-trumpet by which he made himself heard in the yard, and with the account-book of the farm lying open as he had left it. All about were souvenirs of our country, showing how it engaged his thoughts. The castle is now occupied by the family of one of his grandchildren, whose hospitable welcome to us as Americans gave token of their illustrious ancestor, hardly less than these precious memorials and the full-length portrait by Ary Scheffer which looked down from the walls.

And now holding up to view a model of surpassing fidelity in support of Human Rights, I am not without hope that others may see the beauty of such a character and try to make it in some measure their own. There is need of it among us. We, too, must be faithful.

Gilbert de Motier, Marquis de Lafayette, only child of an ancient house, was born 6th September, 1757, at the castle of Chavaniac, in the central and mountainous province of Auvergne, in France. He came into the world an orphan,—for his father, a colonel of grenadiers in the French army, had already perished at the Battle of Minden. The verses which once interested Burns and excited the youthful admiration of Scott, though suggested by a humbler lot, depict some of the circumstances which surrounded his:—

“Cold on Canadian hills or *Minden’s plain*,
Perhaps that parent mourned her soldier slain,
Bent o’er her babe, her eye dissolved in dew,
The big drops mingling with the milk he drew.”^[53]

The mother died soon after, leaving her child alone in the world, with rank and fortune such as few possess.

In the Memoirs, written by his own hand, Lafayette mentions simply his birth, without allusion to family or ancestry. This was characteristic of one who had so completely renounced all such distinctions. But the temptations he overcame and the prejudices he encountered can be fully appreciated only when we know his origin. His family was not merely ancient and noble, but for generations historic. It had given to French renown a Marshal, who, after honorable service in Italian campaigns, fought by the side of the Maid of Orléans in the expulsion of the English from France; and it had added to the more refined glories of the nation an authoress of that name, the friend of Rochefoucauld and Madame de Sévigné, who shone by literary genius at the court of Louis the Fourteenth, and became an early example of what woman may accomplish: so that the young orphan bore a name which, in a land of hereditary distinctions, seemed to enlist him for their conservation, while it gave him everywhere an all-sufficient passport.

But as some are born poets and others are born mathematicians, the Marquis de Lafayette was born with instinctive fidelity to the great principles of Liberty and Equality, by the side of which all hereditary distinctions disappear. Liberty, he had the habit of saying, was with him a religion, a love, and a geometrical certainty; and this passion, thus sacred, ardent, and confident, was inborn, perpetual, and irresistible. While still a child in the seclusion of Auvergne, he sighed for dangerous adventure, and when at the age of eleven he was transferred to college at Paris, the soul of the young noble responded instinctively to all instances of republican virtue. In the child may be seen the man, and he delighted afterwards to remember that during those early years, when the heart showed itself as it was, in a school exercise describing "the perfect horse," he lost the prize by picturing the noble animal as throwing his rider at sight of the whip. Nor did his ardent nature express itself in superficial sallies. At every period of life, and particularly in youth, he was grave and silent even to coldness,—thus in external manner differing from the giddy and ostentatious nobles of his day, as he contrasted with them in character.

An early marriage, at the age of sixteen, with the remarkable daughter of the ducal house of Noailles, enlarged his aristocratic connections, and completed all that heart could desire for happiness or worldly advancement. But the life of a courtier, even with the companionship of royal princes, did not satisfy his earnest nature, and he turned away from the grandeurs and follies of Versailles to follow in the steps of his father as captain in the French army. Stationed at Metz, a border fortification on the Rhenish frontier of France, an incident occurred which gave impulse and direction to his life.

The Duke of Gloucester, brother of King George the Third, smarting under slights at court on account of a marriage disagreeable to the King, turned his back upon England, and in his travels stopped at Metz, where he was welcomed at dinner by the commander of the garrison. At that table sat the youthful Lafayette, only nineteen years old, who there for the first time heard the story of the American “insurgents,” as they were called,—of their armed resistance to British troops, and of the Declaration of Independence. His whole nature was thrilled, and the passionate declamation against arbitrary power to which the English Duke gave vent, though stirred only by wounded pride and spite, fell like a spark upon his sincere and sensitive soul, already kindling with generous emotions, so that, before the dinner was ended, his resolution was fixed to cross the ocean and offer his sword to distant, unknown fellow-men struggling for liberty. This was in the autumn of 1776.^[54] Hastening back to Paris, he lost no time in engaging with the American Commissioners there, who with grateful astonishment welcomed their romantic ally.

Meanwhile came tidings of melancholy reverses which followed the Declaration of Independence, and of the scanty forces of Washington tracking the snow with bloody feet, as they retreated through New Jersey,—seeming to announce that all was lost. The American Commissioners frankly confessed that they could not encourage Lafayette to proceed with his purpose. But his undaunted temper was quickened anew, and when they told him that with their damaged credit it was impossible to provide a vessel for his conveyance, he exclaimed: “Thus far you have seen my zeal only; now it shall be something more. I will purchase and equip a vessel myself. It is while danger presses that I wish to join your fortunes.” Noble words,

worthy of immortality, and never to be heard without a throb by an American heart!

Before embarking, Lafayette, partly to mask his enterprise, and also in the hardihood of courage, visited England, where his wife's uncle, the French ambassador, presented him to George the Third, who, unconscious of his purpose, said, "I hope you mean to stay some time in Britain"; to which he answered, that it was not in his power. "What obliges you to leave us?" asked the King. "Please your Majesty," said our new ally, "I have a very particular engagement; and if your Majesty were aware of it, you would not desire me to stay." During this visit everything was open to the youthful soldier, and he was even invited to attend the review of British troops about to embark for America. From instinctive delicacy he declined, thinking it not right to take advantage of a hospitable invitation to inspect troops against whom he was about to array himself in war. "But," he added, in relating this incident, "I met them six months after at the Brandywine."

Quitting England, he traversed France with secrecy and despatch to join his vessel, which was at a Spanish port, beyond French jurisdiction. His departure came like a bolt upon the English Court, which he had just left, also upon the French Court, which was not yet prepared for a break with England, and upon his most affectionate family, who were planning for him a tour in Italy, which in his busy life he never made; but his young wife, who suffered most, loved him too well not to partake his sentiments and to approve his generous resolution, even though it separated him from her. To illustrate the general sensation, I quote the words of the historian Gibbon, in a letter dated April 12, 1777. "We talk chiefly of the Marquis de Lafayette, who was here a few weeks ago. He is about twenty, with an hundred and thirty thousand livres a year, the nephew of Noailles, who is ambassador here. He has bought the Duke of Kingston's yacht, and is gone to join the Americans.^[55] His family interfered by peremptory command, and the French Government interfered by that arbitrary mandate, under seal of the King, known as *lettre-de-cachet*,—but, disregarding the one and evading the other, in the disguise of a courier, our devoted ally traversed the Pyrenees, and soon found himself with his companions in arms on board his vessel, which, on the 26th of April, 1777, set sail for America.

Undertaking this enterprise at a time when the sea and all beyond were little known, the youthful adventurer showed a heart of “triple oak.” Our admiration is enhanced, when we recall the charms of country, rank, and family left behind,—with perils of capture and war braved even before reaching the land,—and especially when we contemplate the motive in which this enterprise had its origin. Rarely has hero gone forth on so beautiful an errand; for he carried words of cheer to our fathers, then in despairing struggle for the Great Declaration, and opened the way for those fleets and armies of France soon after marshalled on our side; nor is it too much to say, that he was the good angel of Independence. His family correspondence, which has seen the light only since his death, exhibits his beautiful fidelity and the completeness of his dedication to our cause. In a letter to his distinguished father-in-law, announcing his purpose, he says of American interests, that they “will always be more dear to him than his own,” and then declares himself “at the height of joy at having found so fine an occasion to do something and to improve himself.”^[56] In a letter to his wife, written on the voyage, under date of June 7, 1777, his sympathy with the great objects of the national contest is tenderly revealed. “I hope, for my sake,” he writes, in words worthy of everlasting memory, “that you will become a good American. This is a sentiment proper for virtuous hearts. Intimately allied to the happiness of the whole Human Family is that of America, destined to become the respectable and sure asylum of virtue, honesty, toleration, equality, and of a tranquil liberty.”^[57] Where are nobler words of aspiration for our country than this simple testimony by a youth of nineteen, pouring out his heart to his wife of seventeen? Where in history are grander words from youth or man? For seven weeks laboring through the sea, yet sustained by thoughts like these, he arrived at last on the coast of South Carolina. It was dark, but, pushing ashore in a boat, and following the guidance of a light, he found himself under a friendly roof. His first word, as he touched the land, was a vow to conquer or perish with it.

The Continental Congress was then sitting at Philadelphia, and, without stopping for rest, the sea-worn voyager hastened to report himself there. Most of the way on horseback, for nine hundred miles, he journeyed on, enjoying the country in its native freshness, and the simple, cordial welcome which greeted him everywhere on the road. “The further North I advance,” thus he wrote to his wife, “the more I like this country and its

people.”^[58] He had already been struck by what to him were “black domestics who came to ask his orders.”^[59] Then for the first time he looked upon a slave. His well-known sentiments, so constantly declared, show clearly how his candid nature must have been troubled. He had forsaken France, where, amidst gross inequalities of condition, this grossest was unknown,—where, in the descending ranks of the feudal hierarchy, there was no place for this degradation,—where, amidst unjust taxes and injurious privileges without number, every man had a right at least to his child, to his wife, and to himself,—and where the boast went forth, as in England, and was repeated by judicial tribunals, that the air was too pure for a slave. With heavenly generosity he had turned away from his own country to help the cause of Freedom in another hemisphere, and here he found man despoiled of all *personal* rights, and even degraded to be property, by those whose own struggles merely for *political* rights had thrilled the fibres of his being. Youthful, and little schooled as yet in the world, he must have recoiled instinctively, as this most dismal and incomprehensible inconsistency appeared before him. How faithfully he battled with the demon his life will show.

Arrived in Philadelphia, he announced that he had come to serve at his own expense and as volunteer. The Continental Congress, touched by the magnanimous devotion of the youthful stranger, and apprised of his distinguished connections at home, appointed him without delay Major-General in the army of the United States, where he took rank by the side of Gates and Greene, Lincoln and Lee. Born to exalted condition in an ancient monarchy, he found himself welcomed to the highest place in the military councils of a struggling republic, and this while still a youth under twenty,—younger than Fox, younger than Pitt, when they astonished the world by their precocious parliamentary powers,—younger than Condé, in his own beautiful France, on the field of Rocroi. And his modesty was not less eminent than his post. To Washington, who made apologies for exhibiting his troops before a French officer, he replied with interesting simplicity, “I have come to learn, and not to teach.”^[60] The Commander-in-Chief, usually so grave, was won at once to that perpetual friendship which endured unbroken as long as life,—showing itself now in tears of joy and then in tears of grief,—watching the youthful stranger with paternal care,—sharing with him table, tent, and on the field of Monmouth the same cloak for a

couch,—following his transcendent fortunes, now on giddiest heights and then in gloom, with constant, unabated attachment,—corresponding with him at all times,—addressing him in terms of unwonted endearment as “the man he loved,”^[61] and saying again that he “had not words to express his affection, were he to attempt it,”^[62]—sending kindly sympathy to that devoted wife in her unparalleled affliction, and pleading across sea and continent with the Austrian despot for his release from the dungeons of Olmütz.

It is much to have inspired the most tender friendship which history records in the life of Washington. There were with us other strangers, scarcely less brilliant than Lafayette. There was Kosciusko, the Pole, who afterwards played so great a part in his own country—Steuben, the German, who did so much for the discipline of our troops,—De Kalb, the gallant soldier, who died for us at Camden,—Rochambeau, the distinguished commander of the French forces, compeer with Washington at Yorktown,—Lauzun, the sparkling courtier, whose fascinations were acknowledged by Marie Antoinette,—Ségur, the high-bred youthful soldier and future diplomatist,—Montesquieu, grandson of the immortal author of the “Spirit of Laws,”—Saint-Simon, whose military and ancestral honors are now lost in his fame as social reformer,—also the unfortunate Count de Loménie, with the Prince de Broglie of the old monarchy, and Berthier, afterwards a prince of the Empire. All these were in our revolutionary contest gathered about Washington; but Lafayette alone obtained place in his heart. Friendship is always a solace and delight; but such a friendship was a testimony. Let it ever be said that Washington chose Lafayette as friend, while Lafayette was to him always pupil, disciple, son.

His intrepidity found early occasion for display at the Battle of the Brandywine, where, attempting to rally our unlucky troops, he was severely wounded in the leg, and thus at once, by suffering for us, increased his titles to regard. As he became known, his simple and bountiful nature awakened the attachment of officers and men, so that in writing to his wife he was able to relieve her anxieties by saying that he had “the friendship of the army in gross and in detail,” and also what he calls “a tender union with the most respectable, the most admirable of men, General Washington.”^[63] Nor was this unnatural, when we consider how completely he became American in dress, food, and habits, as he was already American in heart. Avoiding no

privation or fatigue, this juvenile patrician, educated to indulgence in all the forms that wealth and privilege could supply, showed himself more frugal and more austere even than his republican associates, living sometimes for months on a single ration. The confidence of Congress soon followed, and by special resolution Washington was requested to place him at the head of an independent command.

Meanwhile France openly enlisted on our side. Turgot, the philosopher, and Necker, the financier, counselled, as far-sighted ministers, against this step, which launched the ancient monarchy in a dangerous career. Jealous of a rival power, smarting under recent reverses, and brooding over the accumulated rancors of long generations, the Court was willing to embarrass England, yet covertly and without the hazard of open war. The King himself never sympathized with the American cause. But public opinion, which in that nation inclines to generous ideas, was moved by the news of a distant people waging a contest for Human Rights, at first doubtful, and then suddenly illumined by the victory of Saratoga,—while Franklin, the philosopher and diplomatist, our unequalled representative at Paris, challenged the admiration alike of grave and gay, and the example of Lafayette touched the heart of France. These wrought so far, that Court and King were obliged to bend before the popular will, and then came the Treaty of Alliance with the Colonies by which their place in the Family of Nations was assured. The Treaty was communicated to the British Court, with a note referring Independence to the Declaration of the 4th of July, on which Lafayette, with constant instinct for popular rights, exclaimed, “Here is a principle of national sovereignty which will some day be recalled at home.”^[64] Of course, if Americans could become independent by a Declaration, so could Frenchmen.

The duties of Frenchman were now superadded to the duties Lafayette had assumed toward our cause. “As long,” said he, in a letter to Congress, “as I thought I could dispose of myself, I made it my pride and pleasure to fight under American colors in defence of a cause which I dare more particularly call *ours* because I had the good luck to bleed for it. Now that France is involved in a war, I am urged by a sense of duty, as well as by patriotic love, to present myself before the King, and know in what manner he judges proper to employ my services. The most agreeable of all will always be such as may enable me to serve the common cause among those

whose friendship I have had the happiness to obtain, and whose fortune I have had the honor to follow in less smiling times.” Congress responded by unlimited leave of absence, with permission to return at his own convenient time, and by a vote of grateful thanks and a sword, together with a letter to the French King, where they said, “We recommend this young nobleman to your Majesty’s notice, as one whom we know to be wise in council, gallant in the field, and patient under the hardships of war.”^[65] Never before did Frenchman return from service abroad with such a letter to his king.

On his way to embark at Boston, he was attacked by a fever, which in its violence seemed about to prevail, so that Washington dwelt on the daily tidings of the physician “with tears in his eyes,” and it was reported at one time that “the soldier’s friend,” as he was called, had died.^[66] Happily he was spared to his two countries, and to the affection of his commander. Always true to Liberty, he would not let the crew of the frigate waiting for him at Boston be recruited by impressment,—thus in all things guarding the rights of the people.^[67]

If the sensation in Europe caused by his departure had been great, that caused by his return, after two years of brilliant service, with eminent military rank, with the thanks of Congress and the friendship of Washington, was greater far. He could not appear anywhere without greetings of admiration which knew no bounds, while, to borrow his own account, he was “consulted by all the ministers, and, what is much better, kissed by all the women.”^[68] In a journey to his estate, the towns through which he passed honored him with processions and civic pomp. But his distant friends, struggling for the Great Declaration, were never out of mind. Accustomed to large interests sustained by small means, he regretted each *fête* even in his own honor as a diversion of supplies, while his zeal went so far as to make the Prime-Minister, M. de Maurepas, declare that for this cause Lafayette would strip Versailles of its furniture. Such an influence, so sincere and so constant, from one who spoke not only as a French noble, but as a Major-General of the American army, was not without result. The papers of Lafayette attest the ability with which he pressed upon the French Government an active participation in the contest, and especially prompted the decisive expedition of Rochambeau.

But he did not loiter at home. Soon he turned from country and family. Again he crossed the sea, and this time landed at Boston, for which, at a later day, he recorded a “predilection,”^[69] chiefly, it appears, because there were no slaves there, and all were equal. The hearts of the people everywhere throbbed with welcome; the army partook of this delight, and Washington now “shed tears of joy.”^[70] The republican sentiments which animated him appear in the present of a flag to one of our battalions, with a simple wreath of laurel blending with a civic crown, and the words beneath, “*No other.*”^[71] Farewell to crowns and coronets, to kings and nobles! Such was the great lesson of the flag. Then commenced the second part of his American career,—his active military service,—his command in Virginia,—his campaign against Cornwallis, when the latter said triumphantly, “The boy shall not escape me,”—and his coöperation in the final assault at Yorktown, ending in the capitulation of the British commander to the combined forces of America and France,—all of which belongs to the history of both countries.

The campaign in Virginia redounded to the praise of Lafayette in no common measure. After announcing his designation for this service, and saying that “the command of the troops in that State cannot be in better hands,” Washington proceeds:—

“He possesses uncommon military talents, is of a quick and sound judgment, persevering, and enterprising without rashness; and besides these, he is of a very conciliating temper and perfectly sober, which are qualities that rarely combine in the same person. And were I to add that some men will gain as much experience in the course of three or four years as some others will in ten or a dozen, you cannot deny the fact and attack me upon that ground.”^[72]

Madison wrote at the time that “his having baffled and finally reduced to the defensive so powerful an army as we now know he had to contend with, and with so disproportionate a force, would have done honor to the most veteran officer.”^[73] The General Assembly of Virginia, by solemn resolution, conceived in the warmest terms of affection and applause, acknowledged “his many great and important services to this Commonwealth in particular, and through it to the United States in

general,” and tendered to him therefor “the grateful thanks of the free representatives of a free people.” They also directed a marble bust of him, “as a lasting monument of his merit and of their gratitude.” This judgment was sanctioned by the highest authorities, including Washington.^[74] A recent author adds to this testimony by speaking of the campaign as “masterly,” and then characterizes it as “the most brilliant, as well as the most successful, part of his whole public career.”^[75] But this judgment strangely forgets that lifelong loyalty to Human Rights which in itself is a campaign beyond any in war.

Grim-visaged war now smoothed its wrinkled front, and, in the lull which ensued after the surrender of Cornwallis, Lafayette returned again to France, with the renewed thanks of Congress, and with added trusts. Our ministers abroad were instructed to consult him. The youthful soldier was changed into the more youthful diplomatist; nor was he less efficient in the new field. His presence alone was for our country an Embassy. Through him the haughty Spanish Court was approached, and gigantic forces were gathered at Cadiz for an expedition in the common cause. At the same time his republican character was so far recognized, that the Spanish monarch, anticipating the capture of Jamaica, exclaimed, “Lafayette must not be its governor, as he would make it a republic.”^[76] Great Britain bowed before the storm and signed the Treaty of Peace, by which American Independence was recognized. It was fit that this great news should reach Congress through our greatest benefactor. It was first known by a letter from Lafayette, dated at *Cadiz, February 5, 1783*; so that he who had espoused our cause in its gloom became the herald of its final triumph.

But another letter, bearing date the same day and forwarded by the same vessel with that announcing the glad tidings, opens another duty which already occupied his inmost soul. Thus he writes to Washington, under date of *Cadiz, February 5, 1783*,^[77] and the remarkable coincidence of dates shows how closely he associated the rights of the African slave with our National Independence.

“Now, my dear General, that you are going to enjoy some ease and quiet, permit me to propose a plan to you, which might become greatly beneficial to the black part of mankind. Let us unite in purchasing a small estate where we

may try the experiment to free the negroes and use them only as tenants. Such an example as yours might render it a general practice; and if we succeed in America, I will cheerfully devote a part of my time to render the method fashionable in the West Indies. *If it be a wild scheme, I had rather be mad this way than to be thought wise in the other task.*"^[78]

As if this great proposition were not enough, Lafayette, in the same letter, calls upon Washington to employ himself "in inducing the people of America to strengthen their Federal Union," saying, "It is a work in which it behooves you to be concerned; I look upon it as a necessary measure." Thus were Emancipation and Union conjoint in his regard.

At the date of this letter Lafayette was not yet twenty-six years of age, and now, one struggle ended, he begins another greater still, or rather he gives to the first its natural development, and shows how truly he accepts the truths declared by our fathers. Others might hesitate; he does not. In these few words addressed to Washington will be seen the same spirit which inspired him originally to enlist for us, the same instinctive love of Liberty, the same self-sacrifice, the same generosity, the same nobleness, expressed with affecting simplicity and frankness. Valuable as is this testimony for the African race, it is also precious in illustration of that remarkable character, which, from the beginning, was guided by no transient spirit of adventure, but by a sentiment almost divine for Human Rights. In this light his original consecration to our cause assumes new dignity, while American Independence becomes but a stage in the triumphs of that Liberty which is the common birthright of all mankind. If Fox was a *boy-debater*, as he has been called, then was Lafayette a *boy-hero*,—and hero of Humanity he continued to the end.

During the next year, at the pressing invitation of Washington, he again crossed the ocean, to witness the peaceful prosperity of the country whose government he had helped to found by twofold service in war and in diplomacy. Adopted child of the Republic, he surrendered himself for six months to the sympathies of the people, the delights of friendship, and the companionship of Washington, whom he visited at Mount Vernon, and with whom he journeyed. Nor did his partiality for Boston fail at this time, as a

contemporary record shows. "The reception I met with in Boston," he wrote, "no words can describe; at least it is impossible to express what I have felt."^[79] But, far more than all, the Slavery of the African race interested his heart, and would not allow him to be silent. In official answers to addresses of welcome from Legislatures of Southern States, he declared his desire to see these Legislatures commence the work of Abolition.^[80] This was in 1784, before Clarkson, then a youth at the University, was inspired to write his Essay against Slavery, which was the glorious beginning of his lifelong career, and before Wilberforce brought forward his memorable motion in the British Parliament for the abolition of the slave-trade. If these words were of little effect at that early day, they bear witness none the less to the exalted spirit of their author. In taking leave of Congress, as he was about to embark, he let drop other words, exhibiting the same spirit, wherein may be seen the mighty shadow of the Future. "May this immense temple of Freedom," he said, "ever stand *a lesson to oppressors, an example to the oppressed*, a sanctuary for the rights of mankind! and may these happy United States attain that complete splendor and prosperity which will illustrate the blessings of their government, and for ages to come rejoice the departed souls of its founders!"^[81] Such utterance by a French noble tells that the Revolution was approaching.

The friendship of Washington and Lafayette deserves more than passing mention. It constitutes a memorable part in the life of each. Already we have witnessed its beginning. They saw each other for the last time at Annapolis, where Washington had taken his welcome guest in his carriage from Mount Vernon. There they parted, Washington returning to his peaceful home, Lafayette hastening across the ocean to the great destinies and the great misfortunes which awaited him. But before leaving our shores he wrote a letter from his ship, where he pours out his devotion to his great chief, calling him "the most beloved of all friends he ever had or ever shall have anywhere," declaring his regret that he cannot have "the inexpressible pleasure of embracing him in his own house, of welcoming him in a family where his name is adored," and to this adding: "Everything that admiration, respect, gratitude, friendship, and filial love can inspire is combined in my affectionate heart to devote me most tenderly to you. In your friendship I find a delight which words cannot express."^[82] Though never meeting again,

their intimacy was prolonged by an interchange of letters, the most remarkable of any in the life of either, by which their friendship is made one, and each lives doubly in the affection of the other.

Returned to Europe, Lafayette sought constant opportunities to promote our interests,—writing especially of Jefferson, our Minister at Paris, that he was “happy to be his aide-de-camp.”^[83] Nor did he confine his exertions to France. Traversing Germany, from Brunswick to Vienna, he was everywhere a welcome guest, first with the Emperor, and then with the King of Prussia, who was the famous Frederick, sometimes called the Great,—described by Lafayette, in a picture worthy of a Dutch artist, as “an old, decrepit, and dirty corporal, all covered with Spanish snuff, the head almost resting on one shoulder, and fingers almost dislocated by the gout.”^[84] Cornwallis of Yorktown, who was there as a visitor also, confessed that at the camp in Silesia “there was a most marked preference for Lafayette.”^[85] But wherever the hero appeared, our concerns, whether political or commercial, were still present to his thoughts. At the table of Frederick he vindicated American institutions, and especially answered doubts with regard to “the strength of the Union,” which he upheld always as a fundamental condition of national prosperity. He confidently looked to our Independence as the fruitful parent of a new order of ages, being that rightful self-government, above all hereditary power, whether of kings or nobles, which he proudly called the “American Era.”

His heart was ever intent on projects of Human Improvement. Aroused by the disabilities of Protestants in France, amounting to absolute outlawry, sad heritage of that fatal measure, the revocation of the Edict of Nantes, Lafayette, though himself a Catholic, entered into earnest efforts for their liberation, and thus enrolled himself among champions of Religious Freedom. At the same time his opposition to African slavery assumed a practical form. Washington acknowledged his appeal from Cadiz, of 5th February, 1783, but unhappily deferred action.^[86] Lafayette went forward alone. At an expense of 125,000 francs, this foremost of Abolitionists purchased a plantation of slaves in the French colony of Cayenne, that by emancipation he might try the great experiment of Free Labor, and set an example to mankind.^[87] The spirit of this enterprise was seen on the arrival of the agent from Paris, who began by collecting all the slave-whips and other instruments of punishment on the plantation, and burning them in

presence of the slaves. This was in 1785, two years after the original proposition to Washington, who, on learning its execution, thus complimented his more than disciple:—

“The benevolence of your heart, my dear Marquis, is so conspicuous upon all occasions that I never wonder at any fresh proofs of it; but your late purchase of an estate in the colony of Cayenne, with a view of emancipating the slaves on it, is a generous and noble proof of your humanity. Would to God a like spirit might diffuse itself generally into the minds of the people of this country! But I despair of seeing it.”^[88]

Alas! had Washington at that time united with Lafayette, there would have been a living example of untold value to our country, instead of that dead despair which was like a stone wall in the path of Progress. Who can imagine the good from such an instance, teaching the priceless benefits of Freedom? Who can estimate its happy influence in extinguishing that great controversy which is not yet ended? It is sad to think that such an opportunity was lost.

While organizing Emancipation in the distant colony of Cayenne, Lafayette gave other evidence to his American friends. In a letter to John Adams, our Minister in London, dated February 22, 1786, he expresses himself with a vigor never surpassed during the long warfare with Slavery. “In the cause of my black brethren,” he writes, “I feel myself warmly interested, and most decidedly side, so far as respects them, *against the white part of mankind*. Whatever be the complexion of the enslaved, it does not, in my opinion, alter the complexion of the crime which the enslaver commits, a crime much blacker than any African face.”^[89]

The following brief note to Alexander Hamilton is another gem of character.

“PARIS, April 13, 1785.

“MY DEAR HAMILTON,— ... In one of your New York Gazettes I find an association *against the slavery of negroes*, which seems to me worded in such a way as to give no

offence to the moderate men in the Southern States. As I ever have been *partial to my brethren of that color*, I wish, if you are one in the society, you would move, in your own name, for my being admitted on the list. My best respects wait on Mrs. Hamilton. Adieu.

“Your affectionate friend,

“LAFAYETTE.”^[90]

How much in little! The testimony is plain. The witness is a volunteer. In simple words he records himself once more “against the slavery of negroes,” and then declares that he has ever been “partial to his brethren of that color.” For him the degraded slave is brother, although of a color not his own.

That great event was now at hand, which, beginning in a claim of rights denied, and inspired by generous ideas, was destined, amidst falling privileges and toppling thrones, to let loose the most direful furies of Discord and War,—to feed the scaffold with blood of King and Queen, and of good men in all the ranks of life,—to lift the nation to unknown heights of audacity and power,—to dash back the hosts of foreign invasion, as the angry surge from the rock,—to achieve victory on a scale of grandeur never witnessed since the eagles of Cæsar passed from Britain to Egypt,—and, finally, to mark a new epoch in the history of the Human Family. The French Revolution had come. It was foreshadowed in the writings of philosophers, in the gradual march of Human Progress, in the wide-spread influence of the American Revolution, in the growing instincts of the people, and the obvious injustice of existing things,—and it was begun in the example of Lafayette. Of all men, he was its natural leader, just so long as it continued moderate and humane. Alas, that such a cause, so beautiful in itself and so grand in promise, was wrested from its original character by the passions of men!

The initial step was the Assembly of the Notables, February 22d, 1787, brought together for the first time since its convocation to serve the arbitrary rule of Cardinal Richelieu. There sat the two brothers of the King,

all the princes of the blood, archbishops, bishops, dukes, peers, the chancellor, high officials of the magistracy, and distinguished nobles, convoked by the King in the interest of his crown. But the people had no representative there. Lafayette became their representative. As he had formerly drawn his sword, so now he raised his voice for popular rights; nor was he deterred by the courtly presence. Startled by his boldness, the Count d'Artois, afterwards Charles the Tenth, attempted to call him to order, as acting on subjects not before the Assembly. "We are summoned," said Lafayette, "to make the truth known to his Majesty. I must discharge my duty." He proceeded, and here you see how the great tragedy opened.

By formal propositions, sustained by well-considered reasons, he called for: 1. Removal of Protestant disabilities, and complete establishment of religious toleration; 2. Equality of imposts, and suppression of certain unjust taxes; 3. Abolition of all arbitrary imprisonment, and especially the odious *lettre-de-cachet*; 4. Revision of the criminal laws; 5. Economy in the royal household, pensions, and all the departments of government.

Following these moderate demands, he made a "motion,"—the first time, it is said, this parliamentary word, so suggestive of liberal discussion, was ever used in France,—and this motion was for nothing less than the convocation of a "National Assembly,"—uttering here two other momentous words, which were then and there for the first time pronounced. "What!" exclaimed the Count d'Artois, "do you demand the States General?" "Yes, and even more," was the reply of Lafayette.^[91]

The States General were convened in May, 1789, at Versailles, in the very shadow of that palace where in latter years the kings and courtiers of the French monarchy had lived like the gods of Olympus, and at once this ancient body took the name of "National Assembly." Here appeared the imposing figure of Mirabeau, demanding, in the name of the people, that the troops should be removed. By his side was the yet youthful Lafayette, seconding the demand, which he followed by proposing a *Declaration of the Rights of Man*, embodying not merely specific rights secured by precedent and practice, as in the English Bill of Rights, but the Rights of Man founded on Nature, and above all precedent or practice. Such a statement was known in our country. It constitutes part of the Declaration of Independence, and also of the Constitution of Massachusetts, giving

character to each; but it was now for the first time put forth in Europe, illustrating that “American Era” which Lafayette constantly proclaimed. Its importance was immense. It supplied a touchstone for all wrongs, and elevated the hearts of the people. It began as follows.

“Nature has made men free and equal; the distinctions necessary for social order are founded on general utility only. Every man is born with rights inalienable and imprescriptible: such are the liberty of his opinions; the care of his honor and of his life; the right of property; the entire disposal of his person, of his industry, of all his faculties; the communication of his thoughts by all means possible; the pursuit of happiness; and resistance to oppression.”^[92]

In launching this Declaration, Lafayette vindicated it as “recalling sentiments which Nature has engraved on the heart of every one, but which take new force when recognized by all; and this development,” he said, “becomes the more interesting, since for a nation to love Liberty it is sufficient that she knows it, and to be free it is sufficient that she wills it.” He stated its further value as “an expression of those truths from which all institutions should spring, and by which the representatives of the nation should be guided.”^[93]

The Declaration of the Rights of Man, presented 11th July, 1789, was a victory whose influence can never die. It redounded immediately to the glory of Lafayette. Lally-Tollendal, after declaring the ideas “grand and majestic,” said that their author “speaks of Liberty as he has already defended it.” These were words of sympathy. Already the Archbishop of Sens had remarked in the councils of the King, “Lafayette is the most dangerous of antagonists, as his politics are all in action.”

A few days later, the Bastille, at once fortress and prison, where for four hundred years the lawless will of arbitrary power had buried its victims in a living tomb, was levelled to the ground by the people of Paris, and with it fell the ancient monarchy. Elated by success, the people looked for a leader, and found him in the author of the Declaration of the Rights of Man. Amidst heartfelt applause Lafayette was placed at the head of the embodied militia of the metropolis, which, under his auspices, was organized as the

National Guard. Thus in a brief time two achievements were his,—first, the introduction of a Declaration of the Rights of Man, which he was foremost to present, and, secondly, the organization of the National Guard, which was the beginning of a citizen soldiery. Each was an event; the two together make an epoch.

Thus far champion of Liberty, it was now his part to maintain order; and never was this work more conscientiously pursued. The colors of Paris were *blue* and *red*, but his spirit of conciliation was shown by adding to them *white*, which was the ancient color of France, out of these three forming that famous *tricolor*, which he then proudly proclaimed was destined “to make the tour of the world.” Strong in the popularity he had won, he shrank from none of the responsibilities of his perilous post, braving alike the multitude and the assassin,—unharméd himself, treading calmly the burning ploughshares of civil strife,—throwing over all the shield of his protection, and by chivalrous intervention at Versailles saving King and Queen from an infuriated mob,—but always telling the King, that, if his Majesty separated the royal cause from that of the people, he should remain with the people: of all which there are details written in blood.

Though engrossed by his post as Commander of the National Guard, Lafayette did not neglect those other duties as representative of the people. In the Assembly he boldly proclaimed the right of resistance to tyranny, saying, with sententious point, “Where Slavery prevails, the most sacred of duties is insurrection.”^[94] He called for trial by jury,—liberty of worship,—the rights of colored people in the colonies,—the suppression of all privileges,—the abolition of the nobility itself. To one who asked, how, after the abolition of titles, they would replace the words “ennobled for having saved the State on a particular day,” he answered, “Simply by declaring that on the day named the person in question saved the State.” The proposition prevailed, and from that time this sincere and upright citizen laid down his own time-honored title, borne by his family for successive generations, and was known only as Lafayette. And otherwise he gave testimony by example,—accepting the honorary command of the National Guard formed by colored citizens of San Domingo, although he refused this distinction from other guards out of Paris, and entertaining colored men in the uniform of the National Guard at his dinner-table, where Clarkson, the English Abolitionist, met them in 1789.^[95]

Beyond question, he was now the most exalted citizen of France,—centre of all eyes, all hopes, and all fears,—holding in his hand the destinies of King and people. Rarely has such elevation been achieved; never was such elevation so honestly won, and never was it surrounded by responsibilities so appalling. Nothing of office, honor, or power was beyond his reach, while peril of all kinds lay in wait for him or sat openly in his path. But he was indifferent alike to temptation and to danger. Emoluments in whatsoever form he rejected, saying that he attached no more importance to the rejection than to the acceptance. Field-Marshal, Grand-Constable, Lieutenant-General of the Kingdom, Dictator even,—such were titles which he put aside. Had his been a vulgar ambition, he might have clutched at supreme power, and played the part of Cromwell or Napoleon. But, true to the example of Washington, and, above all, true to himself and those just sentiments which belonged to his nature, he thought only of the good of all. Calmly looking down upon the formless chaos, where ancient landmarks were heaving in confused mass, he sought to assuage the wide-spread tumult, and to establish that divine tranquillity, which, like the repose of Nature, is found only in harmony with law, to the end that Human Rights, always sacred, should have new force from the prevailing order. And this done, it was his precious desire to withdraw into the retirement of his home.

The Constitution, with its Declaration of the Rights of Man, was at length proclaimed. Amidst unprecedented pomp, in a vast field, the Campus Martius of France, surrounded by delegates from all parts of the country, and under the gaze of the anxious people gathered in uncounted multitudes, the King, sitting upon his throne, took the oath to support it. Lafayette, as Major-General of the Federation, did the same,—while National Guard and people, by voice and outstretched hand, united in the oath. How faithfully he kept this oath, true to the Constitution in all respects, upholding each department in its powers, subduing violence, watching the public peace, and for the sake of these hazarding his good name with the people whose idol he was,—all this belongs to the history of France. Assured that the Revolution had accomplished its work, he caused an amnesty to be proclaimed, and then deliberately laid down his vast military power. Amidst the gratulations of his countrymen and votes of honor, he withdrew to the bosom of his family at the home of his childhood. Unhappily, this was for a period very brief.

The emigrant nobles, with two brothers of the King, were gathering forces on the Rhenish frontier of France. Austria and Prussia had joined in coalition for the same hostile purpose. France was menaced; but its new government hurled three armies to meet the invaders. The army of the centre was placed under the command of Lafayette. At the mention of his name in the Assembly there was an outburst of applause, and when he appeared at its bar, the President, addressing him, said, "France will oppose to her enemies the Constitution and Lafayette." Little was then foreseen how soon thereafter both were to fall.

A new influence was showing itself. Danton and Robespierre were active. Clubs were organized, whose daily meetings lashed the people to lawless frenzy. Extreme counsels prevailed. Violence and outrage ensued. The Jacobins, whose very name has become a synonym for counsellors of sedition, were beginning to be dominant. The Revolution was losing its original character. The generous Lafayette, who had been its representative and its glory, in whom its true grandeur and humanity were all personified, revolted at its excesses. From camp he addressed the National Assembly, denouncing the Jacobins as substituting license for liberty,—and then, supporting his letter, gallantly appeared at the bar of the Assembly and repeated his denunciation. But the Reign of Terror was lowering, destined to fill France with darkness, and to send a shudder through the world. After bloody conflict at the gates of the palace, the King and his family were driven to seek protection in the bosom of the Assembly. The scaffold was not yet entirely ready. But the Constitution was overturned, and with it Lafayette. Doubly faithful, first to the oath he had taken, and then to his own supreme integrity, he denounced the audacious crime. He was then at the head of his army; but Jacobin hate had marked him as victim. Shrinking from the horrors of civil contest, where success is purchased only by the blood of fellow-citizens, he resolved—sad alternative!—to withdraw from his post, and, passing into neutral territory, seek the United States, there from a distance to watch the storm which was desolating his own unhappy country.

As his eminence was without precedent, so also was his fall. Power, fortune, family, country, all were suddenly changed for a dungeon, where, amidst cruel privations, for more than five years, he wore away life. But not in vain; for who can listen to the story of his captivity without confessing

new admiration for that sublime fidelity to principle which illumined his dungeon?

With heart rent by anguish and darkened by the gathering clouds, Lafayette, accompanied by a few friends, left his army at Sedan. Traversing the frontier, in the hope of reaching Holland, he fell into the hands of the Royal Coalition; and then commenced the catalogue of indignities and hardships under which his soul seemed rather to rise than to bend. His application for a passport was answered by the jeer that his passport would be for the scaffold, while a mob of furious royalists sought to anticipate the executioner. The King of Prussia, hoping to profit from his increasing debility, suggested that his situation would be improved in return for information against France. The patriot was aroused at this attempt on his character. "The King of Prussia is very impertinent," he replied, while composing himself to the continued rigors which beset him. First immured at Wesel on the Rhine, he was next transported in a cart, by a long journey, to the far-famed Magdeburg, whose secrets have been disclosed by Baron Trenck, where for a year he was plunged in a damp subterranean dungeon, closed by four successive doors, all fastened by iron bolts, padlocks, and chains, when, on the separate peace between Prussia and the French Republic, he was handed over to Austrian jailers, by whom he was transferred to Olmütz, an outlying fortress, then little known, but now memorable in history, on the eastern border of Austria, further east than the old castle which witnessed the imprisonment of Richard Cœur-de-Lion and the generous devotion of Blondel. Here his captivity was complete. Alone in his cell, with no object in sight except the four walls,—shut out from all communication with the world,—shut out even from all knowledge of his family, who on their part could know nothing of him,—never addressed by name,—mentioned in the bulletins of the prison only by his number,—and, to cut off all possible escape by self-destruction, deprived of knife and fork: such was now his lot. If not a slave compelled to work without wages, he was even a more wretched captive.

But never for one moment was his soul shaken in its majestic fidelity; never was his example more lofty. At the beginning, he was careful, by official declaration, to make known his principles, so that he might not be confounded with fugitive royalists. But his prison cell was a constant testimony. Letters now exist, written at peril of life, with toothpick dipped

in soot moistened with vinegar, where his wonderful nature is laid bare.^[96] Confessing his joy that he suffers from that despotism which he combated, rather than from the people he loved so well, he announces his equal hostility to the committees of Jacobinism and the cabinet of the Coalition,—declares his firm conviction, that, amidst all the shocks of anarchy, Liberty will not perish,—remembers with a thrill the anniversary of American Independence, as that day comes round,—says of his own Declaration of the Rights of Man, that, if he were alone in the universe, he would not hesitate to maintain it,^[97] and repels with scorn every effort to vindicate him at the expense of his well-known sentiments, declaring that he would give his blood, drop by drop, to the people's cause, and that on the scaffold his first and last words should be “Liberty and Equality,” while he charges all the wrongs, all the crimes, all the perils, all the sufferings of the Revolution upon the wretched departure from these sacred principles.^[98] His political faith was grandly declared, when, addressing the Minister of the United States at London, he calls down a blessing upon our Republic, saying, “May *Liberty and Equality*, with all the virtues truly republican, honest industry, moderation, purity of manners, frankness and liberality of spirit, obedience to the laws, firmness against all usurpation, continue to prove that American Freedom has its roots deep, not only in the head, but at the bottom of the heart of its citizens! May public prosperity, happiness of individuals, and federal concord be a perpetual recompense to the United States, and an example for other people!”^[99] These words of benediction, original as great, aptly define that “American Era” which our hero had already hailed, while they invoke upon our country all that virtuous heart could desire. But never did soul rise to purer heights than when, at the beginning of his captivity, he bequeathed this consoling truth as his legacy to mankind, that the satisfaction from a single service rendered to Humanity outweighs any suffering inflicted by enemies, or even by the ingratitude of the people,^[100]—and then, as the dungeon closed upon him, forgetting all that he was called to undergo, his own personal afflictions and prolonged captivity, he sends his thoughts to the poor slaves on his distant plantation in Cayenne, whose emancipation he had sought to accomplish. In the universal wreck of his fortunes he knew not what had become of this plantation, but he trusts that his wife “will take care that the blacks who cultivate it shall preserve their liberty.”^[101] Search history, whether ancient or modern pages, let Greece and Rome testify, but you can find nothing

more sublimely touching than this voice from that heavy-bolted dungeon, serenely pleading for the liberty of others far away. That noblest woman, mated with him in soul as in marriage vow, had already exerted herself to accomplish this purpose,—but, alas! without effect. Cruelly was their liberty confiscated with his estates. ^[102]

This confiscation, where Liberty itself disappeared, was the terrible climax of that proscription which now enveloped his friends and his family. In the prevailing masquerade of blood the charge of *Fayettism* was equivalent to a decree of death. Nor was tender woman spared. The grandmother, the mother, and the sister of his wife, all of the same ducal house, perished on the scaffold. His wife was thrown into prison, and escaped the same fate only by the timely overthrow of Robespierre. Regaining liberty after a cruel imprisonment of sixteen months, her maternal care was for her son, George Washington Lafayette, still a boy, whom she sent to his great namesake at Mount Vernon with a letter from herself, and then, accompanied by her two youthful daughters, with the protection of an American passport, she makes her way across Germany to Vienna, where she throws herself before the Imperial despot. To her prayer for the release of her husband, he answers that “his hands are tied”; but, moved by her devotion, so womanly, so wifely, so heroic, he yields so far as to consent that she, with her daughters, may share his wretched captivity. Penetrating his dungeon, she learned that the first change of raiment allowed him was on her arrival, when the tattered rags which scarcely covered his emaciated form were exchanged for a garb of coarsest material,—an indulgence not accorded without the insult of informing him that this had been purposely sought, as with such alone was he worthy to be clothed. ^[103] Three silver forks in her little inventory were seized by the jailer, and this refined family during a lingering imprisonment were driven to eat with their fingers. These things are not to be forgotten, because, while exhibiting the cruelty of despotic power, against which the world now rises in judgment, they show how his fidelity was tried, as also that of his family. The wife, becoming ill, was refused permission to leave the dungeon for medical advice at Vienna, except on condition of not returning, when she beautifully declared, for herself and her daughters, that they had agreed to participate the rigors of his captivity, and now repeated, with all their hearts, that they were happier with him in the dungeon than they could be

anywhere else without him. Lafayette himself, when tempted by offer of release on certain conditions or promises, was stern as his jailer, and refused inexorably,—choosing to suffer, sooner than compromise in any respect his rights and duties as Frenchman or as American citizen, which latter title he always claimed.

Vain, during this long period, was every effort for his liberation. Not Fox, thundering in the British Parliament,—not the gentler voice of Wilberforce, uniting with Fox,—not Cornwallis, his old enemy at Yorktown, personally pleading with the Emperor himself,^[104]—not Washington, prompting our Ministers abroad and writing directly to the Emperor, could open these prison doors.^[105] Lafayette was declared to be a representative not only of the French Revolution, but of Universal Enfranchisement, whose liberty was incompatible with the safety of European governments: therefore must he be immured in a dungeon. But private enterprise, inspired by those generous promptings which are the glory of the human heart, for a moment seemed about to prevail. This was before the arrival of his wife and daughters. The health of the imprisoned champion had suffered to such degree, that, under medical direction, the rigors of confinement were relaxed so far as to allow occasional exercise in the open air. Here was an opportunity for which two friends, Bollmann, a German, and Huger, an American, of South Carolina, had watched for months, and they were able secretly to apprise the captive of their plans. With their assistance, after desperate conflict, in which his hand was torn to the bone, he succeeded in disarming the guards, and then enjoyed a gleam of liberty. It was a gleam only. Helped on a horse by one of his devoted friends, he started; but, ignorant of the way, and oppressed with fatigue, wounded, bleeding, after a flight of twenty-four hours, he was recaptured, brought back, and plunged again into the worst torments of his dungeon. This endeavor, though unsuccessful, is never read without a gush of gratitude towards the courageous men, who, taking life in hand, braved Austrian tyranny. Human nature seems more beautiful from their example.^[106]

All had now failed, and the dungeon seemed to have closed upon Lafayette forever. The hearts of his friends were wrung with anguish, and especially here in America. Washington, at the fireside of Mount Vernon, shed tears for his friend,—while to that noble wife, who in all things was not less faithful than her heroic husband, he addressed an earnest letter,

regretting that he had not words to convey his feelings, and placing a considerable sum of money to her credit, which he mentioned as the least he was indebted for services, of which he had never yet received an account.^[107] But an intervention was at hand which would not be denied. It was the early sword of Napoleon Bonaparte, which, flashing across the Alps from his Italian victories, broke open the dungeon of Olmütz. Lafayette had been a captive five years,—his wife and daughters shut up with him twenty-two months. In the negotiations ending in the Treaty of Campo Formio, it was required, under special instructions from the French Directory, that he should be released; and the conqueror was heard to say afterwards, that, among all the sacrifices exacted of tottering Austria, not one was so difficult to obtain. The captive of many years, at last in the enjoyment of liberty, hastened to Hamburg, where he found welcome with the American consul.

This was in the autumn of 1797, and he was forty years of age. But life with him, though brief in years, had been extended by events full of lessons never to be forgotten; above all was that great lesson of perpetual fealty to Human Rights. And now this same lesson was illustrated again. As in dungeon, so in exile, Lafayette could not forget the cause to which his life was devoted, especially the liberty of the African. From the obscure retreat in Holstein, where he lingered, he addresses Clarkson, the English Abolitionist, in eloquent words, against the Slave-Trade, which was still the scandal of nations, and announces that the mission of France, while healing the wounds of the past, should be to assure *Liberty for all, whether white or black*, under the equal protection of Law.^[108] Better far such mission than battle and conquest, which this ambitious nation craved. In a letter to Washington at the same time he gives utterance to his aspiration, that, for the good of the world, the North and the South should gradually adopt the principles on which the Independence and the Liberty of the United States have been happily founded.^[109] How in thinking of himself Lafayette thought instinctively of the slave appears in an incident of exile at this time. In the straitened circumstances to which he was reduced, stripped of the wealth to which he was born, poor and homeless, his thoughts turned to the broad continent across the Atlantic, and he conceived the plan of buying a farm,—although without what he denominates “the first dollar” necessary,—either in Virginia, not far from what he calls the “Federal City,” or in New England, not far from Boston,—and thus, in one of those tender letters

to his wife, he balances between these two places. "I am aware, dear Adrienne," he writes, under date of 5th August, 1799, "that I, who complain of the serfs of Holstein, as something very melancholy to a friend of Liberty, should find in the valley of the Shenandoah negro slaves; for Equality, which in the Northern States is for everybody, exists in the Southern States for the whites only. Therefore, while I perceive all the reasons which should draw us to the neighborhood of Mount Vernon and the seat of the Federal Union, yet I should prefer New England."^[110] Never more simply or conclusively was the special difference between North and South presented for judgment.

Regaining his country at last, while the outlawry, though a dead letter, was not formally annulled, he withdrew to the retirement of Lagrange, where, surrounded by his family, he maintained unsullied the integrity of his great character,—turning aside from all temptation, and never for a moment swerving from completest devotion to that cause for which he had done and suffered so much. Others accepted office and honor; he would not. Bonaparte wished to make him Senator; Lafayette declined, as he afterwards declined the Grand Cross of the Legion of Honor from the same hand. Always himself, he touched the key-note of his life, when, in a brief address to his fellow-citizens, on refusing a post of dignity in 1802, he announced his hope that the miracles of battle then surprising them might be followed not only by peace abroad, but by domestic tranquillity founded on the immutable principles of Justice. At no moment is he more exemplary in firmness than when on the proposition that Bonaparte should be Consul for life he openly voted "No," and added, "I cannot vote for such a magistracy, until Liberty has been sufficiently guarantied."^[111] In a noble letter^[112] he pleads with the successful warrior for the re-establishment of Liberty, saying that all things combine to fit him for this great work, which shall subdue danger and calm distrust. Bonaparte did not hearken to these words of patriot wisdom, but drove still further in mad career. Lafayette, withdrawing yet more into the repose of private life, avoided a contest, which he foresaw must be futile, with a ruler having claims upon his gratitude which he never ceased to acknowledge.

But it was not in his nature to despair. President Jefferson urged him in 1804, after the acquisition of Louisiana, to quit France, where the ground trembled beneath his feet, and come to a land where he could do so much

good,—holding before him the governorship of the new Territory, and declaring that his presence alone would be better for its tranquillity than an army of ten thousand men. But Lafayette avowed his unwillingness to take a step that should seem to abandon the destinies of his own country, duty to which forbade him to despair of seeing established on the foundation of a just and generous Liberty,—in one word, American Liberty.^[113]

While in retirement, he was visited by temptation in yet another form, and again his fidelity shines forth. By Act of Congress, repaying in part the accumulated debt of the nation, he had become proprietor of a large territory in Louisiana, to which in his reduced condition he naturally looked for means. Persons familiar with the country advised him to set up a manufacture of tiles, promising from it, what he so much desired, “a fixed revenue”; but he dismissed the proposition, as “founded upon a purchased employment of thirty slaves,”—“a thing,” said he, “*I detest*, and shall never do”; and then, after expressing his wish that in letting the land there should be “a first condition to employ none but free hands, or, if negroes of New Orleans be admitted, to stipulate their liberty in a short time,” he proceeds to say, in memorable words: “I would not be concerned in transactions in a negro country, *unless not only my personal doings were unsullied with Slavery, but I had provided with others to render the very spot productive of Freedom.*”^[114] This was in 1805, before the Slave-Trade was yet abolished, and when Slavery was just beginning its fatal empire over our Republic. But it was only part of that faithful testimony which he bore so constantly.

Such a character was a perpetual protest, and Napoleon in the pride of colossal power confessed it. Son and son-in-law, though distinguished, could not obtain promotion,—the Emperor himself on one occasion erasing their names, with the tyrannical ejaculation, “These Lafayettes cross my path everywhere.” The true reason was disclosed, when, at another time, he said: “Lafayette alone in France holds fast to his original ideas of Liberty. Though tranquil now, he will reappear, if occasion offers.” Stronger homage to absolute fidelity could not be. He was tranquil, through all the splendid agony of the Empire, its marvellous conquests and its tremendous disasters,—tranquil at the victories of Austerlitz, Jena, Friedland, and Wagram, at the retreat from Moscow, at the stunning news from Leipsic, at the capitulation of Paris. As little could he participate in the restoration of Louis as in the usurpation of Napoleon. At last he reappeared. It was on the return from

Elba, hazarding that peace purchased at such sacrifice, when, by characteristic action in harmony with his whole career, his present was linked with his past, and the chief of the Great Revolution, declining again the honors of the Senate and the title of Count, declaring, that, if ever again he entered public life, it must be as representative of the people, came forward as simple deputy, and then at an early day, with happy phrase, rallied the Chamber to an attitude of independence which should decide “whether it would be called a national representation or a Napoleon club.” The disaster of Waterloo hastened the impending crisis. The Emperor menaced a dissolution of the Chamber and a dictatorship. The time had come for the hero of Liberty. He spoke, and with a voice that had been silent for a generation bravely recalled the sacred cause of which he was the veteran, and that tri-color flag which was the symbol of Liberty, Equality, and Public Order. On his motion the Chamber declared itself permanent, and any attempt to dissolve it treason; and then, while vindicating France against the imputation of fickleness towards Napoleon, whom it had followed over uncounted fields, from the sands of Egypt to the snows of Russia, the Defender of Liberty insisted upon his abdication. Yet, true always to every just sentiment of gratitude and humanity, he scorned the idea of surrendering the fallen man to the Allies, saying he was “astonished that such a proposition should be addressed to a prisoner of Olmütz,”^[115] and he sought to provide means for escape to America, showing him every consideration consistent with duty to the country.

The fall of Napoleon was followed by the restoration of the Bourbons to the throne of France, lasting from 1815 to 1830, and during much of this period Lafayette, released from all constraint, was member of the Chamber of Deputies. The King, who in early life had known him personally, trembled at his election. As he entered the Chamber for the first time, every eye turned to him, and every tongue pronounced his name with admiration, hope, or fear; nor was any member observed afterwards with equal interest. He took his seat on the extreme left, and always kept it. His attendance was marked by that fidelity which belonged to his nature; nor did advancing years or any disgust interfere with the constant and unwearied discharge of his parliamentary duties. Here, as everywhere, he was open, sincere, and brave. Overtopping others in character, he was conspicuous also in debate. Though not a rhetorician, he spoke with ease and effect, while every word

had the inspiration of noble ideas, often expressed with sententious force. Especially was he moved whenever Liberty came in question; nor did the disasters falling upon him and his house, or any other consideration, make him hesitate to vindicate the Revolution, alike in substantial results and in principles. “Notwithstanding,” he said, “all that was afterwards lost through anarchy, terrorism, bankruptcy, and civil war, in spite of a terrible struggle against all Europe, there remains the incontestable truth, that agriculture, industry, public instruction, the comfort and independence of three quarters of the population, and the public morals, have been improved to a degree of which there is no example in any equal period of history, or in any other part of the Old World.”^[116] With brilliant effect he portrayed the wrongs and abuses which disappeared before what he liked to call “the flag of Liberty, Equality, and Public Order.”^[117] And he attributed the evils of France less to the madness of violence than to compromise of conscience by timid men. In the same lofty spirit he denounced the Holy Alliance as “a vast and powerful league whose object was to enslave and brutify mankind.”^[118] By such utterances were the people schooled and elevated. The inspiration which was his own inner light he imparted to others.

His parliamentary career was interrupted by an episode which belongs to the poetry of history. On the unanimous invitation of the Congress of the United States, he again visited the land whose Independence he helped to secure. This was in 1824. Forty years had passed since he was last here. But throughout this long period of a life transcendent in activity and privations, as well as in fame, he had ever turned with fondness to the scene of his early consecration, and proudly avowed himself American in heart and American in principle. His early compeers were all numbered with the dead, and he remained sole survivor among the generals of Washington. But the people had multiplied, and the country had grown in wealth and power. All rose to meet his coming, and he was welcomed everywhere as the Nation’s guest. To the inquiry, on his landing at New York, how he would be addressed, he replied, “As an American General,”—thus discarding again the title of his birth. From beginning to end, men and women, young and old, official bodies, towns, cities, States, Congress, all vied in testimonies of devotion and gratitude, while the children of the schools,

boys and maidens, swelled the incomparable holiday, which, stretching from North to South, and covering the whole country, absorbed for the time every difference, and made all feel as children of one household. The strong and universal sentiment found expression in familiar words, repeated everywhere:—

“We bow not the neck,
We bend not the knee,
But our hearts, Lafayette,
We surrender to thee.”

It belongs to the glory of Lafayette that he inspired this sentiment, and it belongs to the glory of our country to have felt it. As there was never such a guest, so was there never such a host. They were alike without parallel. But amidst this grandest hospitality, binding him by new ties, he kept the loyalty of his heart: he did not forget the African slave.^[119]

The visit was full of memorable incidents, sometimes most touching, among which I select a scene little known. At one of those receptions occurring wherever the national guest appeared, a veteran of the Revolution, in his original Continental uniform, with the addition of a small blanket, or rather piece of blanket, upon the shoulders, and with his ancient musket, that had seen service on many fields, came forward. Drawing himself up in the stiff manner of the old-fashioned drill, he made a military salute, which Lafayette returned with affection, tears starting to his eyes,—for he remembered well that uniform, and saw that an old soldier, more venerable than himself in years, stood before him. “Do you know me?” said the soldier,—for the manner of the General persuaded him that he was personally remembered, although nearly fifty years had passed since their service together. “Indeed, I cannot remember you,” the General replied frankly. “Do you remember the frosts and snows of Valley Forge?” “I can never forget them,” said Lafayette. The veteran then related, that, one freezing night, as the General went his rounds, he came upon a sentry thinly clad, with shoes of raw cowhide and without stockings, about to perish with cold; that he took the musket of the sentry, saying to him, “Go to my hut; you will find stockings there, and a blanket, which, after warming yourself, you will bring here; meanwhile give me your musket, and I will keep guard.” “I obeyed,” the veteran continued, “and returning to my post refreshed, you cut the blanket in two, retaining one half and giving me the other. Here, General, is that half, and I am the sentry whose life you saved.” Saint Martin dividing his cloak is a kindred story of the Church, portrayed by the genius of Vandyck.^[120] Lafayette, at the date of his charity, was younger even than the Saint, and the act was not less saintly. But this is only an instance of the gratitude he met. By such tribute, in accord with the

universal popular heart, was the triumph of our benefactor carried beyond that of any Roman ascending the Capitol with the spoils of war.

And this might have been the crown even of his exalted life. But at home in France there was yet further need of him. In the madness of tyranny, Charles the Tenth undertook by arbitrary ordinance to trample on popular rights, and to subvert the Charter under which he held his throne. The people were aroused. The streets of Paris were filled with barricades. France was heaving as in other days. Then turned all eyes to the patriarch of Lagrange, who, already hero of two revolutions, commanded confidence alike by his principles and his bravery. Summoned from his country home, he repaired to Paris, imparting instant character to the movement. With a few devoted friends about him,—one of whom is a dear and honored friend of my own, Dr. Howe, of Boston,—this venerable citizen, seventy-three years of age, exposed to all the perils of the conflict hotly raging in the streets between the people and the troops, was conducted on foot across barricades to the Hôtel de Ville, and once more placed at the head of the National Guard. “Liberty shall triumph,” said the veteran, “or we will all perish together.”^[121] Charles the Tenth ceased to reign, and the Revolution of 1830 was accomplished. The fortunes of France were now in the hands of Lafayette. He was again what Madame de Staël had called him at an earlier day, master of events. It rested with him to choose. He might have made a Republic, of which he would have been acknowledged head. But, cautious of Public Order, which with him was next to Liberty, mindful of that moderation which he had always cultivated, and unwilling, if Liberty were safe, to provoke a civil contest, drenching France again in fraternal blood, he proposed “a popular throne surrounded by republican institutions,” and the Duke of Orléans, under the name of Louis Philippe, became king. Clearly his own preference was for a Republic on the American model, but he yielded this cherished idea, satisfied that at last Liberty had prevailed, while peace was assured to his blood-stained country. If the republican throne fell short of his just expectations, it was because, against high injunction, he had put trust in princes.

The loftiness of his character was revealed, when, at a menace of violence by the excited populace, he issued a general order, as commander

of the National Guard, announcing himself as “the man of Liberty and Public Order, loving popularity far more than life, but determined to sacrifice both rather than fail in any duty and tolerate a crime,—persuaded that no end justifies means which public or private morals disown.”^[122]

Soon again he laid down his great command, contenting himself with his farm and his duties as deputy. But his heart went wherever Liberty was struggling,—now with the Pole, and then with the African slave. To the rights of the latter he had borne true and unfaltering loyalty at all times and in all places, beginning with that memorable appeal to Washington on the consummation of Independence, and repeated in two triumphal visits to our country,—also in public debate, in conversation, in correspondence,—in the interesting experiment at Cayenne, and, more affecting still, in the dungeon of arbitrary power. Every slave, according to him, has a natural right to immediate emancipation, whether by concession or force; and this principle he declared above all question.^[123] He knew no distinction of color, as he continually showed. His first letter to President John Quincy Adams, after return from his American triumph, mentions that he had dined in the company of two commissioners from Hayti, one a mulatto and the other entirely black, and he was “well pleased with their good sense and good manners.”^[124] Tenderly he touched this great question in our own country; but his constancy in this respect shows how it haunted and perplexed him, like a Sphinx with a perpetual riddle. He could not understand how men who had fought for their own liberty could deny liberty to others. But he did not despair, although, on one occasion, when this inconsistency glared upon him, his impatient philanthropy exclaimed, that he would never have drawn his sword for America, had he known that it was to found a government sanctioning Slavery.

The time had come for this great life to close. A sudden illness, contracted in following on foot the funeral of a colleague, confined him to his bed. As his case became critical, the Chamber of Deputies, by solemn vote,—perhaps without example in parliamentary history,—directed their President to inquire of George Washington Lafayette after the health of his illustrious parent. On the following day, May 20, 1834, he died, aged seventy-seven.

The ruling passion of his life was strong to the close. As at the beginning, so at the end, he was all for Human Rights. This ruled his mind and filled his heart. His last public speech was in behalf of political refugees seeking shelter in France from the proscription of arbitrary power.^[125] The last lines traced by his hand, even after the beginning of his fatal illness, attest his joy at that great act of Emancipation by which England had just given freedom to her slaves. “Nobly,” he wrote, “has the public treasure been employed!”^[126] And these last words still resound in our ears, speaking from his tomb.

Such was Lafayette. At the tidings of his death, there was mourning in two hemispheres, and the saying of Pericles seemed to be accomplished, that “To the illustrious the whole earth is a sepulchre.”^[127] It was felt that one had gone whose place was among the great names of history, combining the double fame of hero and martyr, heightened by the tenderness of personal attachment and gratitude. Nor could such example belong to France or America only. Living for all, his renown became the common property of the whole Human Family. The words of the poet were revived:—

“Ne’er to these chambers where the mighty rest
Since their foundation came a nobler guest;
Nor e’er was to the bowers of bliss conveyed
A fairer spirit or more welcome shade.”^[128]

Judge him by the simple record of his life, and you will confess his greatness. Judge him by the motives of his conduct, and you will bend with reverence before him. More than any other man in history he is the impersonation of Liberty. His face is radiant with its glory, as his heart was filled with its sweetness. His was that new order of greatness destined soon to displace the old. Peculiar and original, he was without predecessors. Many will come after him, but there were none before him. He was founder, inventor, poet, as much as if he had built a city, discovered ether, or composed an epic. On his foundation all mankind will build; through his discovery all will be aided; by his epic all will be uplifted. Early and intuitively he saw man as brother, and recognized the equal rights of all.

Especially was he precocious in asserting the equal rights of the African slave. His supreme devotion to Humanity against all obstacles was ennobled by that divine constancy and uprightness which from youth's spring to the winter of venerable years made him always the same,—in youth showing the firmness of age, and in age showing the ardor of youth,—ever steady when others were fickle, ever faithful when others were false,—holding cheap all that birth, wealth, or power could bestow,—renouncing even the favor of fellow-citizens, which he loved so well,—content with virtue as his only nobility,—and whether placed on the dazzling heights of worldly ambition or plunged in the depths of a dungeon, always true to the same great principles, and making even the dungeon witness of his unequalled fidelity.

By the side of such sublime virtue what were his eminent French contemporaries? What was Mirabeau, with life sullied by impurity and dishonored by a bribe? What was Talleyrand, with heartless talent devoted to his personal success? What was Robespierre, with impracticable endeavors baptized in blood? What was Napoleon himself, whose surpassing powers to fix fortune by profound combinations, or to seize it with irresistible arm, were debased by the brutality of selfishness? These are the four chief characters of the Revolution, already dropping from the firmament as men learn to appreciate those principles by which Humanity is advanced. Lafayette ascends as they disappear, while the world hails that Universal Enfranchisement which he served so well. As the mighty triumph is achieved, which he clearly foresaw, immense will be his reward among men.

Great he was, indeed,—not as author, although he has written what we are glad to read,—not as orator, although he has spoken much and well,—not as soldier, although he displayed both bravery and military genius,—not even as statesman, versed in the science of government, although he saw instinctively the relations of men to government. Nor did his sympathetic nature possess the power always to curb the passions of men, or to hurl the bolts by which wickedness is driven back. Not on these accounts is he great. Call him less a force than an influence, less “king of men” than servant of Humanity,—his name is destined to be a spell beyond that of any king, while it shines aloft like a star. Great he is as one of earth's benefactors, possessing in largest measure that best gift from God to man, the genius of

beneficence sustained to the last by perfect honesty; great, too, he is as an early, constant Republican, who saw the beauty and practicability of Republican Institutions as the expression of a true civilization, and upheld them always; and great he is as example, which, so long as history endures, must inspire author, orator, soldier, and statesman all alike to labor, and, if need be, to suffer for Human Rights. The fame of such a character, brightening with the Progress of Humanity, can be measured only by the limits of a world's gratitude and the bounds of time.

APPENDIX.

An incident in connection with the delivery of this address at Philadelphia illustrates the sensitive condition of the public mind at the time. Mr. Sumner was announced to give it before "The People's Literary Institute," when he received a letter from the President of the Institute, which will be understood by his reply.

"SENATE CHAMBER, December 19, 1860.

"DEAR SIR,—I have been honored by your official communication as President of the People's Literary Institute of Philadelphia, bearing date 17th December, in which you say, 'that the patrons of the Institute are persons of all shades of political opinion, and that in the present excited state of the public mind it is desirable that Slavery and Antislavery should not be touched by its lecturers.' This is written to govern me on the evening of the 27th of December, when, according to invitation, I was to address the Institute.

"With much misgiving I accepted the place urged upon me in your course. For some time I declined it, and yielded only to the most pressing solicitation. Afterwards, in reply to an inquiry from one of your officers, I let it be known that my subject would be 'Lafayette,' and I think you have already announced the same in your course. You are too familiar with the career of this constant friend of Human Freedom not to know that it cannot be adequately presented without touching upon the topics which you forbid. It was the peculiar glory of this illustrious man, that from his early days to his death-bed he strove always for Human Freedom, and especially sought to remove the intolerable evil of African Slavery. To leave so great a part of his life untouched would be an infidelity I cannot commit. Indeed, I do not think your careful judgment could approve such an act. If at any other time it might be done, you will see that at this moment, when persons acting in behalf of Slavery openly threaten *treason*, silence upon testimony so powerful would be nearly akin to complicity with the treason. The pirates of the Caribbean Sea are said to have carefully recited the Ten Commandments, omitting 'Thou shalt not steal.' A precedent like this I have no disposition to follow.

“Even if the subject of my lecture did not require me to infringe your instructions, I beg to assure you that I could not consent to speak under any such constraint. For many years I have addressed associations, societies, and meetings of all kinds; but never before have I been met by any hint of interference with the completest latitude of speech, according to my sense of the duties and proprieties of the occasion. Long accustomed to free speech, I am too old now to renounce it.

“There are two recent events in Philadelphia which furnish a commentary upon your letter. The first is a resolution adopted at a public meeting, with the Mayor in the chair, openly proclaiming that free speech must not be permitted at the North; and the other is a practical illustration of this tyranny in the refusal to hear the accomplished Mr. Curtis, when announced to lecture before your Institute on ‘The Policy of Honesty.’ All this is done for the sake of Slavery, and in the hope of soothing traitors. You can know little of me, if you suppose that I can take part in any such work. Of course my place in your list is now vacant.

“I observe that your letter, although signed officially as President of the People’s Institute, is marked ‘*Confidential*.’ I have no desire to draw your name into any public discussion; but it is obvious that my refusal to take part in your course cannot be frankly stated without reference to what you have written.

“I have the honor to be, dear Sir,

“Your obedient servant,

“CHARLES SUMNER.

“_____,

“President of the People’s Literary Institute, Philadelphia.”

December 22, Mr. Sumner received from the President of the Institute the following telegram:—

“Permit me to withdraw my letter. Come and speak freely. Do not decline. I have written you to-day.”

This was followed by a letter from the President, repeating his request, and saying, among other things,—

“That the public are very desirous to hear you, and will be greatly disappointed, if you cancel the engagement.

“That, in common with the Managers and patrons of the Institute, I earnestly hope that you will reconsider your determination not to speak on the 27th instant, and that you will consent to deliver the lecture on ‘Lafayette,’ which has been advertised, and which the people expect, without any feeling of constraint as to the treatment of the subject.”

Accordingly, December 27, Mr. Sumner spoke for the first time in Philadelphia. A few sentences from the *Press* show how he was received.

“The announcement that Hon. Charles Sumner would lecture at Concert Hall, before the People’s Literary Institute, last evening, attracted an immense audience. At an early hour the hall was filled to its utmost sitting and standing capacity, and there must have been enough turned away, after the sale of tickets

was discontinued at the door, to have filled another hall of equal size. The audience was also of the most respectable character....

“When the lecturer entered the platform, he was greeted with uproarious applause. For several minutes the audience—the greater part of whom rose to receive him—continued clapping, cheering, and waving their handkerchiefs....

“He was introduced to the audience by President Allen, of Girard College, who said that the scholar, the eloquent orator, and the steadfast friend of man, all found a synonym in the name of the statesman who was now to address them; and his subject was suggestive to all lovers of Liberty. He had now the pleasure of introducing the Hon. Charles Sumner, who was to speak on Lafayette. The lecture which followed occupied two hours and a quarter in its delivery, and was given without notes.”

The address on Lafayette was the last of a series during the year, by which Mr. Sumner had striven to direct public opinion against Slavery, so at least that it should not be carried into the Territories. Amidst hostile criticism there were friendly expressions, showing that he had not spoken in vain. Of these, one is presented as applicable to the series. It is the Dedication of the Thanksgiving Sermon, Sunday Evening, November 11, 1860, by Rev. Gilbert Haven, entitled, “The Cause and Consequence of the Election of Abraham Lincoln.”

“TO THE HON. CHARLES SUMNER:

“Who has spoken the bravest words for Liberty in the most perilous places; who has suffered in behalf of the Slave only less than those who wear the martyr’s crown; who has come forth from that suffering with the profoundest, because experimental, sympathy with the Oppressed, with a more intense hatred of the Oppression, yet without any bitterness of heart against the Oppressor; who will stand forth in the future times as the clearest-eyed, boldest-tongued, and purest-hearted Statesman of the age: these few words of Thanksgiving and Praise, for the manifestation of the Presence and Power of the ALMIGHTY REDEEMER in this greatest work of our time, are most respectfully dedicated.”

DISUNION AND A SOUTHERN CONFEDERACY: THE OBJECT.

REMARKS IN THE SENATE, DECEMBER 10, 1860.

The opening of Congress was signalized by two things: first, the Message of President Buchanan, December 4, 1860, misrepresenting the North, and practically abdicating the power to control rebellious States; and, secondly, the development of a determination on the part of certain States at the South to secede from the Union. Here South Carolina took the lead.

In the Senate, December 6th, Mr. Powell, of Kentucky, brought forward a resolution, which, after modification by himself, was as follows.

“Resolved, That so much of the President’s Message as relates to the present agitated and distracted condition of the country, and the grievances between the slaveholding and the non-slaveholding States, be referred to a special committee of thirteen members, and that said committee be instructed to inquire into the present condition of the country and report by bill or otherwise.”

In the consideration of this resolution a debate ensued on the state of the Union, and the resolution was adopted December 18th. The committee appointed by the Vice-President, Mr. Breckinridge, was Mr. Powell of Kentucky, the mover, Mr. Hunter of Virginia, Mr. Crittenden of Kentucky, Mr. Seward of New York, Mr. Toombs of Georgia, Mr. Douglas of Illinois, Mr. Collamer of Vermont, Mr. Jefferson Davis of Mississippi, Mr. Wade of Ohio, Mr. Bigler of Pennsylvania, Mr. Rice of Minnesota, Mr. Doolittle of Wisconsin, and Mr. Grimes of Iowa. December 31st, Mr. Powell reported to the Senate “that the Committee have not been able to agree upon any general plan of adjustment.” In the propositions offered in committee by Mr. Douglas we first meet that for the disfranchisement of the colored race, even where already voters, which was part of the Crittenden Compromise in its final form. [\[129\]](#)

Immediately after the first reading of Mr. Powell’s resolution for the appointment of a committee Mr. Sumner spoke as follows.

MR. PRESIDENT,—I have no desire to make a speech at this time, nor to take any part in the discussion that has commenced. I can bear yet a little longer the misrepresentations in the President’s Message, and I believe the North can bear them yet a little longer. The time will come, perhaps, when I shall deem it my duty to set forth those things in the light of reason and of history; meanwhile I content myself with simply offering

to the Senate testimony of direct and most authoritative bearing upon the present state of the Union. If I may adopt the language of the Senator from Mississippi [Mr. JEFFERSON DAVIS], it will help us to make the diagnosis of the present disease in the body politic.

I hold in my hand an unpublished autograph letter, written by General Jackson while President of the United States, and addressed to a clergyman in a slaveholding State. Omitting certain sentences which are of a purely private nature, the letter is as follows.

“[*Private.*]

“WASHINGTON, May 1, 1833.

“MY DEAR SIR,— ... I have had a laborious task here, but Nullification is dead; and its actors and courtiers will only be remembered by the people to be execrated for their wicked designs to sever and destroy the only good government on the globe, and that prosperity and happiness we enjoy over every other portion of the world. Haman’s gallows ought to be the fate of all such ambitious men, who would involve their country in civil war, and all the evils in its train, that they might reign and ride on its whirlwinds and direct the storm. The free people of these United States have spoken, and consigned these wicked demagogues to their proper doom. Take care of your Nullifiers; you have them among you; let them meet with the indignant frowns of every man who loves his country. The Tariff, it is *now*”—

and he underscores, or italicizes, the word “now”—

“known, was a mere pretext. Its burden was on your coarse woollens. By the law of July, 1832, coarse woollen was reduced to five per cent for the benefit of the South. Mr. Clay’s bill takes it up and classes it with woollens at fifty per cent, reduces it gradually down to twenty per cent, and there it is to remain, and Mr. Calhoun and all the Nullifiers agree to the principle. The cash duties and home valuation will be equal to fifteen per cent more, and after the year 1842 you pay on coarse woollens thirty-five per cent. If this is not protection, I cannot understand; therefore the Tariff was only

the pretext, and Disunion and a Southern Confederacy the real object. The next pretext will be the Negro or Slavery Question.

“My health is not good, but is improving a little. Present me kindly to your lady and family, and believe me to be your friend. I will always be happy to hear from you.

“ANDREW JACKSON.

“THE REV. ANDREW J. CRAWFORD.”[\[130\]](#)

Here is the original autograph letter, in the well-known, unmistakable, bold, broad handwriting. [*Here Mr. Sumner held the letter up.*] These are the words of a patriot slaveholder of Tennessee, addressed to a patriot clergyman of a slaveholding State, and they are directly applicable to the present hour. Of practical sense, of inflexible purpose, and of various experience, Andrew Jackson saw intuitively the springs and motives of human conduct, while he loved his country with a firm and all-embracing attachment. Thus inspired, he was able to judge the present and to discern the future. The Tariff, in his opinion, was a pretext only,—Disunion and a Southern Confederacy the real object. “The next pretext,” says he,—and you, Sir, cannot fail to mark the words,—“will be the Negro or Slavery Question.” These, Sir, are his words, not mine. Such is his emphatic judgment. Words and judgment now belong to history; nor can they be assailed without assailing one of the greatest examples that a slaveholding community has given to our common country.

ATTEMPT AT COMPROMISE: THE CRITTENDEN PROPOSITIONS.

INCIDENTS AND NOTES, DECEMBER 18, 1860, TO MARCH 4, 1861.

Before the organization of the Committee of Thirteen on the State of the Union, mentioned in the preceding article, Mr. Crittenden brought forward a joint resolution, December 18, 1860, containing propositions of Compromise, which soon became known by the name of their author. These propositions were extensive in character, covering amendments to the Constitution and recommendations to the States. Afterwards, January 3, 1861, he reintroduced his propositions, with a new preamble, and with two additional amendments to the Constitution. That such propositions could have been seriously presented as a basis of Union shows the exacting spirit of Slavery, and the deplorable insensibility to great principles.

The Compromise in its final form opened with a Constitutional prohibition of Slavery in all territory of the United States north of 36° 30', but on the other hand it was expressly declared that "in all the territory now held, or hereafter to be acquired, south of said line of latitude, *Slavery of the African race is hereby recognized as existing*, and shall not be interfered with by Congress, but shall be protected as property by all the departments of the Territorial Government during its continuance"; and any territory north or south of this line was to be admitted into the Union as a State with or without Slavery, as the Constitution of such new State might provide. It was further declared that Congress should have no power to abolish Slavery in places under its exclusive jurisdiction and within the limits of slaveholding States; that Congress should have no power to abolish Slavery in the District of Columbia, so long as it exists in the adjoining States of Virginia and Maryland, or either, nor without the consent of the inhabitants, nor without just compensation to slave-owners who do not consent to such abolishment; that Congress should not prohibit officers of the Federal [National] Government, or Members of Congress, whose duties require them to be in the District, from bringing with them their slaves and holding them as such; and that Congress should have no power to prohibit or hinder the transportation of slaves from one State to another, or to a Territory in which slaves are by law permitted to be held, whether that transportation be by land, navigable rivers, or by sea.

Then followed Constitutional amendments, providing that the United States should pay to the owner of a fugitive slave the full value of such slave, in case of obstruction to the recovery thereof,—also providing that no future amendment of the Constitution should affect these articles, or the existing provisions relating to slave representation and the surrender of fugitives from service, or give to Congress any power to abolish or interfere with Slavery in any of the States where it exists.

Then followed another Constitutional amendment, providing that "the elective franchise and the right to hold office, whether Federal [National], State, Territorial, or municipal, shall not be exercised by persons who are in whole or in part of the African race,"—and still another, providing for the acquisition of "districts of country in Africa and South America" for the colonization of "free negroes and mulattoes."^[131]

Besides these amendments to the Constitution, the joint resolution, in order “to remove all just cause for the popular discontent and agitation which now disturb the peace of the country and threaten the stability of its institutions,” proceeded to declare, that the laws now in force for the recovery of fugitive slaves are in strict pursuance of the plain and mandatory provisions of the Constitution, that the slaveholding States are entitled to their faithful observance and execution, and that laws should be made for the punishment of those who illegally interfere to prevent their execution,—that State laws interfering with the recovery of fugitive slaves (referring to Personal Liberty Laws) should be repealed, that the Fugitive Slave Act of September 18, 1850, should be amended in certain particulars, and that the laws for the suppression of the African Slave-Trade should be made effectual.

The Crittenden Compromise was encountered in the Senate by the following counter propositions, offered by Mr. Clark, of New Hampshire, January 9, 1861.

“Resolved, That the provisions of the Constitution are ample for the preservation of the Union and the protection of all the material interests of the country; that it needs to be obeyed rather than amended; and that an extrication from the present dangers is to be looked for in strenuous efforts to preserve the peace, protect the public property, and enforce the laws, rather than in new guaranties for particular interests, compromises for particular difficulties, or concessions to unreasonable demands.

“Resolved, That all attempts to dissolve the present Union, or overthrow or abandon the present Constitution, with the hope or expectation of constructing a new one, are dangerous, illusory, and destructive; that in the opinion of the Senate of the United States no such reconstruction is practicable; and therefore to the maintenance of the existing Union and Constitution should be directed all the energies of all the departments of the Government, and the efforts of all good citizens.”

January 16, the question being taken by yeas and nays, on the motion to substitute, resulted, yeas 25, nays 23, as follows.

Yeas,—Messrs. Anthony, Baker, Bingham, Cameron, Chandler, Clark, Collamer, Dixon, Doolittle, Durkee, Fessenden, Foot, Foster, Grimes, Hall, Harlan, King, Seward, Simmons, Sumner, Ten Eyck, Trumbull, Wade, Wilkinson, Wilson,—25.

Nays,—Messrs. Bayard, Bigler, Bragg, Bright, Clingman, Crittenden, Fitch, Green, Gwin, Hunter, Johnson of Tennessee, Kennedy, Lane, Latham, Mason, Nicholson, Pearce, Polk, Powell, Pugh, Rice, Saulsbury, Sebastian,—23.

So the amendment was agreed to, and the proposition of Mr. Clark was substituted for that of Mr. Crittenden.

This important result, by which the Crittenden Compromise received a heavy blow, was a surprise, brought about by the Senators of the Gulf States,—Iverson of Georgia, Clay and Fitzpatrick of Alabama, Brown and Jefferson Davis of Mississippi, Benjamin and Slidell of Louisiana, Mallory and Yulee of Florida, Hemphill and Wigfall of Texas, and Johnson of Arkansas,—who were in attendance, but withheld their votes. The two Senators of South Carolina, Hammond and Chesnut, also Toombs of Georgia, had not appeared in their seats during the session. Three of these Senators voting against the substitute, it could not have been carried, and the original propositions would have been still before the Senate. The adoption of the substitute was used by them to inflame their

constituents. Their conduct on this occasion showed a “foregone conclusion.” Nothing but Disunion would satisfy them,—not even the Crittenden Compromise, so full of surrender.

Then ensued a comedy. Immediately after the adoption of the substitute, a reconsideration of the vote was moved by Mr. Cameron, of Pennsylvania, at the request of Mr. Crittenden, which on a subsequent day was carried. The question was then allowed to sleep on the table, until, unexpectedly, on the last legislative day of the session, just before the expiration of the Congress, and after the withdrawal of the Southern Senators, it was called up by Mr. Mason, of Virginia, when Mr. Clark again offered his substitute, which was lost by a vote of 22 nays against 14 yeas, several Senators expressing a desire to vote directly on the original propositions. On these propositions the final vote stood, yeas 19, nays 20, as follows.

Yeas,—Messrs. Bayard, Bigler, Bright, Crittenden, Douglas, Gwin, Hunter, Johnson of Tennessee, Kennedy, Lane, Latham, Mason, Nicholson, Polk, Pugh, Rice, Sebastian, Thomson, Wigfall,—19.

Nays,—Messrs. Anthony, Bingham, Chandler, Clark, Dixon, Doolittle, Durkee, Fessenden, Foot, Foster, Grimes, Harlan, King, Morrill, Sumner, Ten Eyck, Trumbull, Wade, Wilkinson, Wilson,—20.

So the joint resolution of Mr. Crittenden, with its various propositions, was rejected. The final withdrawal of the Senators from seceding States obviously aided this result.

As the session was coming to a close, a joint resolution was received from the House of Representatives proposing yet another amendment to the Constitution, as follows.

“No amendment shall be made to the Constitution which will authorize or give to Congress the power to abolish or interfere within any State with the domestic institutions thereof, including that of persons held to labor or service by the laws of said State.”

Bills and joint resolutions must be read on three several days; but on ordinary occasions they receive their first and second readings the same day. Mr. Sumner, unwilling that this other attempt should be hurried through the Senate, objected to the second reading on the first day, and the next day had a question with Mr. Douglas on the correction of the Journal, which failed to record his objection. On his motion the Journal was corrected.^[132] The Senate then suspended the rule requiring the three readings of a Constitutional amendment on three separate days, and proceeded to the consideration of the proposed amendment. Mr. Pugh, of Ohio, spoke lightly of its composition, saying:—

“I think it was De Quincey who said, that, next to the duty which a man owes God and his country and his family, it was his duty to preserve the purity of his mother tongue. The Constitution of the United States is written in excellent English; but if this amendment be expressed in the English language, or by any rule of grammar, I do not understand it.”

Mr. Crittenden replied, that he could “bear with bad English, when it expressed a good thing.”

The vote on its passage was 24 yeas to 12 nays, as follows.

Yeas,—Messrs. Anthony, Baker, Bigler, Bright, Crittenden, Dixon, Douglas, Foster, Grimes, Gwin, Harlan, Hunter, Johnson of Tennessee, Kennedy, Latham, Mason, Morrill, Nicholson, Polk, Pugh, Rice, Sebastian, Ten Eyck, Thomson,—24.

Nays,—Messrs. Bingham, Chandler, Clark, Doolittle, Durkee, Foot, King, Sumner, Trumbull, Wade, Wilkinson, Wilson,—12.

Two thirds of the Senate present voting for the joint resolution, it was agreed to. The proposed amendment to the Constitution was never adopted by the States. It remains in the national archives, a singular instance of bad composition, and the monument of a fruitless effort.

This final attempt to appease the spirit of Rebellion was on the last legislative day of the session. The 3d of March being Sunday, the Senate, without adjourning, took a recess from Saturday evening till Sunday evening at seven o'clock, thus making the 2d of March the concluding day of that Congress, which was prolonged till noon of March 4th. During the sitting of Sunday, from seven o'clock in the evening till midnight, Mr. Sumner, who had never been in the habit of pairing, was induced to pair with Mr. Polk, of Missouri, who was unwilling to transact business on Sunday. His scruples did not prevent him from joining the Rebellion, for which he was subsequently expelled from the Senate on Mr. Sumner's motion.

The Crittenden Compromise attracted attention not only in Congress, but throughout the country.

Meanwhile a Boston committee arrived at Washington, composed of leading citizens, with Hon. Edward Everett as chairman, to urge an adjustment by mutual surrender. Mr. Everett called upon Mr. Sumner at his lodgings, and with much emotion urged him to bring forward some conciliatory proposition, saying, "You are the only person who can introduce such a proposition with chance of success." Mr. Sumner replied: "You are mistaken in supposing that I might have success with compromise, if I could bring it forward. If I am strong with the North, it is because of the conviction that I cannot compromise; but the moment I compromised, I, too, should be lost."

All in Massachusetts were not like this committee. The tone of many was expressed by a venerable citizen, and an able writer, connected with the press during a long life, Joseph T. Buckingham, who closed a firm and courageous letter, under date of January 11, 1861, with the words,—

"God bless *you*, and *all* who keep a stiff backbone! For those who yield, I care not what becomes of them."

On the 19th of January, 1861, the General Assembly of Virginia adopted a series of resolutions, proposing a Convention of States at Washington, February 4, 1861, to attempt an adjustment of the pending difficulties, and recommending the propositions of Mr. Crittenden reinforced. The action of the Virginia Assembly was communicated to the Senate by message of President Buchanan, January 28th. Mr. Sumner, being against all compromise, could not regard with favor any attempt in that direction. A misrepresentation of his position was corrected by the following telegram in Northern papers.

"WASHINGTON, January 30, 1861.

"The report, that Senator Sumner has approved the objects of the Convention which is to assemble here at the call of Virginia, is a mistake. Mr. Sumner regards that call as part of the treasonable conspiracy against the National Government, and does not see how Northern men can have anything to do with it, unless they are ready in some way to play into the hands of the traitors.

"Mr. Sumner has always held that any change by the North from its attitude of firmness and repose can have no other effect than the encouragement of treason."

A telegraphic correspondence further shows his position.

“BOSTON, January 31, 1861.

“HON. CHARLES SUMNER:—

“Do you favor sending Commissioners to Washington 4th February?

“GEORGE L. STEARNS.”

“WASHINGTON, January 31, 1861.

“GEORGE L. STEARNS, Esq., Boston:—

“I am against sending Commissioners to treat for the surrender of the North. Stand firm.

“CHARLES SUMNER.”

Alone of the Massachusetts delegation Mr. Sumner declined to unite with his colleagues in recommending to the Governor the appointment of Commissioners. This isolation was the occasion of a report which is mentioned in a letter of S. M. Booth, written, under date of February 2d, from his prison at Milwaukee, where he was suffering for aiding a fugitive slave.

“The telegraph assigns you the enviable position of standing ‘solitary and alone’ among the Massachusetts representatives, as inflexibly opposed to compromise with rebels for the benefit of Slavery. I cannot believe you are so entirely forsaken, yet I greatly fear the country is to be dishonored and the Republican party dissolved.... Rest assured that the masses of the Republican party do not sympathize with the Compromisers of the Republican party, nor appreciate that statesmanship which consists in yielding vital principles to the demands of the Slave Power. The ‘Barbarism of Slavery’ is now demonstrated before ‘all Israel and the sun.’ I see little good to come from the election of Lincoln, if the platform of the opposing candidates is to be adopted by the Republican leaders. Indeed, it were far better that Slavery should triumph under the rule of Douglas or Breckinridge than under the rule of Lincoln.”

So Mr. Sumner thought, and he acted accordingly. His correspondence with Governor Andrew at this time was constant and earnest. The latter was resolute against Compromise. In a letter of January 20th, the Governor wrote:—

“From war, pestilence, and famine, from all assaults of the world, the flesh, and the Devil, good Lord, deliver us,—but most especially from any compromise with traitors, or any bargain with Slavery!”

Under date of January 30th, the Governor wrote:—

“I think we had better be present by good men in the Conference, if there is to be one, than to be misrepresented by volunteers, or be wholly outside, unheard, and misinformed of the plans and doings inside. Our Committee on Federal Relations will report good resolutions, I think, which will leave us free of complicity with the heresy of the Virginia resolutions, and secure the dignity and fairness of our position.”

Another letter from Massachusetts said, that, if Massachusetts did not send representatives, “the Boston Hunkers would send a delegation, which would not be desirable.”

The Commissioners appointed by the Governor were, John Z. Goodrich, Charles Allen, George S. Boutwell, Francis B. Crowninshield, Theophilus P. Chandler, John M. Forbes, and Richard P. Waters, —all firm against any new concession to Slavery.

Against their influence and votes, the Convention, known as the “Peace Congress,” presented a series of propositions similar in character and surrender to those of Mr. Crittenden, sharing also a similar fate.

During these various efforts, President Buchanan was earnest for the Crittenden Compromise. An interview of Mr. Sumner with him, reported in the Northern papers, shows his desire for this terrible concession.

“WASHINGTON, February 4.

“Much interest is manifested in the interview between President Buchanan and Senator Sumner. Mr. Sumner visited the President, at the request of Governor Andrew, to learn his answer to the Massachusetts offer of military aid; that done, Mr. Sumner said,—

“What else can Massachusetts do for the good of the country?

“Mr. BUCHANAN. A great deal. No State more.

“Mr. SUMNER. I should like to know what.

“Mr. BUCHANAN (after a pause). Adopt the Crittenden propositions.

“Mr. SUMNER. Is that necessary?

“Mr. BUCHANAN. It is.

“Mr. SUMNER. Massachusetts has not acted directly on these propositions, which seek to give Slavery Constitutional protection in Territories, and disfranchise large numbers of her citizens; but I believe such are the convictions of the Massachusetts people that they would never consent to any such thing.

“Mr. Sumner repeated his assurance in the strongest language.

“The President said he felt discouraged by the reply.

“Mr. Sumner spoke of the common ground where all who truly loved the country could stand. It was the Constitution as administered by Washington. The verdict of the people last November should be recognized without price or condition.

“The President said he and Mr. Sumner must differ politically.

“Mr. Sumner assured the President that the people of Massachusetts were attached to the Union; that real disunionists there might all be put in an omnibus; but Massachusetts could not be brought to sacrifice or abandon her principles, and in that he sincerely joined.”

This interview was described by Mr. Sumner in one of his familiar letters to Governor Andrew, which is copied from the private files of the latter.

WASHINGTON, February 3, 1861.

MY DEAR ANDREW,—I saw the President yesterday. He was astonished to learn that the resolutions had not been acknowledged, and said that it should be done.

Afterwards I said to him, “Mr. President, what else can we do in Massachusetts for the good of the country?” A pause. “Much, Mr. Sumner.” “What?” said I. “Adopt the Crittenden propositions,” said he. “Is that necessary?” said I. “Yes,” said he. To which I replied, “Massachusetts has not yet spoken directly; but I feel authorized to say, that, such are the unalterable convictions of her people, they would see their State sunk below the sea, and turned into a sand-bank, before they would adopt propositions acknowledging *property in men*, and disfranchising a portion of her population.” I think I was right.

In God’s name stand firm! *Don’t cave*, Andrew! God bless you!

CHARLES SUMNER.

Save Massachusetts from any “surrender,” THE LEAST!

C. S.

The latter part of the letter alluded to reports that the Legislature was disposed to repeal or modify the well-known laws for the protection of Personal Liberty, passed originally as a defence against the Fugitive Slave Bill. Compromisers urged this surrender, particularly after the special call in the Crittenden propositions. At the request of anxious citizens at home, Mr. Sumner wrote to members of the Legislature against any such sacrifice, insisting, that, with the manifest determination of the South, it could do no good, while plainly the laws should be maintained for the sake of Liberty. His views were briefly expressed in a private letter to Hon. William Claflin, Chairman of the Republican State Committee, and President of the Massachusetts Senate.

[*Private.*]

WASHINGTON, January 1, 1860.

MY DEAR CLAFLIN,—Massachusetts has now an important post. Her most difficult duty is to be true to herself and her own noble history. In the name of Liberty, I supplicate you not to let her take any backward step,—*not an inch, not a hair’s breadth*.

It is now too late for any fancied advantage from such conduct. The crisis is too far advanced. It only remains that she do nothing by which Liberty suffers, or her principles are recanted.

Remember well, that not a word from our Legislature can have the least influence in averting the impending result. What the case requires is firmness which nothing can shake.

Let the timid cry, but let Massachusetts stand stiff. God bless her!

We are on the eve of great events, and this month will try men’s souls. But our duty is clear as noonday, and bright as the sun.

Ever yours,

CHARLES SUMNER.

In a letter dated January 15, Governor Andrew suggested a communication from the Massachusetts delegation, "that it is not important or desirable that we should repeal the Personal Liberty Laws." February 17th, he announces, with something of exultation, the unanimous report of the Committee of the Legislature in harmony with his ideas.

"I had no original expectation of getting such a result; but I told some persons that they could not get anything *through this room* [the Council Chamber] not conformable to certain principles, and which did not contain certain details, unless they marched it through by dragoons."

A letter from Hon. D. W. Alvord, written from Greenfield, Massachusetts, refers to the action of Mr. Sumner.

"Those who believe that it is the first duty of a State to protect its citizens from oppression, as much when the oppression is threatened by the General Government as when it comes from any other quarter, owe you especial thanks. Your influence has saved the 'Personal Liberty Laws' of this State from essential change. Such change would have been strenuously resisted by many true men in the Legislature, even had your advice been different; but your letters, shown about among members, and the knowledge spread through the Legislature that you advised against repeal or essential modification, stiffened many weak backs, and rendered any great change impossible."

Thus at home, in the Legislature, as well as in Congress, people were busy to find some form of surrender inconsistent with those principles which had triumphed at the Presidential election. Mr. Sumner was positive against any surrender anywhere. A letter to Count Gurowski, in New York, which has seen the light since his death, is a contemporary record.

WASHINGTON, January 8, 1861.

MY DEAR COUNT,—Sunday evening I had a visit from Thurlow Weed and Seward. The former said that he found himself "alone,"—nobody united with him. I rejoiced. — and — are here from New York for the same object. They urge that we cannot have a united North, unless we make an effort for adjustment; to which I reply: "We have the verdict of the people last November: that is enough."

But these compromisers do not comprehend the glory of a principle. *Périssent les colonies plutôt qu'un principe!* That exclamation exalts a period which has many things to be deplored.

The Slave States are mad. They will all move. Nothing now but abject humiliation on the part of the North can stay them. Nobody can foresee precisely all that is in the future, but I do not doubt that any conflict will precipitate the doom of Slavery. It will probably go down in blood....

Ever yours,

CHARLES SUMNER.

During these efforts at compromise, the conspirators proceeded in their work. South Carolina took the lead, adopted an Ordinance of Secession December 20, 1860, and shortly thereafter raised the Palmetto flag over the custom-house and post-office at Charleston. Mississippi followed, January 9, 1861; Florida, January 10; Alabama, January 11; Georgia, January 19; and Louisiana, January 26. January 21st the Senators of seceding States withdrew from the Senate. Texas was not declared out of the Union until March 4th, when her Senators withdrew.

Another event will properly close this sketch. At the end of December, 1860, Commissioners from South Carolina arrived at Washington, in order to obtain the complete withdrawal of the national troops. Major Anderson, by a sudden movement, had transferred his command from Fort Moultrie to Fort Sumter, which was much easier to hold. Fort Moultrie and Castle Pinckney were at once occupied by the Rebels. The country was aroused, and insisted that Fort Sumter should not be abandoned. It was held, until, after a bombardment of thirty-four hours, it yielded, April 13, 1861.

ANXIETIES AND PROSPECTS DURING THE WINTER.

LETTERS TO JOHN A. ANDREW, GOVERNOR OF MASSACHUSETTS, JANUARY 17
TO FEBRUARY 20, 1861.

The following letters to Governor Andrew were obviously written in the intimacy of personal friendship and under the spur of public duty. The constant appeals for firmness at home found sympathetic response in one who was himself always firm, and they helped him with others. A letter to Mr. Sumner, dated January 28th, shows his appreciation of the correspondence.

“I have had great satisfaction in your constant remembrance of me by letters, documents, &c. I bear always in my mind and on my heart the honor of the ‘Old Bay State,’ and the claims of our holy cause of Liberty upon my devotion and efforts. May God help us all to be faithful!... I feel much support in your letters.”

SENATE CHAMBER, January 17, 1861.

MY DEAR ANDREW,—Your timely suggestion with regard to Treasury notes I have referred to Mr. Sherman in the House, where any measure founded upon it must originate.

I have letters constantly from New York as well as Massachusetts, expressing great solicitude with regard to the safety of the capital. I am satisfied, that, had the President persevered in his original policy of surrender and treason, we should have been driven away before the 1st of February. Others with whom I converse do not doubt this. But General Scott has applied his best energies to measures of defence. He is satisfied that the traitors cannot succeed here, whatever they may do elsewhere. He has force enough on hand to hold the capital for hours against any attack which can be expected, and within that time he can have fifty thousand men from the North. A law maxim says, *Cuique in sua arte credendum est*. Should he be mistaken, his military reputation will suffer terribly.

You see as well as I, that any military assistance must be invited by the Government. A march of troops on our side would be a “first move” towards hostilities. Our safety must depend upon the watchfulness of the Government. But I agree with Mr. Stearns, that it would be useful to have some faithful men here who would make it a business to ascertain the plans and purposes of the enemy.

Mr. Burleigh, a Republican of John Covode’s district, has recently made an excursion into Maryland, where, passing himself as a speculator in negroes, he thinks he got into secrets. He reports a combination of ten thousand men to seize the capital, and also another conspiracy to assassinate Mr. Lincoln in Maryland, on his way to Washington.

Our friends are all tranquil, except so far as disturbed by Seward’s speech. If his propositions were pressed, I think they would split the party. I regret very much that he made them, and I protested most earnestly against them. He read me his speech four days in advance of its delivery. I pleaded with him, for the sake of the cause, the country, and his own good name, to abandon all his propositions, and simply to declare that Mr. Lincoln would be inaugurated on the 4th of March President of the United States, and rally the country to his support. I do not think we should allow this opportunity to pass without trying the question, whether a single State can break up the Union. What is it worth, if held by any such tenure? I have no concession or compromise of any kind to propose or favor; least of all can I become party to any proposition which sanctions Slavery directly or indirectly. I deplore everything of this kind, however plausible, as demoralizing to the country.

Pray keep Massachusetts sound and *firm*—FIRM—FIRM—against every word or step of concession. God bless you!

Ever and ever yours,

CHARLES SUMNER.

SENATE CHAMBER, January 18, 1861.

MY DEAR ANDREW,—I think that our friends are coming to the conclusion, that we can offer no terms of concession or compromise, in order to please the Border States. The question must be met on the Constitution *as it is* and the facts *as they are*, or we shall hereafter hold our Government subject to this asserted right of secession. Should we yield now,—and any offer is concession,—every Presidential election will be conducted with menace of secession by the defeated party.

There is a disposition to *stand firm* together....

Ever yours,

CHARLES SUMNER.

SENATE CHAMBER, January 21, 1861.

MY DEAR ANDREW,—Pray keep our beloved Commonwealth firm; yet a little longer and the crisis will be passed. Save her from surrender. Nothing she can do will stay secession. IMPOSSIBLE. Let her not write a shameful page in the history of Human Freedom. I feel strongly for her fame, her good name, her character, her example. In the future let it be said that Massachusetts did not waver in the cause for which she has done so much.

How easy it would be for me to give my life rather than have her take a single backward step!

God bless you!

Ever yours,

CHARLES SUMNER.

There is tranquillity now with regard to the capital. General Scott feels safe, and others feel safe under his wing. Virginia, it is said, will surely go.

SENATE CHAMBER, January 23, 1861.

MY DEAR ANDREW,—You have doubtless received my telegram. I found General Scott with the Secretary of War, and read the letter you inclosed. They said at once that no such guns had been ordered by the National Government, and General Scott added that they were, without doubt, intended for Fort Sumter. He said they were “very formidable.” He thought they were “already in a state of great forwardness.” Of course you will see that Massachusetts does not “imp the wings” of Treason.

Yesterday, before receiving your letter, I passed an hour and a half with General Scott. He is not without solicitude in regard to the capital. Information received yesterday confirms the idea that there is a wide-spread conspiracy. He will have one thousand men here,—three companies of flying artillery, two companies of infantry, and five companies from Fortress Monroe. The place of the latter at Fortress Monroe will be supplied by recruits from New York.

He cannot ride on horseback, but he proposes to accompany Mr. Lincoln on the 4th of March in a carriage with Commodore Stewart, each in his uniform.

Nothing that Massachusetts can do now can arrest one single State. There can be no other result except our own humiliation, and a bad example, which will be felt by all other States. If Massachusetts yields one hair's breadth, other States may yield an inch or foot, a furlong, or a mile. Pray keep the Legislature firm. Don't let them undo anything ever done for Freedom.

Good bye.

Ever yours,

CHARLES SUMNER.

SENATE CHAMBER, January 24, 1861.

MY DEAR ANDREW,—I have a suggestion to make which is in harmony with one of your recent letters.

Mr. Dix, ^[133] in his letter of 18th January, on the present resources of the country, says: “Before closing this communication, I wish to call your attention to the fact that there are deposited with twenty of the States, for safe-keeping, over \$28,000,000 *belonging to the United States*, for the repayment of which the faith of these States is pledged by written instructions on file in this department.”

Of course this money might be reclaimed; but the Secretary does not propose to do so. These liabilities may be made a basis of credit, if the States will volunteer to indorse or guaranty the Treasury notes of the Government to the extent of their respective liabilities.

I wish to suggest that our Legislature should at once volunteer this aid to the General Government. Without some assistance Mr. Lincoln will find the Treasury empty. Beyond this consideration, you will appreciate the influence of such an act of loyalty at this peculiar moment.

Mr. Seward writes to-day to the Governor of New York, and makes the same suggestion. Other Senators will do the same. General Wilson unites with me.

Ever yours,

CHARLES SUMNER.

Wilson says he should like to see our State do this promptly.

WASHINGTON, January 26, 1861.

MY DEAR ANDREW,—Yesterday I was with the Attorney-General,^[134] an able, experienced, Northern Democratic lawyer, with the instincts of our profession on the relation of cause and effect. He drew me into his room, but there were clerks there; opening the door into another room, there were clerks there, too; and then traversing five different rooms, he found them all occupied by clerks; when, opening the door into the entry, he told me he was “surrounded by Secessionists,” who would report in an hour to the newspapers any interview between us,—that he must see me at some other time and place,—that everything was bad as could be,—that Virginia would certainly secede,—that the conspiracy there was the most wide-spread and perfect,—that all efforts to arrest it by offers of compromise, or by the circulation of Clemens’s speech, were no more than that (snapping his fingers),—that Kentucky would surely follow, and Maryland, too. “Stop, Mr. Attorney,” said I, “not so fast. I agree with you to this point,—Maryland would go, except for the complication of the National Capital, which the North will hold, and also the road to it.”

Of course you will keep Massachusetts out of all these schemes. If you notice the proposition for a commission, say that it is summoned to make conditions which contemplate nothing less than surrender of cherished principles, so that she can have nothing to do with it.

My opinion has been fixed for a long time. All the Slave States will go, except Delaware, and perhaps Maryland and Missouri,—to remain with us Free States.

The mistake of many persons comes from this,—they do not see that we are in the midst of a revolution, where reason

is dethroned, and passion rules instead. If this were a mere party contest, then the circulation of speeches and a few resolutions might do good. But what are such things in a revolution? As well attempt to hold a man-of-war in a tempest by a little anchor borrowed from Jamaica Pond; and this is what I told the Boston Committee with regard to their petition.

I have but one prayer: Stand firm, keep every safeguard of Human Rights on our statute-book, and save Massachusetts glorious and true.

Ever yours,

CHARLES SUMNER.

SENATE CHAMBER, January 28, 1861.

MY DEAR ANDREW,—I did not unite with the delegation yesterday in recommending commissioners, and I think they signed without much reflection, certainly without any general conference.

My disposition in any matter not involving principle is to keep the delegation *a Unit*, and I certainly would not stand in the way now. Two things have been pressed, both entitled to consideration: first, in the absence of commissioners duly appointed, certain “Union-savers” from Massachusetts, accidentally here, will work into the Convention, and undertake to represent Massachusetts; and, secondly, it is important that Massachusetts should not be kept insulated. Both you can judge, and I shall defer to your judgment.

Preston King concurred with me as to the true policy of our States; but he did not think it worth while to interfere positively by writing to the Governor of New York.

Should you conclude to move, let two things be guarded: first, the principles, by having it known that Massachusetts

has taken no step towards any acceptance of the resolutions which are made the implied basis of the proposed Convention; and, secondly, the men, by designating only the firmest, in whom there is no possibility of concession or compromise, like ——, ——, ——, ——, ——, ——; but you know the men better than I do.

Last evening the Attorney-General was with me for a long time, till after midnight. I know from him what I cannot communicate. Suffice it to say, he does not think it probable—hardly possible—that we shall be here on the 4th of March. The President has been wrong again, and a scene has taken place which will be historic, but which I know in sacred confidence. General Scott is very anxious. It is feared that the department will be seized and occupied as forts. What then can be done by the General, surgeons, and flying artillery?

Ever yours,

CHARLES SUMNER.

SENATE CHAMBER, January 28, 1861.

MY DEAR ANDREW,—Mr. Dix has proposed a form of State guaranty to be used in New York. He thinks it advisable to have the forms alike in the different States.

Ever yours,

CHARLES SUMNER.

I send a copy.

P. S.—*Timeo Danaos et dona ferentes*. Don't let these words be ever out of your mind, when you think of any proposition from the Slave-Masters.

They are all essentially false, with treason in their hearts, if not on their tongues. How can it be otherwise? Slavery is a

falsehood, and its supporters are all perverted and changed. Punic in faith, Punic in character, you are to meet all that they do or say with denial or distrust.

Mr. Everett reported to me some smooth words of John Tyler, which seem to have gone to the soul of the eloquent son of Massachusetts. "Don't trust him," said I, "he means to betray you."

I know these men, and see through their plot.

The time has not yet come to touch the chords which I wish to awaken. But I see my way clear. O God! let Massachusetts keep true. It is all I now ask.

SENATE CHAMBER, February 5, 1861.

MY DEAR ANDREW,—Ever remember, "Forewarned is forearmed." Since recent sincere propositions to defend the capital, I have had no fear except from a revolutionary movement in Maryland. That, as I have repeatedly said, will depend upon Virginia. The recent elections seem to show that she at least will take time. This postpones the danger contingent upon her course.

More than the loss of forts, arsenals, or the national capital, *I fear the loss of our principles.*

These are now in greatest danger. Our Northern Fort Sumter will be surrendered, if you are not aroused. In my view, the vacillation of the Republicans is more fatal than that of Buchanan.

Keep firm, and do not listen to any proposition.

Ever yours,

CHARLES SUMNER.

SENATE CHAMBER, February 6, 1861.

MY DEAR ANDREW,—It seems to me that nothing is gained for the Union by the Virginia election *except delay*, unless the North surrender everything. I have always trusted that the North would not, and therefore look to the secession of Virginia as impending,—sooner or later to occur.

This delay seems like a beneficent intervention of Providence to arrest the conflict, which a sudden movement would have precipitated. It suspends the revolutionary movement in Maryland, which was to begin the 18th,—five days after the Virginia Convention,—and thus gives security to the capital.

Since General Scott has become wakeful, and has received powers from the President, I have felt safe against everything but a revolutionary movement.

Be assured I will keep you advised. I shall scent the coming danger.

But do not be deceived by that fatal advice which sees nothing but peace and security in the recent elections.

Chase has just left me. He thinks there may be thirty Unionists *per se* in the Virginia Convention; all the rest *only conditionally*,—the condition being the resolutions on which the Massachusetts commissioners are to deliberate. Bah! A friend, who was with Mr. Rives this morning, tells me that he was very bitter against Johnson, of Tennessee, for his Union speech, and especially for saying “Secession is treason.” He says that the persons called Unionists will be for secession, if the South cannot have “Constitutional guaranties.” The course of such a person as Mr. Rives, who is said to be conservative, foreshadows the result.

I have just seen Colonel Ritchie: a most intelligent gentleman, who does honor to our Commonwealth,—God bless her! But the crisis is adjourned.

Ever yours,

CHARLES SUMNER.

May we all be loyal and true, and never desert great principles!

SENATE CHAMBER, February 8, 1861.

MY DEAR ANDREW,—Last evening I was greeted by the first instalment of the commissioners. The rest I expect this morning.

Be assured, I shall do all that I can for their comfort and information. I am relieved to know that there is not a single weak joint in them....

I pray constantly for courage at home. Let Massachusetts be true and firm, and keep our friends from division.

The news from Virginia continues to reveal the same tendency,—secession, unless constitutional guaranties are secured for Slavery. Without some change, contrary to all legislative and other declarations, Virginia must go out.

I hope that our Legislature will not pause in offering its guaranty to the bonds of the National Government. It ought to be done at once.

Did I ever tell you how much I enjoyed and admired your old musket speech? It was well conceived and admirably done. I am glad that Theodore Parker's name is enrolled in the Capitol.

I find your commissioners noble, true, good characters, able to support Massachusetts.

God bless you!

Ever yours,

CHARLES SUMNER.

WASHINGTON, February 10, 1861.

DEAR ANDREW,—It is much to be regretted that our State has hesitated so long in giving its indorsement to the United States bonds. Let us give Government the means of procuring money at once, and put her credit on its legs.

There is tranquillity now. The Peace Conference has not reached any point. It is evident that Virginia and the other Border States will have to decide the question, Which to choose, Union or Slavery? If they remain, it must be in subjection to the Constitution and the antislavery policy of the Fathers.

I do not tremble at anything from our opponents, whoever they may be, but from our friends.

The New York commissioners, the majority, are stiff and strong.

Every word of concession thus far has done infinite mischief,—first, by encouraging the Slave-Masters, and, secondly, by demoralizing our own friends, and filling them with doubt and distrust.

God bless you!

Ever yours,

CHARLES SUMNER.

SENATE CHAMBER, February 20, 1861.

MY DEAR ANDREW,—I lost no time in seeing the Attorney-General and placing your letter in his hands. At the same time I pressed the pardon. He will give the subject his best attention, but I thought he was rather fixed against it.

Nothing has occurred to change my view of our affairs. It seems to me that Virginia will secede. At all events, if you expect this result, you will be best prepared for the future.

The Peace Conference is like the Senate,—powerless to mature any system of harmony. And the question of enforcing the laws and retaking the forts,—in other words, *of our existence as a Government*,—when presented, must increase the discord.

If Mr. Lincoln *stands firm*, I do not doubt that our cause will be saved. All that we hear testifies to his character. *But he is a man.*

The heart-burnings and divisions showing themselves in our party a few weeks ago are now less active. Those fatal overtures will fall to the ground. Oh, that they never had been made!

God bless you!

Ever yours,

CHARLES SUMNER.

NO SURRENDER OF THE NORTHERN FORTS.

SPEECH IN THE SENATE, ON A MASSACHUSETTS PETITION IN FAVOR OF THE CRITTENDEN PROPOSITIONS, FEBRUARY 12, 1861.

During weary, anxious weeks, while the Rebellion was preparing, and Senators were leaving their seats to organize hostile governments, Mr. Sumner resisted appeals to speak. An earnest character in Philadelphia wrote to him, January 31st:—

“May we not look to have *you* speak once more for us,—as a statesman, not as a politician,—as a philanthropist, not as the representative of a prospective Cabinet? Mr. Sumner, you know that Kansas was yesterday admitted. God bless her, and God bless you, to whom under Him she owes her deliverance, and the country owes the turning of the balances *against* Slavery for all time to come. Now, if the whole country is on the eve of a similar struggle, why should we not know it and act accordingly?”

Another zealous friend, writing from Massachusetts on the same day, said:—

“Why do we not hear your voice uplifted, in this critical, this dangerous hour?”

It was hard to resist such appeals. But there were good friends, agreeing with Mr. Sumner, who counselled silence. An incident unexpectedly occurred which compelled him to speak, although briefly.

February 12, 1861, Mr. Crittenden presented a petition extensively signed by people of Massachusetts, where, after setting forth that “their sentiments towards the Union and towards their common country have been misrepresented and misunderstood,” and further declaring themselves “willing that all parts of the country should have their full and equal rights under the Constitution, and recognizing in the propositions of Hon. J. J. Crittenden a basis of settlement which the North and the South may fairly and honorably accede to, and which is well calculated to restore peace to the country,” the petitioners conclude by asking the adoption of these propositions. The petition purported to be from one hundred and eighty-two cities and towns of Massachusetts, and to be signed by twenty-two thousand three hundred and thirteen citizens of Massachusetts. In presenting it, Mr. Crittenden remarked on the number of signatures in different towns, mentioning especially Natick, the home of Senator Wilson, and Boston, where there were more than fourteen thousand petitioners out of nineteen thousand voters. And he added, that he felt “peculiar and especial satisfaction” in presenting the petition.

On his motion the petition was laid on the table, which, under the rules of the Senate, cut off debate, when Mr. Sumner moved the printing of the petition, and on this motion spoke as follows.

MR. PRESIDENT,—As I desire to say a few words on the petition, I move that it be printed.

These petitioners, I perceive, ask you to adopt what are familiarly known as the Crittenden Propositions. Their best apology, Sir, for such a petition is their ignorance of the character of those propositions. Had they known what they are, I feel sure they could not have put their names to any such paper.

Those propositions go beyond the Breckinridge platform, already solemnly condemned by the American people in the election of Abraham Lincoln. If adopted, they set aside the Republican platform, while they foist into the National Constitution guaranties of Slavery which the framers of that instrument never sanctioned,—which Washington, Jefferson, Franklin, Patrick Henry, and John Jay, according to the testimony of their lives and declared opinions, would have scorned to sanction; nor can there be any doubt, that, had such propositions been made the condition of Union, this Union could not have been formed.

Mr. Madison, in the Convention which framed the National Constitution, taught his fellow-countrymen that it is “wrong to admit in the Constitution the idea that there can be property in men.”^[135] What manly vigor and loftiness inspired that warning! Now these propositions not only interpolate the forbidden idea, but, proceeding to its practical application, they run a visible black line at latitude 36° 30′, extending the protection of the Constitution itself over Slavery south of that line, and then, making the case yet more offensive and more impossible at the North, they carry it to all territory hereafter acquired, so that the flag of the Republic, as it moves southward, must always be the flag of Slavery, while every future acquisition in that direction must submit to the terrible doom,—and all this under irrepealable text of Constitution, which, by supplementary provision, is expressly placed beyond amendment. In an age of civilization this is bad, very bad; but they go further. There are to be new guaranties of Slavery in the National capital, and in other places within the National jurisdiction,—also in transporting slaves to States and Territories,—also a reinforcement of the Fugitive Slave Bill; and all these are so placed under Constitutional safeguard as to exceed the permanence of other provisions. Nor is even this all. As if to do something inconceivably repugnant to just principles, and especially obnoxious to the people of Massachusetts, it is proposed to

despoil our colored fellow-citizens there of political franchises long time assured by the institutions of that Liberty-loving Commonwealth. Before the adoption of the National Constitution it was declared in Massachusetts that there could be no distinction of color at the ballot-box; and this rule of equality is to be sacrificed, while fellow-citizens are thrust out of rights which they have enjoyed for generations.

Sir, for these things, and others kindred, do these petitioners now pray, insisting that they shall all be interpolated into the National Constitution,—while, in entire harmony with this unparalleled betrayal, those laws which have been established for the protection of Personal Liberty are to be set aside, that the Slave-Hunter may have free course. Such are things which in the judgment of these petitioners “the North and the South may honorably accede to,” while, in consideration of these impossible sacrifices, the fee of the Fugitive Slave Commissioners is modified, and it is declared that the Slave-Trade shall not be revived. And this is the compromise for which Massachusetts people in such large numbers from cities and towns now pray!

I have infinite respect for the right of petition, and I hope always to promote the interests and to represent the just and proper wishes of my fellow-citizens; but I cannot hesitate to declare my unfeigned regret that these petitioners, uniting in such numbers, have missed the opportunity of demanding plainly and unequivocally, as lovers of the Union, two things, all-sufficient for the present crisis, with regard to which I might expect the sympathies of the Senator from Kentucky: first, that the Constitution of the United States, as administered by George Washington, shall be preserved intact and blameless in its text, with no tinkering for the sake of Slavery; and, secondly, that the verdict of the people last November, by which Abraham Lincoln was elected President of the United States, shall be enforced without price or condition. Here is a platform on which every patriot citizen can take his stand, having over him the stars of the Union. How much better than any proposition, scheme, or vain delusion of Compromise! On such ground, all who really love the Union of their fathers, without an *if* or a *but*, can plant themselves.

I remember, Sir, that in the debate on the night of the passage of the Nebraska Bill,—it was at midnight,—I made the declaration that all future

compromise was impossible.^[136] Events now taking place verify this truth. It is obvious that existing difficulties can be arranged only on permanent principles of justice, freedom, and humanity. Any seeming settlement founded in abandonment of principles will be but a miserable patchwork, which cannot succeed. Only a short time ago the whole country was filled with shame and dismay, as the reports came to us of the surrender of the Southern forts; and when it was known that Fort Sumter, too, was about to be given up, a cry went forth from the popular heart, by which that fortress was saved, at least for the present. And now for the parallel. Propositions are brought forward by the Senator from Kentucky, and enforced by petition from my own State, calling upon the North to surrender its principles,—to surrender those impregnable principles of Human Rights which constitute our Northern forts. It is even proposed to surrender the principle of Freedom in the Territories,—the Fort Sumter of the North. I trust, Sir, that all these principles will yet be saved; but plainly their safety depends upon the people, and not upon a President; therefore must the people be heard, as in that cry from the heart which only a few days ago saved the other Fort Sumter, menaced by the representatives of Slavery. For myself, if I stand with many, with few, or alone, I have but one thing to say: “No surrender of the Fort Sumter of the North! No surrender of any of our Northern forts,—no, Sir, not one of them!”

Bankers and merchants of New York and Boston tell us that the Government shall not have money, if we do not surrender. Then again, Sir, do I appeal to the people. Surely the American people are not less patriotic than the French. They only want the opportunity to come forward and supply the necessities of the Government, as the latter, at the hint of their Emperor, came forward with money, all in small sums, for the support of that war which ended in the liberation of Italy. Our Government stands on the aggregate virtue and intelligence of the people. Not only the rich and fortunate, but the farmer, the mechanic, the laborer, every citizen truly loving his country, will contribute out of his daily life to uphold the Constitution and the flag. From these small sums, inspired by a generous patriotism, I am glad to believe we shall have a full treasury, even if bankers and merchants stand aloof.

There is but one thing now for the North to do: it is to stand firm. The testimony of a great national benefactor, who helped our country to

Independence, should be heard,—I mean Lafayette,—who, in his old age, with experience ripened by time, contemplating the terrible Revolution which had convulsed France, as a surviving actor and a surviving sufferer, did not hesitate to announce from his seat in the Chamber of Deputies, after recognizing the unutterable calamities of that Revolution, that, according to his solemn judgment, they must be referred not so much to the bad passions of men as to those timid counsels which sought to substitute *Compromise* for *Principle*.^[137] The venerable patriot may well speak to his American fellow-citizens now, and inspire them to stand firm against those timid counsels which would make any such fatal substitution.

Mr. Crittenden replied at some length, vindicating his propositions, and also the Massachusetts petitioners, who, he said, had been charged with “ignorance.” In the course of the debate the following passage occurred.

MR. CRITTENDEN. If the propositions I offered, and which I offered with diffidence, are not adequate to the purpose, if they ask too much, why have not gentlemen moved to amend? Why has the honorable Senator sat here for one month and more, and proposed no amendment to the propositions which he now rises to condemn his constituents for approving?

MR. SUMNER. Will the Senator allow me to say that every time I could get an opportunity I have voted against his propositions? I have missed no opportunity, direct or indirect, of voting against them, from beginning to end, every line and every word.

MR. CRITTENDEN. I do not controvert that, Mr. President; it may be so; but that is not what I am asking of the gentleman. It is, that, if he desired union and conciliation at all, why did he not move to amend the propositions which he now condemns?

MR. SUMNER. I will answer the Senator: Because I thought there could be no basis of peace on the Senator’s propositions, which are wrong in every respect, in every line, in every word. That is what I thought. I was for the Constitution of the United States, the Constitution of our fathers, as administered by George Washington.

MR. CRITTENDEN. If that was all true, and the gentleman desired an amicable settlement of the difficulties which now threaten the country, had he no proposition whatever to make?

MR. SUMNER. Certainly,—the proposition which I have already made, that the Constitution, as administered by George Washington, should be preserved pure and free from any amendment for the sake of Slavery.

MR. CRITTENDEN. Why did he not move that? Why did he sit sullen and silent here for one month or more, with his breast full of resentment? [*Applause in the galleries.*]

THE PRESIDING OFFICER [Mr. FOSTER, of Connecticut]. Order will be preserved in the galleries, or they will be cleared immediately.

MR. CRITTENDEN. With such a spirit of opposition to, and thinking as he did of these resolutions, why did he not propose to strike them all out?

MR. SUMNER. Will the Senator let me answer?

MR. CRITTENDEN. Yes, I will.

MR. SUMNER. I did vote for the substitute of the Senator from New Hampshire [Mr. CLARK] just as soon as it could come to a vote, and that expresses precisely my conviction. That vote displaced the Senator's propositions entirely. [\[138\]](#)

Before the debate closed, Mr. Sumner replied briefly.

MR. PRESIDENT,—I have no desire to prolong this debate, or to occupy the time of the Senate. I content myself with two remarks. The Senator from Kentucky is not aware of his own popularity in Massachusetts, of the extent to which his name is an authority there, of the willingness of the people there to adopt anything with the sanction of his respectable name. I do not think the distinguished Senator is aware of that fact; consequently he does not see how easily the people of Massachusetts might be seduced to adopt at sight a proposition brought forward by him, which otherwise they would at once reject. Now all that I suggest in regard to these petitioners is, that, under the lead of the distinguished Senator, they put their names to a petition which I am sure they did not, in all respects and in all its bearings, fully understand; and I must do them the justice to believe, that, had they known the true character of the propositions of the Senator, they would not have signed petitions for their adoption.

This is all on that point; but I wish to make one other remark. The Senator intimated, if I understood him aright, that his propositions, at least in his own mind, were not applicable to territory hereafter acquired.

MR. CRITTENDEN. No: I do not mean to be understood as saying that.

MR. SUMNER. I understood the Senator so.

MR. CRITTENDEN. I said I did not consider that proposition as an essential part of mine,—that I did not intend to insist upon it, if I found it would not be acceptable. I did not intend that that should be any obstacle to an adjustment, and I would propose to strike it out, if necessary.

MR. SUMNER. The Senator did not consider that an essential part; and yet in the Journal of the Senate, now before me, in the yeas and nays, I find his name recorded in the affirmative on introducing those words, “now held or

hereafter to be acquired.” Here is the record,—the name of the Senator from Kentucky answering yea, when we were all asked to answer yea or nay.

This brief effort of Mr. Sumner at a critical moment found response, not only from his constituents, but from the North generally. In Massachusetts many made haste to testify that the petition praying for such a shameful surrender had been signed by large numbers without knowing its true character,—while the Common Council of Boston, then controlled by Compromisers, also made haste to censure Mr. Sumner, declaring, in formal resolution, that his assertion in the Senate with regard to the petitioners was “undignified, unbecoming a Senator and a citizen of Boston, and untrue.”

As through this remarkable petition, and the speech of Mr. Crittenden in presenting it, Massachusetts was vouched for Slavery, a few witnesses may be properly adduced to show how the signatures were obtained, and also what was the real sentiment of the people there.

William Lloyd Garrison, always watchful for Human Rights, and knowing the wiles of Compromise, wrote from Boston:—

“For one, I desire to thank you for declaring in the Senate that the petition from Boston, asking for any compromise to propitiate the South, did not represent the sentiment even of the city, but was signed by multitudes ignorantly and recklessly,—the left hand not knowing what the right hand did. I wish it were in your power to have that list of names critically examined. I am quite sure that hundreds of names would be proved to be ‘men of straw.’ I have been told that the names of Wendell Phillips, Henry Ward Beecher, Theodore Parker (!), [\[139\]](#) and my own, were appended to it. This is possible, but hardly credible. Still, excepting the Border-Ruffian returns in Kansas, I do not believe there was ever a petition more impudently and fraudulently presented to a legislative assembly than the one from this city.

“I congratulate you upon being the special object of the *Courier*’s malignant abuse. Do not fear of being fully sustained by Massachusetts in your boldest utterances; and how posterity will decide is easily seen.”

M. P. Kennard, an excellent citizen and business man, wrote from Boston:—

“The petition was placed in the lobby of our post-office, under the charge of a crier, who saluted every one who passed him with, ‘Sign this petition?’—and it was thoughtlessly signed by men and boys, native and foreign.”

Charles W. Slack, of the newspaper press, wrote from Boston:—

“You are entirely right relative to the signers of the Crittenden Petition. Boys, non-voters, foreigners, anybody, were taken, who could write a name. The city police canvassed all the out-of-the-way places, and took the names they could gather.... Glad that you spoke as you did. We look to you to give the key-note. None knows Massachusetts better than you, and none will be more faithful to her, come weal or woe.”

Dr. William J. Dale, afterwards the Surgeon-General of Massachusetts, wrote from Boston:—

“The other day a neighbor of ours, Mr. Brown, an intelligent citizen, a provision dealer, corner of Derne and Temple Streets, stopped me and said, ‘If

you ever write Mr. Sumner, tell him that I, with many others, signed that Crittenden Petition under an entire misapprehension.' Says he, 'I would cut off my right hand before it should sign so infamous a proposition.' That is the feeling among the middling-interest people. The so-called Union men assume the air and manner of slave-overseers. They have overdone the thing here."

J. Vincent Browne, afterwards Collector of Internal Revenue in the Essex District of Massachusetts, wrote from Salem:—

"At least twenty persons who signed the paper in this city have said to me, 'Why, Mr. Crittenden's propositions are merely to restore the Missouri Compromise. I was told so, when I signed.' When the *truth* was told them, as usual, they were *astonished*. And so men trifle with their rights, and are trifled with."

John Tappan, a venerable citizen, loving peace, but hating Slavery, and anxious that Massachusetts should be right, wrote from Boston:—

"I thank you for it, and believe it speaks the sentiments of a vast majority of *all parties* in this and the other New England States. The only reason assigned by some of the signers is, that it was not expected that it would pass as offered, but lead to some compromise.

"Be assured the heart of the Commonwealth is with you, and that, if ever we were called upon for firmness in maintaining our Constitutional rights, it is now; and although I pray God no blood may be shed in the conflict, yet submission to the demands of Slavery is not to be the alternative.

"I rejoice the conflict has come in my day, although, on the verge of four-score, I may not live to see harmony restored."^[140]

Rev. John Weiss, the eloquent preacher and author, wrote from Milton, Massachusetts:—

"Your little speech lies in the hand like an ingot,—dense and precious, and of the color which charms my eyes at least. Nothing can be truer than your statement, that multitudes of people do not know what they sign, when they indorse the Crittenden propositions. I, for one, had not read them till quite lately. They have not been freely ventilated in the newspapers. When, the other day, the Boston papers undertook to print them formally, people were shocked.... The 4th March will come with a fatal suddenness for all the plotters and expecters and adjustment-mongers. Just at the proper moment, not a moment too soon nor too late, you spoke a word which will help to clear the air."

Others wrote correcting the statement with regard to signatures in different towns. Some in a few words exposed the petition. Professor Convers Francis wrote from Cambridge: "The big Boston petition, so far as I can learn, is regarded here as a piece of gammon, except, perhaps, in certain quarters of the business world." Rev. R. S. Storrs, the venerable divine, wrote from Braintree: "A great hoax, that famous petition for the Crittenden Compromise!" This testimony, which might be extended indefinitely, will relieve Massachusetts from a painful complicity, and help keep her history bright.

The resolutions of the Boston Common Council did not fare better than the petition. Among newspapers, the *Boston Advertiser* remarked:—

“It is hardly necessary for us to say that we do not concur in all respects in the policy which Mr. Sumner is understood to follow at this crisis; but in the matter of this petition we certainly hold that he was plainly right. And we are led to this belief by observing the industrious efforts made by those who urged the signing of the petition to conceal the true meaning of the scheme which is known as Mr. Crittenden’s.... It appears to us also that Mr. Sumner gave not only the most friendly, but also a most natural, account of the manner in which a large number of these petitioners must have been led to this singular mistake.”

The *New York Tribune* stated the case.

“A great many dull people, and a few clever ones, lately signed a petition asking Congress to adopt the Crittenden Compromise. When this document was taken up in the Senate, Mr. Sumner said, with much calmness and in the most courteous spirit, that he believed the signers had so high a regard for the name of Crittenden that they had put their signatures to a paper which they could not have fully understood in all its obligations, bearings, and propositions. This was a very gentle letting-down of the Bostonians, much more tender treatment than they deserved. Nevertheless, the remark raised a breeze in the respectable city, such as only a small thing can create in that place. It would never do to say that any Boston man or boy could sign a paper the whole of which he had not read and digested. So the Common Council, of all bodies in that town, took up the matter, and actually passed a vote of censure on Senator Sumner for mildly hinting that the signers aforesaid were rather hasty than wicked, stupid, or weak.”

A sonnet by David A. Wasson, which appeared at this time, expresses gratitude to Mr. Sumner, with small sympathy for compromise in any form.

“TO CHARLES SUMNER.

“Thou and the stars, our Sumner, still shine on!
No dark will dim, no spending waste thy ray;
And we as soon could doubt the Milky Way,
Whether enduring were its silver zone,
As question of thy truth. Their light is gone
Whose beam was borrowed: ever will Accident,
Upon a day, the garment it hath lent
Strip off,—make beggars of its kings anon.
Thou and the stars eternal, inly fed
From God’s own bosom with celestial light,
Must needs emit the glory in ye bred;
Alike it is your nature to be bright:
And I, while thou art shining overhead,
Know God is with us in the gloomy night.”

DUTY AND STRENGTH OF THE COMING ADMINISTRATION.

FROM NOTES OF UNDELIVERED SPEECH ON THE VARIOUS PROPOSITIONS OF
COMPROMISE, FEBRUARY, 1861.

Mr. Sumner contemplated a speech reviewing the various propositions of Compromise, but he never made it. The following passages are given, as proposed at the time.

...

I would not say a word except of kindness and respect for the Senator of Kentucky [Mr. CRITTENDEN]. But that Senator must pardon me, if I insist that he is entirely unreasonable in pressing his impracticable and unconstitutional propositions so persistently in the way of most important public business. Yesterday it hindered a great measure of Internal Improvement. To-day it blocks the admission of a State into this Union, being none other than Kansas, which has earned a better hospitality.

The Senator makes his appeal in the name of the Union. But I must remind him that he takes a poor way of showing that attachment to the Union which he avers. He turns round and lectures us who are devoted to the Union, when his lecture should be addressed to the avowed and open Disunionists in this Chamber. Nay, more, he actually sides with the Disunionists in their claims. Imagine Washington, Franklin, Jefferson, John Jay, Andrew Jackson, or Henry Clay, in the place of the venerable Senator. They would not wheel towards the known friends of the Union, and ask an impossible surrender of sacred principles, but rather face to face address the Disunionists frankly, plainly, austerely, calling upon them to renounce their evil schemes; to acknowledge the National Constitution, and especially in this age of light to make no new demands for Slavery.

In reply to the Senator, who so constantly lectures us, I say, look to the good examples of our history; take counsel of the Spirit of Nationalism, rather than Sectionalism, and be willing to defend the Constitution *as it is*,

rather than *patch it over* with propositions which our fathers would have disowned.

...

Putting aside all question of concession or compromise, the single question remains, *How shall we treat the seceding States?* And this is the question which the new Administration will be called to meet. I see well that it will naturally bear much and forbear long,—that it will be moved by principle, and not by passion,—and that it will adopt the harsh instrumentalities of power only when all other things have failed. And I see well the powerful allies which will be enlisted on its side. There will be the civilization of the Christian world, speaking with the innumerable voices of the press, and constituting a Public Opinion of irresistible energy. There will be the great contemporary example of Italy, after a slumber of centuries aroused to assertion of her rights,—and of Russia also, now completing that memorable act of Emancipation by which Freedom is assured to twenty millions of serfs. There will be also the concurring action of European powers, which, turning with disgust from a new confederacy founded on Human Slavery, will refuse to recognize it in the Family of Nations. There will be also the essential weakness of Slavery with the perils of servile insurrection, which, under the influence of this discussion, must become more and more manifest in every respect. There will be also the essential strength of Freedom, as a principle, carrying victory in its right hand. And there will be Time, which is at once Reformer and Pacificator. Such are some of the allies sure to be on the side of the Administration.

FOREIGN RELATIONS: ARBITRATION.

REPORT FROM COMMITTEE ON FOREIGN RELATIONS, ADVISING THE PRESIDENT TO SUBMIT THE SAN JUAN BOUNDARY QUESTION TO ARBITRATION, IN THE SENATE, MARCH 19, 1861.



By the withdrawal of Southern Senators, the Republicans were left with a majority in the Senate, enabling them to reorganize the Standing Committees, which was done March 8, 1861. At the head of the Finance Committee was Mr. Fessenden, instead of Mr. Hunter,—of the Judiciary Committee, Mr. Trumbull, instead of Mr. Bayard,—of the Military Committee, Mr. Wilson, instead of Mr. Jefferson Davis,—and of the Naval Committee, Mr. Hale, instead of Mr. Mallory. Mr. Sumner was appointed Chairman of the Committee on Foreign Relations, in place of Mr. Mason, of Virginia, who had held this position from December 8, 1851. With the former on the new Committee were Messrs. Collamer, of Vermont, Doolittle, of Wisconsin, Harris, of New York, Douglas, of Illinois, Polk, of Missouri, and Breckinridge, of Kentucky. The appointment of Mr. Sumner to this important position was contrasted with his treatment at an earlier day, when the omission of his name from any committee was justified on the ground that he was “outside of any healthy political organization in this country,” and this Senatorial sally was received with “laughter.”^[141] Mr. Hale and Mr. Chase were in the same category. Only Democrats and Whigs were accepted: such was the Law of Slavery. At last this was all changed.

The reorganization of the Committees attracted the attention of the press at home and abroad. It was properly recognized as marking a change from old to new. The London *Star*, in an elaborate article on the transition, welcomed especially the new Chairman of the Committee of Foreign Relations.

“The Republican Senators have selected for the Chairman of this Committee the Hon. Charles Sumner, a statesman deservedly honored in this country, not only for his eloquence as an orator, but for his unswerving fidelity to the cause of Freedom. No man could have been chosen for this office in every respect more acceptable to the English people. It is not only as the Antislavery legislator, who, from the first moment that he took his seat in the Senate as the representative of Massachusetts, has ever raised his voice and given his vote for the hapless negro,—it is not only as the patriot who almost suffered martyrdom on the floor of the Senate Chamber from the ruffian hand of Preston S. Brooks, that the English people will be disposed to regard his appointment with hearty approval: he has established other claims to our sympathy and admiration, which we must not be slow to recognize. Mr. Sumner is well known in this country—scarcely less, indeed, than in America—as the stanch friend of Peace. Years ago, in his famous oration on the True Glory of Nations, he set forth the advantages of a pacific policy, with arguments as cogent and irresistible as those which have been employed by Mr. Cobden, and with an eloquence of language and a fertility of illustration which revived the oratory of classic times....

“And if during the period of Mr. Lincoln’s administration causes of dispute should unhappily arise between America and Great Britain, or any other foreign power, Mr. Sumner will not fail to point to *arbitration as the only reasonable and satisfactory mode* of settling international differences. *He will not, if he can help it, permit San Juan to be made a casus belli*, or tolerate any more of those periodical expeditions against the weak and effeminate republics of South America, by which Mr. Buchanan and his predecessors treated with contempt the solemn injunctions of the Fathers of the Republic, that their posterity should avoid the fatal quicksands of European diplomacy, and abstain from intermeddling with the affairs of other states.”

The very questions anticipated by the London journal were presented at an early day, even before its article could reach Washington. The advice of the Senate was asked by the President on submitting the San Juan Question to arbitration.

March 16, 1861, the following Message from President Lincoln was read in Executive Session, and on motion of Mr. Sumner referred to the Committee on Foreign Relations.

“TO THE SENATE:—

“The Senate has transmitted to me a copy of the Message sent by my predecessor to that body on the 21st day of February last, proposing to take its advice on the subject of a proposition made by the British Government through its minister here to refer the matter in controversy between that Government and the Government of the United States to the arbitrament of the King of Sweden and Norway, the King of the Netherlands, or the Republic of the Swiss Confederation.

“In that Message my predecessor stated that he wished to submit to the Senate the precise questions following, namely:—

“‘Will the Senate approve a Treaty referring to either of the sovereign powers above named the dispute now existing between the Governments of the United States and Great Britain concerning the boundary line between Vancouver’s Island and the American continent? In case the referee shall find himself unable to decide where the line is by the description of it in the Treaty of June 15, 1846, shall he be authorized to establish a line according to the Treaty as nearly as possible? Which of the three powers named by Great Britain as an arbiter shall be chosen by the United States?’

“I find no reason to disapprove of the course of my predecessor in this important matter, but, on the contrary, I not only shall receive the advice of the Senate thereon cheerfully, but I respectfully ask the Senate for their advice on the three questions before recited.

“ABRAHAM LINCOLN.

“WASHINGTON, March 16, 1861.”

From this Message it appears that the subject had been already before the Senate on the submission of President Buchanan in the last days of his Administration. In his Message the latter stated these precise questions:—

“Will the Senate approve a treaty referring to either of the sovereign powers above named [Sweden, the Netherlands, or Switzerland] the dispute now existing between the Governments of the United States and Great Britain concerning the boundary line between Vancouver’s Island and the American continent?”

“In case the referee shall find himself unable to decide where the line is by the description of it in the Treaty of June 15, 1846, shall he be authorized to establish a line according to the Treaty as nearly as possible?”

“Which of the three powers named by Great Britain as an arbiter shall be chosen by the United States?”

February 27, 1861, Mr. Mason, from the Committee on Foreign Relations, reported the following Resolution, directly responsive to the questions proposed.

“Resolved, That in the opinion of the Senate the boundary in dispute between the Governments of Great Britain and the United States should be referred to the arbitrament and final award of an umpire to be agreed on between the two Governments; that such umpire should, if practicable, determine said boundary as the same is prescribed in the Treaty aforesaid; or if that be not practicable, then that he be authorized to establish a boundary, conforming as nearly as may be to that provided by said Treaty.

“And that, of the three powers referred to in the Message of the President, the Senate would indicate as such umpire the Republic of the Swiss Confederation.”

This was the last diplomatic act of Mr. Mason as Chairman of the Committee on Foreign Relations.

March 19, 1861, Mr. Sumner submitted the following Report, which was his first diplomatic act as Chairman.

The Committee on Foreign Relations, to whom was referred the Message of the President of the United States dated the 16th instant, with the documents accompanying it, have had the same under consideration, and now report.

The Treaty concluded between Great Britain and the United States on the 15th of June, 1846, provided in its first Article that the line of boundary between the territories of her Britannic Majesty and those of the United States, from the point on the 49th parallel of north latitude, to which it was ascertained, should be continued westward along this parallel, “to the middle of the channel which separates the continent from Vancouver’s Island, and thence southerly, through the middle of said channel and of

Fuca's Straits, to the Pacific Ocean." When the commissioners appointed by the two Governments to mark the boundary line came to that part of it required to run southerly through the channel dividing the continent from Vancouver's Island, they differed entirely in their opinions, not only concerning the true point of deflection from the 49th parallel, but also as to the channel intended in the Treaty. After long discussion, producing no result, they reported a disagreement to their respective Governments. Since then the two Governments, through their ministers here and at London, have carried on a voluminous correspondence on the matter in controversy, each sustaining the conclusion of its own commissioner, and neither yielding in any degree to the other. Meanwhile the unsettled condition of this question produced serious local disturbance, and on one occasion threatened to destroy the harmonious relations existing between Great Britain and the United States, causing serious anxiety.

If our construction of the Treaty be right, the island of San Juan, with other small islands, will fall to the United States, while, if the British interpretation be adopted, these islands will be on their side of the line. President Buchanan, in his Message to the Senate of February 21, 1861, declared his conviction that the territory thus in dispute "is ours by the Treaty fairly and impartially construed." But the British Government, on their side, insist that it is theirs. The argument on both sides seems to have been exhausted.

Under these circumstances, it appears from the correspondence submitted to the Senate, that General Cass, Secretary of State, by letter of June 25, 1860, to Lord Lyons, the British Minister at Washington, invited the British Government to make a proposition of adjustment. Here are his words:—

"And I have it further in charge to inform your Lordship, that this Government is ready to receive and fairly to consider any proposition which the British Government may be disposed to make for a mutually acceptable adjustment, with an earnest hope that a satisfactory arrangement will speedily put an end to all danger of the recurrence of those grave questions which have more than once threatened to interrupt that good understanding which both countries have so many powerful motives to maintain."

The reply of the British Government to this invitation was communicated by Lord Lyons, in a letter to General Cass, dated December 10, 1860, in the course of which he uses the following language.

“In reference to the line of the water boundary intended by the Treaty, with respect to which also her Majesty’s Government have been invited by the United States Government to make a proposition for its adjustment, I am instructed to inform you that her Majesty’s Government are glad to reciprocate the friendly sentiments expressed in your note of the 25th of June, and will not hesitate to respond to the invitation which has been made to them.

“It appears to her Majesty’s Government that the argument on both sides being nearly exhausted, and neither party having succeeded in producing conviction on the other, the question can only be settled by arbitration.”

Lord Lyons then proceeds to details connected with the offered arbitration, and, in behalf of his Government, proposes that the King of the Netherlands, or the King of Sweden and Norway, or the President of the Federal Council of Switzerland should be invited to be arbiter.

Upon these facts the President submits to the consideration of the Senate the following interrogatories.

“Will the Senate approve a Treaty referring to either of the sovereign powers above named the dispute now existing between the Governments of the United States and Great Britain concerning the boundary line between Vancouver’s Island and the American continent?

“In case the referee shall find himself unable to decide where the line is by the description of it in the Treaty of June 15, 1846, shall he be authorized to establish a line according to the Treaty as nearly as possible?

“Which of the three powers named by Great Britain as an arbiter shall be chosen by the United States?”

The Committee, in conclusion, recommend to the Senate the adoption of the following Resolution.

“*Resolved*, That, in pursuance of the Message of the President of the 16th instant, the Senate advises a reference of the existing dispute between the Government of the United States and the Government of Great Britain, concerning the boundary line which separates Vancouver’s Island and the American continent, to the arbitration of a friendly power, with authority to determine the line according to the provisions of the Treaty of 15th June, 1846, but without authority to establish any line other than that provided for in the Treaty.

“And of the three powers named by Great Britain, the Senate advises that the Republic of Switzerland be chosen by the United States as arbiter.”

On two different days the Senate proceeded with this resolution, when, March 27, 1861, the day before the close of the Session, it was ordered that its further consideration be postponed to the second Monday of December next. This was done on the suggestion that the time was not propitious for the arbitration of a disputed boundary line. April 12, Fort Sumter was bombarded.

A difference between the resolution of Mr. Mason and that of Mr. Sumner will be noted. The former declared that the umpire “should, if practicable, determine said boundary as the same is prescribed in the Treaty aforesaid; or if that be not practicable, then that he be authorized to establish a boundary, *conforming as nearly as may be to that provided by said Treaty.*” The latter resolution declared, that the arbiter should have “authority to determine the line according to the provisions of the Treaty of 15th June, 1846, *but without authority to establish any line other than that provided for in the Treaty.*” The obvious purpose was to prevent a compromise line. This same purpose appears in the terms of the Treaty between the United States and Great Britain, signed at Washington, May 8, 1871, where, after mentioning the Article of the original Treaty under which the question arose, it is declared, that, “whereas the Government of her Britannic Majesty claims that such boundary line should, under the terms of the Treaty above recited, be run through the Rosario Straits, and the Government of the United States claims that it should be run through the Canal de Haro, it is agreed that the respective claims of the Government of the United States and of the Government of her Britannic Majesty shall be submitted to the arbitration and award of his Majesty the Emperor of Germany, who, having regard to the abovementioned Article of the said Treaty, shall decide thereupon, finally, and without appeal, *which of these claims is most in accordance with the true interpretation of the Treaty of June 15, 1846.*” This provision follows substantially the early resolution of Mr. Sumner.

BEGINNING OF THE CONFLICT.

SPEECH BEFORE THE THIRD MASSACHUSETTS RIFLES, IN THE ARMORY AT NEW YORK, APRIL 21, 1861.



After adjournment of the Senate, Mr. Sumner remained for some time in Washington, as was his habit. Meanwhile occurred the bombardment of Fort Sumter, and the President's Proclamation, calling for seventy-five thousand men to suppress insurrectionary combinations, "and to cause the laws to be duly executed." On the afternoon of 18th April, 1861, amidst the general commotion, he left on his way to Boston, stopping over night at Baltimore, where an incident occurred, which, besides illustrating the state of the country, helps to explain the brief speech which follows.

On arrival by the train, Mr. Sumner drove at once to Barnum's Hotel, where he entered his name in the open book. Taking a walk before dark in the principal street, he was recognized by excited persons, whose manner and language went beyond any ordinary occasion.^[142] Early in the evening he called on a family friend, with whom he took tea, surrounded by her children. Leaving her house about nine o'clock, he walked slowly back to the hotel. When descending Fayette Street by its side, he could not but observe an enormous assemblage of people, with very little apparent government, in the open square at the foot of the street. Entering the private door, which was at some distance from the riotous crowd, he came upon a gentleman, who, addressing him by name, expressed surprise at seeing him there, saying, "That mob in the square is after you. Their leaders have been to the hotel and demanded you. They were told that you were out,—that nobody knew where you were, and that you had probably left town"; and he wound up by insisting that it was not safe for Mr. Sumner to continue at the hotel, or anywhere in town, if his place of stopping were known. Without reply to this notice, Mr. Sumner walked down the long corridor of the hotel, and, turning into the office, asked for his key. At once Mr. Barnum, with one of his assistants, took him into a small back room, where they explained the condition of things, narrated the visit of the leaders, and the answer they were able to give, by which the mob were turned aside; but this temporary relief left them still anxious, especially if Mr. Sumner's return should be suspected, and therefore they must request him to leave the hotel; and this was enforced by saying that his longer stay was perilous to the hotel as well as to himself, and that he must find shelter somewhere else. Mr. Sumner, while declaring his sincere regret that he should be the innocent occasion of peril to the hotel, said that there was nowhere else for him to go,—that he had no right to carry peril to the house of a friend,—that it was impossible for him to do this,—that he had come to the hotel as a traveller, and he must claim his rights, believing that in so large a structure there was more safety than in a private house, even if there were any such where he could go. The interview ended in conducting him to a chamber on a long entry of the third story, where all the rooms were alike, when, after saying that nobody in the hotel but themselves would know where he was, they left him alone. From the window which opened on the street at the side of the hotel, he could see the swaying multitude, and hear their voices. In the gray of the morning he left for the Philadelphia Railroad.^[143]

On the way to Philadelphia, he met a long train for Baltimore, containing the Sixth Regiment of Massachusetts Volunteers, hurrying to the defence of the national capital. It was the first regiment of volunteers he had seen, and he was struck by the gayety of soldier life, which overflowed as the train

passed. On his arrival at Philadelphia, the telegraph was announcing the tragedy which had befallen them.

The troops were passing through Baltimore from the Philadelphia station, in the large horse-cars, and a portion had arrived at the Washington station, when those behind were set upon by a mob, the successor of that at the hotel on the preceding evening. Before they could leave the station, the streets were barricaded, and the rails removed, so that they were obliged to make their way on foot, amidst the growing fury of the mob, which had increased to ten thousand. Stones, bricks, and other murderous missiles were thrown at them. Then came pistol-shots. As the soldiers saw their comrades fall, they fired. Several of the assailants dropped upon the pavements, and others were wounded. And so for two miles they fought their way to the Washington station. Of the troops, four were killed, and thirty-six wounded. That evening the regiment quartered at Washington, in the Senate Chamber. ^[144] Thus, on the 19th of April, 1861, began and closed the first encounter of the terrible war at hand.

The mob now reigned in Baltimore. Gun-shops were plundered. Other shops were closed. The President was notified that no more troops could pass through the city, unless they fought their way. That night the bridges on the railroad to Philadelphia were burnt, so that this great avenue was closed. ^[145]

On the 21st of April, the Third Battalion of Massachusetts Rifles, with Hon. Charles Devens as Major, consisting of two hundred and sixty-six men, arrived at New York from Worcester, on their way to the scene of action, and quartered in the armory of the famous New York Seventh, which had left on the preceding afternoon. On a visit to the armory by Mr. Sumner, the Battalion was called into line, and he made the following remarks.

MAJOR DEVENS, SOLDIERS, AND FELLOW-CITIZENS OF MASSACHUSETTS:—

Being in New York, on my way home from Washington to our beloved Massachusetts, and learning that you also were here on your way to duty, I have called, that I might have the privilege of looking upon your faces. [*Cheers.*] Your commanding officer, whom I have known long in other walks of life, does me the honor of inviting me to say a few words. If I have yielded, it is because he is irresistible, for I feel in my soul that action, and not speech, is needed now. [*Cheers.*] Elsewhere it has been my part to speak. It is your part now to act. [*Applause.*] Nor do I doubt that you will act as becomes the Commonwealth that has committed to you her name. [*Cheers.*]

I cannot see before me so large a number of the sons of Massachusetts, already moving to the scene of trial, without feeling anew the loss we have just encountered: I allude to the death, at Baltimore, of devoted fellow-

citizens, who had sprung forward so promptly at the call of country. As I heard that they had fallen, my soul was touched. And yet, when I thought of the cause for which they met death, I said to myself, that, for the sake of Massachusetts, ay, and for their own sake, I would not have it otherwise. [*Enthusiastic applause.*] They have died well, for they died at the post of duty, and so dying have become an example and a name in history, while Massachusetts, that sent them forth, adds new memories to a day already famous in her calendar, and links the present with the past. It was on the 19th of April that they died, and their blood was the first offering of patriotism in the great cause which snatched them from the avocations of peace. Thus have they passed at once into companionship with those forefathers who on the 19th of April, 1775, made also the offering of their blood. [*Loud cheers.*] Lexington is not alone. As on that historic field, Massachusetts blood is again the first to be spilled, and in a conflict which is but a continuation of the other; and these dying volunteers have placed Massachusetts once more foremost, as on that morning which heralded Independence. [*Cheers.*] Therefore I would not have it otherwise. [*Cheers.*] Nor do I doubt that the day we now deplore will be followed, as was that earlier day, by certain triumph. [*Cheers.*]

Those other times, when our forefathers struggled for Independence against the British power, were often said “to try men’s souls”; and these words are yet repeated to depict those trials. But, witnessing the willingness and alacrity with which patriot citizens now offer themselves for country, and to die, if need be, I look in vain for signs that souls are tried. [*Cheers.*] And yet I cannot disguise from you, soldiers, that there are hardships and perils in your path. But what is victory, unless through hardship and peril? [*Cheers.*] Be brave, then, and do the duty to which you are called; and if you need any watchword, let it be, *Massachusetts*, *THE CONSTITUTION*, and *FREEDOM*! [*Loud applause from the soldiers.*]

On the same evening, the Battalion embarked on board the transport “Ariel” for Annapolis, where it arrived on the morning of April 24th, and on the 2d of May was transferred to Fort McHenry, in the harbor of Baltimore. There it remained to the end of its term of service.

PASSPORTS FOR COLORED CITIZENS.

NOTE TO THE SECRETARY OF STATE, JUNE 27, 1861.

The question of Passports for Colored Citizens was embarrassed by the Dred Scott decision, and the usage of the State Department, refusing to recognize colored persons as citizens. The position of the latter was set forth in a letter of Mr. Thomas, Assistant Secretary, communicating the judgment of Mr. Marcy, Secretary of State.

“DEPARTMENT OF STATE, WASHINGTON, November 4, 1856.

“Your letters of the 29th ult. and 3d inst., requesting passports for eleven colored persons, have been received, and I am directed by the Secretary to inform you that the papers transmitted by you do not warrant the Department in complying with your request. The question whether free negroes are citizens is not now presented for the first time, but has repeatedly arisen in the administration of both the National and State governments. In 1821 a controversy arose as to whether free persons of color were citizens of the United States, within the intent and meaning of the Acts of Congress regulating foreign and coasting trade, so as to be qualified to command vessels, and Wirt, Attorney-General, decided that they were not, and he moreover held that the words ‘citizens of the United States’ were used in the Acts of Congress in the same sense as in the Constitution. This view is also fully sustained in a recent opinion of the present Attorney-General.

“The judicial decisions of the country are to the same effect.... Such being the construction of the Constitution in regard to free persons of color, it is conceived that they cannot be regarded, when beyond the jurisdiction of this Government, as entitled to the full rights of citizens; but the Secretary directs me to say, that, though the Department could not certify that such persons are citizens of the United States, yet, if satisfied of the truth of the facts, it would give a certificate that they were born in the United States, are free, and that the Government thereof would regard it to be its duty to protect them, if wronged by a foreign government while within its jurisdiction for a legal and proper purpose.”^[146]

Amidst the general anxieties of the time this important question was presented for revision. A colored youth of Boston, son of Robert Morris, Esq., a practitioner in the courts of Massachusetts, unable to obtain a college education at home, proposed to seek it in France, where there was no exclusion on account of color, and Mr. Sumner, in a written communication to the Secretary of State, requested a passport for him, at the same time inclosing the description of his person duly authenticated, in which his complexion was said to be “colored” and his hair “short and curly.” There being some delay, Mr. Sumner called at the Department to urge personally his formal application. Mr. Seward did not like to issue a passport on the description furnished, but at the same time would furnish a passport to Mr. Sumner for anybody whom he certified to be a citizen, without description.

The authenticated description was then returned, and Mr. Sumner, at Mr. Seward's own desk, and on the ordinary despatch paper of the Department, wrote at once the following.

WASHINGTON, 27 June, '61.

S IR,—Please send me a passport for Robert Morris, Jr., of Boston, a citizen of the United States.

Faithfully yours,

CHARLES SUMNER.

THE SECRETARY OF STATE.

The passport was duly issued, bearing date June 29, 1861, and Mr. Sumner's note was filed in the Passport Bureau, being the only paper in the case.

The opinion of the Attorney-General, affirming the citizenship of colored freemen, November 29, 1862,^[147] settled this question definitively.

OBJECT OF THE WAR.

PROCEEDINGS IN THE SENATE, ON THE CRITTENDEN RESOLUTION DECLARING THE OBJECT OF THE WAR, JULY 24 AND 25, 1861.



July 4th, 1861, Congress met in extraordinary session, at the call of the President, to make provision for the welfare of the country, and especially for the prosecution of the war. Meanwhile, Mr. Crittenden, so famous for his attempt at Compromise, had ceased to be a Senator, but he had become a member of the other House. Here he introduced a resolution, declaring the object of the war, which was adopted by the House with only two dissenting votes.

July 24, the same resolution, in nearly the same words, was introduced into the Senate by Hon. Andrew Johnson, of Tennessee, afterwards President, who pressed a vote at once, even without having it printed. On Mr. Sumner's objection it was postponed. His few words in making this objection have significance, as showing his feeling towards Mr. Johnson at that time, and also his unwillingness that the Senate should commit itself hastily to a proposition which, under the name of the "Crittenden Resolution," was destined to play an important part.

Mr. Sumner said:—

I am unwilling to stand in the way of any desire of the Senator from Tennessee [Mr. ANDREW JOHNSON]. I hesitate, therefore, to use the privilege, under the rules, of objecting to a resolution on the day of its introduction; but I do think, in view of its importance, that it ought at least to be printed, so that we may have an opportunity of reading it carefully and considering it well, before we act upon it. Therefore I object to its consideration at this time. I wish the Senator to understand that it is with great respect for himself, and with a desire to do really what the occasion, as I think, requires. I hope the Senator himself will consent that it lie on the table and be printed.

Mr. Johnson said that he would not object, and the resolution was ordered to be printed, as follows.

"Resolved,—That the present deplorable civil war has been forced upon the country by the disunionists of the Southern States, now in revolt against the Constitutional Government, and in arms around the capital; that in this national emergency, Congress, banishing all feeling of mere passion or resentment, will recollect only its duty to the whole country; that this war is not prosecuted upon our part in any spirit of oppression, nor for any purpose of conquest or subjugation, nor for the purpose of overthrowing or interfering with the rights or established institutions of those States, but to defend and maintain the supremacy

of the Constitution, and all laws made in pursuance thereof, and to preserve the Union, with all the dignity, equality, and rights of the several States unimpaired; that as soon as these objects are accomplished, the war ought to cease.”

The next day the resolution was taken up, on motion of Mr. Johnson. Mr. Trumbull objected to the allegation in it that the disunionists were “in arms around the capital,” which in his opinion was not true; and he added, that, in his opinion, the revolt was occasioned by people who are not here or in this vicinity: it was started in South Carolina. He objected also to the clause that the war was “not prosecuted for any purpose of conquest or subjugation,”—on which he said, “I trust this war is prosecuted for the purpose of subjugating all rebels and traitors who are in arms against the Government.” For these reasons he voted in the negative. Every other Republican present voted in the affirmative, except Mr. Sumner, who declined to vote. His name does not appear in the record.

This resolution was general in terms, but specious. Though not mentioning Slavery expressly, or interfering with the requirement of military necessity, it was considered at the time as a safeguard of Slavery, even to the Fugitive Slave Bill itself, which was included under the words, “the supremacy of the Constitution, and all laws made in pursuance thereof.” Nor could it be forgotten that it was first brought forward by the same person who, during the previous winter, as Senator from Kentucky, had most pertinaciously urged an odious compromise, by which Slavery was to be intrenched in the Constitution, and made dominant in the National Government. Mr. Sumner, always sensitive to any recognition of Slavery, saw in it an effort to commit Congress the wrong way, so that inaction on Slavery should be the policy of the war, when, to his mind, the sooner Slavery was attacked, the better. His objection to the resolution was radical; but, unwilling to separate openly from political associates, anxious also with regard to the President, who held back, and hoping that time would bring general concurrence in striking at Slavery, he was silent, and contented himself by withholding his vote, so that he was not committed to the resolution in any respect.

This statement is made to explain the progress of events, and also because Mr. Sumner’s course was the occasion of comment, and even of hostile criticism, at the time.

SYMPATHIES OF THE CIVILIZED WORLD NOT TO BE REPELLED.

SPEECH IN THE SENATE, AGAINST INCREASE OF TEN PER CENT ON ALL FOREIGN
DUTIES, JULY 29, 1861.

In the consideration of the Tariff Bill at this session, Mr. Sumner differed from friends on some of the points involved. One of these differences occurred on his motion, July 29, 1861, to strike out the following clause:—

“That, in addition to the duties now imposed by law on goods, wares, and merchandise not enumerated in the foregoing section, and on all goods not herein otherwise provided for, hereafter imported from foreign countries, there shall be levied, collected, and paid *a duty of ten per centum ad valorem, to include all merchandise subject to or exempt from duty by former laws.*”

On this motion he spoke as follows.

MR. PRESIDENT,—I think we had better take a vote on the simple proposition, because in that way we shall arrive at the precise wishes of the Senate. I therefore move to strike out the words just read; and if I can have the attention of the Senate for two minutes, I think I can explain why they should be stricken out.

It will be remembered that in the latter days of the last session a new tariff was adopted; but, owing to the disturbed state of the country, and the impediments to commerce, it is not too much to say that we have no present experience of its operation. We do not know to what extent it will supply revenue. While thus ignorant of its operation, it is proposed to make an important change, being nothing less than to pile another story upon what is already criticised as too high. In addition to all existing duties, we are asked to impose a further duty of ten per cent. In the present exigencies of the country, if there were reasonable assurance that out of such extraordinary tax the revenue would be advanced, I should have nothing to say against it,—on the contrary, I should hold up both hands for it; but, so far as I am informed,—and I have taken pains to inform myself,—there is no

reasonable ground to believe that the addition of ten per cent extra upon present duties would yield any additional revenue.

MR. POLK. If the Senator will allow me to interrupt him——

MR. SUMNER. Certainly.

MR. POLK. I will ask if the result of his investigations is not that the addition of ten per cent would actually decrease the revenue?

MR. SUMNER. The Senator properly directs attention to an important point. I said there was no reasonable assurance that there would be an increase of revenue. I believe that I may go further, as the Senator has suggested, and say that a tariff so far prohibitory will actually diminish instead of increasing revenue. Where then will be your revenue? Revenue comes from commerce, and is just in proportion to the extent of commerce; but if you make commerce impossible, where is your revenue? You kill the bird that lays the golden egg.

There is a pleasant story, which I remember to have heard, of a shopkeeper who once announced to his friends that before breakfast he had increased his fortune by ten per cent; but, on inquiry, it was ascertained that he had merely marked his goods on hand at an increased price of ten per cent, and that was his boasted increase. I much fear that this additional ten per cent will be equally vain for the increase of our national revenue.

But, Mr. President, while the advantages of this proposed increase are all uncertain, there are disadvantages that are certain. It will add to the bad name which, unhappily, the tariff of the last session has already with those disposed to criticise it, and especially with foreign countries. At this moment, when every suggestion of prudence dictates that in our relations with foreign countries we should be governed by a supreme policy of moderation, conciliation, and good-will, you propose to take a step which, to say the least of it, will be regarded as indicative of hostility or of indifference. Now, whatever may be the sentiments and the feelings of European Governments with regard to us, it is perfectly clear that the laboring classes of Europe do sympathize with us in our present struggle; and all those sympathies you turn aside, when you impose prohibitory duties which cut off a market for their labor. I am therefore, Mr. President, opposed to this increase on two positive grounds: first, because its advantages are uncertain; secondly, because its disadvantages are certain.

Mr. Fessenden replied, saying, among other things,—

“I am very glad that the Senator has made the remarks he has, and I desire to say a few words in reply, more particularly to the last portion of his speech. As Chairman of the Committee on Foreign Relations, it being his duty to keep on the best possible terms with all foreign powers, he had a right, perhaps, to say what he has said; but, after all, that is not the question. I would suggest to the honorable Senator, that there is something else to be considered, at the present time, besides the good or bad opinion which certain foreign ministers and others may have of our domestic policy.”

Then again:—

“Now the Senator says: ‘Be careful how you lay these duties on, because foreign countries will be offended at us.’ What right has a foreign country to make any question about what we choose to do with reference to these matters, —to say, when we are in a state of war, and struggling for national existence even, that we shall not impose duties which are necessary to enable us to prosecute that war, because, forsooth, it may affect the interests of foreign gentlemen?”

Here Mr. Sumner interposed:—

I know the Senator does not intend to misstate my argument. I assumed that there would be no increase of revenue from this additional ten per cent, —at least, that the advantages of the increase were uncertain, doubtful; and then that it was very certain there would be disadvantages.

Mr. Fessenden continued at some length, and with much earnestness said:—

“I have heard this argument adduced out of doors, and this talk about how foreign powers might feel respecting the duties we choose to impose upon articles imported into this country. Why, Sir, I say the argument is nothing less than an insult.... I say, therefore, that no people have a right to be offended with us for acting according to our own views of our own interests. They would not have it in time of peace, and much less could they have it in time of war.”

Mr. Sumner restated his position.

MR. PRESIDENT,—The Senator and myself are perfectly agreed in our main object. Here there is no difference between us. Each desires to secure the largest revenue. For myself, I know no bounds to this desire. The simple question is, How will this be best accomplished? The Senator puts forward the proposition to increase by ten per cent all existing duties, and he does this while still ignorant of the actual working of the tariff established in March. To our inexperience with regard to that tariff he would add further inexperience with regard to the effect of the proposed increase. Now this may be good policy; but it does not seem so to me. The commerce of the

country cannot bear such constant change, especially in the direction proposed. The revenue will not gain by it.

For good or for evil, what is familiarly known as the “Morrill Tariff” has been adopted. The commerce of the country has taken note of its requisitions, and is now ready to govern itself accordingly. And it seems to me that the House of Representatives acted wisely, in seeking to increase the revenue by duties on selected articles, which it was thought could bear the tax, rather than by wholesale change, which must cause the whole system to be remodelled. In this respect the House bill has an advantage over that brought forward by the Senator from Rhode Island [Mr. SIMMONS] and maintained so zealously by the Senator from Maine [Mr. FESSENDEN].

But the Senator from Maine says he is unwilling to hearken to suggestions from foreign nations.

MR. FESSENDEN. Not at all. I said no such thing as that. I am perfectly willing to hearken to all suggestions, if they are respectfully made, and do not assume a right to dictate to us.

MR. SUMNER. Pray, who has dictated to us, or who assumes any such right? And as to suggestions, which the Senator says he welcomes, I am not aware that any foreign nation, or any person representing any foreign nation, has made even a suggestion that could come within the criticism, swift as it is, of the Senator. Nor, indeed, am I aware of any suggestion in any form to this body. Surely the Senator is mistaken. He must in his imagination exaggerate something that he has heard; or perhaps he misinterprets something that fell from myself.

Let me not be misunderstood. I have said that this ten per cent proposition, if adopted, will give your tariff a bad name among those who are disposed to criticise it, and especially with foreign countries. Was I not right? Is it not true? Willingly I take the censure of the Senator, while I strive at this moment to secure for my country sympathy from every quarter, even from foreign nations; nor shall I be disturbed by anything which fell from the Senator. I am accustomed to criticism in this body. And I beg to say that I shrink from no responsibility which belongs to my position. If duty requires that foreign nations should be encountered by a policy harassing to their industry, I shall take my full share of this grave responsibility; but until I see the path of duty in that direction, I hope that I

may be pardoned, if I prefer a policy doubly commended as most beneficial to us and least hurtful to them.

I am unwilling that my country at this moment should pursue a shadow, and in the end find that it has gained nothing but ill-will. Strong as we are, we cannot afford to augment the odium created by our late tariff. Better husband our resources,—among which I place the sympathies of the civilized world, and of those laboring classes whose industry must suffer by your act, without, I fear, any corresponding benefit to us.

The amendment of Mr. Sumner was lost.

EMANCIPATION OUR BEST WEAPON.



SPEECH BEFORE THE REPUBLICAN STATE CONVENTION AT WORCESTER, MASSACHUSETTS, OCTOBER 1, 1861. WITH APPENDIX.



Therefore take heed ...
How you awake *the sleeping sword of war*:
We charge you, in the name of God, take heed!

SHAKESPEARE, *King Henry V.*, Act I. Scene 2.



So speak ye, and so do, as they that shall be judged by the LAW OF LIBERTY.—
Epistle of James, ii. 12.



This speech, at the time of its delivery, was entitled in some quarters “Emancipation the Cure of the Rebellion,” which certainly showed an appreciation of its meaning. In the pamphlet edition another title was adopted, argumentative in form, and intended to suggest the same conclusion, —“Union and Peace, how they shall be restored.” It was made at the annual State Convention of the Republican party of Massachusetts.

The Convention was called to order by Hon. William Claflin, Chairman of the Republican State Committee. Its permanent organization was as follows.

President,—Hon. Henry L. Dawes, of North Adams.

Vice-Presidents,—Richard Libbey of Wellfleet, James H. Mitchell of East Bridgewater, Joseph N. Bacon of Newton, Albert J. Wright of Boston, Nehemiah Boynton of Chelsea, John S. E. Rogers of Gloucester, Gerry W. Cochrane of Methuen, N. C. Munson of Shirley, Giles H. Whitney of Winchendon, J. H. Butler of Northampton, Joel Hayden of Haydensville, by districts; with Robert M. Hooper of Boston, Oliver Ames, Jr., of Easton, Alexander DeWitt of Oxford, Hapgood Swift of Lowell, Freeman Walker of North Brookfield, Marshall P. Wilder of Dorchester, Clement Willis of Boston, Lorenzo Sabine of Roxbury, Thomas Tucker of Worcester, Francis H. Fay of Lancaster, Columbus Tyler of Somerville, George Washington Warren of Charlestown, Linus Beck of Boston, Charles O. Rogers of Boston, H. B. Staples of Milford, Orlando Burt of Sandisfield, Francis Coggsell of Andover, at large.

Secretaries,—S. N. Stockwell of Boston, J. E. Tucker of Worcester, N. A. Horton of Salem, Z. E. Stowe of Lowell, George S. Merrill of Lawrence, Joseph B. Thaxter of Hingham, Samuel B. Noyes of Canton, William S. Robinson of Malden, Charles A. Chase of Boston, L. H. Bradford of Fitchburg, William Martin of North Adams, Gardner M. Fiske of Palmer, William W. Clapp, Jr., of Boston.

The President, on being conducted to the chair, made a speech, in which he said:—

“Since last assembled here for a kindred purpose, the mighty march of events has borne the popular efforts on to a higher plane than ever before opened to the gaze of man.... Massachusetts cannot, if she would, and, thank God, she would not, if she could, perform an indifferent part in this life struggle of the Republic. She makes no boast over her sister States, but the great Disposer and Adjuster of events has placed her in the forefront rank, in this great battle for the integrity of the nation and the existence of free institutions, and she accepts her place with alacrity.”

Immediately after this speech, John A. Andrew was unanimously and by acclamation renominated as candidate for Governor, being his second nomination for that post. The committees of the Convention having been appointed, there was an adjournment till afternoon.

In the afternoon, the resolutions of the Committee, seven in number, were reported by George S. Hale, of Boston, and at once laid upon the table, on motion of Edward L. Pierce, of Milton, in order to give an opportunity for Mr. Sumner to address the Convention. A report says:—

“Hon. Charles Sumner came on the platform about this time, and his presence was acknowledged with great applause. The President introduced him to the Convention, and he made a speech about an hour long.”

“Great enthusiasm” and “warm cheers” are the terms of other reports with regard to his reception. These are mentioned because the sentiments of the audience were represented afterwards as adverse. The pamphlet report says:—

“Upon the appearance of Mr. Sumner on the platform, he was most cordially greeted by the whole Convention and the large audience in the galleries. Hon. H. L. Dawes, President of the Convention, introduced him in a few felicitous words, whereupon the warm applause of the vast assembly burst forth again with great enthusiasm, ending with three rousing cheers.”

At the conclusion of Mr. Sumner’s speech, a motion was made to take the resolutions of the Committee from the table, when Rev. James Freeman Clarke, the Liberal preacher and sincere reformer, appeared on the platform, and after a few remarks offered the following resolutions.

“*Resolved*, That, while the people of Massachusetts have confidence in the wisdom of the National Administration, and are ready hereafter, as hitherto, to give their blood and their treasure in answer to its call, yet, believing that Slavery is the root and cause of this Rebellion, they will rejoice when the time shall come, in the wisdom of the Government, to remove this radical source of our present evils.

“*Resolved*, That, when the proper time shall arrive, the people of Massachusetts will welcome any act, under the war power of the Commander-in-Chief, which shall declare all the slaves within the lines of our armies to be free, and accept their services in defence of the Union,—compensating all loyal owners for slaves thus emancipated, and thus carrying liberty for all human beings wherever the Stars and Stripes shall float.”

There was no direct vote on these resolutions, but authentic accounts at the time enable us to trace their fortune.

They were at once opposed by George S. Hale, the reporter of the Committee's resolutions, and by Artemas Lee of Templeton, "declaring that they were calculated to weaken the Administration in Kentucky." Not being moved as an amendment to the other resolutions, the first question was on the adoption of the latter, which were carried. Pending the question on Mr. Clarke's resolutions, the Committee to nominate Lieutenant-Governor, Secretary of the Commonwealth, Attorney-General, Treasurer and Receiver-General, and Auditor, made their report, which superseded the other question, and caused an irritating and personal discussion. When the nominations were completed, it had become late, and many had already left by the trains, among them Mr. Sumner; but Mr. Clarke moved to take his resolutions from the table, when, according to the report, "a member in front of the chair moved to adjourn, and that motion, being first in order, was put and carried, with but few dissenting votes." It was supposed by many, that, had a vote been taken on these resolutions while the Convention was full, they would have been adopted.

In the disposition to weaken the speech of Mr. Sumner, it was charged at the time that he spoke without official invitation,—which was contrary to the fact. Some time in advance of the Convention, Mr. Claflin, Chairman of the State Committee, called on Mr. Sumner and invited him to address it, urging him strongly; and when the latter said that he could not consent, without declaring the duty of Emancipation, and freeing his mind on this all-important subject, Mr. Claflin insisted that he should do so, and Mr. Sumner promised to speak. At another call Mr. Sumner read to Mr. Claflin a sketch of what he proposed to say, adding that he would not speak except with the approval of Mr. Claflin, when the latter declared his entire agreement with Mr. Sumner, and insisted that the speech should be made.

An account of the contemporaneous discussion, whether of criticism or sympathy, will be found in the Appendix.

SPEECH.

FELLOW-CITIZENS,—In meeting fellow-citizens of Massachusetts, who have come together from all parts of the Commonwealth, I find myself in a familiar scene, but plainly things are changed. Yes, there is a great change, and it is manifest in our Convention.

No longer are we met, as so often in times past, on questions of controversy, or to sustain our cause by argument. That hour has passed. Formerly I have exhibited to you the atrocities of the Fugitive Slave Bill; I have rejoiced to show that Freedom was National and Slavery Sectional; I have striven to prevent the spread of Slavery in the Territories; I have vindicated especially Freedom in Kansas, assailed by slaveholding conspirators; I have exposed the tyrannical usurpations of the Slave Oligarchy; and I have dragged into light the huge and hideous Barbarism of

Slavery. [*Applause.*] But these topics have passed into history, and are no longer of practical interest. They are not of to-day.

Let us rejoice that at least so much is gained, and from the extent of present triumph take hope and courage for the future. Providence will be with the good cause in times to come, as in times past. Others may despair; I do not. Others may see gloom; I cannot. Others may hesitate; I will not. [*Applause.*] Already is the nation saved. Great as seems the present peril, there was peril greater far, while it was sinking year after year under the rule of Slavery. How often have I exclaimed, in times past, that our foremost object was the Emancipation of the National Government, so that no longer should it be the slave of Slavery, ready to do its bidding in all things! But this surpassing victory has been won. It was won first by the ballot-box, when Abraham Lincoln was elected President of the United States [*applause*]; and it was won the second time by the cartridge-box, when, at the command of the President, the guns of Fort Sumter returned defiance to the Rebel artillery. [*Three cheers.*] Such is the madness of Slavery that the first was not enough; unhappily, the second was needed to complete the work.

God be praised, much is already done. The Slave Oligarchy, which, according to vaunt of a slaveholding Senator, has ruled the Republic for more than fifty years,—which has stamped its degrading character upon the national forehead,—which has entered into and possessed not only the politics, but the literature, and even the religion of the land,—which has embroiled us at home, and given us a bad name abroad,—which has wielded at will President, Cabinet, and even judicial tribunals,—which has superseded Public Opinion by substituting its own immoral behests,—which has appropriated to itself the offices and honors of the Republic,—which has established Slavery as the single test and shibboleth of favor,—which, after opening all our Territories to this wrong, was already promising to renew the Slave-Trade and its unutterable woes,—nay, more, which, in the instinct of that tyranny through which it ruled, was beating down all safeguard of human rights, freedom of speech, freedom of the press, security of person, and delivering the whole country to a sway whose vulgarity was second only to its madness,—this domineering Slave Oligarchy is dislodged from the National Government, never more to

return. [*Immense sensation.*] Thus far, at least, has Emancipation prevailed. *The greatest slave of all is free.*

If at any moment we are disposed to be disheartened, if the Future is not always clear before us, we may find ample motive for joy in the victory already achieved. Pillars greater than those of Hercules might fitly mark this progress.

Among the obvious results of such victory is one to be enjoyed especially on this occasion. It is Slavery which has been the origin of our party divisions, keeping men asunder who ought to act together. But with the expulsion of this disturber the apology for difference ceases. All patriots, all who truly love their country, may now act together,—no matter in what party combination they have appeared, no matter of what accent the speech by which their present duties are declared. Call them Democrats, Union men, natives, or foreigners, what you will, are we not all engaged in a common cause? Nor will I claim as yet the highest praise for those with whom I am most intimately associated. I have read history too well not to remember that faithful allies are sometimes superior even to domestic veterans. Hannibal relied less on his own Carthaginians than on his Spanish infantry and Numidian horse.

The Government is assailed by a rebellion without precedent. Never, since Satan warred upon the Almighty, has rebellion assumed such a front [*applause*], and never before has it begun in such a cause. The Rebels are numerous and powerful, and their cause is Slavery. [*Sensation.*]

It is the very essence of rebellion to be audacious, unhesitating, unscrupulous. Rebellion sticks at nothing,—least of all, rebellion beginning in Slavery. It can be encountered successfully only by vigor and energy surpassing its own. Patriotism as a motive surely is not less potent than Treason. It must be invoked. By all the memories of your fathers, who founded this Republic and delivered to you the precious heritage, by all the sentiments of gratitude for the good you have enjoyed beneath its protecting care, are you summoned to its defence. Defence did I say? With mortification I utter the word; but you all know the truth.

Rebel conspirators have set upon us, and now besiege the National Government. They besiege it at Washington, where are the President and his Cabinet with the national archives. They besiege it at Fortress Monroe on the Atlantic, at St. Louis on the Mississippi, and now they besiege it in Kentucky. Everywhere we are on the defensive. [*Sensation.*] Strongholds are wrested from us. Soldiers gathered under the folds of the national flag are compelled to surrender. Citizens, whose only offence is loyalty, are driven from their homes. Bridges are burned. Railways are disabled. Steamers and ships are seized. The largest navy-yard of the country is appropriated. Commerce is hunted on the sea, and property, wherever it can be reached, ruthlessly robbed or destroyed. Only within a few days we have read the order of one Buckner, Rebel commander in Kentucky, directing the destruction of a most important lock, by which Green River was rendered navigable. Pardon me, if I ask attention to this intercepted order. It is instructive, as showing the spirit with which we have to deal.

“BOWLING GREEN, September 19, 1861.

“Lock No. 1 must be destroyed. I rely upon our friends at Owenboro’ to do it. Not an hour must be lost. The destruction is a great deal to me in crippling our adversary. Assemble our friends, without delay, in sufficient force to accomplish the object. One of the best ways is to open all the gates but one, and to dig down behind the wall at both gates, to put one or two kegs of powder behind the wall, to apply a slow match, and blow the wall into the lock. If possible, it should be done in such a way as to leave a strong current through the lock, which will empty the dam. Provide everything in advance. Do not fail. It is worth an effort.”^[148]

It is still doubtful if the work of destruction was accomplished. But the military order remains. Thus madly was it attempted to sweep away the most valuable of the internal improvements of Kentucky, being part of the pride and wealth of the State.

Do you ask in whose name all this is done? The answer is easy. Not “in the name of God and the Continental Congress,” as Ethan Allen summoned Ticonderoga,—but “in the name of Slavery.” In the name of Slavery, and

nothing else, is all this crime, destruction, and ravage perpetrated; and the work still proceeds.

Look at the war as you will, and you always see Slavery,—as the renowned orator of Rome saw in the evil about him only the great conspirator. Never were his words more applicable: *Nullum facinus exstitit, nisi per te; nullum flagitium sine te*: “No villany but has owed its existence to thee; no shameful thing has been done without thee.”^[149] Slavery is our Catiline, being to this war everything,—inspiration, motive power, end and aim, be-all and end-all. And this brings me to an important statement.

It is often said that war will make an end of Slavery. This is probable. But it is surer still that the overthrow of Slavery will make an end of the war. [*Tumultuous applause and cheers.*]

If I am correct in this averment, which I believe beyond question, then do reason, justice, and policy unite, each and all, in declaring that the war must be brought to bear directly on the grand conspirator and omnipresent enemy. [*Here the vociferous cheers of the Convention interrupted the speaker.*] Not to do so is to take upon ourselves all the weakness of Slavery, while we leave to the Rebels its boasted resources of military strength. [*Cheers.*] Not to do so is to squander life and treasure in a vain masquerade of battle, without practical result. Not to do so is blindly to neglect the plainest dictates of economy, humanity, and common sense,—and, alas! simply to let slip the dogs of war on a mad chase over the land, never to stop until spent with fatigue or sated with slaughter. [*Sensation.*]

Believe me, fellow-citizens, I know all imagined difficulties and unquestioned responsibilities. But, if you are in earnest, the difficulties will at once disappear, and the responsibilities are such as you will gladly bear. This is not the first time that a knot hard to untie was cut by the sword [*cheers*]; and we all know that danger flees before the brave man. Believe that you can, and you can. The will only is needed. Courage now is the highest prudence. [*Applause.*]

It is not necessary even, borrowing a familiar phrase, to carry the war into Africa. It will be enough, if we carry Africa into the war [*here the*

outburst of applause compelled the speaker to suspend his remarks], in any form, any quantity, any way. [*Continued applause.*] The moment this is done, Rebellion will begin its bad luck, and the Union become secure forever. [*Cheers.*]

History teaches by examples. The occasion does not allow me to show how completely this monitor points our duty and certain triumph. I content myself with two instances of special mark,—one from ancient Greece, and the other from ancient Rome.

The most fatal day for ancient Greece was that “dishonest victory” at Chæronea, when Philip of Macedon triumphed over combined forces, in which Demosthenes was enlisted as a soldier. The panic was universal. Athens was thrown into consternation. Her great orator had fought bravely, but ineffectually. Another orator, called by Milton “that old man eloquent,” died suddenly on hearing the report of the defeat. The Book of Fate seemed about to close, while the proud Athenian State sank to be a Macedonian province. Then it was that a patriot orator, Hyperides, launched a proposition to emancipate the slaves. The effect was electric. The royal Philip, already strong in victory, trembled. King and conqueror, he was statesman also, and saw well that such a proposition, begun in Athens, would shake all Greece, even to his powerful throne, which the young Alexander was preparing to mount. His triumphant course was arrested, and peace secured. ^[150]

The other instance is in Roman history. You will find it in Plutarch’s Life of Caius Marius. Six times Consul,—victor over the redoubtable Jugurtha, also over the innumerable Teutones and Cimbri,—hailed as Saviour of Rome, and then, in the terrible vicissitudes of civil feud, driven from his country to find shelter in the ruins of Carthage,—this great general, returning from exile, was able to effect a landing in Italy. The incident is recorded in these words,—and you must acknowledge that such immense military experience gives to the example highest authority:—

“Marius upon this news determined to hasten to Cinna. He took with him some Marusian horse which he had levied in Africa, and a few others that were come to him from Italy, in all not amounting to above a thousand men, and with this

handful began his voyage. He arrived at a port of Tuscany called Telamon, *and as soon as he was landed proclaimed liberty to the slaves.* [Immense applause.] The name of Marius brought down numbers of freemen too, husbandmen, shepherds, and such like, to the shore, the ablest of which he enlisted, and in a short time had a great army on foot, with which he filled forty ships.”^[151]

Thus far Plutarch. It is needless to add that Marius soon found himself master of Rome. [Applause.]

These are historic instances. I do not adduce them for blind acceptance, but simply that you may see how in times past defeat was stayed and victory won by a generous word for Freedom. Men die and disappear; but the Human Family continues the same, in passions and fears, as when Philip was frightened back from Athens, as when Marius was borne in triumph to Rome. [Applause.]

To these great teachers I would add the authority of the ancient Roman Law, and I refer you for it to the common Dictionary of Greek and Roman Antiquities^[152] now used in all our schools. According to that law, the state of Slavery might be terminated in at least three different modes: first, by manumission; secondly, by enactment of reward to the slave; and, thirdly, *by enactment of punishment to the master.* [Great sensation.] If the master failed to be a good citizen, he might be punished, so that he should suffer in property, and at the same time others gain what is more than property,—freedom. But I do not cite even this example of a time-honored jurisprudence for absolute guidance. I will not doubt, that, in the unparalleled circumstances by which we are encompassed, justice will be done.

Already the way is easy. A simple declaration, that all men within the lines of the United States troops are freemen, will be in strict conformity with the Constitution, and also with precedent. The Constitution knows no man as slave. It treats all within its jurisdiction as *persons*, while the exceptional provision for the rendition of *persons* held to service or labor, you will observe, is carefully confined to such as have escaped into another State,—so that in Virginia it cannot require the surrender of a Virginia slave,

nor in Missouri of a Missouri slave. It is clear, therefore, that there is no sanction under the Constitution for turning a national camp into a slave-pen, or for turning military officers into slave-hunters. Let this plain construction be adopted, and then, as our lines advance, Freedom will be established everywhere, and the national flag in its triumphant march will wave with new glory. [*Applause.*]

A brave General whom Massachusetts has given to the country, though commencing his career with prejudices derived from the Proslavery school of politicians, has known how to see this question in its true light: I mean, of course, General Butler. [*Immense cheering, interrupting the speaker for some time.*] He has declared, in a letter to the Secretary of War, dated Fortress Monroe, 30th July, 1861, with reference to fugitive slaves, that it is his duty to “take the same care of these men, women, and children, houseless, homeless, and unprovided for, as he would of the same number of men, women, and children who for their attachment to the Union had been driven or allowed to flee from the Confederate States.”^[153] These words are better for his reputation than a victory. [*Applause and cheers.*] Humanity and wisdom go together, and here we see both.

There is similar and unimpeachable testimony from a succession of Generals, all born, living, and dying in the South: I mean Gaines, Taylor, and Jesup, who, one after another, commanded in that protracted war instigated by the Slave Power against the Seminoles, and waged at such cost of treasure and life. Fugitives from Slavery, known as the Exiles of Florida, found a home among these Indian warriors, and the question arose how they should be treated, being, on a smaller scale, the very question which now occupies us. Major-General Gaines insisted, that, when captured, they were prisoners of war, and, in reply to claimants, he refused to surrender them, somewhat in the temper of Hotspur, even to the extent of denying his prisoners.^[154] Then followed Major-General Taylor, afterwards President, who, in reply to claimants asking him “to turn over certain negroes,” said, “I cannot for a moment consent to meddle with this transaction,”^[155]—thus giving example of just sensibility. At last the Exiles surrendered to Major-General Jesup as freemen. Afterwards, when their condition was in question, the General wrote: “By my Proclamation, and the Convention made with them, when they separated from the Indians and surrendered, *they are free.*” And then again he wrote: “I, as commander of

the army, and in the capacity of representative of my country, solemnly pledged the national faith that they should not be separated, nor any of them sold to white men or others, but be allowed to settle and remain in separate villages, *under the protection of the United States.*”^[156] Thus apparent, from beginning to end, are obligations to fugitives from bondage, while by concurring and consecutive authority that principle is established under which the camp becomes a refuge against Slavery.

This conclusion is reinforced by language attributed to General Gaines, and extensively published in the newspapers. “The military officer can enter into no judicial examination of the claim of one man to the bone and muscle of another as property. Nor could he as a military officer know what the laws of Florida were, while engaged in maintaining the Federal Government by force of arms. In such case he could only be guided by the Laws of War; and whatever may be the laws of any State, they must yield to the safety of the Federal Government.” Nothing can be clearer, stronger, or more to the point.

Thus have we example in the past as in the present, and from military quarters, pointing to a rule, which, though of seeming simplicity, would be of incalculable efficacy, if honestly and sincerely enforced. Then would our camps become nurseries of freemen, and every common soldier a chain-breaker, while Slavery shrunk out of sight.

There is a higher agency that may be invoked, which is at the same time under the Constitution and above the Constitution: I mean Martial Law in its plenitude, and declared by solemn Proclamation. It is under the Constitution, because the War Power to which it belongs is positively recognized by the Constitution. It is above the Constitution, because, when set in motion, like necessity, it knows no other law. For the time it is Law and Constitution. The civil power, in mass and detail, is superseded, and all rights are subordinate to this military magistracy. Other agencies, small and great, executive, legislative, and even judicial, are absorbed in a transcendent triune power, which, for the time, declares its absolute will, while holding alike the scales of justice and the sword of the executioner. The existence of this power nobody questions. If rarely exercised in our

country, and never largely, the power is none the less fixed in our political system. As well strike out the kindred law of self-defence, belonging to states as to individuals. Martial Law is only a form of self-defence.

That this law might be employed against Slavery, without impediment from State Rights, was first proclaimed in the House of Representatives by a Massachusetts statesman, who was a champion of Freedom, John Quincy Adams. [*Applause.*] His authority is such that I content myself with the sanction of his name, which becomes more commanding when we consider the circumstances under which he first put forth this great rule, then repeated it, and then again most defiantly vindicated it.

Student of history, and of Public Law in all its forms, from earliest youth, under the teaching of his father, counsellor-at-law, Senator of the United States, Minister at foreign courts, including Holland, Prussia, Russia, England, negotiator of Peace at Ghent, then Secretary of State and President, this illustrious citizen, after such varied experience, entered the House of Representatives, where it became his duty to expound the War Power in our government, especially with regard to Slavery. On such a question, his whole life was the open book from which he spoke with magistral authority. No well-worn, dog-eared volume was needed. Himself was enough. And the circumstances of the debate, with the sensitiveness of the hour, gave new force to the principle which he announced.

A select committee on the Abolition of Slavery reported a resolution declaring "That Congress possesses no Constitutional authority to interfere in any way with the institution of Slavery in any of the States of this Confederacy." Before the vote, the Ex-President asked to be heard, saying, "If the House will allow me five minutes' time, I pledge myself to prove that resolution false and utterly untrue."^[157] Here he was called to order, and resumed his seat. The resolution was adopted. Immediately thereafter, on the same day, he obtained the floor on another subject, being a resolution for the distribution of rations among unfortunate sufferers in Alabama and Georgia, and having first remarked that his reasons for voting against the former resolution, founded on the power of Congress, would be a justification for the vote he should give in favor of the proposed distribution, he proceeded to discuss the War Power under the Constitution, portraying the various wars actually menaced, including a civil war, while

with prophetic voice he exclaimed, “Your own Southern and Southwestern States must be the battle-field upon which the last great conflict must be fought between Slavery and Emancipation,” and then announced the supreme power of Congress.

“From the instant that your slaveholding States become the theatre of war, civil, servile, or foreign, from that instant the war powers of Congress extend to interference with the institution of Slavery in every way by which it can be interfered with,—from a claim of indemnity for slaves taken or destroyed, to the cession of the State burdened with slavery to a foreign power.”^[158]

I give but an extract. Again, after other years, with added experience, we find this exalted citizen asserting the same War Power, and holding up to terrified Slave-Masters the prospect of Universal Emancipation.^[159]

Meanwhile the question was discussed by friend and foe, being always in the blaze of the public press, when, on the 14th of April, 1842, our champion returned to it again, asserting the power of Congress with new vigor and detail. This was after the introduction of resolutions by Mr. Giddings, setting forth the relations of the National Government to Slavery, where it was declared without reservation that each of the several States composing this Union has full and *exclusive* jurisdiction over the subject of Slavery within its own territory.^[160] The Ex-President, while accepting the other resolutions, was unwilling to vote for this complete surrender to the Slave States, and here again he was driven to find opportunity for speech on another question. It was on the Civil and Diplomatic Appropriation Bill, and the salaries of our foreign ministers, when, with masterly ability, in a speech of two days,^[161] he reviewed our foreign relations, warning especially against war with England and Mexico; and then by natural transition depicted again the power of Congress in such emergency. These are his words:—

“It is a War Power. I say it is a War Power; and when your country is actually in war, whether it be a war of invasion or a war of insurrection, Congress has power to carry on the war, and must carry it on according to the Laws of War; and

by the Laws of War an invaded country has all its laws and municipal institutions swept by the board, and Martial Law takes the place of them. This power in Congress has perhaps never been called into exercise under the present Constitution of the United States. But when the Laws of War are in force, what, I ask, is one of those laws? It is this: that, when a country is invaded, and two hostile armies are set in martial array, *the commanders of both armies have power to emancipate all the slaves in the invaded territory.*"^[162]

Still further, he announces, in words precisely applicable to the present hour:—

“Nor is this a mere theoretic statement. The history of South America shows that the doctrine has been carried into practical execution within the last thirty years. Slavery was abolished in Colombia, first, by the Spanish General Murillo, and, secondly, by the American General Bolivar. It was abolished by virtue of a military command, given at the head of the army; and its abolition continues to be law to this day.”^[163]

Condensing then the whole subject, and bringing it all into one final statement, he says:—

“I might furnish a thousand proofs to show that the pretensions of gentlemen to the sanctity of their municipal institutions, under a state of actual invasion and of actual war, whether servile, *civil*, or foreign, are wholly unfounded, and that the Laws of War do in all such cases take precedence. I lay this down as the Law of Nations. I say that the military authority takes, for the time, the place of all municipal institutions, *and of Slavery among the rest*; and that under that state of things, so far from its being true that the States where Slavery exists have the exclusive management of the subject, *not only the President of the United States, but the commander of the army, has power to*

order the Universal Emancipation of the slaves.”^[164]
[Applause.]

His confidence in this principle was complete. As he uttered it, he said, addressing the Presiding Officer, “I have no more doubt of it than that you, Sir, occupy that chair”; and he called upon Slave-Masters to answer him, if they could, “not by indignation, not by passion and fury, but by sound and sober reasoning from the Laws of Nations and the Laws of War.” No attempt to answer him was ever made; but the wrath of Slavery was poured still more unsparingly upon the head of the venerable orator. Meanwhile his words have stood as a towering landmark and beacon-flame.

In the protracted controversy now drawing to a close in blood, Massachusetts has done much. She, first of all, gave the example of Universal Freedom within her borders; and ever since that early day she has taken the leading part against Slavery. It is her children who have never failed in this cause, where anything was to be done, whether by word or deed. Massachusetts, for years, has borne the burden of this discussion, and also the heavier burden of obloquy long resting upon all who speak for the slave. It is Massachusetts who with patriotic ardor first leaped to the rescue, when the capital was menaced by Slavery [*applause*], and by happy coincidence, on the 19th of April, consecrated herself anew by the blood of her people [*applause*],—thus being at the same time first to do and first to suffer. [*Immense applause.*] It was also a Massachusetts General who first in this conflict proclaimed that our camps cannot contain a slave [*vociferous applause*]; and it was an illustrious Massachusetts statesman who first unfolded the beneficent principle by virtue of which, constitutionally, legally, and without excess of any kind, the President, or a Commanding General, may become more than conqueror, even Liberator. [*Applause and great sensation.*]

Massachusetts will be false to herself, if she fails at this moment. [*Sensation.*] And yet I would not be misunderstood. Feeling most profoundly that there is an opportunity now for incalculable good, such as occurs rarely in human annals, seeing clearly that there is one spot, like the heel of Achilles, where this great Rebellion may be wounded to death, I calmly deliver the whole question to the judgment of those on whom the responsibility rests, contenting myself with reminding you that there are

times when *not to act* carries with it greater responsibility than *to act*. It is enough for us to review the unquestioned powers of Government to handle for a moment its mighty weapons, yet allowed to slumber, without assuming to declare that the hour has come when they shall flash against the sky.

May a good Providence save our Republic from that everlasting regret which must ensue, if a great opportunity is lost by which all the bleeding wounds of war shall be stanchd, and prosperity again assured, while Peace is made immortal in the embrace of Liberty! [*Applause.*] Saul was cursed for not hewing Agag in pieces when this enemy was in his hands, and Ahab was cursed for not destroying Benhadad. Let no such curse ever descend upon us!

Anxious as I am, I cannot doubt the result; but I long to make it more sure and inevitable. Among works of art handed down from Antiquity, and regarded with greatest wonder, is that unrivalled marble, where Laocoön with his two sons is sculptured in serpent folds, vainly struggling, and slowly yielding to terrific death. Poetry also has pictured the scene. Thus does our country now writhe in the torturing folds of Slavery, the fearful serpent which came swimming out of the sea and fastened upon the Republic; but, God be praised! the Republic shall live, and the serpent be bruised to death.

“So many enemies as slaves!”^[165] Unless this ancient proverb has ceased to be true, there are now four millions of enemies intermingled with the Rebels, toiling in their fields, digging in their camps, and sitting at their firesides, constituting four millions of allies to the National Government. Careful calculation demonstrates, that, out of this number, more than one million are of an age for military service,—that in Virginia alone there are 121,564 male slaves of this important period, in Missouri 21,334, and in Kentucky 51,900. Can we afford to reject this natural alliance, quickened by a common interest, and consecrated by humanity? I call the alliance natural. Let history testify; and here I quote acknowledged authority. In the famous Peloponnesian War, when Greece suffered as we are suffering now, and her own people were arrayed under hostile banners, Greek meeting Greek, slaves often passed over from one side to the other, carrying sometimes oxen and sheep, and always practical knowledge of the country,—on one

occasion twenty thousand in number, mostly mechanics: all of which is described by the great historian Thucydides,^[166] who records also that the martial Lacedæmonians, in dread of their Helots, most cruelly took the lives of two thousand, selected for energy and character.^[167] Thus in other days have slaves played their part, while slave-masters dwelt in fear. Of this trepidation there are abundant illustrations, some farcical. From Aristophanes we learn, that, during the same Peloponnesian War, the Athenians were unwilling to punish their slaves, lest they should desert. This dramatist, in one of his most famous comedies, has a character who, after exclaiming that “the slaves snore as never before,” pours forth his maledictions on the War, because he can no longer apply to them the wonted castigation.^[168] The great philosopher of Greece accords with the historian and dramatist. Plato does not hesitate to say that “slaves and masters can never become friends”;^[169] and he tells us how frequent are servile insurrections, especially in cities where the slaves speak one language, instancing customary outbreaks of the Messenians, and crowning his statement with the declaration, prompted by the universal human heart, even without experience as a slave, which had been his own lot, that “a man is a difficult possession to hold”:^[170] and here our Fugitive Slave Bill with its terrible conditions, and the fugitive slaves of our country with their tragedies, are in harmony with this voice from Antiquity.

There is another motive not to be neglected. Without this alliance insurrection is inevitable, destined to be wild and lawless. This should be prevented. If Liberty does not descend from the tranquil heights of power, it will rise in blood, amidst the confusion of families. And what difference between the two apparitions! One has the face of an angel, radiant with celestial life; the other the front of a demon, “shaking from its horrid hair pestilence and war.” [*Great applause and cheering.*] All this was clearly seen by the Emperor of Russia, when, on the 21st of September, 1858, he called upon his people to unite with him in Emancipation, “which,” he nobly declared, “ought to begin *from above*, to the end that it may not come *from below*”; and now this very year twenty millions of Russian serfs are peacefully passing from the house of bondage. Cheered by this great example, forget not that *it began from above*.

There is another practical advantage where the action proceeds from Government. The interest of loyal citizens can be protected. Compensation

may relieve the hardships of meritorious classes, or of individual cases; nor can I object. Never should any question of money be allowed to interfere with human freedom. Better an empty treasury than a single slave. A Bridge of Gold would be cheap, if demanded by the retreating Fiend.

Two objects are before us, Union and Peace, each for the sake of the other, and both for the sake of the country; but without Emancipation how can we expect either?

Fellow-citizens, I have spoken frankly; for such is always my habit. Never was there greater need of frankness. Let patriots understand each other and they cannot differ widely. All will unite in whatever is required by the sovereign exigencies of self-defence; which means that all will unite in sustaining the National Government, and driving back the Rebels. But this cannot be by any half-way measure or lukewarm policy. There must be no hesitation. Harken not to the voice of Slavery, no matter what its tone of persuasion. It is the gigantic Traitor and Parricide,—not for a moment to be trusted. Believe me, its friendship is more deadly than its enmity. [*Sensation.*] If you are wise, prudent, economical, conservative, practical, you will strike quick and hard,—strike, too, where the blow will be most felt,—strike at the mainspring of the Rebellion. Strike in the name of the Union, which only in this way can be restored,—in the name of Peace, which is vain without Union,—and in the name of Liberty also, sure to bring both Peace and Union in her glorious train.

As Mr. Sumner closed, the hearty approval of the sentiments of the speech found utterance in the most enthusiastic and long-continued demonstrations of applause.

APPENDIX.



Outbursts of the public press, and other exhibitions of opinion, showed at least that the speech was felt, even where condemned. Some were bitter, and expressed their bitterness strongly; others were grateful, rejoicing that at last their thoughts and desires found utterance. Its reception at the time was peculiarly part of the speech; so also was its origin, and the motive which led to it.

THE PRESIDENT AND MR. SUMNER ON EMANCIPATION.

From the beginning Mr. Sumner never doubted that rebellion must cause the end of Slavery. So he spoke and wrote often during the previous winter. As the Slave States became more perverse, he exclaimed, "Slavery will go down in blood!" But this would be only in the event of war, which seemed inevitable. A day or two before the bombardment of Fort Sumter, when President Lincoln mentioned to him confidentially the determination to provision and hold this fort, repelling force by force, Mr. Sumner remarked, "Then the War Power will be in motion, and with it great consequences." In the solemnity of that moment, when peace seemed banished, although saddened inexpressibly, he saw at once the mighty instrument before which Slavery must fall, and never for one moment afterwards did he doubt the final result. He would not and could not believe the success of the Rebels possible; but he saw no way to success on our part, except through Emancipation. Therefore he awaited anxiously the moment when this weapon could be employed. Shrinking from bloodshed, he wished this irresistible ally to close the war. Vowed against Slavery, he was eager to see it smitten. And still further, feeling the peril of European intervention, he longed for a declaration on our part that would make such an act impossible. In his judgment, our foreign relations depended much on Emancipation. So that the whole situation at home and abroad was involved in this question.

At the earliest practicable moment he did not hesitate to press these considerations upon the President. This was immediately after the Battle of Bull Run. An earlier incident will explain what passed on this occasion.

Some time towards the close of the preceding May, while the National troops were gathered about the capital, and during an evening drive with the President alone in his carriage, Mr. Sumner brought up the subject of Slavery, in order to say that the President was right in his course at that time, but that he must be ready to strike when the moment came. On the day of the disaster he was with the President twice, but made no suggestion then. On the second day thereafter, when the tidings from all quarters showed that the country was aroused to intense action, he visited the President expressly to urge Emancipation. The President received him kindly, and, when Mr. Sumner said that he had come to make an important recommendation with regard to the conduct of the war, replied promptly, that he was occupied with that very question, and had something new upon it. Mr. Sumner, thinking that he was anticipated, said, "You are going against Slavery!" "Oh, no, not that!" he replied, impatiently. "I am sorry," said Mr. Sumner, when the President, with increasing impatience, reminded him of the evening drive in his carriage, and then retorted: "Did you not then approve my course?" "Certainly," said Mr. Sumner, "at that time; but I said also that you must be ready to strike at Slavery, and now the moment has come. Of this I have no doubt." And he proceeded to urge his reasons, but could not satisfy the President. The interview, which was late in the evening, did not terminate till midnight.

So completely had Mr. Sumner acted on the idea of waiting for a moment to strike, that in two different bills introduced by him before the disaster at Bull Run, one, July 16th, entitled, "For the confiscation of property of persons in rebellion against the Constitution and Laws of the United States," and the other, July 18th, entitled, "For the punishment of conspiracy and kindred offences against the United States, and for the confiscation of the property of the offenders," there is no open mention of Slavery. In the first bill there is a provision for the forfeiture of "the property, real and personal, of every kind whatsoever, and wheresoever situated within the limits of the United States, belonging to any person owing allegiance to the United States, who shall be found in arms against the United States, or shall give any aid or comfort to their enemies." The other bill contains a clause equally stringent, but general in character. But after that disaster to our arms, he was satisfied the time had come for a full exercise of the War Power, and he desired earnestly to have the President lead the way openly and without reservation.

POLICY OF FORBEARANCE.

Meanwhile the policy of forbearance was continued, giving, as Mr. Sumner thought, moral strength to the Rebellion, and postponing success. By General Orders from Head-Quarters at Washington, July 17th, Slave-Masters obtained new security for their pretended property, in the following terms.

“Fugitive slaves will under no pretext whatever be permitted to reside, or in any way be harbored, in the quarters and camps of the troops serving in this department. Neither will such slaves be allowed to accompany troops on the march. Commanders of troops will be held responsible for a strict observance of the order.”^[171]

In harmony with this military order was an opinion of the Attorney-General, of July 23d, by which the marshals of Missouri were reminded that the Fugitive Slave Act must be executed.^[172] Then came the correspondence between General Butler and the War Department. The former, in a letter from Head-Quarters, Fortress Monroe, July 30th, after speaking of “the able-bodied negro fit to work in the trenches as property liable to be used in aid of rebellion, *and so contraband of war*,” and then with unanswerable force declaring our duty to fugitive slaves, announced a definite policy as follows.

“In a state of rebellion I would confiscate that which was used to oppose my arms, and take all that property which constituted the wealth of that State and furnished the means by which the war is prosecuted, beside being the cause of the war; and if, in so doing, it should be objected that human beings were brought to the free enjoyment of life, liberty, and the pursuit of happiness, such objection might not require much consideration.”^[173]

To this annunciation Mr. Cameron, Secretary of War, replied, under date of August 8th:—

“It is the desire of the President that all existing rights in all the States be fully respected and maintained.”

And then, after forbidding troops to interfere “with the servants of peaceable citizens in house or field,” it was declared, as if to help the Fugitive Slave Act:—

“Nor will you, except in cases where the public good may seem to require it, prevent the voluntary return of any fugitive to the service from which he may have escaped.”^[174]

These various declarations were followed, August 16th, by a speech of Hon. Caleb B. Smith, Secretary of the Interior, at a social festival in Providence, R. I., which seemed to give point to all. This Cabinet officer said:—

“The minds of the people of the South have been deceived by the artful representations of demagogues, who have assured them that the people of the North were determined to bring the power of this Government to bear upon them, for the purpose of crushing out this institution of Slavery.... The Government of the United States has no more right to interfere with the institution of Slavery in South Carolina than it has to interfere with the peculiar institution of Rhode Island, whose benefits I have enjoyed.”^[175]

Then came the reversal by the President of General Fremont’s Proclamation in Missouri, where, under date of August 30th, this officer, commanding the Western Department, announced a system of

partial and local Emancipation as follows.

“The property, real and personal, of all persons in the State of Missouri, who shall take up arms against the United States, or who shall be directly proven to have taken an active part with their enemies in the field, is declared to be confiscated to the public use, and their slaves, *if any they have, are hereby declared freemen.*”^[176]

The enthusiasm with which this provision was received by the country could not save it from the judgment of the President.

These incidents, still showing in certain quarters a constant tendency towards Emancipation, checked always by the Executive, attested a policy of forbearance towards Slavery. Regarding this condition of things as disastrous and of evil omen for the future, Mr. Sumner earnestly strove to arrest it. His speech was an appeal to the country.

CRITICISM AND COMMENT.

Attacks upon the speech were not prompted exclusively by friendship to Slavery. Personal opposition to Mr. Sumner, never mitigated by compromise on his part, found vent, in the hope of influencing his reelection as Senator, although this could not occur till the next year. Such, at least, was the motive of some. Hon. William Claflin, President of the Senate, wrote as early as February 7, 1861, when the Crittenden Compromise was finding support in Massachusetts:—

“The truth is, there is a desperate effort under the surface to drive you from the Senate next winter, and, if *nothing* is done, it is feared by many that the Conservative force will get so strong as to drive both you and Andrew from your seats.”

A correspondent of the *Plymouth Memorial* put this point strongly.

“It is true, the country press spoke out and denounced this attack upon Mr. Sumner, and the attempt which is being made to take him from his place and put in it some weak-backed quietist, who, afraid to look this thing in the face, would palter weak commonplaces, and, while the patient writhed in the paroxysms of pain, would administer soothing drops instead of strong medicine to cure the disease. Mr. Sumner struck at Worcester the key-note of an anthem that will, ay, that is now being taken up by the people, and the sound of which will put the croaking of these penny trumpets far out of hearing.”

The *Norfolk County Journal*, by one of its correspondents, explained the opposition.

“Of course no man with his eyes open needs to be told that this furious onslaught on Mr. Sumner has very little to do with this speech. *It is the opening of the war to defeat his reelection next fall.* A year ago the same papers made, if possible, more savage attacks upon Mr. Andrew. Before he was nominated every one of them opposed him, and after his nomination not one of them supported him cordially; and most of them predicted, that, though he might be carried through by the Presidential election, yet in another year the reaction would sweep him into oblivion. They will find themselves equally mistaken about Mr. Sumner.”

Wendell Phillips, alluding to the assaults upon the speech, wrote:—

“If it had no other advantage, suffice it that it shows you who your personal enemies are.”

Not content with arraigning the policy proposed by Mr. Sumner, his assailants became critics of another sort. They insisted that he was wrong in his illustrations from history,—misrepresenting the decree of Emancipation at Athens, and misquoting Plutarch.

The decree of Emancipation can be read, and also the record of the excitement which followed. That Hyperides at a desperate moment proposed Emancipation as a measure of defence against a triumphant conqueror is indisputable, and that such a measure was already known in Athens among war powers is attested by the scholiast of Aristophanes,^[177] while a candid interpretation of all the circumstances, including the acceptable peace unexpectedly offered by Philip, points to the conclusion that the latter was unwilling to provoke this untried warfare.^[178] This incident is described by a French writer, who gives to it the same effect as Mr. Sumner:—

“Philippe, au bruit de cette proposition, dont l’adoption pouvait ébranler la Grèce entière, s’arrêta, frappé d’épouvante.”^[179]

The heaviest blows were on account of Plutarch, and here it is not easy to comprehend the anger displayed. Endeavoring to present the idea of Emancipation in its proper relief, Mr. Sumner brought forward the proclamation of liberty to the slaves, saying nothing of others joining Marius, according to the familiar translation of Langhorne, well satisfied that the slaves were the effective force; and the speech was so reported in the newspapers. Then came the attack, with learned newspaper *scholia*, garnished with Greek type, insisting that the husbandmen and shepherds, called “freemen” in Langhorne’s translation, and not the emancipated slaves, were authors of the success which carried the illustrious adventurer into the Roman Forum, there to clutch with dying grasp his seventh consulate.

The text of Plutarch is the best answer. That interesting biographer speaks of the slaves first, *putting the Proclamation of Emancipation foremost*; and this is precisely what was needed for the argument. Nor was Mr. Sumner alone in omitting to mention particularly the husbandmen and shepherds, whether freemen or freedmen. Good scholars had done precisely the same. Dr. Liddell, head master of Westminster School, and one of the authors of the favorite Greek Lexicon, describing this event, gives prominence to the Proclamation of Emancipation, without mentioning any freemen, saying: “Like all the partisan leaders of this period, *he offered liberty to slaves*, and soon found himself at the head of a large force.”^[180] Smith’s Dictionary of Greek and Roman Biography and Mythology says that Marius “landed at Telamo in Etruria, and, *proclaiming freedom to the slaves*, began to collect a large force.”^[181] And the great historian Niebuhr, after referring to his landing on the coast of Etruria, where he was joined by Etruscan cohorts, adds,—“Marius was not at all delicate in collecting troops, and even *restored slaves to freedom on condition of their taking up arms for him*.”^[182] Thus both these authorities, in harmony with Dr. Liddell, treat the Proclamation as the chief feature, precisely as Mr. Sumner presented it, and all three leave out of view the “freemen.”

Admitting that there were “freemen,” their part was evidently secondary, unless in reality they were the new-made “freedmen,” as a scholar has suggested. The predominance of the latter is conspicuous in the old English translation by Sir Thomas North:^[183] “*And being landed, proclaimed by sound of trumpet liberty to all slaves and bondmen that would come to him*. So the laborers, herdmen, and neat-herds of all that marsh, for the only name and reputation of Marius, ran to the seaside from all parts.” It appears also in the historic fact, that, when Marius landed in Etruria, there were few or no husbandmen and shepherds already free. They were slaves. According to Plutarch, the first prompting of Tiberius Gracchus to his career as a reformer was observation in this very region.

Passing through Etruria, on the way to Spain, he was troubled to find “scarce any husbandmen or shepherds except slaves from foreign and barbarous nations.”^[184] Niebuhr, following Plutarch, says that “he saw far and wide no free laborers, but numbers of slaves in chains.”^[185] The language is strong,—“far and wide no free laborers.” This was 137 years B. C. Somewhat later, 45 years B. C., Julius Cæsar by positive law required that of herdmen one third should always be free,^[186] thus showing that two thirds at least were then slaves. It is only reasonable to suppose, that, if slaves were everywhere at the earlier date, and so numerous at the later date, it would have been impossible at the landing of Marius, 87 years B. C., to form an army of freemen in a few days. Only fourteen years later the gladiator Spartacus called the slaves to his standard, and they came by tens of thousands, so as to stifle the local power; and here again is testimony to their comparative numbers.

Nothing is clearer than the diminution of the free population of Italy at this period. An excellent authority speaks of it as “the most notorious evil of the times”;^[187] and this is attested by others. It is easy to infer that the freemen must have been few by the side of the slaves. Naturally, therefore, did the experienced general make his appeal to this most numerous and sympathetic class: he knew that so his strength would be best assured. And this was the very position of Mr. Sumner. It is evident that Plutarch himself was of the same opinion; for shortly afterwards, in narrating these events, he records that the other side did not suffer so much through incapacity “as by anxious and unseasonable attention to the laws,”^[188] in preventing Emancipation. This important testimony is most vividly stated in the old translation of North, when he describes the opponent of Marius in Rome as failing “not so much for lack of reasonable skill of wars *as through his unprofitable curiosity and strictness in observing the law*; for, when divers did persuade him to set the bondmen at liberty to take arms for defence of the Commonwealth, he answered, that he would never give bondmen the law and privilege of a Roman citizen, having driven Caius Marius out of Rome to maintain the authority of the law.”^[189] Here was passion for consistency, and want of practical sense. Marius was not troubled in this way.

Another circumstance makes the conclusion yet clearer. On entering Rome, Marius surrounded himself, according to Plutarch, “with a guard *selected* from the slaves that had repaired to his standard,”^[190] or, according to the same authority in another place, “the slaves, whom he had admitted his fellow-soldiers,”^[191] thus attesting still further their superior importance. In the troubles that ensued these freedmen played a bloody part, until they were destroyed by Sertorius; and here again their numbers appear. According to Plutarch, the guard “*selected* from the slaves that had repaired to his standard” was four thousand,^[192] or not far from the ordinary complement of a Roman legion, which the accomplished scholar, Mr. George Long, tells us was the very force collected by Marius in Etruria.^[193] Plainly, therefore, the emancipated slaves constituted the main body, if not the whole legion.

Whatever may be the text of Plutarch, and supposing freemen among the recruits, nothing can prevent the conclusion, that emancipated slaves constituted the decisive force by which success was achieved. Therefore this example illustrates the efficacy of a proclamation giving freedom to slaves, and for this purpose it was adduced.

This discussion seems a diversion now; but at the time of the speech the criticism was a reality,^[194] attracting attention and helping to arrest the great cause. To cap the climax, it was gravely argued, that, even if the Proclamation had the effect attributed to it, we must not imitate Caius Marius,—for he was no better than a barbarian.

THE PRESS.

Specimens from the press show the condition of the public mind at the time, and the controversy which arose, extending to foreign countries. If there were enemies, so also were there friends, both at home and abroad.

The *Boston Daily Advertiser* thus frankly denounced the speech.

“We are sorry to see a disposition in several quarters to represent the Republican party, mainly on the strength of Mr. Sumner’s unfortunate speech at Worcester, as a party of Emancipation, a ‘John Brown party,’ a party that desires to carry on this war as a war of Abolition.... The Convention certainly disavowed any intention of indorsing the fatal doctrines announced by Mr. Sumner, with a distinctness which can scarcely be flattering to that gentleman’s conception of his own influence in Massachusetts.... It is alleged that the Convention cheered Mr. Sumner. His supporters among the delegates and spectators undoubtedly did so: but who does not see that this goes for nothing, in the face of the obvious fact that the silent party who disapproved were so much superior in number as to control the action of the whole body?... We hold it for an incontestable truth, that neither men nor money will be forthcoming for this war, if once the people are impressed with the belief that the Abolition of Slavery, and not the defence of the Union, is its object, or that its original purpose is converted into a cloak for some new design of seizing this opportunity for the destruction of the social system of the South.... The speech to which we have several times referred has certainly done as much as lay within the compass of one man’s powers to inspire this suspicion, to distract and weaken the loyal, and by indirection to aid the disloyal.”

The *Boston Evening Gazette* was in harmony with the *Advertiser*.

“His appearance this year was not in accordance with the wishes of those who do not follow his lead, but regard him as one of the most irrepressible impracticables of the party.... The sentiments uttered by Mr. Sumner are opposed to the spirit of the times, to the policy of the Administration, and are detrimental to the prosperity of the cause. They are Charles Sumner’s ideas; he is responsible for them; and the Convention, by killing the resolutions offered by Rev. James Freeman Clarke, of Boston, which substantially indorsed the speech of Mr. Sumner, repudiated the Emancipation sentiments which Mr. Sumner attempted to induce the Republicans to adopt as a part of their policy. It was a most lamentable failure, and should prove a lesson to men who are so entangled in one idea that they imagine the wealth of the country and the blood of its sons are being poured out to perpetuate a party, instead of securing the safety of the Union and the Constitution.

“After reading Mr. Sumner’s speech, one can but regret that a mind possessed of such culture should give utterance to sentiments that will stimulate the flames which now threaten the destruction of the ship of state, and provoke discord among the noble men who are striving to save it. Had some unknown individual spoken the same words at this time, we doubt not many would have regarded him as a fit inmate for an insane asylum; but it is the position and antecedents of the Senator which alone shield him from the suspicion of being a proper person against whom a writ *De lunatico inquirendo* might be issued.... The tone of the speech and the manner in which it was delivered are the acme of arrogance.”

The *Boston Journal* did not differ much from the *Advertiser*, except in manner.

“Mr. Sumner and other radical Antislavery men, dazzled by visions of Universal Freedom, entirely overlook the insurmountable difficulties which stand in the way of immediate emancipation. The unutterable horrors of a servile insurrection do not present themselves, or they would shrink from the prospect. The economic problem of supporting four millions of human beings who have never been self-dependent is not considered. All practical considerations, in fact, are ignored by a miscalled philanthropy which is as impracticable as it is visionary, and which would lay waste the most prolific soil, and fill our land with vagrants and marauders.

“We must limit the war to the purposes so distinctly avowed by the Administration, or the sun of our national prosperity will set in darkness and gloom, to rise again, if at all, only after years of bloodshed and anarchy. Proclaim the policy of Emancipation, and all hope of a reconstruction of the Union will be crushed out. All the loyal elements in Maryland, Kentucky, and Missouri will be alienated at once, and every prospect of awakening the dormant loyalty in the seceded States will have passed away. It will come to this, that we must subjugate or be subjugated. The people of the South would defend their homes and their firesides to the last extremity, as we would do, should the chances of war favor them. The present generation would not see the end of such a contest, unless the North should be conquered and subdued by the aid of foreign bayonets or internal dissensions. From such a war we may well pray to be delivered.”

The *Norfolk County Journal* declared dissent.

“We are not prepared to indorse the doctrines to which Mr. Sumner gave utterance in his Worcester speech. They strike us as not pertinent to the present stage of the Rebellion. Though their application may become a necessity in the future, public sentiment is as yet unready to adopt and enforce them. They were especially infelicitous in being advanced at a Convention to which men of varying views of public policy had been invited, and their influence has not conduced to that harmony of political action in Massachusetts which it is desirable to bring about.”

The *Springfield Republican*, among many things, said:—

“We fear it is but an illustration of the mental perversity produced by entire absorption in a single aspect of a great question, without regard to its manifold relations, and by the ‘sacred animosity,’ which, too exclusively nourished, renders the best men reckless of means in the pursuit of what they consider the chief end of life.”

On the contrary, the able Boston correspondent of that paper wrote:—

“Charles Sumner’s speech was the great event of the day, however. It was an epoch and a victory in itself. The right thing was said, in the right way, at the right time, by the right man. It was wise, conservative, practical, as Mr. Sumner always is, and it unquestionably met the views of four fifths of the audience. Those who did not enthusiastically applaud said, ‘Oh, it isn’t quite time; Sumner

is right; this will be the *result*, we hope and expect; but let us wait for Providence and the Administration.”

The *Boston Post*, representing the Democracy, declared itself.

“Mr. Sumner’s speech at Worcester yesterday was in direct opposition to the policy of the Administration, the declaration of Congress, and the avowed purpose of the war,—overflowing with the same narrow, bitter, and unconstitutional sentiments that have done so much to bring our present misfortunes upon us, and which tend to render the restoration of the Union impossible. If such views as he advances governed the action of the Administration, *not a brigade could be kept in the field*, or money enough raised by the Secretary of the Treasury to buy breeches and gaiters for a demagogue Senator. For such men as Sumner and his ilk do not fight nor pay; they only brawl, and deserve to be treated as were old scolds in days past,—*ducked in a horse-pond*.”

Then in another article:—

“The error of having listened to this speech cannot be repaired. The Republicans can set the matter right, as to this being indorsed by the friends of the Administration in Massachusetts; and it would seem to be incumbent on the Republican State Committee to make a statement of facts, going to show, that, as a body, it did not invite Mr. Sumner to speak,—that, though the noisy Abolitionists shouted, yet the main body of the Convention evidently and notoriously heard him with sorrow.”

And again, by a correspondent, the same Democratic organ said:—

“Can any patriot read the rodomontade of this classic fanatic at the Worcester Convention, without a sense of pain, nausea, and disgust? He certainly ought to be put in a strait-jacket.”

The *Boston Courier* promptly said:—

“The sincerity of the Republican managers, in appealing to Union men of all parties to meet with them in Convention, is not certainly placed beyond question by the fact that Mr. Sumner (not without invitation, we apprehend) comes forward as the organ of the assembly, and makes the principal speech of the occasion, as he did at the Convention last year. At that period this was felt as at least an awkward circumstance, considering the unquestionable Antislavery ultraisms of Mr. Sumner. Of all men in the community, this, and this alone, was the special vocation of this Senator,—to denounce a domestic usage of a part of the country, which, whether good or bad, is protected by its Constitution and laws.”

In another issue the same paper characterized the speech as one, “the insane counsels of which considerate men of all parties regard with such dislike and indignation.”

The *Newburyport Herald* said:—

“Charles Sumner’s speech will be found on our first page to-day. We give it not by way of approval, for it seems to us the worst speech that could be made. Its only influence will be to distract and divide the North, and raise up a faction

here against the Administration, which has declared for an entirely different policy,—while at the South it will kill what little Union sentiment remains, and rejoice the Rebel hosts, giving them better ammunition for their treason than powder would be.... We don't know how it appears to others, but it seems to us, that, if Jeff Davis had liberty to send his own agent here to do the worst for us, he could have done nothing more. The war can be fought upon no such grounds; and before it closes, we shall discover that fact."

The *New York Journal of Commerce* was quite sententious.

"The Republicans of Boston desire to be rid of any connection with the fanatic Senator's remarks. The signs of the times improve."

The *Carbon Democrat*, of Pennsylvania, breaks forth in condemnation.

"If there were any lack of evidence to prove that Charles Sumner is really an enemy to our country, and desired only to destroy it, and immerse the people in the dreadful, crashing slavery of martial tyranny, this speech supplies the link, and makes the train of evidence against his fealty strong as Holy Writ. He here unblushingly proclaims the horrid policy of unloosing the bonds of four million slaves, and setting them against the Caucasian race,—to murder, pillage, and destroy, without stint, until their barbarous appetites may be appeased....

"In this connection we might suggest that Marius was a very proper example for Senator Sumner and his school of politicians to quote. Like them, he was the very prince of office-seekers....

"He advocates a doctrine which is in direct violation of the spirit of the Constitution, and which tends only to weaken the hands of the Government, by dividing public sentiment at the North, and thus discouraging enlistments. Why is it that the Government, thus assailed, does not lay its hand upon this fulminator of treason, and secure him safely behind the bars and bolts of Fort Lafayette?"

The *New York Herald* thus interpreted the speech:—

"Now we beg leave to submit, that this speech, from this Senator, at this crisis, comprehends an Abolition warning to the Administration, and a warning to the States involved in this Rebellion. Mr. Sumner is supported in his views by an active Abolition faction, extending from Massachusetts to Missouri, and with this faction an exterminating crusade against Slavery is the all-absorbing idea. Let the President and his Cabinet, then, exert their energies to the uttermost for a speedy blow or two which will break the backbone of this Rebellion, or we know not what may be the consequences to the Administration from the fanatical hostility of this Abolition faction to the conservative policy of Mr. Lincoln. On the other hand, we would appeal to the Union men of the Border Slave States to turn out at once, and en masse, to the active support of the Government, and thus restore the Union in its integrity, including the integrity of Southern institutions, in the speedy expulsion of the Rebels into the Cotton States. With the Border Slave States rescued, this whole Rebellion will soon fall to pieces from its own weight; but every day that the Rebels continue to menace Washington, to desolate Missouri, and to hold a threatening lodgement in Kentucky, the danger

to Southern Slavery is increased, and of a protracted and desolating war of sections, factions, and races.”

Against these voices were others very different in tone.

The *National Antislavery Standard* of New York, in an elaborate leader, united with Mr. Sumner.

“We lay before our readers to-day the admirable speech of Mr. Sumner before the Republican Convention at Worcester, Massachusetts. We shall not invite their attention to it, for we are sure they cannot keep their attention away from it, and it will well repay all that they have to bestow. It is a bold, clear, and conclusive exposition of the policy which the United States Government should adopt, and make the vital principle of their action, in the present war. Mr. Sumner is the first public man of eminent station who has dared to indicate the true and only way of escape for this nation out of its dangers; and whether his counsel be hearkened unto or mocked, he will go into history as the first man of high political rank who has discerned and not shrunk from proclaiming this saving truth.”

The New York *Independent* published the speech promptly upon its delivery, with the remark:—

“The following masterly and patriotic speech was made by Hon. Charles Sumner at the recent Republican Convention in Massachusetts which renominated Governor Andrew.”

The same paper, in another issue, followed the speech with a tribute which has merit of its own.

“TO CHARLES SUMNER.

“We thank thee, Sumner! Thou hast spoken the word
God gave to thy safe keeping; thou hast set
Life, Death, before the nation; thou hast hurled
Thy single pebble, plucked from Truth’s pure stream,
Into the forehead of a Giant Wrong,
And it doth reel and tremble. Men may doubt,
But the keen sword of Right shall finish well
Thy brave beginning.

“Courage, then, true soul!
Not vainly hast thou spoken; angels heard,
And shook from their glad harps a gush of joy
That the *One Word* was uttered in men’s ears,
The ‘Open Sesame’ by which alone
True Freedom and true Peace might enter in,
Making earth like to heaven.

“Then bide thy time.
What thou hast spoken as ’t were in the ear
Shall be proclaimed on housetops. God locks up
In His safe garner every seed of Truth,
Until the time shall come to cast it forth,
Saying, ‘Be fruitful, multiply, and fill
The broad earth, till it shouts its harvest-home.’
His purposes are sure; who works with Him
Need fear no failure. By my hopes of heaven,
I’d rather speak one word for Truth and Right,
That God shall hear and treasure up for use
In working out His purposes of good,
Than clutch the title-deed that should insure
A kingdom to my keeping!—so, in faith,
I speak my simple word, and, fearing not,
Commit it to His hands whom I do serve.

“And thus it is, O friend, that I have dared
To send thee greeting and this word of cheer.
God bless thee, Sumner, and all souls like thine,
Working serene and patient in His cause!
God give thee of the fruit of thine own hands,
And let thine own works praise thee in the gates
Of the new city, whose foundation-stones
Thy hands are laying, though men see it not!

“CAROLINE A. MASON.

“FITCHBURG, Mass.”

The *New York Tribune* said:—

“The Hon. Charles Sumner yesterday delivered an eloquent speech at the Republican Convention at Worcester, Mass., which we print this morning. He confined himself almost exclusively to a consideration of the subject of Slavery in its relation to the war; he took the ground that the overthrow of Slavery will at once make an end of the war, and justified that policy by many historic examples.”

The *Tribune* also published a dramatic sketch between a Conservative and a Reporter, exposing the reports about the reception of the speech. Here are a few lines.

“CONSERVATIVE. Men took his coming coldly, as they say.

“REPORTER. My Lord, they lie who say so. On my life,
The pillars shook with plaudits,—the wide hall
Was as a sea of joyous countenance.

“CON. You are mistaken.

“REP. With these eyes I saw it;
Heard with these ears.

“CON. Say they did not applaud.
So must we dress it in the people’s eyes,
As he had been a rash, unwelcome guest,
Who came with little call, and spake with less.

The Boston *Liberator* spoke of it as “this dispassionate and statesmanlike speech”; but a correspondent complained of Mr. Sumner’s confidence in the Administration, saying:—

“No, we are not yet saved! And it is the Commander-in-Chief of the Army, and the elected head of the nation, it is Abraham Lincoln himself, who obstructs, by the exercise of his individual will, the nation’s entrance upon that movement against Slavery which Mr. Sumner has shown to be the direct course, and the only course, to success against the Rebellion.”

By another of its correspondents the same paper said:—

“If I had a fortune, however large, I would exhaust the last cent in the way I have chosen, and in getting up petitions from the Free States, especially from Massachusetts, which should meet Congress at the very threshold of the session nearly upon us, and which should inspire Senator Sumner to submit his Plan of Emancipation to that body at once, and give foundation and impulse for an immediate and triumphant vote in his favor.”

The *Boston Traveller* announced the following:—

“Several thousand copies of Senator Sumner’s recent speech at Worcester, which disturbed the equanimity of some of our contemporaries, have been circulated in Kentucky. A Colonel of that State, now in the Union service, writes thus: ‘Sumner’s speech strikes the key-note for the Union cause in Kentucky, and his policy, if followed up by the Administration, will insure us a speedy triumph.’”

The country press of Massachusetts espoused the speech warmly.

The New Bedford *Evening Standard*, always ready against Slavery, declared its sympathy, while giving testimony to the reception of the speech by the Convention.

“We have no apology to make to our readers for inserting the noble speech of Mr. Sumner at the Worcester Convention. Its perusal by all earnest and sincere lovers of Freedom will no doubt be a rich treat, as it was to those who had the pleasure of hearing it from the Senator’s lips. *The manner in which it was received by nine tenths of the Convention was a true indication of the state of feeling in the Old Bay State.* We have been pained, as well as surprised, to see the manner in which some Republican papers, as well as individual members of the party, have spoken in condemnation of this speech.”

The *People’s Press*, of Fall River, said:—

“The *Boston Journal* may call it ‘ill-timed eloquence,’ but we believe that the people are rapidly coming to the conclusion that the Honorable Senator has resolutely spoken the needed truth, and has indicated the proper course for our Government to pursue, in order to put down rebellion most speedily and effectually, and secure a permanent peace and an undivided country.”

The *Taunton Gazette* said:—

“This suggestive speech of the eloquent Senator is not in a strain which is just now popular. He does not sigh for the things which have passed away, but calmly fronts the demands of the future; and what he sees and declares of swift-coming events is in keeping with the sternest struggles for Liberty, and in full accordance with the irrepressible instinct which animates our armed free laborers, however the trimming politicians may denounce their declaration. Let us not speak ill of this forecast and courage. None knew better than he, that, for the time being, he was rendering a thankless service. Indeed, we venture to say that no other man holding high office in the government, or desiring to hold, will dare to second or in any way publicly approve of the vital suggestions of this address.”

The *Dedham Gazette* was positive for the speech, and also as to its favorable reception.

“The most significant feature of the Convention was the speech of Mr. Sumner, which was received with the strongest expressions of approval by the great mass of delegates present. The fixed and earnest attention with which every word was received, and the hearty and repeated applause which greeted every allusion to the doctrine of Emancipation, proved conclusively that upon this question the people are far in advance of the Government.”

The *Charlestown Advertiser* testified to the reception of the speech at the Convention.

“This speech by the Hon. Charles Sumner has been assailed during the last fortnight by a herd of political scribblers, none of whom, however, have the wit to refute its positions. The Republican Convention sanctioned it, on its delivery, with the most hearty applause.”

The Haverhill *Publisher* expressed itself with caution.

“As was said, in remarking upon the Worcester Convention, Mr. Sumner furnished the sensation matter for the occasion, so it now appears; for all over the country the press is lively with comment upon it, and in every circle it is the theme of discussion. It may be well to remember that the speech of Mr. Sumner will test the spirit of his constituents, and time will show whether they will sustain this great statesman, not as a partisan, but as a moral and philosophical force, in the evidently Heaven-appointed mission of keeping the public eye fixed upon a great principle, regardless of politicians or parties.”

The *Northampton Free Press* said:—

“Charles Sumner was present at the Convention, and made one of his best speeches on Slavery and its relation to the war. It is sound in argument, and such a one as might be expected from its author. It was received with great applause; but the *Springfield Republican* calls it ill-advised and out of place.”

The *True American*, of Erie, Pennsylvania, said:—

“The speech from Hon. Charles Sumner, made at Worcester, Massachusetts, on the 1st inst., and which is printed in full upon our first page, deserves the attention of every reader. It is a calm and statesmanlike argument in favor of suppressing this guilty Rebellion by removing its guilty cause. It is a clear vindication of a necessary policy. Coming from a man in his high official position, it is significant. And we believe, with a contemporary, that he will not have to wait for the verdict of posterity to justify and exalt the great truth his speech embodies. Indeed, we are confident that his word will find a response in all that is best of the North,—and not only in all that is best in quality, but strongest in numbers.”

The Philadelphia *Public Ledger* held the scales:—

“Although Mr. Sumner, and Massachusetts at his back, are disposed to move faster than the rest of the North upon the Slavery Question, there is no doubt that whatever amount of injury, consistent with the Laws of War, inflicted on the South, will bring this Rebellion most speedily to an end will find the next Congress prepared at least to consider it. Mr. Sumner has proved very conclusively, that, as a punishment to Rebels and bad citizens, the manumission of the slaves is fully recognized by those old Roman laws which the South-Carolinians have been so fond of quoting in their own behalf. But Mr. Sumner has not proved, we think, that it would be policy to adopt at once and irrevocably so extreme a measure as to set at liberty some four millions of slaves.”

Le Messenger Franco-Américain, a French journal at New York, thus balanced the account:—

“Mr. Charles Sumner, the eloquent Senator of Massachusetts, is indefatigable in his devotion to the cause of Free Labor. Always in the breach with the ardor of a true patriot and of a friend of Liberty, he contends without cessation for the triumph of those great principles of Right and Justice consecrated by the National Constitution.... Mr. Sumner is a light of the Antislavery army. He sees the cause of right and of country in danger. As a vigilant sentinel, he gives the signal of alarm. Let the civil war continue, and the cry of Emancipation by Mr. Sumner will find powerful echoes in the Northern States. The conservative and honest population at the South should reflect upon this.”

Crossing the ocean, the same differences appear, with allusions to the character of the war. Here was evident disposition to recognize in Mr. Sumner exceptional earnestness against Slavery, while the country was worse than indifferent. This view was presented by no less a person than the Earl of Shaftesbury, in a speech at a public meeting, reported in the *London Times*, July 25, 1861, where he said:—

“There had, however, been no great feeling in the country for either one or the other of the parties; for the country did not believe in the sincerity of either. The North had conceded everything to Slavery that it could possibly demand; so the South had certainly no cause for rebellion. But in the struggle they were entering on, the North never thought of putting an end to Slavery; for, *if such a declaration had been made, they would have had the sympathy of every man in England*: he was almost afraid to say how far he thought that sympathy would have gone.... There was no honest feeling on the subject of Slavery in America, except among the Abolitionists headed by that great and good man, Charles Sumner.”

Similar expressions of good-will to Mr. Sumner had appeared in France. Besides allusions in the writings of M. Laboulaye and M. Cochin, there was a contemporary notice in a letter from Washington, of August 12, 1861, in the *Opinion Nationale* of Paris, evidently by a gentleman who accompanied Prince Napoleon on his summer tour in the United States.

“I have been present at sessions of the Senate and House of Representatives. I have had pointed out to me the most influential members of both parties, ... Mr. Sumner, Massachusetts Senator, acknowledged leader of the Abolitionists, an amiable, educated man, having travelled much in France, the friend of De Tocqueville, and very well versed in our literature.”^[195]

In harmony with this testimony was the sketch by Colonel Ferri-Pisani, aide-de-camp of Prince Napoleon, in his letter from Washington of August 10, 1861.

“The person with whom the Prince has formed the most sympathetic relations is Mr. Sumner, Senator of the State of Massachusetts (Boston), and declared partisan of the Abolition of Slavery. Mr. Sumner is one of the most eloquent men of the United States, a mind highly instructed, very cultivated, especially versed in French literature, which he studied in France. He was the friend of De Tocqueville, and is personally connected with a great number of our writers and thinkers. His manners are as distinguished as his intelligence. He inspires among the partisans of the South a furious hate; in return, he passes for the warmest partisan of the French alliance, and for the friend of our Legation.”^[196]

These testimonies prepare the way for expressions which found utterance abroad after the speech at Worcester, and help explain the notice it received.

The *London Times*, always against the Union in its efforts to put down the Rebellion, said:—

“While statesmen, merchants, and bankers are laboring to carry on a suicidal war in a conservative spirit, and to spare the interests and prejudices of the foe, a more numerous class from the Atlantic to the Mississippi have no such scruple, and go to the root of the evil. Slavery, they are told by one of the most eloquent of the agitators, himself a martyr in the cause, is the original sin of the Union, the cause of every subsequent dissension, the occasion of this war, and, what is more, the strength of the wrong cause, and the weakness of the right. Mr. Sumner

refers to Slavery every misery, every mishap, every difficulty of the Federal cause,—and tells listening thousands that all they do, the sacrifices they make, their taxation, their life-blood, their commercial interests, everything they have, suffer, do, or hope, is all flung into that Maelström, never to reappear. The whole American nation, with all its wealth and all its glory, is flung as a holocaust before the shrine of this hideous idol. The remedy he proclaims is to give up the weak scruple which paralyzes a righteous arm. Mr. Sumner sees in this war not merely a call to rally round a Constitution, to punish treason, and reinstate a mighty power; he sees a call to a higher level of humanity, and a sublimer doctrine. “Not Union, but Freedom,”^[197] is his cry. This is the fated weapon for the decision of the contest. This alone can defeat the foe, whose strength is in Slavery....

“Now all this we have heard before. It is a story in Mr. Sumner’s mouth, and according to him it is as old as the Declaration of Independence itself, and the first struggles of the Commonwealth. What, we have to ask, is its fresh significance at the present hour? According to Mr. Sumner, its significance is most critical. Slavery he makes out to be the very balance on which the fortunes of America now hang....

“Every nation in the world has had to give up its pretensions at one time or another; and the Federal Government will only follow the example of the most powerful sovereigns and the wisest ministers, if it makes peace in time, before it is committed to a treble war,—with the Confederates, the British, and its own Abolitionists at home.”

The London *Herald of Peace*, in its opposition to the war, took pains to insist that it was not Antislavery,—forgetting that the North, even when failing to demand the abolition of Slavery, sought its limitation, and that the new Government openly declared Slavery its corner-stone. After setting forth Mr. Sumner’s “proposal to use the War Power to proclaim at once, as respects the Rebels, the emancipation of their slaves,” and that “the speech was received with many demonstrations of applause,” it dwells on the circumstances favoring the effort: that it was in Massachusetts, of all the States “the most forward in the Antislavery cause”; that “the subject was presented by one whose judgment they were most bound to honor, and whose lead they were most likely to follow,” whom it describes.

“Mr. Sumner is a man of whom Massachusetts might well be proud. His great abilities, his lofty spirit, his spotless public life, mark him as a man standing apart, not to be confounded with the crowd of selfish politicians that besiege the avenues of power in America. He has stood forward in evil days to encounter with an undaunted mien the obloquy and the peril attaching to the avowal of thorough Antislavery principles, and has been not the champion merely, but the martyr of the cause.”

After this presentation, it goes on to ask, “Well, and what was the reception which Mr. Sumner’s proposal met from the Republican Convention of the State of Massachusetts?” It finds an answer in the refusal to act on the resolutions of Mr. Clarke, and then says:—

“After all this, we sincerely hope we shall hear no more of this war as a war for the liberation of the slave, as a ‘sublime uprising’ of the men of the North for the cause of Human Freedom.”

The London *Post*, which did not sympathize with the National cause, said:—

“If the Federal Government are in want of an *ex parte* defender, they will certainly find one in Mr. Charles Sumner. When he tells the Republican State Convention at Worcester, that Rebellion never assumed such a front since Satan made war upon the Almighty, he used first the hyperbolical language which the most abject courtier of an absolute monarch in the Middle Ages could have suggested in condemnation of some insurrection that had broken out in one of his provinces.... *Mr. Sumner narrows the question now dividing the North and South distinctly into a war of Slavery.* Hence he appeals to European sympathies in behalf of the North. Now this view is in great part true, yet it is not wholly true.... It is not simply in respect of Slavery, as Mr. Sumner represents it, that the South differs from the North. The leading men of the South were commonly of different extraction from the leading men of the North. That difference has developed a broad distinction in social habits, in political ideas, in consent to authority, and in other characteristics which constitute the idiosyncrasy of a nation.... We cannot, therefore, agree with Mr. Sumner, that the question is essentially and wholly a slave question, any more than we can regard the secession as a rebellion against quasi-Divine authority.”

But the National cause was not without defenders abroad, nor the speech without sympathy.

The London *Daily News*, in an elaborate leader, with an abstract of the speech, said:—

“The most remarkable circumstance which we have yet chronicled is the speech of Mr. Charles Sumner in defence of the war.... We regard Mr. Sumner’s speech as most important in every point of view. It is the best answer which has been yet made on American ground to those who complain that hitherto the cause of the North has not met with the sympathy it deserved in Britain. But passing this, it shows to the Northerners themselves what it is that paralyzes their arms, what it is that places them so generally on the defensive and prevents their success. Let Mr. Sumner’s policy be adopted, and it would not only strike terror into the hearts of the Rebels, but would animate the masses of volunteers in the North with a ‘spirit which would render them still more formidable.’”

A London commercial paper, *The Floating Cargoes Evening List*, published a considerable extract, with a line from the speech as its caption, “Look at the war as you will, and you always see Slavery,” and the following notice:—

“The present American war exercises so powerful an influence upon commercial affairs in general, that the expression of an opinion on this subject by one of the most eminent American statesmen deserves special notice.”

The London *Morning Star* thus declared its sympathy:—

“The speech delivered by the Hon. Charles Sumner, at the Republican Convention at Worcester, in Massachusetts, is one of the most significant events of the American crisis.... In vigorous and eloquent words Mr. Sumner has told the plain truths which we have frequently reiterated, and there was not heard even the whisper of a dissentient voice.^[198] He pointed out that Slavery is the great enemy to the preservation of the Union, and that its eradication would bring the war at once to a close.... Emancipation must come, and its calm concession by an act of executive power can alone prevent its ultimate consummation by red-handed insurrection. The enthusiastic assent which was

evoked by Mr. Sumner's noble words—words worthy alike of the man and of his theme—is a cheering foretaste of the triumph which cannot be long deferred.”

In the English island of Jersey, one of the Channel Isles, on the coast of France, the *Independent and Daily Telegraph* published the speech at length, with an article entitled “The Orator of Freedom,” where it said:—

“As a general rule, even those who like to listen to good speeches do not care to read long speeches, good or bad. But even such persons need not our recommendation to give their attention to the graceful periods and electrifying appeals of, probably, the most accomplished of American speakers,—perhaps we might justly say the foremost orator speaking the Anglo-Saxon tongue; for, rivalling Gladstone in genius, he more than rivals the glory of England's House of Commons by that holy earnestness which imparts to eloquence its chief effect, and which naturally is the product of circumstances rather than of individual will.... The principles of the Massachusetts Senator command our thorough adhesion, as his extraordinary talents challenge our admiration, and his courageous consistency carries with it our respect. But, although we can make every allowance for President Lincoln and his ministers, and those Massachusetts men who hesitate to invoke the sword of Spartacus, still, we repeat, all our sympathies are with Mr. Sumner, and the cause of which he is the champion, and the policy of which he is the exponent.... Although grammarians will not allow the comparative and superlative of ‘right,’ and know nothing of ‘righter’ and ‘rightest,’ we must nevertheless affirm that General Butler was right, General Fremont more right, and that Senator Sumner is most right.”

Crossing to the Continent, the controversy continues.

The *Précurseur* of Antwerp, in Belgium, said:—

“Mr. Charles Sumner has pronounced very energetically in favor of the Abolition of Slavery, and demanded, with great strength of expression and power of argument, the introduction of this question into the conflict. He demanded especially, that the Executive Power should pronounce in favor of Immediate Abolition by a declaration, perfectly legal according to him, that all slaves coming within the lines of the Federal [National] army should be free. This declaration seems to him at the same time constitutional and justified by precedents. The Executive Power has this right in virtue of Martial Law. The most significant fact, and which augurs the definitive solution of the question, is, that the speech was received with great enthusiasm by the audience; and since it presents in effect the most rapid solution of a burdensome war, it becomes now more than probable that the pressure of public opinion will not be slow in making itself felt by the Federal Government.”

The *Pays*, at Paris, an Imperialist journal, said:—

“It appears that in the State of Massachusetts public views are divided as to the means to be employed for joining the pieces of the American Union. The most violent, represented by Senator Sumner, preach war to the knife, and the emancipation of the blacks. They propose to give liberty to all the slaves in the Union, with indemnities to loyalists only. Thus, then, if we are to believe Senator Sumner, the surest way of establishing peace in North America will be to let loose several millions of blacks, and incite them to murder and incendiarism.”

On the other hand, in France was the testimony of Count Agénor de Gasparin, noble friend of the national cause, who, in a powerful work, cited the speech at Worcester, and adopted its conclusion, [\[199\]](#)—also of M. Édouard Laboulaye, who, at a later day, when presiding over the Antislavery Conference at Paris, surrounded by the Abolitionists of all countries, paid a flattering tribute to Mr. Sumner, winding up with allusion to this speech:—

“Charles Sumner, a man who in his turn took up this cause and defended it with the most admirable eloquence, which, as you probably all know, was the occasion of his being nearly killed in his place in the Senate,—an act for which the assassin was rewarded by his Southern friends. They gave him a cane, gold-mounted, bearing the inscription, ‘*Hit him again.*’ Mr. Sumner came to France, and we made his acquaintance at that time. The object of his journey was the reestablishment of his health,—and he recovered it; for he it was, who, during the whole of the war, was the real adviser of America: he felt, and he said, more boldly than any one, that the war could be terminated only by the Abolition of Slavery.”[\[200\]](#)

The position accorded to Mr. Sumner in Europe, beginning especially with this speech, was attested at a still later day in an article by M. Michel Chevalier, a Senator of France under the Empire, renowned for various writings, especially in Political Economy. In a sympathetic review of the address on the “Duel between France and Germany,” this authority thus expresses himself:—

“The opinion embodied in the writing which I am about to analyze, and which is a mixture of sympathetic words and of severe counsels for France, is not that of one or many assemblies, of one or many popular meetings, of one group or of many groups of journals; it is that of one man. But this man is one of the most distinguished citizens of his country; he has exercised a supreme influence in the events of which the great Republic has been the theatre since the moment when, in 1861, the South declared that it broke the Union, and at the mouth of the cannon seized Fort Sumter, situated in the harbor of Charleston. Mr. Charles Sumner has not figured on the battle-field; he was elsewhere, in the Senate of the United States, from which place, it can be said, he was the political director of the conflict.... But the thought of extirpating Slavery, of obliging the Slave States to modify their internal system so as to render impossible the reestablishment of servitude under another name, the idea of assimilating by law the black and mulatto with the white,—assimilation to which until then their habits were as repugnant as their laws,—these have belonged to Mr. Charles Sumner more than to any other person, and were the basis of a plan which has triumphed by the indomitable will and the ever-ready eloquence of this statesman. It can therefore be said of Mr. Charles Sumner, that he is in himself a public opinion.”[\[201\]](#)

CORRESPONDENCE.

As after the speech on the Barbarism of Slavery, so now, letters came with volunteer testimony. Beyond their interest as tokens of strong and wide-spread sympathy with Mr. Sumner, they have historic value as illustrations of the intense Antislavery sentiment destined so soon to triumph. Sometimes they are directly responsive to the press, especially in the severity of its criticism on the speech. Here, as before, Abolitionists took the lead.

Wendell Phillips thus earnestly placed himself by the side of his friend:—

“I both thank and congratulate you most heartily on your great speech, for some reasons the *boldest* even you ever made,—the first statesmanlike word worthy of the hour from any one in a high civil position,—fit response from Statesmanship to War,—showing the people the reasons and purpose of Fremont’s proclamation, and giving it more breadth and a nobler basis.

“All agree it was a most decided success,—taking the Convention wholly off its feet with enthusiasm; and we absent ones may measure the strength of the blow from the rebound,—witness *Post*, *Courier*, *Journal*, and, basest of all, *Advertiser*, of course....

“Never fear but that the masses, the hearts, are all with you,—and you’ll see your enemies at your footstool, as you so often have already.”

And in another letter:—

“I could not take the hazard of advising you to make it, though I told you in your circumstances I should; but now you’ve done it, I can say it was *wise* and *well*,—your duty to the country, to the hour, yourself, the slave,—to your fame as a statesman, and your duty as leader.”

Lewis Tappan, the Abolitionist, wrote from New York:—

“‘Union and Peace,—how they shall be restored.’ You have shown the way, and the only way. We may have peace on other terms, but no union *and* peace. The Free States must choose between peace, temporary peace, renewed war, and peace founded upon righteousness, justice, and equity.”

Hon. Amasa Walker, the able writer on Political Economy, afterwards Representative in Congress, wrote from North Brookfield:—

“You never made a nobler, braver, or more opportune utterance than at Worcester on the first instant. But all Hunkerdom is down upon you for it, as I expected. No matter,—the people, I trust in God, will sustain you. Your words meet a most hearty response in the hearts of all true men, you may rest assured. If your positions are not sustained by the country, the great contest now going on will end in failure, and ought to end so.”

David Lee Child, the sincere and lifelong Abolitionist, once a journalist and lawyer, and always a writer, wrote for himself and his wife from Wayland, Massachusetts:—

“I was, and my wife was, refreshed and strengthened by your voice from Worcester. When you gave us the ‘Barbarism of Slavery,’ the grandest, the most comprehensive, complete, compact, and conclusive of all your noble utterances against ‘the sum of all villainies,’ I did not write, though never before so much moved to do so. We read it the night that it reached us, and were so exalted by it that we sat up two hours beyond our time, talking about it and rejoicing over it. The foes of justice and freedom accuse you of accelerating the crisis and precipitating civil war by that speech. I think they are right for once. The revived victim of frustrate assassins, the calm and undaunted bearing, the inflexible purpose, the overwhelming force of facts, argument, and illustration, struck more terror to the soul of Richard than could the substance of ten thousand soldiers armed in proof.

“I fully intended to address you as soon as the overflow of my heart became somewhat proportionate to the capacity of the pen, and to repeat that quotation from Tully which Junius aptly uses, though less aptly than it applied then: ‘Quod si quis existimat me aut voluntate esse mutata, aut debilitata virtute, aut *animo* fracto, vehementer errat.’^[202] But my dear wife wrote you our joint offering of admiration and gratitude better than I could do it for myself.”

Hon. S. E. Sewall, the able lawyer and devoted Abolitionist, whose sympathy with Mr. Sumner had been constant, wrote from Boston:—

“As I have not time to call on you just now, I cannot forbear writing, merely to say how delighted I am with your speech at Worcester. I see it has roused a good deal of howling among our wretched editors. But this does not convince me that your position is wrong, or that it will not be sustained by the country. Almost every one whom I see thinks as I do about your speech, and regards it as eloquent, statesmanlike, and timely. I trust Congress will think as you do, and act accordingly.”

George Livermore, who so often wrote to Mr. Sumner with entire sympathy, and soon afterwards contributed an invaluable service to the African race,^[203] expressed his present anxiety.

“I did hope that in this terrible day of our country’s trial there would be found sufficient patriotism with those sent to Worcester to cast aside *all party* considerations and all disturbing differences, and unite, *before it is too late*, in trying to save the Government and the Union.... I trembled when I heard that you had been invited to speak, and I wept when I read your speech.

“Unless there is a united North, united on the basis of the Constitution as it is, we are doomed to defeat.”

Hon. Joshua R. Giddings, at the time Consul General at Montreal, wrote from that city:—

“Thanks for your speech at Worcester. I want you to place the same question before the Senate.”

Hon. Carl Schurz, at the time Envoy Extraordinary and Minister Plenipotentiary in Spain, wrote from Madrid:—

“First let me thank you for the glorious speech you have delivered before the Massachusetts Convention. I agree with you on every point, and expect shortly to fight by your side.”

William S. Thayer, a writer of admirable sense, and Consul General at Alexandria in Egypt, wrote:

“Well, after all, your Cassandra-like prophecies as to the course of public affairs have come true to the letter. Time will show whether your declaration at the Massachusetts Convention, that without Emancipation our war will be a vain masquerade of battles, will not also be realized. At this distance from home I do not feel qualified to dogmatize; but we do not appear as yet to have struck our opponents in a vital part.”

Hon. Montgomery Blair, Postmaster General, wrote from Washington:—

“Your speech is noble, beautiful, classical, sensible. I would have timed it differently; but I will take it now, rather than lose it.”

Hon. Hiram Barney, Collector of New York, wrote:—

“I was gratified with it. You indicate the proper course for the Government to take in this war with Slavery. It is the real Rebel, and Providence has brought us at length into direct conflict with it. We can destroy it without violating any right. Now is our opportunity, and I pray God we may have the wisdom and the intrepidity to end the war humanely and economically by the speedy destruction of the enemy, Slavery. Peace by Emancipation is accomplishing a good end by good means. How easily will the President make his administration the most eventful and glorious in American history!”

Hon. Thomas Dawes Eliot, Representative in Congress, pure in life, and always against Slavery, wrote from New Bedford:—

“If the party who have the responsible conduct of our war do not avail themselves of the power which the Law of Nations gives to them, whereby to strengthen themselves and defeat the Rebels, we shall find the party opposed to them will advocate Emancipation as a party issue. And when the time comes, as it must, that the South shall realize their own inevitable defeat, and shall see the alternative of submission or Emancipation, they will themselves initiate Freedom and secure Europe, unless before them we shall have acted.”

Hon. E. G. Spaulding, the eminent Representative in Congress, and a leading member of the Committee of Ways and Means, wrote from Buffalo:—

“Our people are earnestly discussing the subject of Immediate Emancipation, and I desire to see the views of one who has so thoroughly considered this question. Nearly all our people have come to the conclusion, that, whenever it is necessary to crush out the Rebellion to abolish Slavery, then the Government must abolish it.”

Hon. Robert C. Pitman, afterwards of the Superior Court of Massachusetts, wrote from New Bedford:—

“Permit me to thank you cordially for the service rendered by you to our cause, on Tuesday, at Worcester. Ideas must reinforce our arms, or we shall neither deserve nor win a victory.”

Epes Sargent, journalist, another and early friend, wrote from Boston:—

“I do not think you can be more than two months in advance of the public sentiment of the North, in your speech. I read it with great satisfaction, and it was not till I got down town among the politicians that I realized what imprudent things you had been saying.”

Hon. Daniel W. Alvord, who had coöperated with Mr. Sumner before, wrote from Greenfield, Massachusetts:—

“I thank you for the right word uttered at the right time in your Worcester speech. I should not deem it necessary to say this, as you could hardly fail to know that such a speech would meet my hearty approbation, but for the attacks

made upon you by the *Springfield Republican*. Be assured that the *Republican* by no means reflects the feelings or the opinions of the people of the western counties. The thorough, hearty Republicans, who in the northwest, if not in the southwest, constitute a great majority, cordially indorse the reasoning and positions of the speech.”

Hon. John D. Baldwin, journalist, afterwards Representative in Congress, and author of the work entitled “Pre-Historic Nations,” wrote from Worcester:—

“What a wave of Hunkerism has flooded Massachusetts since the State Convention, reaching up to the ceiling of nearly every editorial sanctum! But the ebb-tide must come.”

Hon. James H. Morton, the magistrate, wrote from Springfield, Massachusetts:—

“I cannot refrain from expressing the satisfaction and pleasure I derived from the perusal of your Worcester speech. In my opinion it expressed the sentiment of a very large majority of the citizens of Massachusetts, and though in advance of the sentiment of the whole country, still, if I can read the signs of the times, our Government, if it has not already reached, is fast approaching, the doctrines there enunciated by you. It seems to me they must be adopted in their length and breadth.”

A writer, admired as “Gail Hamilton,” wrote from Hamilton, Massachusetts:—

“I glory in that speech. It is logic, and sagacity, and morality. Let them maul it. To that complexion must they come at last, and perhaps before. Strange that people will have so much faith in shilly-shally! Strange they will not see that honesty is the best policy, as well as the best religion! But never mind. Do you lead the van.”

Rev. John Weiss, the eloquent preacher, and biographer of Theodore Parker, wrote from Milton:—

“I am surprised and disappointed at the temper shown by the Republicans. Before the Worcester Convention I was ready to declare that the people were only waiting to have the word Emancipation strongly pronounced to repeat it with the aggrandizement of a hundred thousand votes. I am deeply pained to see how the newspapers receive your declarations. They thinly veil a spirit which is ready at the first opportunity to forget the Past, and to sacrifice its living representatives,—the men who alone preserve the glorious Antislavery idea, and whose prophecies can alone secure the Future.... ‘Cry aloud, and spare not.’ Reiterate more flatly and unsparingly, that the war must destroy the evil which engendered it. Give the bullets their billet, and the bayonets something to think about, and lend them a manifesto of Freedom to punctuate. What a Congress will next winter’s be! Compromise will seek to make War its missionary.”

Orestes A. Brownson, Catholic thinker and writer, wrote from Elizabeth, New Jersey:—

“I have re-read your speech at Worcester, and I’m even better pleased with it than I was at the first reading. You have struck the right chord, as the manner in which my own article has been received sufficiently indicates. Our venerable President and his rhetorical adviser, whatever their timidity, or their reluctance, or attachment to the ‘Rule of Three,’ must come to the policy you recommend. It is clear to me that it is impossible to save both the integrity of the Nation and

Southern Slavery, and the great question before us now is, whether we shall sacrifice the Nation to Slavery, or Slavery to the Nation. This is the issue before the people, and this issue we must meet.”

Rev. R. S. Storrs, the eminent Congregational divine, wrote from Braintree, Massachusetts:—

“Your admirable speech before the Worcester Convention ought to have been sooner acknowledged, with the fervent gratitude of my heart, to Heaven and you, for its delivery. The spirit that condemns its argument or author is either the spirit of blind infatuation, or of treachery as foul as marks the Southern Confederates themselves. It surprises and grieves me that *Republicans* wince and scold at the *just* lashing given to the grand conspirator against Liberty and Religion,—for in this contest they are identical. The timeserving policy of multitudes who have hitherto acted with us, and, as it seems to me, of the Administration itself, is revolting, and puts far away the day of peace and prosperity.”

Rev. Francis LeBaron, afterwards of Ohio, earnest against Slavery, wrote from Dighton, Massachusetts:—

“Let me take this opportunity to thank you most heartily for your Worcester speech, and for your Boston lecture. Such noble words dwarf other men’s actions, and make me glad that the feeling of hero-worship is still strong at my heart. I can see honor and victory and glory and permanence on no other path than that by which you would lead the nation. If you will touch men’s hearts so nobly, you must not be surprised that they leap toward you; and when men move my deepest respect and admiration, I must tell them so.”

Rev. Moncure D. Conway, the Reformer, so admirable with his pen, wrote from Cincinnati:—

“Allow me to thank you for the exquisite presentation of the law and the truth in your Worcester speech, which I read in the *Tribune*, to the million of readers guarantied it there, and the million others by the Boston press. I shall secure a large circulation in this city’s press. It is a perfect code for the hour.”

Rev. Rufus P. Stebbins, who sympathized so strongly with the speech on the Barbarism of Slavery, wrote now from Woburn, Massachusetts:—

“Accept a ‘thousand thanks’ for your speech at Worcester. It was a calm, solid, irresistible word. Adoption or no adoption by that Convention was of little consequence. Perhaps *delay* by *such* bodies is wise; but *the people are coming*, and the hour is at hand.”

Rev. Elnathan Davis, the friend of Peace, wrote from Fitchburg:—

“That the position taken in your speech is true I believe the judgment of Massachusetts and the country bears full testimony to-day; and that it is taken in due season I think the very *howl* of a Hunker political press clearly testifies. God give you strength for *this* battle, and, amidst the shifting experiences of the Government, and above ‘the confused noise of the warrior,’ make your word ‘*On to Freedom*’ clearly and widely heard by our countrymen.”

Rev. Moses Thacher, the venerable clergyman, formerly of Massachusetts, wrote from Fort Covington, New York:—

“*God bless you!* Your Worcester speech of the 1st inst. is invaluable. It states the *cause*, the *issue*, and the *remedy* of the war.”

Rev. W. H. Cudworth, chaplain in the army, in a letter from Hooker’s Brigade, Camp Union, wrote:—

“If I bore you, pardon me,—but, sympathizing most heartily in your uncompromising hostility to Slavery, and yet placed by the laws in an embarrassing, if not helpless position, what can I do, in the way of preventing the rendition of fugitives? For instance, one was hidden in our regimental barn. I knew and encouraged it, intending to trot him off, if a favorable chance offered. The owner came, but could not accomplish anything. He came next day with a United States warrant and the Provost Marshal. It wrung my heart, but what could I do?... Meantime let me thank you, as a servant of God and in the name of my brother man, for your Worcester speech, which I have just read, for your magnificent broadside called the ‘Barbarism of Slavery,’ and for all your efforts to break every yoke and let the oppressed go free.”

Hon. Charles W. Slack, connected with the press, and always Antislavery Republican, wrote from Boston:—

“Whether speaking for others or myself individually, I only express a general acknowledgment among all Liberty-loving men, when I say that to you preëminently is assigned the responsible, yet honorable, task of indicating the advance of public sentiment upon the living, overtopping, gigantic question of the day. I thank God daily that we have so earnest, steadfast, and persistent an exponent in the Senate Chamber. May you, then, be delivered and preserved from all harm for even greater achievements!”

John P. Jewett, bookseller, original publisher of *Uncle Tom’s Cabin*, wrote from Boston:—

“I am more than provoked with the unmitigated flunkeyism of the Boston ——— and ——— in their criticisms of your manly and excellent speech at Worcester. Posterity will do you justice, even if the sneaking toadyism of the day refuse it to you. I cannot refrain from writing you a word of sympathy, although perhaps you do not feel the need of it. Rest assured, my noble friend, that God and all truly great and good men are with you, therefore you have nothing to fear from the malice of cowardly time-servers.”

William Kenrick, the horticulturist, wrote from Newton, Massachusetts:—

“I must thank you for your most timely, outspoken speech at the Convention at Worcester. It exactly meets my views,—the views I have long entertained. Yes, here are our natural allies, amongst the slaves.”

Frank B. Sanborn, most earnest where Freedom is in question, wrote from Concord:—

“I have to-day read for the second time your speech before the Worcester Convention, and I am renewedly glad that you made it then and there. I am sure that every passing day will but strengthen its positions, and that they must soon be accepted by the whole Northern people. Indeed, I believe that the people are of that mind now; it is the politicians, and those most timid of all created things, the Republican partisan leaders, who shiver at the thought of raising a *real* issue to displace their shams.... Happily, no great principle like this rests on the turn of

a period or the position of a comma; and if Boston scribblers could show that Marius did not know a slave from a barrel of salt-fish, they would not weaken the argument of your speech.”

Hon. Adin Thayer, a strong Republican, wrote from Worcester:—

“I cannot refrain from expressing to you, even at this late day, my hearty thanks for your brave, earnest speech at the State Convention. Be assured that neither you nor the great truths you advocate will be at all harmed by the malignant attacks of the Hunker press.”

Rev. William Tyler wrote from Pawtucket:—

“Republicans self-styled Conservative do not like your Worcester speech; and yet I meet with some such who admit that the liberation of the slaves of the Rebels must yet be a war policy,—only that the time has not come for its adoption. Well, some must be pioneers, and others will follow at a carefully considered distance: editors and office-seekers will be farthest in the rear. I was not so much surprised at the dissent in yesterday’s *Boston Journal* as at the character of the assault on your speech and on you.”

Hollis Loring, a good Republican, wrote from Marlborough, Massachusetts:—

“Some of our public journals seem disposed to criticize your speech at Worcester on Tuesday, as not reflecting the sentiments of your State. For one, I will say that I listened to your speech with much pleasure. I believe you take the only correct view of the subject; and I know you reflect the sentiment of a large majority of the people in this town. Even some of the most Proslavery Democrats of the past are fully up to your ground to-day.”

James Means, a teacher, always against Slavery, wrote from Auburndale, Massachusetts:—

“I have read with great interest and pleasure your speech at the late Convention in Worcester. And as it has called forth unfriendly criticism, I cannot forbear to express to you my cordial thanks for it.”

Dr. Luther B. Morse, a physician and Republican, wrote from Lowell:—

“I thank you for those manly, true, and earnest words, which it would be well for our country—Government and people—to consider. They involve principles of political economy of unequalled importance to our country, especially in its present condition.”

William W. Thayer, an earnest Republican, wrote from Boston:—

“All honor, then, to the man who *dares* to risk his reputation in representing the Emancipation sentiment of the country! All honor to you, Sir, for taking the leadership of the Emancipationists, who will sooner or later be called upon to march to the ballot-box and there fight Freedom’s battles!... For one, I am glad that you ‘have dragged the eternal Slavery Question’ into politics again, and I feel so glad that I had to write and tell you so.”

Josiah H. Carter, a Boston constituent, wrote:—

“Allow me to congratulate you on the position you took in your speech delivered at Worcester on the first instant. You have now struck the *key-note*. I honor you for it. May the time soon come, when our military, judicial, and executive heads may take their tone from that key! Then, and not till then, can we begin to subdue Rebellion and put a stop to this bloodshed and enormous expenditure.”

Dr. Dio Lewis wrote from Boston:—

“I am more gratified than I can express for your wise, noble, patriotic speech at Worcester.”

Thomas Gaffield, an excellent business man and alderman, wrote from Boston:—

“As you have had, and will have much more, opposition on the part of some newspapers and some men, I have felt it my duty, although only a humble constituent, to give my word of comfort and good cheer, though I doubt not you foresaw all which has followed, and find your comfort in the sense of duty well and fearlessly done. I have no doubt that your speech is prophetic, and of events and ideas not very far in the future.”

Dr. Henry A. Hartt wrote from New York:—

“I am greatly pleased with your speech at Worcester, and it seemed to me a fitting key-note to a general appeal to the masses.”

J. W. Alden, an early Abolitionist, wrote from New York:—

“Cheered and encouraged by your noble speech at Worcester yesterday, which causes a thrill of joy to run through the hearts of the friends of Emancipation in this city, warned by the action of the President in regard to General Fremont’s proclamation, and seeing a disposition in various quarters to put down Rebellion without wiping out its cause, we have come to the conclusion that there is no time to be lost in organizing our committees and inaugurating a movement in the direction indicated above.”

J. P. Lesley, the eminent geologist, wrote from Philadelphia:—

“Why can’t the golden chance be clutched to say to the whole South, ‘Good!—you rebel,—you are no longer slaveholders, nor can you ever be again.’ How it would ring round the world, and transcendently through Heaven! One would think that Abraham Lincoln would be fired at the thought of the unrivalled fame that would succeed the act. Has he not thought of immortality? Or does he wait for Congress to take away the glory from him, or an accident to take away the opportunity?”

Lyman S. Hapgood, paymaster in the army, and a good Republican, wrote from Washington:—

“I have just been reading your speech which was made to the Massachusetts Republicans, at their State Convention, on the first instant; and the policy therein so fully declared, which, in your opinion, it is the duty of the National Government to pursue, agrees so completely with my own views of our country’s difficulties, and her only way of permanent and successful escape, that I could not refrain from expressing to you my gratitude, as a citizen of the good

old Commonwealth, that she has one son, at least, who, regardless of all personal misrepresentations from political enemies or professed friends, has the moral courage to stand up, upon all occasions and under all circumstances, and proclaim what he sincerely believes to be the true and just policy for the Government to adopt.”

A. B. Johnson, of the Treasury Department, wrote from Washington:—

“I thank you from my heart for that noble speech at Worcester. That trumpet gave forth no uncertain sound. Hints have come up from the West, and intimations, vague, undetermined, from the East, before; but it has been left for you to define, announce, and defend a logical policy, and you have accomplished your task.”

H. Catlin, editor of the *True American*, wrote from Erie, Pennsylvania:—

“How lamentable that we should make Human Slavery the one sacred thing under the heavens! Everything else must give way,—every other property may be confiscated, every other right suspended,—but *Slavery* cannot be touched! Our Proslavery education is costing a great deal,—it threatens to cost us our country! Thanks that Senator Sumner so fully appreciates the real issue of the hour, and that, *though a Senator*, he proclaims it manfully and boldly! The masses of the people are with you.”

A. T. Goodman wrote from Cleveland:—

“Your speech of October 1st is before me, and I have read and read it through and through again, no less than three times. There is something about your speeches that has endeared your name to me, and something in their tone and in their teachings that tells me they are right in their meaning, and right in every point, and are very true.”

Thus, from correspondence, as also from the press, it appears that Mr. Sumner was not alone. Others were glowing in the same cause, and their number increased daily. But the great salvation was postponed. Almost a full year was allowed to elapse before the Proclamation of Emancipation. And what a year, whether for those in the tented field and Rebel prisons, or those others waiting, longing, struggling for Union and Peace through Liberty! Nobody could espouse such a cause, and feel that its triumph was essential to save the country from prolonged bloodshed, without effort and anxiety corresponding in some measure to the transcendent interests involved.

From this time forward Mr. Sumner never missed an opportunity of urging Emancipation, whether in addresses before the people and in the Senate, or in direct personal appeal to the President. In the last he was constant, rarely seeing the President without in some way presenting the all-absorbing question. These volumes will show the continuity of his public efforts.

THE REBELLION: ITS ORIGIN AND MAINSRING.

ORATION, UNDER THE AUSPICES OF THE YOUNG MEN'S REPUBLICAN UNION OF
NEW YORK, AT COOPER INSTITUTE, NOVEMBER 27, 1861. WITH APPENDIX.

Cassius. Some to the common pulpits, and cry out,
Liberty, Freedom, and Enfranchisement!

SHAKESPEARE, *Julius Cæsar*, Act III. Scene 1.

The natural strength of the country, in point of numbers, appears to me to consist *much more in the blacks than in the whites*. Could they be incorporated and employed for its defence, it would afford you double security. That they would make good soldiers I have not the least doubt; and I am persuaded the State has it not in its power to give sufficient reinforcements, without incorporating them, either to secure the country, if the enemy mean to act vigorously upon an offensive plan, or furnish a force sufficient to dispossess them of Charleston, should it be defensive.—MAJOR-GENERAL NATHANIEL GREENE, *Letter to Governor Rutledge of South Carolina*. Life and Correspondence, by William Johnson, Vol. II. p. 274.

The assemblage before which this oration was delivered was remarkable in numbers and in character.^[204] Long before the hour for the meeting, the immense hall was crowded; and notwithstanding the stormy evening, the proportion of ladies present was larger than ever before seen in New York on such an occasion.

Upon the platform were seated many distinguished citizens, among whom may be named Hon. William Pennington, ex-Governor of New Jersey and ex-Speaker of the House of Representatives, Hon. Schuyler Colfax of Indiana, Hon. Lot M. Morrill of Maine, Charles King, LL. D., President of Columbia College, Professor Francis Lieber, David Dudley Field, Esq., William M. Evarts, Esq., John Jay, Esq., Rev. Stephen H. Tyng, D. D., Rev. William Hague, D. D., Rev. George B. Cheever, D. D., Rev. Theodore L. Cuyler, Rev. Alfred Cookman, John H. Griscom, M. D., Hon. John W. Edmonds, General Prosper M. Wetmore, Lewis Tappan, Esq., Rev. William Goodell, Hon. Charles A. Peabody, Rev. Roswell D. Hitchcock, D. D., Rev. Henry M. Field, Hon. Thomas B. Stillman, Hon. Benjamin F. Manierré, R. M. Blatchford, Esq., William Pitt Palmer, Esq., D. A. Harsha, Esq., George P. Putnam, Esq., Elliot C. Cowdin, Esq., Hon. William B. Taylor, Postmaster of New York, Hon. Rufus F. Andrews, Surveyor of the Port, Hon. H. B. Stanton, Deputy Collector, Hon. Joseph Hoxie, Major A. A. Selover, U. S. Army, Oliver Johnson, Esq.

Charles T. Rodgers, Esq., President of the "Union," introduced William Curtis Noyes, Esq., as presiding officer of the meeting, and a list of Vice-Presidents and Secretaries was unanimously adopted.

Mr. Noyes, upon taking the chair, delivered the following address.

“LADIES AND GENTLEMEN:—Thanking you, as I do, gratefully, for the kindness which has called me to preside over this meeting, let me remind you that within the modest chapel which impresses with devotional emotions every visitor to Mount Auburn, that most beautiful of American cemeteries, stands a marble statue of one of the patriot leaders of the American Revolution. Its simple dignity arrests attention and commands admiration and respect. Stern resolve and unflinching courage are depicted in lineament and attitude. We see him voluntarily renouncing a high professional office under the crown to take his place in the forum as a private citizen, to oppose, without reward, the odious violations of the liberties of the people by means of Writs of Assistance. His exordium startles the prejudiced judges:—

“‘Let the consequences be what they will, I am determined to proceed. The only principles of public conduct that are worthy of a gentleman or a man are to sacrifice estate, ease, health, and applause, and even life, to the sacred calls of country. These principles, in private life, make the good citizen,—in public life, the patriot and the hero.’

“Then, rising with the progress of his great theme, he continues:—

“‘Every man in a state of Nature is an independent sovereign, subject to no law but the law written upon his heart and revealed to him by his Maker. His right to his life, his liberty, and his property no created being can rightfully contest; these rights are inherent and inalienable.’

“We watch the effect of his indignant words. They convince and awe, and yet the royal tribunal dare not decide. It prevaricates and postpones; but the victory is won, the odious measure is abandoned forever, and the orator’s utterances have lighted up a flame which Independence alone can ever quench.

“We go with him from this first theatre of triumph, through many long years of toil and anxiety in shaping the measures which led to the great conflict with the mother country, to the General Court guided by his skill and political sagacity, to the popular assembly alike aroused to turbulence and hushed to repose by his burning eloquence. We see him hurling defiance at the minions of power who with secret malevolence assailed his reputation. We witness their malignant hatred, and their deadly assault upon his person, when alone and unarmed. We see him fall, covered with wounds, and carried bleeding to his home.

“Thenceforward, to the actual opening of the Revolutionary drama, and during its progress, this act of regal barbarism obscured, but did not wholly extinguish, the light of the great intellect which it sought to destroy; but all that remained was a wreck, reminding only of the glories of the past. The crime against the person added to its atrocity a greater crime against the soul, dooming it to pursue its earthly career in sadness and gloom. Conscious of being only a monument of decay, well might the gradually expiring patriot wish, that, when God, in his righteous Providence, should call him from time into eternity, it might be by a flash of lightning. We may rejoice that his prayer was answered, and that, too

noble to be permitted to die a common death, in a manner equally affecting and sublime, JAMES OTIS [*applause*] was removed to the mansions of eternal felicity.

“It is the necessary result of barbarism, in all its phases, to furnish historic parallels by reproducing itself in viler forms. Not a century elapsed, and a similar atrocity is enacted in the Senate Chamber of the United States. The ruffians were actuated by as deadly a hate, their malice was as foul and murderous, their defiance of law was as manifest, their victim was also the friend and advocate of universal freedom, and as much distinguished and feared, and he also fell beneath the blows of assassins in heart and conduct.

“But here the parallel ends. This outrage did not impair the intellect which it sought to destroy; that survived the trial, enlarged, strengthened, purified, to set forward in a new and more glorious career in the cause of Freedom and Humanity. Instead of the lightning’s flash to remove it to heaven, a divine influence, equal in potency, has emanated thence, inspiring it with a larger love of freedom, more zeal in the cause of the oppressed, and a more earnest conviction that human slavery produces only evil, and that it should be forever eradicated. [*Enthusiastic applause.*]

“Happy, then, for us, and for our country, has been the suffering of these martyrs in the cause of Freedom. The name of James Otis has descended to posterity on the brightest pages of our history, associated with those of Hancock, and Adams, and Jay, and Jefferson, and Henry, and Rutledge, and there it will remain forever.

“The name of that other martyr in the cause of Truth and Justice will find equal distinction, in future ages, on the roll of philanthropists, with those of Howard and Clarkson and Wilberforce, and others of that glorious company, ‘of whom the world was not worthy.’

“But history has also its retributions. The infamous actors in these tragedies passed away under the scorn and contempt of mankind, their names only searched for and remembered among the persecutors and slayers of their race. They who countenanced and approved the last, by a fitting gradation, became the betrayers and assassins of their country, and two of these, the highest in station and basest in conduct, are now awaiting the punishment due to their crimes in a prison within the shadow of Bunker Hill Monument, [*applause,*] which indignantly frowns upon them from base to summit.

“In the reality of the present behold the promise of the future, when all traitors like them shall meet a similar doom. Still devoting himself to the cause of his country and to the freedom of the oppressed, the advocate and friend of all, of whatever rank or condition or color, the scholar, the philanthropist, the martyr, the statesman has come again among us, and it is with equal pride and pleasure that I present to you the Hon. Charles Sumner, not of Massachusetts, but of the United States of America, one and indivisible.”

Mr. Sumner then came forward, and was received by the vast audience with tumultuous applause, in which the ladies joined with every manifestation of delight. The cheers, and waving of hats and handkerchiefs, lasted several minutes.

SPEECH.

MR. PRESIDENT,—It is my nature to be more touched by the kindness of friends than by the malignity of enemies; and I know something of both. You make me feel that I am among friends. Beyond this satisfaction, I have additional pleasure in being welcomed by the Republican Union: first, as you represent the young men, who are the hope and strength of the country; and, secondly, as you constitute an association which has rendered already signal service in saving the country from the rule of the Slave Oligarchy. I know well how you brought forward and supported Abraham Lincoln for the Presidency, and how you adopted and circulated that masterly speech, made in this very hall, which completed those titles to regard that caused his nomination at Chicago and his triumph with the people.

FELLOW-CITIZENS OF NEW YORK:

In the presence of such an auditory, so genial and almost festive in character,—assembled for no purpose of party, or even of politics, in the ordinary sense of the term,—I incline naturally to some topic of literature, history, science, or art,—to something, at least, which accords with peace. But at this moment, when our whole continent is beginning to shake with the tread of mustering armies, the voice refuses any such theme. The ancient poet, longing to sing of Achilles and the house of Atreus, found that he could sing of love only; and he snatched from his lyre its bloody string. Alas! for me the case is all changed. I can speak to you of war only; but be assured, that, if I speak of war, it is because, unhappily, war has become to us the only way of peace.

The Present is apt to appear trivial and unimportant, while the Past and the Future are grand. Rarely do men know the full significance of the period in which they live, and we are inclined to sigh for something better in the

way of opportunity,—such as was given to the hero of the Past, or as imagination allots to the better hero of the Future. But there is no occasion for this repining now. There is nothing in the Past, and it is difficult to imagine anything in the Future, more inspiring than our Present. Even with the curtain yet slightly lifted, it is easy to see that events are gathering, which, in their development, must constitute the third great epoch in the history of this Western Hemisphere,—the first being its discovery by Christopher Columbus, and the second the American Revolution. It remains to be seen if this epoch of ours may not surpass in grandeur either of its two predecessors, so that the fame of the Discoverer and the fame of the Liberator, of Columbus and of Washington, shall be eclipsed by the mild effulgence beaming from an act of godlike justice, creating within its immediate influence a new heaven and a new earth, and extending to other lands a life-giving example, so long as men struggle for rights denied, so long as any human being wears a chain. And this sublime act will be the present substitute for armies. The ancient Spartan, being asked, “Which is the greater virtue, justice or valor?” answered in memorable words, “Where justice is, there can be no need of valor.”

War is always an epoch. Unhappily, history counts by wars. Of these, some are wars of ideas,—like that between Catholics and Huguenots in France, between Catholics and Protestants in Germany, between the arbitrary crown of Charles the First and the Puritanism of Oliver Cromwell, and like that between our fathers and the mother country, when the Declaration of Independence was put in issue. Some originate in questions of form, some in the contentions of families, some in the fickleness of princes, and some in the machinations of politicians. England waged war on Holland, and one of the reasons openly assigned was an offensive picture in the Town-Hall of Amsterdam. France hurled armies across the Rhine, carrying fire and slaughter into the Palatinate, and involving great nations in most bloody conflict,—and all this wickedness is traced to the intrigue of a minister, to divert the attention of his sovereign. But we are now in the midst of a war which, whatever the reasons assigned by the unhappy men who began it, or by those who sympathize with them elsewhere, has an origin and mainspring so clear and definite as to be beyond question. Ideas are sometimes good and sometimes bad; and there may be a war for evil as well as for good. Such was that earliest rebellion waged by fallen spirits

against the Almighty Throne; and such is that now waged by fallen slave-masters of our Republic against the National Government. I adopt the language of Milton, in his masterly prose, when I call it “a war fit for Cain to be the leader of,—an abhorred, a cursed, a fraternal war.”^[205] Nor can any courage in Rebels give true honor. If victorious, they will be only Satanic saints of Slavery, with place in a most hateful hagiology.

If you will kindly listen, I shall endeavor to unmask this Rebellion in its Origin and Mainspring. Only when these are known can you determine how it is to be treated. Your efforts will be governed by the character of the adverse force,—whether regarded as motive power or as disease. A steam-engine is stopped at once by stopping the steam. A ghastly cancer, which has grappled the very fibres of the human frame, and shot its poison through every vein, will not yield to lip-salve or rosewater.

“Diseases desperate grown
By desperate appliances are relieved,
Or not at all.”

On the sixth of November last, the people of the United States, acting in pursuance of the Constitution and laws, chose Abraham Lincoln President. Of course this choice was in every particular perfectly constitutional and legal. As such, it was entitled to the respect and acquiescence of every good citizen. It is vain to say that the candidate represented opinions obnoxious to a considerable section of the country, or that he was chosen by votes confined to a special section. It is enough that he was duly chosen. You cannot set aside or deny such an election, without assailing not only the whole framework of the Constitution, but also the primal principle of American institutions. You become a traitor at once to the existing government and to the very idea of popular rule. You snatch a principle from the red book of despotism, and openly substitute the cartridge-box for the ballot-box.

And yet scarcely had this intelligence flashed across the country before the mutterings of sedition and treason began to reach us from an opposite quarter. The Union was menaced; and here the first distinct voice came from South Carolina. A Senator from that State, one of the largest slaveholders of the country, and a most strenuous partisan of Slavery, [Mr.

HAMMOND,] openly declared, in language not easily forgotten, that before the 18th of December South Carolina would be “out of the Union, high and dry and forever.” These words heralded the outbreak. With the pertinacity of demons its leaders pushed forward. Their avowed object was the dismemberment of the Republic, by detaching State after State, in order to found a Slaveholding Confederacy. And here the clearest utterance came from a late Representative of Georgia [Mr. STEPHENS], now Vice-President of the Rebel States, who did not hesitate to proclaim that “the foundations of the new government are laid upon the great truth, that Slavery, subordination to the superior race, is the negro’s natural and moral condition,”—that “it is the first government in the history of the world based upon this great physical, philosophical, and moral truth,”—and that “the stone which was rejected by the first builders is in the new edifice become *the chief stone of the corner*.”^[206] Here is a savage frankness, with insensibility to shame. The object avowed is hideous in every aspect, whether we regard it as treason to our paternal government, as treason to the idea of American institutions, or as treason to those commanding principles of economy, morals, and Christianity, without which civilization is no better than barbarism.

And now we stand front to front in deadly conflict with this double-headed, triple-headed treason. Beginning with those States most peculiarly interested in Slavery, and operating always with intensity proportioned to the prevalence of Slavery, it fastens upon other States less interested,—Tennessee, North Carolina, Virginia,—and with much difficulty is prevented from enveloping every State containing slaves, no matter how few: for such is the malignant poison of Slavery that only a few slaves constitute a Slave State with all the sympathies and animosities of Slavery. This is the Rebellion which I am to unmask. Bad as it is on its face, it becomes aggravated, when we consider its origin, and the agencies by which it is conducted. It is not merely a Rebellion, but it is a Rebellion begun in conspiracy; nor, in all history, ancient or modern, is there any record of conspiracy so vast and so wicked, ranging over such spaces both of time and territory, and forecasting such results. A conspiracy to seize a castle or to assassinate a prince is petty by the side of this enormous, protracted treason, where half a continent is seized, studded with castles, fortresses, and public edifices, where the Government itself is overthrown,

and the President, on his way to the national capital, narrowly escapes most cruel assassination.

But no conspiracy could ripen such pernicious fruit, if not rooted in a soil of congenial malignity. To appreciate properly this influence, we must go back to the beginning of the Government.

South Carolina, which takes so forward a part in this treason, hesitated originally, as is well known, with regard to the Declaration of Independence. Once her vote was recorded against this act; and when it finally prevailed, her vote was given for it only formally and for the sake of seeming unanimity.^[207] But so little was she inspired by the Declaration, that, in the contest which ensued, her commissioners made a proposition to the British commander which is properly characterized by an able historian as “equivalent to an offer from the State to return to its allegiance to the British crown.”^[208] The hesitation with regard to the Declaration of Independence was renewed with regard to the National Constitution; and here it was shared by another State. Notoriously, both South Carolina and Georgia, which, with the States carved from their original territory, Alabama and Mississippi, constitute the chief seat of the conspiracy, hesitated in becoming parties to the Union, and stipulated expressly for recognition of the slave-trade in the National Constitution as an indispensable condition. In the Convention, Mr. Rutledge, of South Carolina, while opposing a tax on the importation of slaves, said: “The true question at present is, *whether the Southern States* shall or shall not be parties to the Union.” Mr. Pinckney, also of South Carolina, followed with the unblushing declaration: “South Carolina can never receive the plan [of the Constitution], *if it prohibits the slave-trade.*” I quote now from Mr. Madison’s authentic report of these important debates.^[209] With shame let it be confessed, that, instead of repelling this disgraceful overture, our fathers submitted to it, and in that submission you find the beginning of present sorrows. The slave-trade, whose annual iniquity no tongue can tell, was placed for twenty years under safeguard of the Constitution, thus giving sanction, support, and increase to Slavery itself. The language is modest, but the intent was complete. South Carolina and Georgia were pacified, and took their places in the Union, to which they were openly bound only by a

most hateful tie. Regrets for the past are not entirely useless, if out of them we get wisdom for the future, and learn to be brave. It is easy to see now, that, had the unnatural pretensions of these States been originally encountered by stern resistance worthy of an honest people, the present conspiracy would have been crushed before it saw the light. Its whole success, from its distant beginning down to this hour, has been from our timidity.

There was also another sentiment, of kindred perversity, which prevailed in the same quarter. This is vividly portrayed by John Adams, in a letter to General Gates, dated at Philadelphia, 23d March, 1776:—

“However, my dear friend Gates, all our misfortunes arise from a single source: *the reluctance of the Southern Colonies to Republican Government.*”^[210]

And he proceeds to declare in strong language that “popular principles and axioms are abhorrent to the inclinations of the barons of the South.” This letter was written in the early days of the Revolution. At a later date John Adams testifies again to the discord between the North and the South, and refers particularly to the period after the National Constitution, saying: “The Northern and the Southern States were immovably fixed in opposition to each other.”^[211] This was before any question of Tariff or Free Trade, and before the growing fortunes of the North had awakened Southern jealousy. The whole opposition had its root in Slavery,—as also had the earlier resistance to Republican Government.

In the face of these influences the Union was formed, but the seeds of conspiracy were latent in its bosom. The spirit already revealed was scarcely silenced; it was not destroyed. It still existed, rankling, festering, burning to make itself manifest. At the mention of Slavery it always appeared full-armed with barbarous pretensions. Even in the first Congress under the Constitution, at the presentation of that famous petition where Benjamin Franklin simply called upon Congress to step to the verge of its power to discourage every species of traffic in the persons of our fellow-men, this spirit broke forth in violent threats. With kindred lawlessness it early embraced that extravagant dogma of State Rights which has been ever since the convenient cloak of treason and conspiracy. At the Missouri

Question, in 1820, it openly menaced dissolution of the Union. Instead of throttling the monster, we submitted to feed it with new concessions. Meanwhile the conspiracy grew, until, at last, in 1830, under the influence of Mr. Calhoun, it assumed the defiant front of Nullification; nor did it yield to the irresistible logic of Webster or the stern will of Jackson without a compromise. The pretended ground of complaint was the Tariff; but Andrew Jackson, himself a patriot Slaveholder, at that time President, saw the hollowness of the complaint. In a confidential letter, only recently brought to light, dated at Washington, May 1, 1833, and which during the last winter I had the honor of reading and holding up before the Senatorial conspirators in the original autograph, he says:—

“The Tariff was only the *pretext*, and Disunion and a Southern Confederacy the real object. *The next pretext will be the Negro or Slavery Question.*”^[212]

Jackson was undoubtedly right; but the pretext which he denounced in advance was employed so constantly afterwards as to become threadbare. At the earliest presentation of Abolition petitions,—at the Texas Question,—at the Compromises of 1850,—at the Kansas Question,—at the possible election of Fremont,—on all these occasions, the Union was threatened by angry Slave-Masters.

The conspiracy is unblushingly confessed by recent parties to it. Especially was this done in the Rebel Convention of South Carolina, where, one after another, the witnesses testified all the same way.

Mr. Parker said: “Secession is no spasmodic effort that has come suddenly upon us. *It has been gradually culminating for a long period of thirty years.*”

Mr. Inglis followed: “Most of us have had this matter under consideration for *the last twenty years.*”

Mr. Keitt, Representative in Congress, gloried in his work, saying: “I have been engaged in this movement *ever since I entered political life.*”

Mr. Rhett, who was in the Senate when I first entered that body, and did not hesitate then to avow himself a Disunionist, declared in the same Convention: “It is not anything produced by Mr. Lincoln’s election, or by

the non-execution of the Fugitive Slave Law: *it is a matter which has been gathering head for thirty years.*"^[213]

The conspiracy, thus exposed by Jackson, and confessed by recent parties to it, was quickened by the growing passion for Slavery throughout the Slave States. The well-known opinions of the Fathers, the declared convictions of all most valued at the foundation of the Government, and the example of Washington were discarded, and it was recklessly avowed that Slavery is a divine institution, the highest type of civilization, a blessing to master and slave alike, and the very key-stone of our national arch. A generation has grown up with this teaching, so that it is now ready to say with Satan,—

“Evil, be thou my good! by thee at least
Divided empire with Heaven’s King I hold;
By thee, and more than half perhaps, will reign:
As man, ere long, and this new world, shall know.”

It is natural that a people thus trained should listen to the voice of conspiracy. Slavery itself is a constant conspiracy; and its supporters, whether in the Slave States or elsewhere, easily become indifferent to all rights and principles by which it may be constrained.

This rage for Slavery was quickened by two influences, which have exhibited themselves since the formation of our Union,—one economical, and the other political. The first was the unexpected importance of the cotton crop, which, through the labor of slaves and the genius of a New England inventor, passed into an extraordinary element of wealth and of imagined strength, so that we have all been summoned to homage to cotton as king. The second was the temptation of political power, than which no influence is more potent,—for it became obvious that this could be assured to Slavery only through the permanent preponderance of its representatives in the Senate; so that the continued control of all offices and honors was made to depend upon the extension of Slavery. Thus, through two strong appetites, one for gain and the other for power, was Slavery stimulated; but the conspiracy was strong only through Slavery.

Even this conspiracy, thus supported and nurtured, would have been more wicked than strong, if it had not found perfidious aid in the very

Cabinet of the President. The Secretary of the Treasury, a Slave-Master from Georgia, the Secretary of the Interior, a Slave-Master from Mississippi, the Secretary of War, the notorious Floyd, a Slave-Master from Virginia, and I fear also the Secretary of the Navy, who was a Northern man with Southern principles, lent their active exertions. Through these eminent functionaries the treason was organized and directed, while their important posts were prostituted to its infamy. Here again you see the extent of the conspiracy. Never before, in any country, was there a similar crime which embraced so many persons in the highest places of power, or took within its grasp so large a theatre of human action. Anticipating the election of Mr. Lincoln, the Cabinet conspirators prepared the way for rebellion.

First, the army of the United States was so far dispersed and exiled, that the commander-in-chief found it difficult, during the recent anxious winter, to bring together a thousand troops for the defence of the national capital, menaced by the conspirators.

Secondly, the navy was so far scattered or dismantled, that on the 4th of March, when the new Administration came into power, there were no ships to enforce the laws, collect the revenues, or protect the national property in the Rebel ports. Out of seventy-two vessels of war, counted as our navy, it appears that the whole available force at home was reduced to the steamer Brooklyn, carrying twenty-five guns, and the store-ship Relief, carrying two guns.

Thirdly, the forts on the extensive Southern coast were so far abandoned by the public force, that the larger part, counting upwards of 1,200 cannon, and built at a cost of more than six million dollars, became at once an easy prey to the Rebels.

Fourthly, national arms were transferred from Northern to Southern arsenals, so as to disarm the Free States and equip the Slave States. This was done on a large scale. Upwards of 115,000 arms, of the latest and most approved pattern, were transferred from the Springfield and Watervliet arsenals to different arsenals in the Slave States, where they were seized by the Rebels; and a quarter of a million percussion muskets were sold to various Slave States for \$2.50 a musket, when they were worth, it is said,

on an average, \$12. Large quantities of cannon, mortars, powder, ball, and shell received the same direction.

Fifthly, the National Treasury, so recently prosperous beyond example, was disorganized and plundered even to the verge of bankruptcy. Upwards of six millions are supposed to have been stolen, and much of this treasure doubtless went to help the work of Rebellion.

Thus, even before its outbreak, the conspiracy contrived to degrade and despoil the Government, so as to secure free course for the projected rebellion. The story seems incredible. But it was not enough to disperse the army, to scatter the navy, to abandon forts, to disarm the Free States, and to rob the Treasury. The President of the United States, solemnly sworn to execute the laws, was won into a system of inactivity amounting to practical abdication of his great trust. He saw treason plotting to stab at the heart of his country, saw conspiracy, daily, hourly, putting on the harness of rebellion, but, though warned by the watchful general-in-chief, he did nothing to arrest it, standing always,

“like a painted Jove,
With idle thunder in his lifted hand.”^[214]

Ay, more; instead of instant lightnings, smiting and blasting in their fiery crash, which an indignant patriotism would have hurled, he nodded sympathy and acquiescence. No page of history is more melancholy, because nowhere do we find a ruler who so completely abandoned his country: not Charles the First in his tyranny, not Louis the Sixteenth in his weakness. Mr. Buchanan was advanced to power by Slave-Masters, who knew well that he could be used for Slavery. The Slaveholding conspirators were encouraged to sit in his Cabinet, where they doubly betrayed their country, first by evil counsels, and then by disclosing what passed to distant Slaveholding confederates. The sudden act of Major Anderson, in removing from Fort Moultrie to Fort Sumter, and the sympathetic response of an aroused people, compelled a change of policy, and the Rebellion received its first check. After painful struggle, it was decided at last that Fort Sumter should be maintained. It is difficult to exaggerate the importance of that decision, which, I believe, was due mainly to an eminent Democrat,—General Cass. This, at least, is true: it saved the national capital.

Meanwhile the conspiracy increased in activity, mastering State after State, gathering its forces and building its batteries. The time had come for the tragedy to begin. "At Nottingham," says the great English historian, speaking of King Charles the First, "he erected his royal standard, the open signal of discord and civil war throughout the kingdom."^[215] The same open signal now came from Charleston, when the conspirators ran up the Rattle-Snake flag, and directed their wicked cannonade upon the small, half-famished garrison of Sumter.

Were this done in the name of Revolution, or by virtue of any revolutionary principle, it would assume a familiar character. But such is not the case. It is all done under pretence of constitutional right. The forms of the Constitution are seized by the conspirators, as they have already seized everything else, and wrested to the purposes of treason. It is audaciously declared, that, under the existing Constitution, each State, in the exercise of its own discretion, may withdraw from the Union; and this asserted right of secession is invoked as cover for Rebellion begun in conspiracy. The election of Mr. Lincoln is made the *occasion* for the exercise of this pretended right; certain opinions at the North on the subject of Slavery are made the *pretext*.

Who will not deny that this election can be a just *occasion*?

Who will not condemn the *pretext*?

But both occasion and pretext are determined by Slavery, and thus testify to the part it constantly performs.

The pretended right of secession is not less monstrous than the pretext or the occasion; and this, too, is born of Slavery. It belongs to that brood of assumptions and perversions of which Slavery is prolific parent. Wherever Slavery prevails, this pretended right is recognized, and generally with an intensity proportioned to the prevalence of Slavery,—as, for instance, in South Carolina and Mississippi more intensely than in Tennessee and Kentucky. It may be considered a fixed part of the slaveholding system. A pretended right to set aside the Constitution, to the extent of breaking up the Government, is the natural companion of the pretended right to set aside

human nature, making merchandise of men. They form a well-matched couple, and travel well together,—destined to perish together. If we do not overflow toward the former with the same indignation which we feel for the latter, it is because its absurdity awakens our contempt. An English poet of the last century exclaims, in mocking verses,—

“Crowned be the man with lasting praise
Who first contrived the pin,
To loose mad horses from the chaise,
And save the necks within.”^[216]

Such is the impossible contrivance now attempted. Nothing is clearer than that this pretension, if acknowledged, leaves to every State the right to play the “mad horse,” with very little chance of saving anything. It takes from the Government not merely unity, but all security of national life, and reduces it to the shadow of a name, or, at best, a mere tenancy at will,—an unsubstantial form, to be decomposed at the touch of a single State. Of course, such an anarchical pretension, so instinct with all the lawlessness of Slavery, must be encountered peremptorily. It is not enough to declare dissent. We must so conduct as not to give it recognition or foothold. [*Applause.*]

Instead of scouting this pretension, and utterly spurning it, new concessions to Slavery were gravely propounded as the means of pacification,—like a new sacrifice offered to an obscene divinity. It was argued, that in this way the Border States at least might be preserved to the Union, and some of the Cotton States perhaps won back to duty: in other words, that, in consideration of such concessions, these States would consent to waive a present exercise of the pretended right of secession. Against all such propositions, without considering their character, stands on the threshold one obvious and imperative objection. It is clear that the very bargain or understanding, whether express or implied, is a recognition of this pretended right, and that a State yielding only to such appeal, and detained through concessions, practically asserts the claim, and holds it for future exercise. Thus a concession called small becomes infinite; for it concedes the pretended right of secession, and makes the permanence of the National Government impossible. Amidst all the grave responsibilities of the hour, we must take care that the life of the Republic is sacredly

preserved. But this would be sacrificed at once, did we submit its existence to the conditions proposed.

Looking at these concessions, I have always found them utterly unreasonable and indefensible. I should not expose them now, if they did not testify constantly to the Origin and Mainspring of this Rebellion. Slavery was always the single subject-matter, and nothing else. Slavery was not only an integral part of every concession, but the single integer. The one idea was to give some new security, in some form, to Slavery. That brilliant statesman, Mr. Canning, in one of those eloquent speeches which charm so much by style, said that he was “tired of being a security-grinder”; but his experience was not comparable to ours. “Security-grinding,” in the name of Slavery, has been for years the way in which we have wrestled with this conspiracy. [*Laughter and applause.*]

The propositions at the last Congress began with the President’s Message, which in itself was one tedious concession. You cannot forget his sympathetic portraiture of the disaffection throughout the Slave States, or his testimony to the cause. Notoriously and shamefully his heart was with the conspirators, and he knew intimately the mainspring of their conduct. He proposed nothing short of general surrender; and thus did he proclaim Slavery as the head and front, the very *causa causans*, of the whole crime.

Nor have you forgotten the Peace Conference, as it was delusively styled, convened at Washington on the summons of Virginia, with John Tyler in the chair, where New York, as well as Massachusetts, was represented by her ablest and most honored citizens. The sessions were with closed doors; but it is now known that throughout the proceedings, lasting for weeks, nothing was discussed but Slavery. And the propositions finally adopted by the Convention were confined to Slavery. Forbearing all detail, it will be enough to say that they undertook to provide positive protection for Slavery under the Constitution, with new sanction and immunity,—making it, notwithstanding the determination of our fathers, *national* instead of *sectional*; and even more, making it an essential and permanent part of our republican system. Slavery is sometimes deceitful, as at other times bold; and these propositions were still further offensive from their studied uncertainty, amounting to positive duplicity. At a moment when frankness was needed above all things, we were treated to phrases pregnant with

doubt and controversy, and were gravely asked, in the name of Slavery, to embody them in the National Constitution.

There was another string of propositions much discussed during the last winter, which acquired the name of the venerable Senator from whom they came,—Mr. Crittenden, of Kentucky. These also related to Slavery, and nothing else. They were more obnoxious even than those from the Peace Conference. And yet there were petitioners from the North, even from Massachusetts, who prayed for this great surrender. Considering the character of these propositions,—that they sought to change the Constitution in a manner revolting to the moral sense, to foist into its very body the idea of property in man, to protect Slavery in all present territory south of $36^{\circ} 30'$, and to carry it into all territory hereafter acquired south of that line, and thus to make our beautiful Stars and Stripes in their southern march the flag of infamy,—considering that they provided new constitutional securities for Slavery in the national capital and in other places within the exclusive national jurisdiction, new constitutional securities for the transit of slaves from State to State, opening the way to a roll-call of slaves at the foot of Bunker Hill or the door of Faneuil Hall, and also the disfranchisement of nearly ten thousand of my fellow-citizens in Massachusetts, whose rights are fixed by the Constitution of that Commonwealth, drawn by John Adams,—considering these things, I felt at the time, and I still feel, that the best apology of these petitioners was that they were ignorant of their true character, and that in signing the petition they knew not what they did. But even in their ignorance they bore witness to Slavery, while the propositions were the familiar voice of Slavery, crying, “Give! give!”

There was another single proposition from still another quarter, but, like all the rest, it related exclusively to Slavery. It was to insert in the text of the Constitution a stipulation against any future amendment authorizing Congress to interfere with Slavery in the States. If you read this proposition, you will find it crude and ill-shaped,—a jargon of bad grammar, a jumble and hodge-podge of words,—harmonizing poorly with the accurate text of our Constitution. But even if tolerable in form, it was obnoxious, like the rest, as a fresh stipulation in favor of Slavery. Sufficient, surely, in this respect, is the actual Constitution. Beyond this I cannot I will not go. What

Washington, Franklin, Madison, and Hamilton would not insert we cannot err in rejecting. [*Applause.*]

I do not dwell on other propositions, because they attracted less attention; and yet among these was one to overturn the glorious safeguards of Freedom set up in the Free States, known as the Personal Liberty Laws. Here again was Slavery—with a vengeance.

There is one remark which I desire to make with regard to all these propositions. It was sometimes said that the concessions they offered were “small.” What a mistake is this! No concession to Slavery can be “small.” Freedom is priceless, and in this simple rule alike of morals and jurisprudence you find the just measure of any concession, how small soever it may seem, by which Freedom is sacrificed. Tell me not that it concerns a few only. I do not forget the saying of Antiquity, that the best government is where an injury to a single individual is resented as an injury to the whole State; nor am I indifferent to that memorable instance of our own recent history, where, in a distant sea, the thunders of our navy, with all the hazards of war, were aroused to protect the liberty of a solitary person claiming the rights of an American citizen. By such examples let me be guided, rather than by the suggestion, that Human Freedom, whether in many or in few, is of so little value that it may be put in the market to appease a traitorous conspiracy, or soothe accessories, who, without such concession, threaten to join the conspirators.

Warnings of the past, like the suggestions of reason and of conscience, were all against concession. Timid counsels always are an encouragement to sedition and rebellion. If the glove be of velvet, the hand must be of iron. An eminent master of thought, in some of his most vivid words, has bravely said,—

“To expect to tranquillize and benefit a country by gratifying its agitators would be like the practice of the superstitious of old with their sympathetic powders and ointments, who, instead of applying medicaments to the wound, contented themselves with salving the sword which had inflicted it. Since the days of Dane-gelt downwards, nay,

since the world was created, nothing but evil has resulted from concessions made to intimidation.”^[217]

These are the words of Archbishop Whately, in his annotation to an Essay of Bacon,—and how applicable to our times, when it is so often proposed *to salve the sword of Secession!*

In the same spirit spoke the most shining practical statesman of English history, Mr. Fox.

“To humor the present disposition, and temporize, is a certain, absolutely certain, confirmation of the evil. No nation ever did or ever can recover from Slavery by such methods.”^[218]

Pardon me, if I express regret, profound and heartfelt, that the pretensions of Slavery, whether in claim of privilege or in doctrine of secession, were not always encountered boldly and austere. Alas! it is ourselves that have encouraged the conspiracy, and made it strong. Secession has become possible only through long continued concession. In proposing concession we encourage secession, and while professing to uphold the Union, we betray it. It is now beyond question that the concessionists of the North have from the beginning played into the hands of the secessionists of the South. I do not speak in harshness, or even in criticism, but simply according to my duty, in unfolding historically the agencies, conscious and unconscious, at work, while I hold them up as a warning for the future. They all testify to Slavery, which from earliest days has been at the bottom of the conspiracy, and also at every stage of the efforts to arrest it. It was Slavery which fired the conspirators, and Slavery also which entered into every proposition of compromise. Secession and concession both had their root in Slavery.

And now, after this review, I am brought again to the significance of that Presidential election with which I began. The Slave-Masters entered into that election with Mr. Breckinridge as their candidate, and their platform claimed constitutional protection for Slavery in all territories, whether now belonging to the Republic or hereafter acquired. This concession was the

ultimatum on which was staked their continued loyalty to the Union,—as the continuance of the Slave-Trade was the original condition on which South Carolina and Georgia entered the Union. And the reason, though criminal, was obvious. It was because without such opportunity of expansion Slavery would be stationary, while the Free States, increasing in number, would obtain a fixed preponderance in the National Government, assuring to them the political power. Thus at that election the banner of the Slave-Masters had for open device, not the Union as it is, but the extension and perpetuation of human bondage. The popular vote was against further concession, and the conspirators proceeded with their crime. The *occasion* so long sought had come. The *pretext* foreseen by Andrew Jackson was the motive power.

Here mark well, that, in their whole conduct, the conspirators acted naturally, under instincts implanted by Slavery; nay, they acted logically even. *Such is Slavery, that it cannot exist, unless it owns the Government.* An injustice so plain can find protection only from a Government which is a reflection of itself. Cannibalism cannot exist except under a government of cannibals. Idolatry cannot exist except under a government of idolaters. And Slavery cannot exist except under a government of Slave-Masters. This is positive, universal truth,—at St. Petersburg, Constantinople, Timbuctoo, or Washington. The Slave-Masters of our country saw that they were dislodged from the National Government, and straightway they rebelled. The Republic, which they could no longer rule, they determined to ruin. And now the issue is joined. Slavery must either rule or die.

Though thus audaciously criminal, the Slave-Masters are not strong in numbers. The whole number, great and small, according to the recent census, is not more than four hundred thousand,—of whom there are less than one hundred thousand interested to any considerable extent in this peculiar species of property.^[219] And yet this petty oligarchy—itsself controlled by a squad still more petty—in a population of many millions, has aroused and organized this gigantic rebellion. But success is explained by two considerations. First, the asserted value of the slaves, reaching at this date to the enormous sum-total of two thousand millions of dollars, constitutes an overpowering property interest, one of the largest in the world,—greatly increased by the intensity and unity of purpose naturally belonging to the representatives of such a sum-total, stimulated by the

questionable character of the property. But, secondly, it is a phenomenon attested by the history of revolutions, that all such movements, at least in their early days, are controlled by minorities. This is because a revolutionary minority, once embarked, has before it only the single, simple path of unhesitating action. While others doubt or hold back, the minority strikes and goes forward. Audacity then counts more than numbers, and crime counts more than virtue. This phenomenon has been observed before. “Often have I reflected with awe,” says Coleridge, “on the great and disproportionate power which an individual of no extraordinary talents or attainments may exert by merely throwing off all restraint of conscience.... The abandonment of all *principle of right* enables the soul to choose and act upon a *principle of wrong*, and to subordinate to this one principle all the various vices of human nature.”^[220] These are remarkable and most suggestive words. But when was a “principle of wrong” followed with more devotion than by our Rebels?

The French Revolution furnishes authentic illustration of a few predominating over a great change. Among the good men at that time who followed “principle of right” were others with whom success was the primary object, while even good men sometimes forgot goodness; but at each stage a minority gave the law. Pétion, the famous mayor of Paris, boasted, that, when he began, “there were but five men in France who wished a Republic.”^[221] From a contemporary debate in the British Parliament, it appears that the asserted power of a minority was made the express ground of appeal by French revolutionists to the people of other countries. Sheridan, in a brilliant speech, dwells on this appeal, and by mistake ascribes to Condorcet the unequivocal utterances, that “revolutions must always be the work of the minority,”—that “every revolution is the work of a minority,”—that “the French Revolution was accomplished by the minority.”^[222] This philosopher, who sealed his principles by a tragical death, did say, in an address to the Parliamentary Reformers of England, that from Parliamentary reform “the passage to the complete establishment of a republic would be short and easy”;^[223] but it was Cambon, the financier of the Revolution, and one of its active supporters, who, in the National Convention, put forth the cries attributed to Condorcet.^[224] The part of the minority was also attested by Brissot de Warville, who imputed the triumph of the Jacobins, under whose bloody sway his own life became a sacrifice,

to “some twenty men,” or, as he says in another place, “a score of anarchists,” and then again, “a club, or rather a score of those robbers who direct that club.”^[225]

The future historian will record, that the present rebellion, notwithstanding its protracted origin, the multitudes it enlisted, and its extensive sweep, was at last precipitated by fewer than twenty men,—Mr. Everett says by as few as eight or ten.^[226] It is certain that thus far it has been the triumph of a minority,—but of a minority moved, inspired, combined, and aggrandized by Slavery.

And now this traitorous minority, putting aside the sneaking, slimy devices of conspiracy, steps forth in full panoply of war. Assuming all functions of government, it organizes States under a common head,—sends ambassadors into foreign countries,—levies taxes,—borrows money,—issues letters of marque,—and sets armies in the field, summoned from distant Georgia, Louisiana, and Texas, as well as from nearer Virginia, and composed of the whole lawless population, the poor who cannot own slaves as well as the rich who pretend to own them, throughout the extensive region where with Satanic grasp this Slave-Master minority claims for itself

“ample room and verge enough
The characters of Hell to trace.”

Pardon the language I employ. The words of the poet picture not too strongly the object proposed. And now these parricidal hosts stand arrayed against that paternal Government to which they owe loyalty, defence, and affection. Never in history did rebellion assume such front. Call their number 400,000 or 200,000,—what you will,—they far surpass any armed forces ever before marshalled in rebellion; they are among the largest ever marshalled in war.

All this is in the name of Slavery, and for the sake of Slavery, and at the bidding of Slavery. The profligate favorite of the English monarch, the famous Duke of Buckingham, was not more exclusively supreme, even according to the words by which he was placarded to the judgment of his contemporaries:—

“Who rules the kingdom? The King.
Who rules the King? *The Duke*.
Who rules the Duke? The Devil.”

Nor according to that decree by which the House of Commons declared him “the cause of all the national calamities.” The dominant part of the royal favorite belongs now to Slavery, which is the cause of all the national calamities, while in the Rebel States it is a more than royal favorite.

Who rules the Rebel States? The President.
Who rules the President? *Slavery*.
Who rules Slavery?

The last question I need not answer. But all must see—and nobody will deny—that Slavery is the ruling idea of this Rebellion. It is Slavery that marshals these hosts and breathes into their embattled ranks its own barbarous fire. It is Slavery that stamps its character alike upon officers and men. It is Slavery that inspires all, from General to trumpeter. It is Slavery that speaks in the word of command, and sounds in the morning drum-beat. It is Slavery that digs trenches and builds hostile forts. It is Slavery that pitches its wicked tents and stations its sentries over against the national capital. It is Slavery that sharpens the bayonet and runs the bullet,—that points the cannon, and scatters the shell, blazing, bursting with death. Wherever this Rebellion shows itself, whatever form it takes, whatever thing it does, whatever it meditates, it is moved by Slavery; nay, the Rebellion is Slavery itself, incarnate, living, acting, raging, robbing, murdering, according to the essential law of its being. [*Applause.*]

Not this is all. The Rebellion is not only ruled by Slavery, but, owing to the peculiar condition of the Slave States, it is for the moment, according to their instinctive boast, actually reinforced by this institution. As the fields of the South are cultivated by slaves, and labor there is performed by this class, the white freemen are at liberty to play the part of rebels. The slaves toil at home, while the masters work at rebellion; and thus, by singular fatality, is this doomed race, without taking up arms, actually engaged in feeding, supporting, succoring, invigorating those battling for their enslavement. Full well I know that this is an element of strength only through the forbearance of our own Government; but I speak of things as

they are; and that I may not seem to go too far, I ask attention to the testimony of a Southern journal.

“THE SLAVES AS A MILITARY ELEMENT IN THE SOUTH—The total white population of the eleven States now comprising the Confederacy is six millions, and therefore, to fill up the ranks of the proposed army, six hundred thousand—about ten per cent of the entire white population—will be required. In any other country than our own such a draft could not be met; but the Southern States can furnish that number of men, and still not leave the material interests of the country in a suffering condition. Those who are incapacitated for bearing arms can oversee the plantations, and *the negroes can go on undisturbed in their usual labors*. In the North the case is different; the men who join the army of subjugation are the laborers, the producers, and the factory operatives. Nearly every man from that section, especially those from the rural districts, leaves some branch of industry to suffer during his absence. *The institution of Slavery in the South alone enables her to place in the field a force much larger in proportion to her white population than the North*, or indeed any country which is dependent entirely on free labor. The institution is a tower of strength to the South, *particularly at the present crisis*, and our enemies will be likely to find that the ‘moral cancer,’ about which their orators are so fond of prating, is really *one of the most effective weapons employed against the Union by the South*. Whatever number of men be needed for this war we are confident our people stand ready to furnish. We are all enlisted for the war, and there must be no holding back, until the independence of the South is fully acknowledged.”^[227]

As the Rebels have already confessed the conspiracy which led to the Rebellion, so in this article do they openly confess the mainspring of their power. With triumphant vaunt, they declare Slavery the special source of their belligerent strength.

But Slavery must be seen not only in what it does for the Rebellion, of which it is indisputable head, fountain, and life, but also in what it inflicts upon us. There is not a community, not a family, not an individual, man, woman, or child, that does not feel its heavy, bloody hand. Why these mustering armies? Why this drum-beat in your peaceful streets? Why these gathering means of war? Why these swelling taxes? Why these unprecedented loans? Why this derangement of business? Why among us *Habeas Corpus* suspended, and all safeguards of Freedom prostrate? Why this constant solicitude visible in your faces? The answer is clear. Slavery is author, agent, cause. The anxious hours that you pass are darkened by Slavery. *Habeas Corpus* and the safeguards of Freedom which you deplore are ravished by Slavery. The business you have lost is filched by Slavery. The millions now amassed by patriotic offerings are all snatched by Slavery. The taxes now wrung out of diminished means are all consumed by Slavery. And all these multiplying means of war, this drum-call in your peaceful streets and these gathering armies, are on account of Slavery, and that alone. Are the poor constrained to forego their customary tea, or coffee, or sugar, now burdened by intolerable taxation? Let them vow themselves anew against the criminal giant tax-gatherer. Does any community mourn gallant men, who, going forth joyous and proud beneath their country's flag, have been brought home cold and stiff, with its folds wrapped about them for a shroud? Let all mourning the patriot dead be aroused against Slavery. Does a mother drop tears for her son in the beautiful morning of his days cut down upon the distant battle-field, which he moistens with his youthful, generous blood? Let her feel that Slavery dealt the deadly blow which took at once his life and her peace. [*Sensation.*]

I hear a strange, discordant voice saying that all this proceeds not from Slavery,—oh, no!—but from Antislavery,—that the Republicans, who hate Slavery, that the Abolitionists, are authors of this terrible calamity. You must suspect the sense or loyalty of him who puts forth this irrational and utterly wicked imputation. As well say that the early Christians were authors of the heathen enormities against which they bore martyr testimony, and that the cross, the axe, the gridiron, and the boiling oil, by which they suffered, were part of the Christian dispensation. But the early Christians

were misrepresented and falsely charged with crime, even as you are. The tyrant Nero, after burning Rome and dancing at the conflagration, denounced Christians as the guilty authors. Here are authentic words by the historian Tacitus.

“So, for the quieting of this rumor, Nero judicially charged with the crime, and punished with most studied severities, that class, hated for their general wickedness, whom the vulgar call Christians. The originator of that name was one Christ, who, in the reign of Tiberius, suffered death by sentence of the procurator Pontius Pilate. The baneful superstition, thereby repressed for the time, again broke out, not only over Judea, the native soil of that mischief, but in the city also, where from every side all atrocious and abominable things collect and flourish.”^[228]

The writer of this remarkable passage was the wisest and most penetrating mind of his generation, and he lived close upon the events which he describes. Listening to him, you may find apology for those among us who heap upon contemporaries similar obloquy. Abolitionists need no defence from me. It is to their praise—destined to fill an immortal page—that from the beginning they saw the true character of Slavery, and warned against its threatening domination. Through them the fires of Liberty have been kept alive in our country,—as Hume is constrained to confess that these same fires were kept alive in England by the Puritans, whom this great historian never praised, if he could help it. And yet they are charged with this Rebellion. Can this be serious? Even at the beginning of the Republic the seeds of the conspiracy were planted, and in 1820, and again in 1830, it appeared,—while nearly thirty years ago Andrew Jackson denounced it, and one of its leading spirits recently boasted that it has been gathering head for this full time, thus, not only in distant embryo, but in well-attested development, antedating those Abolitionists whose prophetic patriotism is made an apology for the crime. As well, when the prudent passenger warns the ship’s crew of the fatal lee-shore, arraign him for the wreck which engulfs all; as well cry out, that the philosopher who foresees the storm is responsible for the desolation that ensues, or that the astronomer, who calculates the eclipse, is author of the darkness which covers the earth. [*Enthusiastic applause.*]

Nothing can surpass that early contumely to which Christians were exposed. To the polite heathen, they were only “workers in wool, cobblers, fullers, the rudest and most illiterate persons,”^[229] or they were men and women “from the lowest dregs.”^[230] Persecution naturally followed, not only local, but general. As many as ten persecutions are cited,—two under mild rulers like Trajan and Hadrian,—while, at the atrocious command of Nero, Christians, wrapped in pitch, were set on fire as lights to illumine the public gardens. And yet against contumely and persecution Christianity prevailed, and the name of Christian became an honor which confessors and martyrs wore as a crown. But this painful history prefigures that of our Abolitionists, who have been treated with similar contumely; nor have they escaped persecution. At last the time has come when their cause must prevail, and their name become an honor.

And now, that I may give practical character to this whole history, I bring it all to bear upon our present situation and its duties. You have discerned Slavery, even before the National Union, not only a disturbing influence, but an actual bar to Union, except on condition of surrender to its immoral behests. You have watched Slavery constantly militant on the presentation of any proposition with regard to it, and more than once threatening dissolution of the Union. You have discovered Slavery for many years the animating principle of a conspiracy against the Union, while it matured flagitious plans and obtained the mastery of Cabinet and President. And when the conspiracy had balefully ripened, you have seen how only by concessions to Slavery it was encountered, as by similar concessions it had from the beginning been encouraged. Now you behold Rebellion everywhere throughout the Slave States elevating its bloody crest and threatening the existence of the National Government, and all in the name of Slavery, while it sets up a pretended Government whose corner-stone is Slavery. [*Hisses, and cries of “Never!”*]

Against this Rebellion we wage war. It is our determination, as it is our duty, to crush it; and this will be done. Nor am I disturbed by any success which the Rebels may seem to obtain. The ancient Roman, who, confident in the destiny of the Republic, bought the field on which the conquering Hannibal was encamped, is a fit example for us. I would not have less trust

than his. The Rebel States are our fields. The region now contested by the Rebels belongs to the United States by every tie of government and of right. Some of it has been bought with our money, while all of it, with its rivers, harbors, and extensive coast, has become essential to our business in peace and to our defence in war. Union is a geographical, economical, commercial, political, military, and (if I may so say) even a fluvial necessity. Without union, peace on this continent is impossible; but life without peace is impossible also.

Only by crushing this Rebellion can union and peace be restored. Let this be seen in its reality, and who can hesitate? If this were done instantly, without further contest, then, besides all the countless advantages of every kind obtained by such restoration, two special goods will be accomplished,—one political, and the other moral as well as political. First, the pretended right of secession, with the whole pestilent extravagance of State sovereignty, supplying the machinery for this Rebellion, and affording a delusive cover for treason, will be trampled out, never again to disturb the majestic unity of the Republic; and, secondly, the unrighteous attempt to organize a new confederacy, solely for the sake of Slavery, and with Slavery as its corner-stone, will be overthrown. These two pretensions, one so shocking to our reason and the other so shocking to our moral nature, will disappear forever. And with their disappearance will date a new epoch, the beginning of a grander age. If by any accident the Rebellion should prevail, then, just in proportion to its triumph, through concession on our part or successful force on the other part, will the Union be impaired and peace be impossible. Therefore in the name of the Union and for the sake of peace are you summoned to the work.

But how shall the Rebellion be crushed? That is the question. Men, money, munitions of war, a well-supplied commissariat, means of transportation,—all these you have in abundance, in some particulars beyond the Rebels. You have, too, the consciousness of a good cause, which in itself is an army. And yet thus far, until within a few days, the advantage has not been on our side. The explanation is easy. The Rebels are combating at home, on their own soil, strengthened and maddened by Slavery, which is to them ally and fanaticism. More thoroughly aroused than ourselves, more

terribly in earnest, with every sinew vindictively strained to its most perfect work, they freely use all the means that circumstances put into their hands,—not only raising against us their white population, but fellowshipping the savagery of the Indian, cruising upon the sea in pirate ships to despoil our commerce, and at one swoop confiscating our property to the amount of hundreds of millions, while all this time their four million slaves undisturbed at home freely contribute by their labor to sustain the war, which without them must soon expire.

It remains for us to encounter the Rebellion calmly and surely by a force superior to its own. To this end, something more is needed than men or money. Our battalions must be reinforced by ideas, and we must strike directly at the Origin and Mainspring. I do not say now in what way or to what extent, but only that we must strike: it may be by the system of a Massachusetts General,—Butler; it may be by that of Fremont [*here the audience rose and gave long continued cheers*]; or it may be by the grander system of John Quincy Adams. Reason and sentiment both concur in this policy, which is according to the most common principles of human conduct. In no way can we do so much at so little cost. To the enemy such a blow will be a terror, to good men it will be an encouragement, and to foreign nations watching this contest it will be an earnest of something beyond a mere carnival of battle. There has been the cry, “On to Richmond!” and still another worse cry, “On to England!” Better than either is the cry, “On to Freedom!”^[231] [*Tremendous cheering.*] Let this be heard in the voices of our soldiers, ay, let it resound in the purposes of the Government, and victory must be near.

With no little happiness I make known that this cry begins at last to be adopted. It is in the instructions from the Secretary of War, dated War Department, October 14, 1861, and addressed to the General commanding the forces about to embark for South Carolina. Here are the important words.

“You will, however, in general, avail yourself of the services of any persons, whether fugitives from labor or not, who may offer them to the National Government; you will

employ such persons in such services as they may be fitted for, either as ordinary employees, or, if special circumstances seem to require it, in any other capacity, with such organization, in squads, companies, or otherwise, as you deem most beneficial to the service. This, however, not to mean a general arming of them for military service. You will assure all loyal masters that Congress will provide just compensation to them for the loss of the services of the persons so employed.”^[232]

This is not the positive form of proclamation; but analyze the words, and you will find them full of meaning. First, Martial Law is declared; for the powers committed to the discretion of the General are derived from that law, and not from the late Confiscation Act of Congress. Secondly, fugitive slaves are not to be surrendered. Thirdly, all coming within the camp are to be treated as freemen. Fourthly, they may be employed in such service as they are fitted for. Fifthly, in squads, companies, or otherwise, with the single slight limitation that this is not to mean “a *general* arming of them for military service.” And, sixthly, compensation, through Congress, is promised to loyal masters,—saying nothing of Rebel masters. All this falls little short of a Proclamation of Emancipation,—not unlike that of old Caius Marius, when, landing on the coast of Etruria, according to Plutarch, he proclaimed liberty to the slaves. As such, I do not err, when I call it, thus far, the most important event of the war,—more important because understood to have the deliberate sanction of the President as well as of the Secretary, and therefore marking the policy of the Administration. That this policy should be first applied to South Carolina is just. As the great Rebellion began in this State, so should the great remedy. [*Applause and cheers.*]

Slavery is the inveterate culprit, the transcendent criminal, the persevering traitor, the wicked parricide, the arch rebel, the open outlaw. As the less is contained in the greater, so the Rebellion is all contained in Slavery. The tenderness which you show to Slavery is, therefore, indulgence to the Rebellion itself. [*Applause.*] The pious caution with which you avoid harming Slavery exceeds that ancient superstition which made the wolf sacred among the Romans and the crocodile sacred among the Egyptians; nor shall I hesitate to declare that every surrender of a slave back

to bondage is an offering of human sacrifice, whose shame is too great for any army to bear. That men should hesitate to strike at Slavery is only another illustration of human weakness. The English Republicans, in bloody contest with the Crown, hesitated for a long time to fire upon the King; but under the valiant lead of Cromwell, surrounded by his well-trained Ironsides, they banished all such scruple, and you know the result. The King was not shot, but his head was brought to the block.

The duty which I announce, if not urgent now, as a MILITARY NECESSITY, *in just self-defence*, will present itself constantly, *as our armies advance in the Slave States or land on their coasts*. If it does not stare us in the face at this moment, it is because unhappily we are still everywhere on the defensive. As we begin to be successful, it must rise before us for practical decision; and we cannot avoid it. There will be slaves in our camps, or within our extended lines, whose condition we must determine. There will be slaves also claimed by Rebels, whose continued chattelhood we should scorn to recognize. The decision of these two cases will settle the whole great question. Nor can the Rebels complain. They challenge our armies to enter upon their territory in the free exercise of all the powers of war,—according to which, as you well know, all private interests are subordinated to the public safety, which, for the time, becomes the supreme law above all other laws and above the Constitution itself. If everywhere under the flag of the Union, in its triumphant march, Freedom is substituted for Slavery, this outrageous Rebellion will not be the first instance in history where God has turned the wickedness of man into a blessing; nor will the example of Samson stand alone, when he gathered honey from the carcass of the dead and rotten lion. [*Cheers.*]

Pardon me, if I speak in hints only, and do not stop to argue or explain. Not now, at the close of an evening devoted to the Rebellion in its Origin and Mainspring, can I enter upon this great question of military duty in its details. There is another place where this discussion will be open for me. ^[233] [*Cheers.*] It is enough now, if I indicate the simple principle which is the natural guide of all really in earnest, of all whose desire to save their country is stronger than the desire to save Slavery. You will strike where the blow is most felt; nor will you miss the precious opportunity. The enemy is before you, nay, he comes out in ostentatious challenge, and his name is Slavery. You can vindicate the Union only by his prostration. Slavery is the

very Goliath of the Rebellion, armed with coat of mail, with helmet of brass upon the head, greaves of brass upon the legs, target of brass between the shoulders, and with the staff of his spear like a weaver's beam. But a stone from a simple sling will make the giant fall upon his face to the earth. [*Prolonged cheering.*]

Thank God, our Government is strong; but thus far all signs denote that it is not strong enough to save the Union, and at the same time save Slavery. One or the other must suffer; and just in proportion as you reach forth to protect Slavery do you protect this accursed Rebellion, nay, you give to it that very aid and comfort which are the constitutional synonym for treason itself. Perversely and pitifully do you postpone that sure period of reconciliation, not only between the two sections, not only between the men of the North and the men of the South, but, more necessary still, between slave and master, without which the true tranquillity we all seek cannot be permanently assured. Believe it, only through such reconciliation, under sanction of Freedom, can you remove all occasion of conflict hereafter; only in this way can you cut off the head of this great Hydra, and at the same time extirpate that principle of evil, which, if allowed to remain, must shoot forth in perpetual discord, if not in other rebellions; only in this way can you command that safe victory, without which this contest is vain, which will have among its conquests Indemnity for the Past and Security for the Future,—the noblest indemnity and the strongest security ever won, because founded in the redemption of race. [*Cheers.*]

Full well I know the doubts, cavils, and misrepresentations to which this argument for the integrity of the nation is exposed; but I turn with confidence to the people. The heart of the people is right, and all great thoughts come from the heart. All hating Slavery and true to Freedom will join in effort, paying with person, time, talent, purse. They are our minute-men, always ready,—and yet more ready just in proportion as the war is truly inspired. They, at least, are sure. It remains that others not sharing this animosity, merchants who study their ledgers, bankers who study their discounts, and politicians who study success, should see that only by prompt and united effort against Slavery can the war be brought to a speedy and triumphant close, without which, merchant, banker, and politician all

suffer alike. Ledger, discount, and political aspiration will have small value, if the war continues its lava flood, shrivelling and stifling everything but itself. Therefore, *under spur of self-interest, if not under the necessities of self-defence*, we must act together. Humanity, too, joins in this appeal. Blood enough has been shed, victims enough have bled at the altar, even if you are willing to lavish upon Slavery the tribute now paying of more than a million dollars a day.

Events, too, under Providence, are our masters. For the Rebels there can be no success. For them every road leads to disaster. For them defeat is bad, but victory worse; for then will the North be inspired to sublimer energy. The proposal of Emancipation which shook ancient Athens followed close upon the disaster at Chæronea; and the statesman who moved it vindicated himself by saying that it proceeded not from him, but from Chæronea^[234]. The triumph of Hannibal at Cannæ drove the Roman Republic to the enlistment and enfranchisement of eight thousand slaves^[235]. Such is history, which we are now repeating. The recent Act of Congress giving freedom to slaves *employed against us*, familiarly known as the Confiscation Act, passed the Senate on the morning after the disaster at Manassas^[236]. In the providence of God there are no accidents; and this seeming reverse helped to the greatest victory which can be won.

Do not forget, I pray you, that classical story of the mighty hunter whose life in the Book of Fate was made to depend upon the existence of a brand burning at his birth. The brand, so full of destiny, was snatched from the flames and carefully preserved by his prudent mother. Meanwhile the hunter became powerful and invulnerable to mortal weapon. But at length the mother, indignant at his cruelty to her own family, flung the brand upon the flames and the hunter died. The life of Meleager, so powerful and invulnerable to mortal weapon, is now revived in this Rebellion, and Slavery is the fatal brand. Let the National Government, whose maternal care is still continued to Slavery, simply throw the thing upon the flames madly kindled by itself, and the Rebellion will die at once. [*Sensation.*]

Amidst all surrounding perils there is one only which I dread. It is the peril from some new surrender to Slavery, some fresh recognition of its

power, some present dalliance with its intolerable pretensions. Worse than any defeat, or even the flight of an army, would be this abandonment of principle. From all such peril, good Lord, deliver us! And there is *one way of safety*, clear as sunlight, pleasant as the paths of Peace. Over its broad and open gate is written JUSTICE. In that little word is victory. Do justice and you will be twice victors; for so will you subdue the Rebel master, while you elevate the slave. Do justice frankly, generously, nobly, and you will find strength instead of weakness, while all seeming responsibility disappears in obedience to God's eternal law. Do justice, though the heavens fall. But they will not fall. Every act of justice becomes a new pillar of the Universe, or it may be a new link of that

“golden everlasting chain
Whose strong embrace holds heaven and earth and main.”

At the conclusion of Mr. Sumner's address the following resolutions were offered and adopted by acclamation.

“*Resolved*, That the doctrine enunciated by Major-General Fremont with respect to the emancipation of the slaves of Rebels, and the more recent utterances of General Burnside, Senator Wilson, and the Hon. George Bancroft, in this city, and of Colonel John Cochrane and the Hon. Simon Cameron at Washington, foreshadowing the eventual rooting out of Slavery as the cause of the Rebellion, indicate alike a moral, political, and military necessity; and, in the judgment of this meeting, the public sentiment of the North is now in full sympathy with any practicable scheme which may be presented for the extirpation of this national evil, and will accept such result as the only consistent issue of this contest between Civilization and Barbarism.

“*Resolved*, That the thanks of this meeting be and are hereby tendered to the Hon. Charles Sumner, the distinguished orator of this evening, for his reassertion and eloquent enforcement of the political principle herein indorsed.”

APPENDIX.

The bill to confiscate property used for insurrectionary purposes, reported by Mr. Trumbull from the Judiciary Committee, came up in regular order in the Senate, Monday, July 22, when, on his motion, the following amendment was adopted, every Republican voting for it: “That whenever any person, claiming to be entitled to the service or labor of any other person under the laws of any State, shall employ such person in aiding or promoting any insurrection, or in resisting the laws of the United States, or shall permit him to be so employed, he shall forfeit all right to such service or labor, and the person whose labor or service is thus claimed shall be thenceforth discharged therefrom, any

law to the contrary notwithstanding.”^[237] This very moderate proposition was the beginning of Emancipation. In the House of Representatives it was changed in form, but not in substance, and the Bill was approved by the President August 6, 1861.^[238]

This address appeared in numerous journals, and also in the *Rebellion Record*, besides being circulated extensively in pamphlet form at home and abroad. Evidently the hostility to Emancipation was softening, although the old spirit found utterance in some of the newspapers.

The *New York Herald* thus declared itself.

“The Hon. Charles Sumner, the famous orator of the Satanic Abolition school, which first introduced into our happy republic the elements of dismemberment and dissolution, as the Old Serpent introduced sin and death into the Garden of Eden, held forth last evening at the Cooper Institute before the Young Men’s Republican Union of New York. His audience were Abolitionists of the true-blue stamp, and the design of his harangue was to stir up in this city mutiny and rebellion against the Government in the interest of General Fremont, around whom the revolutionary forces of fanatical Puritanism have been gathering ever since he issued his proclamation emancipating the negroes of Missouri....

“Till the head of the serpent of Abolitionism is crushed by the heel of Abe Lincoln, there can be no salvation for the South, and no hope of redeeming its rebels from the fatal error and delusion into which they have been led by the Antislavery propagandists and sympathizers with John Brown.”

But this same journal spoke otherwise of the auditory.

“Rarely has there been such a large audience assembled in the Cooper Institute,—never one of such general reputation and intelligence. Several hundred ladies were present. As Mr. Sumner made his appearance on the platform, he was hailed with enthusiastic applause.”

The *New York Journal of Commerce* followed the *Herald*.

“It was a labored, but concealed, attack on the Constitution and its framers. Mr. Sumner did not dare speak his sentiments fully, and boldly attack Washington and the illustrious Fathers. He preferred the insidious course of instilling into the minds of his audience sentiments of hatred to the Constitution, so that they might look complacently hereafter on the Abolition revolution which he contemplates.”

An extract from the *Principia*, at New York, the organ of Abolitionists insisting always upon the utter unconstitutionality of Slavery, will suffice on the other side.

“Our readers at a distance will be interested and encouraged to know that the most radical portions of it received the most enthusiastic applause from the immense assemblage, on that occasion, without eliciting the slightest expression of dissent. This was remarkably true, even of that portion of it which defended the Abolitionists from the charge of having caused our present national troubles,

and, on the contrary, gave them ample and due credit for keeping alive the flame of Freedom by their opposition to Slavery, and forewarning the country of the evils it was bringing upon us. To ourselves and a remnant of our old associates, on the platform and in the meeting, who remembered the scenes of mob violence in this city in 1833-34, and the attempted renewal of the same riots in the same Cooper Institute only about two years since, when Cheever and Phillips were interrupted and threatened, the contrast was most striking and cheering.”

Correspondents expressed themselves warmly.

Richard Warren, of Plymouth stock, wrote from New York:—

“Congratulating you, Sir, and our country, that the day now seems not far distant when America is to fulfil the destiny assigned to her, and be throughout all her borders a land of freemen without slaves, and honoring you for the labor you have so well performed in the past and in the present, I have to express the gratification with which I listened to your true words on Wednesday last in this city, and to subscribe myself as one who heard you at Plymouth,^[239] and who always hears you when opportunity offers.”

Richard J. Hinton, the courageous and liberal journalist, was moved to write from Kansas:—

“Having just finished the perusal of your late oration in New York City, I cannot let the opportunity pass of sending my thanks, and I know therein I speak for Kansas, for the emphatic opinions and masterly *exposé* of the cause of, and remedy for, this most stupendous rebellion. Such things as you there so eloquently express give the soldiers of Freedom in Kansas heart and courage in the work of giving Freedom to all.”

Orestes A. Brownson, whose able and learned pen was so active on the same line with Mr. Sumner, wrote from Elizabeth, New Jersey:—

“I have read with great pleasure your discourse on the ‘Origin and Mainspring of the Rebellion.’ It is conclusive, and powerfully so, and does you infinite credit. I see you are afraid of some attempt at compromise. I am very much afraid of it. There must be no compromise. The battle must be fought out, and we must settle the question once and forever, whether we are a nation or are not. Everything, I fear, depends on the vigilance, firmness, and patriotism of Congress.”

Henry C. Wright, the veteran of Abolition, wrote:—

“I am sixty-four years old. Thirty of those years have been almost exclusively spent in a war of ideas against Slavery, as a Garrisonian Abolitionist. *Conquer by suffering! Victory or death! Resistance to tyrants, obedience to God!* Such have been the watchwords of the battle. You know what it has cost those who have waged this war of ideas. But I felt fully rewarded last evening in seeing that audience so earnestly listening to such sentiments as fell from your lips. What a revolution in thought and feeling in twenty-five years! Never again let man be discouraged in a conflict between *humanity* and its *incidents*.”

A citizen of Washington confessed the change in his mind from this speech.

“I have through all my life been a Democrat, and I confess I have had no great love for you, or what I thought to be your principles. But a cardinal principle in my ethics is, that men should always be ‘open to conviction.’ I am happy to confess that I have been doubly deceived: first, in the principles and intentions of the Democratic party; and, second, in the principles and intentions of the Republicans,—or Abolitionists, as we call them. A friend handed me your great oration delivered in New York, and I am so favorably struck with its logic and patriotism that I am completely proselyted. Mr. Sumner, I want my children and my children’s children to know that I am a ‘Sumner man.’”

These expressions from different parts of the country show the wakeful sympathy which prevailed.

WELCOME TO FUGITIVE SLAVES.

REMARKS IN THE SENATE, ON A MILITARY ORDER IN MISSOURI, DECEMBER 4,
1861.

The first regular session of Congress, after the breaking out of the Rebellion, opened on Monday, December 2, 1861. Mr. Sumner renewed at once his movement against Slavery.

December 4th he submitted the following resolution, as a mode of calling attention to an abuse, and of obtaining a hearing while he exposed it.

“Resolved, That the Secretary of War be requested to furnish to the Senate copies of any General Orders in the military department of Missouri relating to fugitive slaves.”

On this he spoke briefly.

MR. PRESIDENT,—My attention has been called, by letter from St. Louis, to certain General Orders purporting to be by Major-General Halleck, in command of the Department of Missouri, relating to fugitive slaves, wherein it is directed that such persons shall not be received within his camps, or within the lines of his forces when on march, and that any such persons now within such lines shall be thrust out; and the reason strangely assigned for this order is, that such fugitive slaves will carry information to the Rebels.

It is difficult to speak of an order like this, and keep within bounds. Beside being irrational and inhuman on its face, it practically authorizes the surrender of fugitive slaves beyond any constitutional obligation. Such an order must naturally be disheartening to our soldiers, and it gives a bad name to our country, both at home and abroad.

General Halleck is reported to be a good tactician; but an act like this, with which he chooses to inaugurate his command, does not give assurance of great success hereafter. He may be expert in details of military science; but something more is needed now. Common sympathy, common humanity, and common sense must prevail in the conduct of this war. I take the liberty of saying—and I wish that my words may reach his distant head-quarters—

that every fugitive slave he surrenders will hereafter rise in judgment against him with a shame which no possible victory can remove.

A letter from St. Louis, written the day after these remarks, shows the necessity for them, and also how promptly they reached Missouri, thanks to the telegraph.

“We thank you most kindly for your motion yesterday, and I beg to inclose you some extracts which will show you the workings of that unfortunate Order No. 3. The slaves advertised, in some instances, to my own knowledge, belong to Secessionists in Price’s army. For that matter, they may all belong to that class of people. Is it not an inhuman act for these poor people to be made outlaws for no crime, only that they refused to join their traitor masters in onslaught on our beneficent Government?”

SLAVERY AND THE BLACK CODE IN THE DISTRICT OF COLUMBIA.

REMARKS IN THE SENATE, ON A RESOLUTION FOR THE DISCHARGE OF FUGITIVE
SLAVES FROM THE WASHINGTON JAIL, DECEMBER 4, 1861.

December 4th, Mr. Wilson introduced a joint resolution for the release of certain persons confined in the county jail for the County of Washington in the District of Columbia, which was read a first and second time. A debate ensued, in which the jail and the judiciary of the District were severely handled. Mr. Hale hoped that Mr. Wilson, who had introduced the resolution, would “pursue his inquiries further, and find out where the cause of all this evil is, and apply the remedy.” Mr. Fessenden, after calling attention to the administration of justice in the District and hoping for an inquiry, concluded: “It is well, perhaps, that we should begin here; it is a tangible point; but I hope it will be followed up to any extent that may be necessary in order to accomplish the purpose.” Mr. Sumner at once took advantage of the debate, and turned it against Slavery and the Black Code.

MR. PRESIDENT,—The Senator from Maine [Mr. Fessenden] has pointed to abuses of the judiciary in this District, and he insists that at last we shall have decent men on the bench. But that is not going far enough, Sir. Something more is needed. We must have decent laws. A Black Code still prevails in this District, imported from the old legislation of Maryland, which is a shame to the civilization of our age. If any one wishes to know why such abuses exist in prisons and in courts as have been so eloquently portrayed, I refer him to that Black Code. There you will find apology for every outrage. If, therefore, Senators are really in earnest, if they are determined that the national capital shall be purified, that the administration of justice here shall be worthy of a civilized community, they must expunge that Black Code from the statute-book: but to do this is to expunge Slavery itself; and here we are brought precisely to the point.

Senators mistake, if they treat this question merely on the outside. They must penetrate its interior. Why is that prison so offensive as I know it to be?—for it has been my fortune to visit it repeatedly. It is on account of Slavery, with the Black Code, which is its offspring. Why is justice so offensively administered in this District? It is on account of those brutal

sentiments generated by Slavery, and manifested in the Black Code, which the courts here but enforce.

I listened with gratitude to my distinguished friend from New Hampshire [Mr. HALE], when he reviewed this subject, and announced that he would soon bring in a bill to remove the evil. He did not tell us what the bill would be; but the Senator is apt to be thorough. I doubt not that he understands the case; but I am sure, that, to meet it, he must deal directly with Slavery, the fountain and origin of all the noisome inhumanity exposed before us to-day.

This was the first open word against Slavery in the District since the breaking out of the Rebellion.

The resolution of Mr. Wilson was referred to the Committee on the District of Columbia. He followed at once by another resolution, which was referred to the same committee, where, among other things, the committee was “instructed to consider the expediency of abolishing Slavery in the District, with compensation to the loyal holders of slaves.”

December 16th, Mr. Wilson introduced a bill “for the release of certain persons held to service or labor in the District of Columbia,” which was afterwards referred to the Committee on the District, who reported it with amendments February 14, 1862. The further part Mr. Sumner took on this question will appear hereafter.

THE LATE SENATOR BINGHAM, WITH PROTEST AGAINST SLAVERY.

SPEECH IN THE SENATE, ON THE DEATH OF HON. KINSLEY S. BINGHAM, LATE
SENATOR OF MICHIGAN, DECEMBER 10, 1861.

MR. PRESIDENT,—There are Senators who knew Mr. Bingham well, while he was a member of the other House. I knew him well only when he became a member of this body. Our seats here were side by side, and, as he was constant in attendance, I saw him daily. Our acquaintance soon became friendship, quickened by common sympathies, and confirmed by that bond which, according to the ancient orator, is found in the *eadem de Republica sensisse*.^[240] In his death I have lost a friend; but the sorrow of friendship is deepened, when I think of loss to the country.

If he did not impress at once by personal appearance or voice or manner, yet all these, as they became familiar, testified continually to the unaffected simplicity and integrity of his character. His life, so far as not given to his country, was devoted to the labors of agriculture. He was a farmer, and, amidst all the temptations of an eminent public career, never abandoned this vocation, which does so much to strengthen both body and soul. More than merchant, manufacturer, or lawyer, the agriculturist is independent in condition. To him the sun and rain and the ever-varying seasons are agents of prosperity. Dependent upon Nature, he learns to be independent of men. Such a person, thus endowed, easily turns from the behest of party to follow those guiding principles which are kindred to the laws of Nature. Of such a character our friend was a beautiful example.

In him all the private virtues commingled. Truthful and frank, he was full of gentleness and generous sympathy. He had risen from humble fortunes, and his heart throbbed warmly for all who suffered in any way. Especially was he aroused against wrong and injustice, wherever they appeared, and

then his softer sentiments were changed into an indomitable firmness,—showing that he was one of those admirable natures where

“Mildness and bravery went hand in hand.”

It was this character which gave elevation to his public life. Though companions about him hesitated, though great men on whom he had leaned apostatized, he stood sure and true always for the Right. Such a person was naturally enlisted against Slavery. His virtuous soul recoiled from this many-headed Barbarism, entering into and possessing the National Government. His political philosophy was simply moral philosophy applied to public affairs. Slavery was wrong; therefore he was against it, wherever he could justly reach it. No matter what form it took,—whether of pretension or blandishment,—whether, like Satan, stalking lordly, or sitting squat like a toad,—whether, like Mephistopheles, cozening cunningly, or lurking like a poodle,—whether, like Asmodeus, inquisitorial even to lifting the roofs of the whole country,—he was never deceived, but saw it always, in all its various manifestations, as the Spirit of Evil, and was its constant enemy. And now, among the signs that Freedom has truly triumphed, is the fact that here, in this Chamber, so long the stronghold of Slavery, our homage can be freely offered to one who so fearlessly opposed it.

There was something in our modest friend which seemed peculiarly adapted to private life. Had he not been a public man, he would have been, in his own rural neighborhood, at home, the good citizen, active and positive for human improvement, with an honored place in that list whose praise Clarkson pronounces so authoritatively. “I have had occasion,” says this philanthropist, “to know many thousand persons in the course of my travels, and I can truly say that the part which these took on this great question [of the Abolition of the Slave-Trade] was always a true criterion of their moral character.”^[241] But he was not allowed to continue in retirement. His country had need of him, and he became a member of the Michigan Legislature and Speaker of its House, Representative in Congress, Governor, and then Senator of the United States. This distinguished career was stamped always with the plainness of his character. The Roman Cato was not more plain or determined. He came into public life when Compromise was the order of the day, but he never yielded to it. He was a member of the Democratic party, which was the declared tool of Slavery,

but he never allowed Slavery to make a tool of him. All this should now be spoken in his honor. To omit it on this occasion would be to forget those titles by which hereafter he will be most gratefully remembered.

There were two important questions, while he was a member of the other House, on which his name is recorded for Freedom. The first was the famous proposition introduced by Mr. Wilmot, of Pennsylvania, for the prohibition of Slavery in the Territories. On this question he separated from his party, and courageously voted in the affirmative. Had his voice at that time prevailed, Slavery would have been checked, and the vast Conspiracy under which we now suffer would have received an early death-blow. The other question on which his record is so honorable was the Fugitive Slave Bill. There his name is found among the noes, in generous fellowship with Preston King among the living, and Horace Mann among the dead.

From that time forward his influence for Freedom was felt in his own State, and when, at a later day, he entered the Senate, he became known instantly as one of our surest and most faithful Senators, whose inflexible constancy was more eloquent than a speech. During all recent trials he never for one moment wavered. With the instincts of an honest statesman, he saw the situation, and accepted frankly and bravely the responsibilities of the hour. He set his face against concession in any degree and in every form. The time had come when Slavery was to be met, and he was ready. As the Rebellion assumed its warlike proportions, his perception of our duties was none the less clear. In his mind, Slavery was not only the origin, but vital part of the Rebellion, and therefore to be attacked. Slavery was also the mainspring of the belligerent power now arrayed against the Union,—therefore, in the name of the Union, to be destroyed. While valuing the military arm as essential, he saw that without courageous counsels it would be feeble. The function of the statesman is higher than that of general; and our departed Senator saw that on the counsels of the Government, even more than on its armies, rested the great responsibility of bringing this war to a speedy and triumphant close. Armies obey orders, but it is for the Government to organize and to inspire victory. All this he saw clearly; and he longed impatiently for that voice, herald of Union and Peace, which, in behalf of a violated Constitution, and in the exercise of a just self-defence,

should change the present contest from a bloody folly into a sure stage of Human Improvement and an immortal landmark of Civilization.

Such a Senator can be ill spared at this hour. His cheerful confidence, his genuine courage, his practical instinct, his simple presence, would help the great events now preparing, nay, which are at hand. Happily he survives in noble example, and speaks even from the tomb. By all who have shared his counsels he will ever be truly remembered, while the State which trusted him so often in life, and the neighbors who knew him so well in his daily walks, will cherish his memory with affectionate pride. Marble and bronze are not needed. If not enough for glory, he has done too much to be forgotten; and hereafter, when our country is fully redeemed, his name will be inscribed in that faithful company, who, through good report and evil report, held fast to the truth.

“By fairy hands their knell is rung,
By forms unseen their dirge is sung;
There Honor comes, a pilgrim gray,
To bless the turf that wraps their clay,
And Freedom shall awhile repair,
To dwell, a weeping hermit, there.”^[242]

THE LATE SENATOR BAKER, WITH CALL FOR EMANCIPATION.

SPEECH IN THE SENATE, ON THE DEATH OF HON. EDWARD D. BAKER, LATE
SENATOR OF OREGON, DECEMBER 11, 1861.



This occasion was remarkable for the presence of President Lincoln, thus described in the *Congressional Globe*:—

“The President of the United States entered the Senate Chamber, supported by Hon. Lyman Trumbull and Hon. O. H. Browning, Senators from the State of Illinois; he was introduced to the Vice-President, and took a seat beside him on the dais appropriated to the President of the Senate. J. G. Nicolay, Esq., and John Hay, Esq., Private Secretaries to the President of the United States, took seats near the central entrance.”

MR. PRESIDENT,—The Senator to whom we now say farewell was generous in funeral homage to others. More than once he held great companies in rapt attention, while doing honor to the dead. Over the coffin of Broderick^[243] he proclaimed the dying utterance of that early victim, and gave to it the fiery wings of his own eloquence: “They have killed me because I was opposed to the extension of Slavery, and a corrupt Administration”; and as the impassioned orator repeated these words, his own soul was knit in sympathy with the departed; and thus at once did he win to himself the friends of Freedom, though distant.

“Who would not sing for Lycidas? He knew
Himself to sing, and build the lofty rhyme.”

There are two forms of eminent talent which are kindred in effect, each producing instant impression, each holding crowds in suspense, and each kindling enthusiastic admiration: I mean the talent of the orator and the talent of the soldier. Each of these, when successful, gains immediate honor, and reads his praise in a nation’s eyes. Baker was orator and soldier. To him belongs the rare renown of this double character. Perhaps he carried into war something of the confidence inspired by the conscious sway of great

multitudes, as he surely brought into speech something of the ardor of war. Call him, if you will, the Rupert of battle; he was also the Rupert of debate.

His success in life attests not only a remarkable genius, but the benign hospitality of our institutions. Born on a foreign soil, he was to our country only a step-son; but, were he now alive, I doubt not he would gratefully declare that the country was never to him an ungentle step-mother. Child of poverty, he was brought, while yet in tender years, to Philadelphia, where he began life an exile. His earliest days were passed at the loom rather than at school; and yet from this lowliness he achieved the highest posts of trust and honor, being at the same time Senator and General. It was the boast of Pericles, in his funeral oration, in the Ceramicus, over the dead who had fallen in battle, that the Athenians readily communicated to all the advantages which they themselves enjoyed, that they did not exclude the stranger from their walls, and that Athens was a city open to the Human Family.^[244] The same boast may be repeated by us with better reason, as we commemorate our dead fallen in battle.

From Philadelphia the poor man's son was carried to the West, where he grew with the growth of that surpassing region. He became one of its children; and his own manhood was closely associated with its powerful progress. The honors of the bar and of Congress were soon his; but impatient temper led him from these paths into the Mexican War, where he gallantly took the place of Shields—torn with wounds and almost dead—at Cerro Gordo. But the great West, beginning to teem with population, did not satisfy his ambition, and he repaired to California. With infancy rocked on the waves of the Atlantic, and manhood formed in the broad and open expanse of the Prairie, he now sought a home on the shores of the Pacific. There again his genius was promptly recognized. A new State, which had just taken its place in the Union, sent him as Senator; and Oregon first became truly known to us on this floor by his eloquent lips.^[245]

In the Senate he took at once the part of orator. His voice was not full and sonorous, but sharp and clear. It was penetrating rather than commanding, and yet, when touched by his ardent nature, became sympathetic and even musical. Countenance, body, and gesture all shared the unconscious inspiration of his voice, and he went on, master of his audience, master also of himself. All his faculties were completely at command. Ideas,

illustrations, words, seemed to come unbidden and range in harmonious forms,—as in the walls of ancient Thebes each stone took its proper place of its own accord, moved only by the music of a lyre. His fame as a speaker was so peculiar, even before he appeared among us, that it was sometimes supposed he might lack those solid powers without which the oratorical faculty itself exercises only a transient influence. But his speech on this floor in reply to a slaveholding conspirator, now an open rebel, showed that his matter was as good as his manner, and that, while master of fence, he was also master of ordnance. His oratory was graceful, sharp, and flashing, like a cimeter; but his argument was powerful and sweeping, like a battery.

You have not forgotten that speech. Perhaps the argument against the sophism of Secession was never better arranged and combined, or more simply popularized for general apprehension. A generation had passed since that traitorous absurdity, fit cover of conspiracy, was exposed. For a while it had shrunk into darkness, driven back by the massive logic of Daniel Webster and the honest sense of Andrew Jackson.

“The times have been,
That, when the brains were out, the man would die,
And there an end; but now they rise again.”

As the pretension showed itself anew, our orator undertook again to expose it. How thoroughly he did this, now with historic and now with forensic skill, while his whole effort was elevated by a charming, ever-ready eloquence, aroused to new power by the interruptions he encountered,—all this is present to your minds. That speech passed at once into general acceptance, while it gave its author an assured position in this body.

Another speech showed him in a different character. It was his instant reply to the Kentucky Senator,^[246]—not then expelled from this body. The occasion was peculiar. A Senator, with treason in his heart, if not on his lips, had just sat down. Our lamented Senator, who had entered the Chamber direct from his camp, rose at once to reply. He began simply and calmly; but, as he proceeded, the fervid soul broke forth in words of surpassing power. On the former occasion he presented the well-ripened fruits of study; but now he spoke with the spontaneous utterance of his natural

eloquence, meeting the polished traitor at every point with weapons keener and brighter than his own.

Not content with the brilliant opportunities of this Chamber, he accepted a commission in the Army, vaulting from the Senate to the saddle, as he had already leaped from Illinois to California. With a zeal that never tired, after recruiting men, drawn by the attraction of his name, in New York, Philadelphia, and elsewhere, he held his brigade in camp near the Capitol, so that he passed easily from one to the other, and thus alternated between the duties of Senator and of General.

His latter career was short, though shining. At a disastrous encounter near Ball's Bluff, he fell, pierced by nine balls. That brain, once the seat and organ of subtle power, swaying assemblies, and giving to this child of obscurity place and command among his fellow-men, was now rudely shattered, and the bosom that throbbed so bravely was rent by numerous wounds. He died with his face to the foe,—and he died so instantly, that he passed without pain from the service of his country to the service of his God. It is sweet and becoming to die for country. Such a death, sudden, but not unprepared for, is the crown of the patriot soldier.

But the question is painfully asked, Who was author of this tragedy, now filling the Senate Chamber, as already it has filled the country, with mourning? There is a strong desire to hold somebody responsible, where so many perished so unprofitably. But we need not appoint committees, or study testimony, to know precisely who took this precious life. That great criminal is easily detected,—still erect and defiant, without concealment or disguise. The guns, the balls, and the men that fired them are of little importance. It is the power behind all, saying, "The State, it is I," that took this precious life; and this power is Slavery. The nine balls that slew our departed brother came from Slavery. Every gaping wound of his slashed bosom testifies against Slavery. Every drop of his generous blood cries out from the ground against Slavery. The brain so rudely shattered has its own voice, and the tongue so suddenly silenced in death speaks now with more than living eloquence. To hold others responsible is to hold the dwarf agent and dismiss the giant principal. Nor shall we do great service, if, merely criticizing some local blunder, we leave untouched that fatal forbearance

through which the weakness of the Rebellion is changed into strength, and the strength of our armies is changed into weakness.

May our grief to-day be no hollow pageant, nor expend itself in this funeral pomp! It must become a motive and impulse to patriot action. But patriotism itself, that commanding charity, embracing so many other charities, is only a name, and nothing else, unless we resolve, calmly, plainly, solemnly, that Slavery, the barbarous enemy of our country, the irreconcilable foe of our Union, the violator of our Constitution, the disturber of our peace, the vampire of our national life, sucking its best blood, the assassin of our children, and the murderer of our dead Senator, shall be struck down. And the way is easy. The just avenger is at hand, with weapon of celestial temper. Let it be drawn. Until this is done, the patriot, discerning clearly the secret of our weakness, can only say sorrowfully:—

“Bleed, bleed, poor country!
Great tyranny, lay thou thy basis sure,
For goodness dares not check thee!”^[247]

APPENDIX.



The tributes to Bingham and Baker were accepted at the time as more than eulogies. The protest against Slavery and the cry for Emancipation were not lost. They were noticed extensively by the press and by correspondents. The effect shows the development of that sentiment before which Slavery was falling. A Philadelphia newspaper, even while praising the eulogy on Senator Baker, seemed to shrink from the demand with which it concluded.

“The speech of Senator Sumner surpassed all others in powerful effect, clear and manly style, and an undisguised expression of opinion which all must respect, and which but few can condemn at the present juncture. His learned eloquence captivated the heart, even where it did not convince the judgment.”

Another recorded the impressions of a correspondent.

“Mr. Sumner, in his splendid eulogy on Baker this morning, uttered a stupendous thought, when, in commenting on the unfortunate reconnoissance at Ball’s Bluff, he scoffed at the idea of an investigating committee to ascertain where the blame should justly be charged, and said that the great criminal stood before the country and the world, and that great criminal was Slavery. You will have his words in print, and can judge of this point for yourselves. I confess that it thrilled me like an electric shock.”

The *Antislavery Standard*, of New York, exulted that Slavery was arraigned.

“To see men like Bright and Powell sit still, when Charles Sumner charged Baker’s murder on Slavery, was worth at least ten years of Antislavery privations. The Proslavery interest in the Senate is quite respectful, and does not indulge in the old-time bluster and parade.”

On the contrary, the “Editorial Correspondent” of the *New York Express*, writing on the day of the eulogy on Baker, gave vent to his sentiments with regard to Mr. Sumner.

“Even in the burial services of the dead he mingles his sectional hate and personal wrath.

“Such a man will never consent to a peaceful reunion of the States, nor to an equal representation of all the States in the Federal Congress. He deeply wounds the self-sacrificing, loyal Union men of the Border States and Far South; in every breath he utters, and in every speech he makes, he sets back upon the clock of advancing time the hour-hand of Peace. His presence in the Senate Chamber is a signal of protracted war, renewed sectional hate, and offensive intermeddling....

“If Massachusetts were to-day represented in the spirit of her early Revolutionary men, or in the spirit in which so many thousands of her sons have rushed to the defence of the country, Mr. Sumner, as a long standing enemy of the Constitution and the Union, would be sent back to Boston, and there sandwiched between Slidell and Mason within the casemates of Fort Warren. These three men are each old acquaintances here, and each old enemies of the Government, the Union, and the Constitution; and the only difference between the extremes is, that the Senator from Boston remains in council here to fight the Government, and men and institutions belonging to it from its foundation, while the others fled from its service to render more available aid to those in arms against it.”

Hon. Edward G. Parker, author of “The Golden Age of American Oratory” and “Reminiscences of Rufus Choate,” wrote from Boston:—

“I thank you sincerely for a copy of your exquisite panegyrics on Bingham and Baker. I often heard Baker, and recognize at once the beautiful fidelity of your description.

“The touch of Plutarch and of Addison—both, if you will allow me to say so—are there.

“I had, before receiving this, cut out of the newspaper your portrait of Baker, and put it in a choice book devoted to great men and memorable thoughts.

“It is to me like a medallion of that *true* man, who, in so shining a manner, and yet so suddenly, ‘passed from the service of his country to the service of his God.’

“Pardon what you may perhaps consider the superfluous enthusiasm of this note; but it is written right away upon reading these oratoric odes, and I feel a little of the *lava* struggling even in the attempt to acknowledge receiving them.”

Hon. John Jay, afterwards Minister at Vienna, wrote from New York:—

“They are not only eloquent tributes to the dead, but powerful appeals to the living.”

Epes Sargent, the friend and writer, showed his sympathy in a letter from Boston.

“Your remarks in the Senate on Senator Baker pleased me so much that I could not forbear speaking my pleasure in print. They are level with the theme and the time, and the trumpet-note at the close is in just the right key. Oh, if it were not for Kentucky, that neither hot nor cold State, we might hope for a policy up to the height of this great argument! ‘I would she were hot or cold.’

“Our Boston papers do not yet speak out, as I would like to see them, on this question of proclaiming emancipation to the slaves of Rebels. We need another disaster to carry us forward a little further.”

William Lloyd Garrison declared himself with his accustomed directness in a letter from Boston.

“Thanks for your eloquent eulogy upon the late Senator Baker, (which I have published in the *Liberator* this week,) and its forcible application to Slavery as the primary cause of his untimely death, as it is of all our national woes. Be in no wise daunted, but rather strengthened and stimulated, by the abusive clamors and assaults following all your efforts, on the part of the ‘Satanic press,’ and unprincipled demagogues generally. These are surer evidences of the wisdom, goodness, and nobility of your cause than all the praises of your numerous friends and admirers. You may confidently make ‘the safe appeal of truth to time,’ and rely upon a universal verdict of approval at no distant day. To be in the right is as surely to be allied to victory as that God reigns. When there is howling in the pit, there is special rejoicing in heaven.”

FOOTNOTES

[1]

“Homo sum: humani nihil a me alienum puto.”

TERENT., *Heaut.* Act. I. Sc. i. 25.

[2] New England’s First Fruits: Coll. Mass. Hist. Soc., Vol. I. p. 242.

[3] Records of the Governor and Company of the Massachusetts Bay, Vol. II. p. 6, June 14, 1642.

[4] Ibid., p. 203, November 11, 1647.

[5] Enquiries to the Governor of Virginia by the Lords Commissioners of Foreign Plantations, with the Governor’s Answers: Hening, Statutes at Large of Virginia, Vol. II. p. 517.

[6] Oldmixon, British Empire in America, 2d ed., Vol. I. p. 195.

[7] 4 Mass. R., 128, note; 16 Mass. R., 75; 10 Cushing, R., 410; 14 Allen, R., 562. See, *ante*, Vol. III. p. 384.

[8] New England Historical and Genealogical Register, Vol. VI. p. 156.

[9] A Short Narrative of the Horrid Massacre in Boston, perpetrated in the Evening of the Fifth Day of March, 1770, by Soldiers of the XXIXth Regiment, to which is added an Appendix containing the several Depositions, etc., (Boston, 1770,) App., p. 56. Trial of William Wemms and others, Soldiers in his Majesty’s 29th Regiment of Foot, for the Murder of Crispus Attucks and others, (Boston, 1770,) pp. 110, 111.

[10] Records of the Governor and Company of the Massachusetts Bay, Vol. III. p. 268, May 27, 1652.

[11] Records of the Colony of New Plymouth, Vol. VIII. p. 187, August, 1643.

For most of the foregoing particulars, see also Palfrey’s History of New England, Vol. II. p. 30, note.

[12] Records of the Governor and Company of the Massachusetts Bay, Vol. III. p. 84, November 4, 1646.

[13] Coll. Mass. Hist. Soc., 2d Ser., Vol. VIII. p. 184.

[14] Wells, Life of Samuel Adams, Vol. I. p. 138.

[15] Jackson’s History of Newton, p. 336. See, *ante*, Vol. II. pp. 289, 290.

[16] Wordsworth, Rob Roy’s Grave.

[17] Tom. II. p. 155.

[18] Collection of Papers on Political, Literary, and Moral Subjects, by Noah Webster, pp. 325, 326.

[19] Letter to Stephen White, February 27, 1820: Life and Letters of Joseph Story, by his Son, Vol. I. p. 362.

[20] See, *post*, p. 435, Remarks in the Senate, Dec. 10, 1860.

[21] *The Impending Crisis*, by H. R. Helper, containing a radical arraignment of Slavery, was recommended by Members of Congress.

[22] Leyden, Scenes of Infancy, Part III.: Poetical Remains, pp. 373, 374.

[23] Essays: Of Plantations.

[24] Commentaries, Vol. I. p. 49.

[25] *Ibid.*, p. 160.

[26] Works, (Oxford, 1825,) Vol. VI. p. 234.

[27] *Ante*, p. 251.

[28] Letter to A. O. P. Nicholson, December 24, 1847.

[29] Oration at Quincy, pp. 13, 14.

[30] *Ibid.*, p. 18.

[31] Oration at Newburyport, p. 24.

[32] *Ibid.*, pp. 26, 27.

[33] Annals of Congress, 7th Cong. 2d Sess., 613, 1353. At a later day the tone of Mr. Randolph was different. See, *ante*, p. 298.

[34] Congressional Globe, 36th Cong. 1st Sess., p. 2073, May 11, 1860.

[35] Writings of Washington, ed. Sparks, Vol. VII., Appendix, p. 533.

[36] Speech at Chicago, July 10, 1858: Political Debates between Lincoln and Douglas, p. 20.

[37] See *Odyssey*, tr. Pope, Book XIII. 180, 181.

[38] Debates in the Federal Convention, August 25, 1787: Madison Papers, Vol. III. pp. 1429, 1430.

[39] In opening his lecture, Mr. Sumner, according to the newspaper reports, alluded to the new hall in which he spoke, called after the founder of Providence, as follows.—“In the honored name assumed for this most beautiful and spacious hall, you pledge yourselves that here Toleration shall prevail, and Liberty be a constant word. It was the gratulation of the Roman historian in the days of the good Emperors, that he could think what he pleased and speak what he thought. Should this privilege ever fail in your new hall, or anywhere within its influence, then must you forget the great example consecrated in the name of

Roger Williams. With this privilege securely established, you may proudly point to a higher token of civilization than a column of the Roman Forum or a frieze of the Parthenon.”

[40] “Nullum numen abest, si sit Prudentia.”—JUVENAL, *Sat.* X. 365.

[41] Life of Washington, Appendix, pp. 510, 511: Writings, Vol. I., Appendix, pp. 552, 553.

[42] Vol. I. p. 652.

[43] Ibid.

[44] Ibid., p. 478.

[45] Sylva, ed. Hunter, (York, 1776,) p. 497.

[46] The Satyr: Works, ed. Gifford, (London, 1816,) Vol. VI. p. 468.

[47] Memoirs, Vol. II. p. 50.

[48] At the date of Mr. Sumner’s letter the extremists of Slavery in our country were known as “fire-eaters.”

[49] Memoirs, Vol. I. pp. 458, 483, 579.

[50] Introduction, p. 4, ed. Milman, London, 1839.

[51] The Republican Party, its Origin, Necessity, and Permanence: *Ante*, pp. 191-229.

[52] See, *post*, p. 420.

[53] Langhorne, The Country Justice, Part I. 161-164. See also Lockhart’s Life of Scott, Vol. I. ch. 5.

[54] Grahame, History of the United States, Book XI. ch. 5. Writings of Washington, ed. Sparks, Vol. V., Appendix, No. 1. Mémoires, Correspondance et Manuscrits du Général Lafayette, publiés par sa Famille, Tom. I. pp. 9, 10, note.

[55] Letter to J. Holroyd, Esq.: Miscellaneous Works, ed. Lord Sheffield, (London, 1814,) Vol. II. p. 197.

[56] Lettre au Duc d’Ayen, 9 Mars, 1777: Mémoires, Tom. I. p. 83.

[57] Ibid., p. 89.

[58] Letter of 17th July, 1777: Mémoires, Tom. I. p. 98.

[59] Ibid., p. 16, note.

[60] Mémoires, Tom. I. p. 21.

[61] Letter of January 4, 1782: Writings, ed. Sparks, Vol. VII. p. 225.

[62] Letter of December 8, 1784: Ibid., Vol. IX. p. 78. See also Mémoires, Tom. I. p. 62, note.

[63] Letter of 6th November, 1777: *Mémoires*, Tom. I. p. 119. See also p. 133.

[64] *Mémoires*, Tom. I. p. 78.

[65] *Mémoires*, Tom. I. pp. 240-243. *Washington's Writings*, ed. Sparks, Vol. VI., Appendix, pp. 503, 504.

[66] *Mémoires*, Tom. I. pp. 61, 62. According to his Memoirs, the Madeira wine of Boston completed his restoration. "Malgré sa faiblesse extrême, M. de Lafayette, accompagné du docteur, alla sur ses chevaux à Boston, où le vin de Madère acheva de le rétablir." *Ibid.*, p. 63.

[67] *Ibid.*

[68] *Ibid.*, p. 65.

[69] Lettre à Madame de Lafayette, 5 Août, 1799: *Mémoires*, Tom. V. p. 71.

[70] *Mémoires*, Tom. I. p. 259.

[71] *Ibid.*, p. 261, note.

[72] *Rives's Life and Times of James Madison*, Vol. I. p. 294, note.

[73] Letter to Judge Pendleton, November 13, 1781: *Ibid.*, p. 289, note.

[74] *Rives's Life and Times of James Madison*, Vol. I. pp. 289, 290, note.

[75] *Ibid.* An American citizen, who, after enjoying the honors of the nation as Senator and as Minister to France, could become a Proslavery Rebel, was incompetent to sit in judgment on Lafayette. In declaring "the comparative nullity" of his career at home, "contrasted with the unquestionable splendor of his American services and deeds," he writes as a Slave-Master, whose standard of merit excludes what is done for Liberty and Equality.

[76] *Mémoires*, Tom. II. p. 4.

[77] *Mémoires*, Tom. II. p. 58.

[78] *Correspondence of the American Revolution: Letters to Washington*, ed. Sparks, Vol. III. p. 547. *Mémoires*, Tom. II. p. 58.

[79] Letter to Alexander Hamilton, Boston, October 22, 1784: *Hamilton's Works*, edited by his Son, Vol. I. p. 422.

[80] *Mémoires*, Tom. II. p. 8. Madison, writing to Jefferson, under date of October 17, 1784, says: "The time I have lately passed with the Marquis has given me a pretty thorough insight into his character. With great natural frankness of temper he unites much address and very considerable talents. In his politics, he says his three hobby-horses are the alliance between France and the United States, the union of the latter, and the manumission of the slaves." (*Madison's Letters and other Writings*, Vol. I. p. 106.) Call these hobby-horses! They were three practical policies, having their foundation in everlasting principles. How many of our own statesmen saw as wisely?

- [81] Journal of Congress, Vol. X. p. 20: December 13, 1784. Mémoires, Tom. II. p. 106.
- [82] Letter of December 21, 1784: Correspondence of the Revolution, ed. Sparks, Vol. IV. pp. 87, 89; Mémoires, Tom. II. pp. 111, 113.
- [83] Letter to Washington, October 26, 1786: Correspondence of the Revolution, ed. Sparks, Vol. IV. p. 144; Mémoires, Tom. II. p. 157.
- [84] Mémoires, Tom. II. p. 131.
- [85] Correspondence of Charles, First Marquis Cornwallis, ed. Ross, Vol. I. p. 205.
- [86] Letter of 5th April, 1783: Writings, ed. Sparks, Vol. VIII. p. 414; Mémoires, Tom. II. p. 74.
- [87] Mémoires, Tom. II. pp. 9, 139; Tom. III. p. 72.
- [88] Letter of 10th May, 1786: Writings, ed. Sparks, Vol. IX. p. 163.
- [89] Works of John Adams, Vol. VIII. p. 376.
- [90] Hamilton's Works, edited by his Son, Vol. I. pp. 423, 424.
- [91] Lady Morgan's France, Vol. I. p. 71. Ticknor's Outlines of the Life of Lafayette, p. 19. Mémoires, Tom. II. p. 177.
- [92] Mémoires, Tom. II. p. 252.
- [93] Mémoires, Tom. II. p. 251.
- [94] Speech in the National Assembly, February 20, 1790: Mémoires, Tom. II. p. 383.
- [95] Mémoires, Tom. III. p. 71, note. Clarkson, History of the Abolition of the African Slave-Trade, (Philadelphia, 1808,) Vol. II. pp. 106, 107.
- [96] Mémoires, Tom. IV. pp. 221, 230, 231.
- [97] Mémoires, Tom. IV. p. 288.
- [98] Ibid., pp. 237, 238.
- [99] Ibid., p. 242.
- [100] Mémoires, Tom. III. p. 412; Tom. IV. p. 229.
- [101] Lettre à Madame d'Hénin, Magdebourg, 13 Mars, 1793: Mémoires, Tom. IV. p. 224; Sparks's Life of Gouverneur Morris, Vol. I. p. 410; Washington's Writings, ed. Sparks, Vol. IX. p. 163, note.
- [102] Mémoires, Tom. III. pp. 72 and 401, note.
- [103] Speech of Gen. Fitzpatrick in the House of Commons, December 16, 1796: Hansard's Parliamentary History, Vol. XXXII. col. 1353.

[104] “M. de la Fayette est de ces hommes que nous devons aimer, et lors de sa captivité je me présentai à l’Empereur pour réclamer sa liberté, que je n’ai pas eu le bonheur d’obtenir.” This is the report, by Joseph Bonaparte, of the conversation of Lord Cornwallis at the dinner-table of the former, in 1802.—*Mémoires du Roi Joseph*, Tom. I. pp. 86, 87.

[105] In this effort Washington responded to the appeal of Madame de Lafayette by letter to himself. “In this abyss of misery,” she wrote, “the idea of owing to the United States and to Washington the life and liberty of M. de Lafayette kindles a ray of hope in my heart. I hope everything from the goodness of the people with whom he has set an example of that Liberty of which he is now made the victim.”—*Letter of October 8, 1792: Washington’s Writings*, ed. Sparks, Vol. X. p. 316, note.

[106] Exhibiting this chivalrous incident, Mr. Sumner had in mind our fugitive slaves and the generous souls who did not shrink from helping them.

[107] Letter to the Marchioness de Lafayette, January 31, 1793: *Writings*, ed. Sparks, Vol. X. p. 315.

[108] Letter dated Lemkuhlen, 27 Janvier, 1798: *Mémoires*, Tom. IV. p. 403.

[109] Letter of 20th April, 1798: *Ibid.*, p. 432.

[110] *Ibid.*, Tom. V. p. 71.

[111] *Mémoires*, Tom. V. p. 198.

[112] May 20, 1802. *Ibid.*, pp. 199, 200.

[113] *Mémoires*, Tom. V. pp. 257, 258, 261.

[114] Letter to Mr. Madison, 22d April, 1805, MS.

[115] *Biographie Universelle* (Michaud), Supplément, Tom. LXIX. p. 382, art. LAFAYETTE.

[116] Speech in the Chamber of Deputies, June 4, 1819: *Mémoires*, Tom. VI. pp. 50, 51.

[117] Speech in the Chamber of Deputies, May 27, 1820: *Ibid.*, p. 83.

[118] Speech in the Chamber of Deputies, July 9, 1829: *Mémoires*, Tom. VI. p. 313. *Biographie Universelle* (Michaud), Supplément, Tom. LXIX. p. 388, art. LAFAYETTE.

[119] *Mémoires*, Tom. VI. pp. 185, 220. There is also a correspondence with Colonel Seaton, of the *National Intelligencer*, on this interesting subject. A letter to the latter, dated January 1, 1827, has seen the light since this address, where, alluding to the District of Columbia, Lafayette says: “The state of Slavery, especially in that emporium of foreign visitors and European ministers, is a most lamentable drawback on the example of independence and freedom presented to the world by the United States.”—*William Winston Seaton, a Biographical Sketch*, p. 267.

[120] Mrs. Jameson’s *Sacred and Legendary Art*, pp. 424-427.

[121] *Ordre du Jour* du 29 Juillet, 1830: *Mémoires*, Tom. VI. p. 391.

[122] *Ordre du Jour* du 19 Décembre, 1830: *Mémoires*, Tom. VI. p. 491.

[123] Lettre à Thomas Clarkson, 11 Mai, 1823: *Ibid.*, p. 159.

[124] *Mémoires*, Tom. VI. p. 222.

[125] *Ibid.*, p. 754, note.

[126] Lettre à M. Murray, Président de la Société d'Émancipation des Noirs, à Glasgow, 1 Mai, 1834: *Mémoires*, Tom. VI. p. 763, note.

[127] Funeral Oration over the first who fell in the Peloponnesian War: Thucydides, *Hist.*, Book II. c. 43.

[128] Tickell, On the Death of Mr. Addison, 43-46. Latterly these verses have been inscribed on the pavement of Westminster Abbey, over the resting-place of the author by whom they were originally inspired.

[129] McPherson's *Political History of the United States during the Great Rebellion*, p. 72.

[130] This testimony was an evident surprise at the time. The venerable F. P. Blair, of Silver Spring, heard it from the gallery of the Senate, and expressed himself most confidently with regard to its importance and probable influence. But the plot had gone too far. Shortly afterwards the autograph letter was destroyed by the person to whom it was addressed, but not until after it had been photographed in Boston.

[131] These two were in the series of January 3, 1861, and according to Mr. Crittenden were "proposed by the honorable Senator from Illinois" (Mr. Douglas), although nothing in the *Congressional Globe* shows that the propositions of Mr. Douglas offered to the Committee of Thirteen (*ante*, p. 433) were ever before proposed in the Senate. Whatever their origin, they were adopted by Mr. Crittenden, and became part of his Compromise. Of the original copies printed for the Senate only a single copy *containing the important additions* remains on the files. The propositions in their first form are in the *Globe*, under date of December 18, 1860, p. 114, also in McPherson's *Political History of the Rebellion*, pp. 64, 65. They do not appear in the *Globe* on reintroduction with additions, January 3, 1861, p. 237, but the first addition is found at a later date, March 2, 1861, p. 1368, when they were voted on. Nor do the additions appear in McPherson's *History*. It is proper that the disfranchisement of the colored race, where already voters, should not be forgotten as one of the terms of this sacrifice.

[132] *Congressional Globe*, 36th Cong. 2d Sess., pp. 1338-1340, March 2, 1861.

[133] Secretary of the Treasury.

[134] Hon. Edwin M. Stanton.

[135] Debates in the Federal Convention, August 25, 1787: *Madison Papers*, Vol. III. pp. 1429, 1430.

[136] See, *ante*, Vol. III. p. 343; also Congressional Globe, 33d Cong. 1st Sess., Appendix, p. 785.

[137] Speech, March 8, 1820: Mémoires, Tom. VI. p. 70. *Ante*, p. 4.

[138] For Mr. Clark's substitute, see, *ante*, p. 440.

[139] He was already dead.

[140] Mr. Tappan died March 25, 1871, in the ninetieth year of his age.

[141] Speech of Hon. Jesse D. Bright, December 13, 1852: Congressional Globe, 32d Cong. 2d Sess., p. 40.

[142] A telegraphic despatch in the Philadelphia *Inquirer* records the feeling. "Senator Sumner, who is now stopping at Barnum's Hotel, causes much excitement. There is great indignation felt among all parties at his presence among us."

[143] The lady at whose house Mr. Sumner took tea was warned to leave without delay, unless she was willing to brave the vengeance of the mob; and she left.

[144] Schouler's History of Massachusetts in the Civil War, p. 97.

[145] Rebellion Record, Vol. I. Diary, pp. 34, 35.

[146] McPherson's Political History of the United States, p. 382, *note*.

[147] Opinions of the Attorneys-General, Vol. X. p. 382.

[148] Rebellion Record, Vol. III. Diary, p. 35.

[149] Cicero, Oratio in Catilinam I. c. 7. The orator here personifies his country, which speaks. More of the passage is applicable to Slavery: "Tu non solum ad negligendas leges ac quæstiones, verum etiam ad evertendas perfringendasque valuisti. Superiora illa, quamquam ferenda non fuerunt, tamen, ut potui, tuli; nunc vero me totam esse in metu propter te unum." In the same spirit, Niebuhr, the great German, says of Catiline: "He was so completely diabolical that I know of no one in history that can be compared with him, and you may rely upon it that the colors in which his character is described are not too dark." (Lectures on the History of Rome, ed. Schmitz, London, 1849, Vol. III. p. 13.) All of which, whether by Cicero or Niebuhr, is true of Slavery.

[150] See Appendix, pp. 34, 35.

[151] Langhorne's translation is here given, as the most common. For the discussion on this citation, see Appendix, pp. 35-37.

[152] Smith, art. SERVUS.

[153] Rebellion Record, Vol. II., Documents, p. 438.

[154] Executive Documents, 25th Cong. 3d Sess., H. of R., No. 225, pp. 31, 37, 38.

[155] Giddings's Exiles of Florida, p. 226.

[156] Giddings's Exiles of Florida, pp. 326, 327. Opinions of Attorneys-General, Vol. IV. p. 722.

[157] Congressional Globe, 24th Cong. 1st Sess., p. 499; Congressional Debates, Vol. XII. Part 4, col. 4031: May 25, 1836.

[158] Congressional Globe, 24th Cong. 1st Sess., Appendix, p. 435; Congressional Debates, Vol. XII. Part 4, col. 4047: May 25, 1836.

[159] Congressional Globe, 27th Cong. 1st Sess., pp. 27, 38, June 7th and 9th, 1841. The speech of June 7th was long, but was never reported. Mr. Charles J. Ingersoll, of Philadelphia, while declaring his devotion to his Southern brethren, and tendering his services, "even as a corporal or a private," said that he heard this speech with "astonishment and horror." (Ibid., pp. 38, 39.) The speech of June 9th is brief.

[160] Congressional Globe, 27th Cong. 2d Sess., p. 342, March 21, 1842.

[161] April 14 and 15, 1842.

[162] Congressional Globe, 27th Cong. 2d Sess., p. 429.

[163] Congressional Globe, 27th Cong. 2d Sess., p. 429.

[164] Ibid.

[165] "Totidem esse hostes, quot servos." A saying of Cato the elder. (Seneca, Epist. XLVII.). Archdeacon Paley, the lucid moralist, in a speech at Carlisle, February 9, 1792, on the Slave-Trade, announced, as "a principle inherent in every man, 'that a slave watches his opportunity to get free.'" Works, (Boston and Newport, 1810-12,) Vol. V. p. 498.

[166] History, Book I. ch. 101; Book VII. ch. 27; Book VIII. ch. 40.

[167] Ibid., Book IV. ch. 80.

[168] The Clouds, 5-7.

[169] The Laws, Book VI. ch. 5.

[170] Ibid., ch. 19.

[171] Rebellion Record, Vol. II., Diary, p. 33.

[172] Letter of Attorney-General Bates: McPherson's Political History of the United States during the Great Rebellion, p. 235, note; also Appleton's Annual Cyclopædia, 1861, art. SLAVES, p. 642. This letter is not found in the Opinions of the Attorneys-General.

[173] Rebellion Record, Vol. II., Documents, pp. 437, 438.

[174] Rebellion Record, Vol. II., Documents, p. 493.

[175] Appleton's Annual Cyclopædia, 1861, art. SLAVES, p. 643. The Secretary spoke at a "clam-bake."

[176] Rebellion Record, Vol. III., Documents, p. 36.

[177] On the Frogs, 190.

[178] Plutarch, *Decem Oratorum Vitæ: Hyperides*. See also Demosthenes, *Contra Aristogitonem* II. pp. 803, 804; *Allgemeine Encyklopädie von Ersch und Gruber*, art. HYPERIDES; *Smith's Dictionary of Greek and Roman Biography and Mythology*, Vol. I. p. 985, art. DEMOSTHENES.

[179] From a MS. note-book; but the reference is accidentally omitted.

[180] *History of Rome*, Vol. II. p. 300.

[181] Art. CAIUS MARIUS.

[182] *History of Rome*, ed. Schmitz, Vol. I. (forming the fourth volume of the entire *History*) p. 400.

[183] From the French of Amiot, Cambridge, 1676, p. 367.

[184] *Life of Tiberius Gracchus*, tr. Langhorne.

[185] *History of Rome*, ed. Schmitz, Vol. I. p. 326.

[186] Suetonius, *Julius Cæsar*, c. XLII.

[187] Merivale, *History of the Romans under the Empire*, Vol. I. p. 52.

[188] *Life of Caius Marius*, tr. Langhorne.

[189] *Ibid.*, from the French of Amiot, Cambridge, 1676, p. 368.

[190] *Ibid.*, tr. Langhorne.

[191] *Life of Sertorius*, tr. Langhorne.

[192] *Ibid.*

[193] "Out of which materials he made up a legion."—*Decline of the Roman Republic*, Vol. II. Chap. XVIII. p. 239.

[194] Mr. Charles C. Hazewell, in an elaborate article, brought his rare acuteness and reading in reply to the critics. *Daily Evening Traveller*, October 19, 1861.

[195] The *New York Herald*, in reproducing the letter, attributed it to Prince Napoleon. In like spirit, Maurice Sand, son of George Sand, who was in the suite of the Prince, in his *Six Mille Lieues à toute Vapeur*, in the *Revue des Deux Mondes*, 1862, Jan.-Fév., p. 686.

[196] *Lettres sur les États-Unis d'Amérique*, par le Lieutenant-Colonel Ferri-Pisani, Aide-de-Camp de S. A. I. Prince Napoléon, pp. 121, 122.

[197] Mr. Sumner insisted that the Union could be saved only through Freedom.

[198] Strictly true, during the delivery of the speech.

[199] *L'Amérique devant l'Europe*, pp. 262, 268, 440.

[200] Special Report of the Antislavery Conference in Paris, August 24 and 27, 1867, pp. 30, 31.

[201] Journal des Débats, 11 Oct., 1871.

[202] Cicero, Oratio ad Quirites post Reditum, c. 8,—quoted in Private Letters of Junius to H. S. Woodfall, No. 59, March 5, 1772: Woodfall's Junius, (London, 1812,) Vol. I. p. 253.

[203] An Historical Research respecting the Opinions of the Founders of the Republic on Negroes as Slaves, as Citizens, and as Soldiers: read before the Massachusetts Historical Society, August 14, 1862. Reprinted from Proceedings of the Massachusetts Historical Society, 1862-63.

[204] This introduction is taken from the pamphlet edition of the Oration.

[205] Of Reformation in England, Book II.: Prose Works, ed. Symmons, Vol. I. p. 45.

[206] Rebellion Record, Vol. I. pp. 45, 46.

[207] The Debates in 1776 on the Declaration of Independence, etc., preserved by Thomas Jefferson: Madison Papers, Vol. I. p. 17; Jefferson's Writings, Vol. I. p. 18.

[208] Bowen, Life of Benjamin Lincoln: Sparks's American Biography, 2d Ser. Vol. XIII. p. 286.

[209] Debates in the Federal Convention, August 21, 22, 1787: Madison Papers, Vol. III. pp. 1389-1395.

[210] Works of John Adams, Vol. I. p. 207.

[211] Letter to James Lloyd, 11th February, 1815: Works, Vol. X. p. 119.

[212] Congressional Globe, 36th Cong. 2d Sess., p. 32, December 10, 1860. *Ante*, Vol. V. p. 430.

[213] Greeley's American Conflict, Vol. I. p. 345.

[214] Dryden, *Annus Mirabilis*, st. 39.

[215] Hume, History of England, (London, 1786,) Chap. LV. Vol. VI. p. 493.

[216] Soame Jenyns, The American Coachman, st. 1,—a poem at the time of our Revolution, suggested by a pamphlet of Dean Tucker proposing to let the Colonies go.

[217] Whately, Bacon's Essays, with Annotations, 3d edit. revised, p. 140, Essay XV.

[218] Charles James Fox, Letter to Lord Holland, 18th June, 1804.

[219] See, *ante*, Vol. V. p. 215.

[220] The Friend, Essay XVI.

- [221] Lafayette, Mémoires, Tom. III. p. 376.
- [222] Speech, January 21, 1794: Hansard, Parliamentary History, Vol. XXX. 1221, 1222.
- [223] Hansard, XXX. 1114.
- [224] Ibid., 1118. Brissot to his Constituents, translated, (London, 1794,) p. 81.
- [225] Brissot to his Constituents, translated, (London, 1794,) pp. 9, 34.
- [226] The Causes and Conduct of the Civil War. Address before the Mercantile Library Association of Boston, October 16, 1861: Orations and Speeches, Vol. IV. p. 485.
- [227] Montgomery (Alabama) Advertiser.
- [228] Annal., Lib. XV. c. 44.
- [229] Origen, Contra Celsum, Lib. III. c. 55.
- [230] Minucius Felix, Octavius, c. 8.
- [231] This cry found echo out of the hall in a stirring poem by A. J. H. Duganne, entitled, "On to Freedom."
- [232] Rebellion Record, Vol. III., Documents, p. 101.
- [233] Later speeches show how this pledge was fulfilled.
- [234] Plutarch, Decem Oratorum Vitæ: Hyperides.
- [235] Liv., Lib. XXII. c. 57; Lib. XXIV. c. 14-16.
- [236] *Post*, Appendix, p. 116.
- [237] Congressional Globe, 37th Cong. 1st Sess., pp. 218, 219.
- [238] Statutes at Large, Vol. XII. p. 319.
- [239] Finger-Point from Plymouth Rock: *ante*, Vol. III. p. 269.
- [240] Cicero, Oratio in Pisonem, c. 32.
- [241] History of the Abolition of the African Slave-Trade, (Philadelphia, 1808,) Vol. II. p. 460, note.
- [242] Collins, Ode written in the beginning of the year 1746.
- [243] Hon. David C. Broderick, Senator of the United States from California, killed in a duel by David S. Terry, Chief Justice of the Supreme Court of that State, September 16, 1859.
- [244] Thucydides, History, Book II. ch. 39.
- [245] Since admission as a State its Senators had been of the Democratic party.

[\[246\]](#) John C. Breckinridge.

[\[247\]](#) Macbeth, Act IV. Scene 3.

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